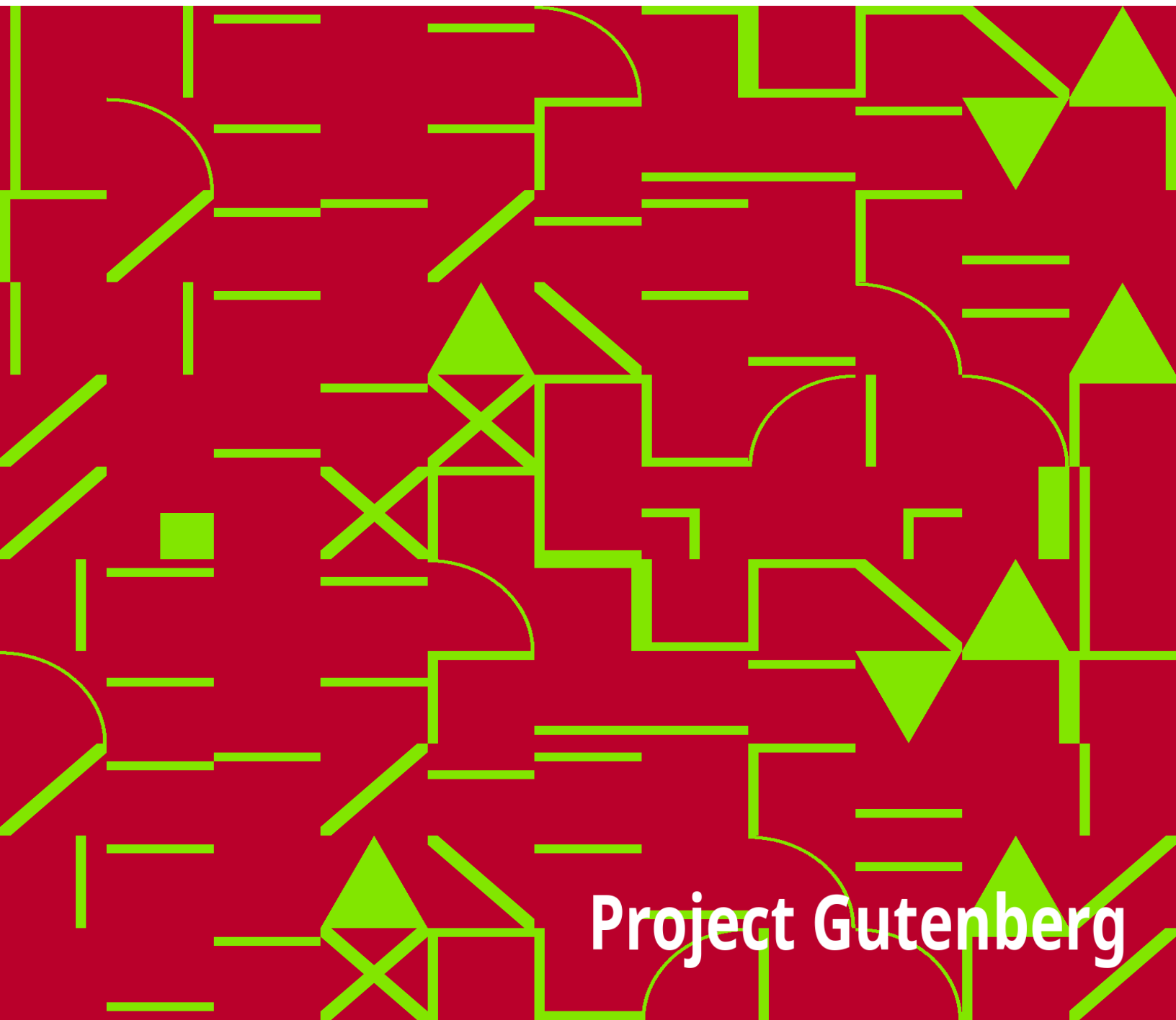


The Diplomatic Correspondence of the American Revolution, Vol. 06

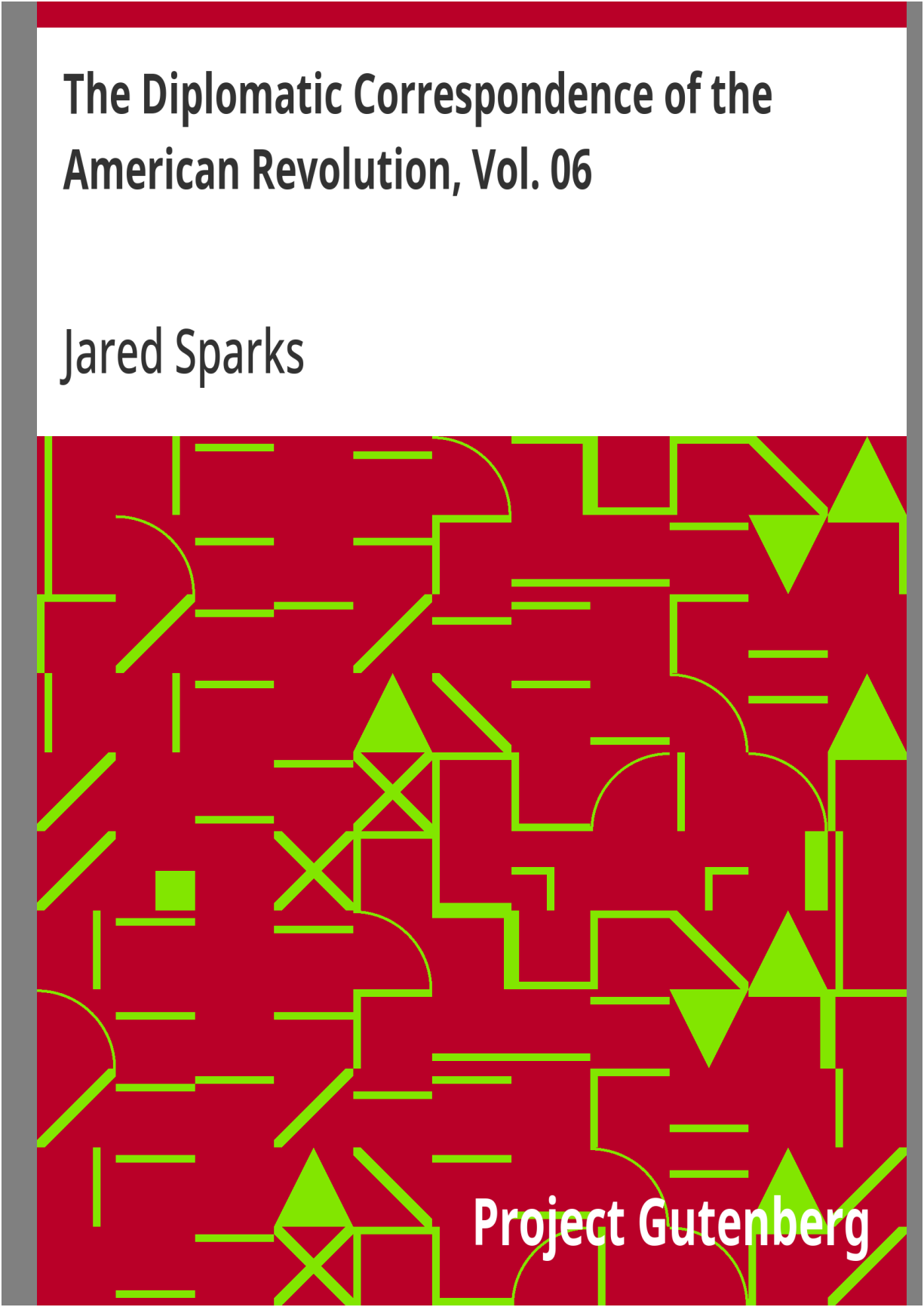
Jared Sparks



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The Diplomatic Correspondence of the American Revolution, Vol. 06

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DIPLOMATIC CORRESPONDENCE OF THE AMERICAN
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THE
DIPLOMATIC
CORRESPONDENCE
OF THE
AMERICAN REVOLUTION.

VOL. VI.

THE
DIPLOMATIC
CORRESPONDENCE

OF THE
AMERICAN REVOLUTION;

BEING

THE LETTERS OF BENJAMIN
FRANKLIN, SILAS DEANE, JOHN
ADAMS, JOHN JAY, ARTHUR LEE,
WILLIAM LEE, RALPH IZARD,
FRANCIS DANA, WILLIAM
CARMICHAEL, HENRY LAURENS,
JOHN LAURENS, M. DE LAFAYETTE, M.
DUMAS, AND OTHERS, CONCERNING
THE FOREIGN RELATIONS OF THE
UNITED STATES DURING THE WHOLE
REVOLUTION;

TOGETHER WITH

THE LETTERS IN REPLY FROM THE
SECRET COMMITTEE OF CONGRESS,
AND THE SECRETARY OF FOREIGN
AFFAIRS.

ALSO,

THE ENTIRE CORRESPONDENCE OF
THE FRENCH MINISTERS, GERARD
AND LUZERNE, WITH CONGRESS.

Published under the Direction of the
President of the United States, from the
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EDITED

BY JARED SPARKS.

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To Robert R. Livingston. The Hague, September 6th, 1782,

State of the connexion between France and Holland.—Policy of France toward the United States. Influence of the memorial of Mr Adams to the States-General.—The Count de Vergennes opposes the proposition of the triple alliance.—The American Ministers in Europe ought not to be subject to the control of the French Court.

To Robert R. Livingston. The Hague, September 7th, 1782,

Enclosing his accounts.

Robert R. Livingston to John Adams. Philadelphia, September 15th, 1782,

Enclosing certain financial resolutions of Congress.—Recommends the use of English language by the American Ministers.—M. Dumas.

To Robert R. Livingston. The Hague,
September 17th, 1782,

Conference with the Secretary of the States-General for correcting the treaty of commerce.—
Conversation with the French Ambassador on the Dutch naval forces.

Extracts from the Records of the Resolutions
of their High Mightinesses the States-General
of the United Netherlands,

Authorising the Deputies for Foreign Affairs to
conclude and sign the treaty of commerce, and the
convention on the subject of recaptures, with Mr
Adams.

To Robert R. Livingston. The Hague,
September 17th, 1782,

Probability of the continuance of the armed
neutrality.—The acknowledgment of American
Independence is not a violation of its principles.—
Jealousies of some powers against the House of
Bourbon.

To Robert R. Livingston. The Hague,
September 23d, 1782,

Conversation with the Spanish Minister.—English,
Dutch, Spanish, and American Ministers at Paris,
without any appearance of a sincere desire to treat
on the part of England.—Visit to the Duc de la
Vauguyon.—The Duke instructed to propose the
concert of the Dutch naval forces with the French,
in intercepting the English West India fleet.

A Memorial concerning the Bank of
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Giving an account of its funds, mode of transacting
business, &c. Note on the above, correcting a
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To M. de Lafayette. The Hague, Sept. 29th,
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State of American affairs in Holland.—Conduct of the different foreign Ministers towards Mr Adams.

To John Jay. The Hague, October 7th, 1782,
Causes which delay his going to Paris.

To Robert R. Livingston. The Hague,
October 8th, 1782,
The treaty of commerce, and the convention concerning recaptures executed.—Remarks on some of the clauses, and some rejected articles.

To Robert R. Livingston. The Hague,
October 12th, 1782,
Preparing to set out for Paris.

To Robert R. Livingston. Paris, Oct. 31st, 1782,
Arrival in Paris.—Conference with Mr Jay.—Difference of opinion as to the true sense of the instructions to the Ministers, requiring them to act only with the consent of the French Ministry.—Contested points.—Visits the Dutch Minister, who informs him that little progress has been made in the negotiations between Holland and England.—M. Rayneval's visit to England.

To Robert R. Livingston. Paris, Nov. 6th, 1782,
Mr Jay and Mr Adams have declined treating without a previous acknowledgment of independence.—Information from Holland reaches America by the way of France, before it can be transmitted directly.—The affairs of the Foreign Department ought to be kept secret from France.—Character of the English agents for negotiating the peace.—Real disposition of Lord Shelburne.—Have agreed on boundaries, and the payment of British debts due before the war.—Indemnification of tories and Eastern boundary, points of dispute.—Secret influence of France.—Negotiations at Versailles secret.—The Dutch Ambassador suspects the sincerity of the English.—Mr Oswald proposes

that the British army should be allowed to evacuate New York unmolested.

Robert R. Livingston to John Adams.
Philadelphia, November 6th, 1782,

Military operations have ceased.—Mr Fitzherbert's commission.

To Robert R. Livingston. Paris, Nov. 8th, 1782,

Importance of insisting upon points of etiquette.—Thinks the instructions to communicate everything to the French Minister is not to be understood literally.—Good effects which have been produced by disobeying them.—Submission of Dr Franklin.

To Robert R. Livingston. Paris, Nov. 11th, 1782,

Conversation with Count de Vergennes on the controverted points, Eastern boundary, compensation to tories.—Suspensions of the motives of France.—All points should be definitively settled, so as to leave America totally unconnected with any European power.

Robert R. Livingston to John Adams.
Philadelphia, November 18th, 1782,

Mr Jefferson added to the commission.—The resignation of Mr Laurens not accepted by Congress.—Affair of Captain Asgill.

To Robert R. Livingston. Paris, Nov. 18th, 1782,

Embarrassments occasioned by the instruction to communicate on all matters with the French Ministers.

To Robert R. Livingston. Paris, Nov. 24th, 1782,

Speculations on the probable disposition of the British Cabinet, in case of change.—The

acknowledgment of independence still leaves room for disputes on other points.

To Robert R. Livingston. Paris, Dec. 4th, 1782,

Transmits the preliminary treaty.—Desires to resign his commission in Holland.—Recommends Mr Laurens as his successor.

Extracts from a Journal,

Propositions in regard to the Northern and Eastern boundaries.—Mr Adams observes, that the questions of compensation to the tories, and of allowing the claims of British creditors are different in principle.—Mr Jay refuses to treat with the Spanish Minister without exchanging powers.—Mr Jay's refusal to treat with the British, without a previous acknowledgment of independence.—Mr Jay thinks the French Court oppose the claims of the American Ministers.—Visit to Count de Vergennes.—Conversation with Mr Whiteford on the policy of France.—Mr Adams called the Washington of the negotiation.—Conversation with Mr Oswald relative to the compensation of the tories.—Conversation with Mr Vaughan on the same subject.—Conversation with M. de Lafayette on the subject of a loan.—Danger to America from European politics.—Mr Strachey returns from London with the adhesion of the Cabinet to the compensation of the tories.—The fisheries.—Consultation of the American Ministers.—Mr Fitzherbert's negotiations concerning the fisheries.—Mr Adams proposes an article relative to the right of fishing and curing fish.—Discussion of the article.—The American Ministers propose restoration of all goods carried off or destroyed in America, if the compensation is insisted on.—The English Ministers assent to the American ultimatum respecting the fishery and the tories.—Final meeting.—Mr Laurens proposes an article, that the English should carry off no American property.—Reflections on the negotiation.—State of the Dutch negotiations.—"Letters of a distinguished American," by Mr Adams.—Conversation with Mr Oswald on the true policy of England toward America.—Dr Franklin desires to enter upon the negotiation of the definitive treaty.

—Mr Adams and Mr Jay prepare the joint letter to Congress.

THE
CORRESPONDENCE

OF
J O H N A D A M S ,

**ONE OF THE COMMISSIONERS TO FRANCE, MINISTER
PLENIPOTENTIARY TO HOLLAND, AND ONE OF THE
COMMISSIONERS FOR NEGOTIATING THE TREATY OF
PEACE.**

THE
CORRESPONDENCE
OF
JOHN ADAMS.

CORRESPONDENCE CONTINUED.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, May 16th, 1781.

Sir,

There has been much said in the public papers concerning conferences for peace, concerning the mediation of the Emperor of Germany and the Empress of Russia, &c. &c. &c.

I have never troubled Congress with these reports, because I have never received any official information or intimation of any such negotiation, either from England or France, or any other way. If any such negotiation has been going on, it has been carefully concealed from me. Perhaps something has been expected from the United States, which was not expected from me. For my own part, I know from so long experience, at the first glance of reflection, the real designs of the English government, that it is no vanity to say they cannot deceive me, if they can the Cabinets of Europe. I have fully known, that all their pretensions about peace were insidious, and therefore have paid no other attention to them, than to pity the nations of Europe, who, having not yet experience enough of British manœuvres, are still imposed on to their own danger, disgrace, and damage. The British Ministry are exhausting all the resources of their subtlety, if not of their treasures, to excite jealousies and diversions among the neutral, as well as belligerent powers. The same arts precisely, that they have practised so many years to seduce, deceive, and divide America, they are now exerting among the powers of Europe; but the voice of God and man is too decidedly against them to permit them much success.

As to a loan of money in this Republic, after having tried every expedient and made every proposition, that I could be justified or excused for making, I am in absolute despair of obtaining any, until the States-General shall have acknowledged our independence. The bills already accepted by me are paying off as they become due, by the orders of his Excellency Dr Franklin; but he desires me to represent to Congress the danger and inconvenience of drawing before Congress have information that their bills can be honored. I must entreat Congress not to draw upon me, until they know I have money. At present I have none, not even for my subsistence, but what I derive from Paris.

The true cause of the obstruction of our credit here is fear, which can never be removed but by the States-General acknowledging our independence; which, perhaps, in the course of twelve months they may do, but I do not expect it sooner. This country is indeed in a melancholy situation, sunk in ease, devoted to the pursuits of gain, overshadowed on all sides by more powerful neighbors, unanimated by a love of military glory, or any aspiring spirit, feeling little enthusiasm for the public, terrified at the loss of an old friend, and equally terrified at the prospect of being obliged to form connexions with a new one; incumbered with a complicated and perplexed constitution, divided among themselves in interest and sentiment, they seem afraid of everything. Success on the part of France, Spain, and especially of America, raises their spirits, and advances the good cause somewhat, but reverses seem to sink them much more.

The war has occasioned such a stagnation of business, and thrown such numbers of people out of employment, that I think it is impossible things should remain long in the present insipid state. One system or another will be pursued; one party or another will prevail; much will depend on the events of the war. We have one security, and I fear but one, and that is the domineering character of the English, who will make peace with the Republic upon no other terms, than her joining them against all their enemies in the war, and this I think it is impossible she ever should do.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, May 21st, 1781.

Sir,

On the 30th of April, the King of Prussia published the following ordinance, relative to the navigation and commerce of his subjects, during the whole course of the present war between the maritime powers.

ORDINANCE OF PRUSSIA RELATIVE TO NAVIGATION.

"From the commencement of the maritime war, almost generally spread through the southern part of Europe, the King has applied himself with particular care to procure to those of his subjects who traffic by sea, or who engage in navigation, all the security possible, and to this end he has caused to be required of the belligerent powers to give exact orders to their vessels of war and privateers, to respect the Prussian flag, and to suffer peaceably to pass all the Prussian vessels, which should be loaded with merchandises, which, according to the law of nations, are reputed lawful and not contraband, and not cause to them any damage or delay, and much less still to conduct them without necessity or right into foreign ports; to which these powers have answered by assurances friendly and proper to make things easy in this regard. To attain still more certainly to this end, his Majesty has ordered his Ministers, residing near the belligerent powers, to interest themselves as much as possible, and by representations the most energetic in favor of Prussian subjects, who trade at sea, and whose vessels might be taken, conducted into foreign ports, or as has often happened, pillaged even upon the high seas, and to insist on their speedy release, and that the processes at law, occasioned by their capture, should be decided without delay, and with the requisite impartiality. To the end, therefore, that the Ministers of the King may be in a condition to acquit themselves of these orders in this respect, it is necessary that the subjects of his Majesty, who find themselves in such a case, announce themselves, or by attorney, to the Envoy of the King, at the Court where the complaints ought to be carried,

and that they may give him information in detail of their subjects of complaint, that he may be able to support them there, where they belong. They ought not, however, to repose themselves entirely on a similar intercession, but carry also their complaints themselves to the Admiralties, or Maritime Colleges of the country, where their vessel has been conducted, or in which they have caused him damage, support his complaints with requisite proofs, follow the judiciary order, and the different trials established in each country, and solicit and pursue with diligence their causes by advocates and attornies; by means of which, it is to be hoped, that they will obtain a prompt and impartial decision; in default of which, it shall be permitted to them to address themselves to the Envoys of the King, to carry to each Court the complaints, which the case may require, and obtain the redress of it.

"But to secure still more the navigation of his subjects, the King has caused to be demanded by his Ministers, of her Majesty the Empress of Russia, and the two other Maritime Powers of the North, who, as is well known, have united to maintain the maritime neutrality, to be so good, as powers with whom the King has the satisfaction to live in the strictest union, as to order the commanders of their vessels of war, to take the Prussian merchant vessels, which they may meet in their courses, in their sight, and within reach of their cannon, under their convoy and protection, in case they shall be attacked or molested by the vessels of war, or privateers, of the belligerent powers. Her Majesty, the Empress of Russia, has assured the King, by a declaration written by her Ministry, that she had not only given precise orders to the commanders of her vessels of war, to protect, against all attacks and molestations, the vessels of Prussian merchants and navigators, that they may encounter in their course, as belonging to a power allied to Russia, and who observe exactly the rules of the maritime neutrality founded upon the law of nations, but that she would enjoin it also upon her Ministers at the Courts of the belligerent powers, that as often as the Envoys of the King of Prussia should have claims and complaints to carry to the Courts where they reside, relative to the hinderances occasioned to the maritime commerce of the Prussian subjects, they should support such complaints in the name of her Majesty, the Empress of Russia, by their good offices, and that she expected in return from his Majesty, the King, that he would equally furnish his Ministers to the belligerent powers with

instructions, conformable to the maritime convention of the Powers of the North, with orders to accede by energetic representations to the complaints of the Ministers of the powers allied for the defence of the maritime neutrality, in case they shall have certain satisfaction to demand for the subjects of their sovereigns.

"The King has accepted this friendly declaration of her Majesty, the Empress, with gratitude, and by a counter declaration, which is conformable to it, he has caused his Ministers to be instructed at foreign Courts. His Majesty has before, on occasion of another negotiation with the Court of Denmark, required his Danish Majesty to grant to Prussian merchant vessels the protection of his military marine, and has received the friendly assurances of it, that the Danish vessels of war should take under convoy and protection the Prussian merchant vessels, which should conform themselves to the treaties, which subsist between the Court of Denmark and the belligerent powers, with relation to merchandises of contraband. The King has addressed the same demand to the Court of Sweden, and promised himself from the friendship of his Swedish Majesty an answer as favorable as that of their Majesties, the Empress of Russia and the King of Denmark.

"We give notice of those arrangements to all the subjects of the King, who exercise navigation and maritime commerce, to the end that they and their captains of vessels and skippers may conform themselves to them, and in case they shall be attacked, molested, or taken by the vessels of war and privateers of the belligerent nations, address themselves to the Russian, Swedish, or Danish vessels of war, which may be found within their reach, demand their protection and assistance, and join themselves as much as possible to the fleets and convoys of these maritime powers of the north.

"But as the intention of his Majesty is simply to assure, by the beforementioned arrangements, the lawful maritime commerce of his subjects, and not to do any prejudice to the rights of the belligerent powers with whom he is in perfect harmony, or to favor an illicit commerce, which might be dangerous to them, all the subjects of his Majesty who exercise navigation and maritime commerce, ought to conduct themselves in such a manner as to observe an exact neutrality, such as is founded on the law of nature, and in the general laws of nations almost universally acknowledged.

But the different treaties which several powers have concluded with each other relative to maritime commerce, occasioning a difference of law in this regard, it is principally to the known declaration which her Majesty, the Empress of Russia, caused to be presented the last year to the belligerent powers, and to the ordinance which she caused to be addressed in consequence to her College of Commerce on the 8th of March, 1780, that the subjects of the King will have to conform themselves with regard to their maritime commerce, the principles which are there announced being those which his Majesty finds the most conformable to the law of nations, and to his in particular. It is in consequence ordained by the present edict to all the subjects of the King, who exercise navigation or maritime commerce,

"ARTICLE I. Not to take any part, under any pretence whatever, in the present war, and not to carry to any of the belligerent powers, under the Prussian flag, merchandises, generally acknowledged to be prohibited and contraband, and which properly constitute warlike stores, as cannons, mortars, bombs, grenades, fusils, pistols, bullets, flints, matches, powder, saltpetre, sulphur, pikes, swords, and saddles. The subjects of the King ought to have on board their merchant vessels only so much of these articles as is necessary for their own use.

"ART. II. The subjects of the King may, on the contrary, carry in Prussian vessels as well to belligerent as to neutral nations, all the merchandises which are not comprehended in the preceding article, and which not properly belonging to warlike stores, are not prohibited, and particularly the productions of all the Provinces of the States of the King; his Majesty promising himself from the equity and the friendship of the belligerent powers, that they will not permit their armed vessels to molest or take the Prussian vessels loaded with masts, timber, pitch, corn, and other materials, which, without being warlike stores, may, nevertheless, in the sequel be converted into such stores, and which make the principal and almost the only object of Prussian commerce. These powers are too just to require that the commerce of a neutral nation should cease, or be entirely suspended on account of the war. After these principles, it is hoped that the belligerent powers will suffer freely to pass without seizure or confiscation, the lawful merchandises and cargoes of the Prussian subjects, which may be found on

board the vessels of belligerent nations, as also the lawful cargoes and merchandises of belligerent nations loaded in Prussian vessels, and in all these cases, his Majesty will interest himself effectually in favor of his subjects trading by sea. It is, however, the part of prudence for these last to load as much as possible their merchandises and effects in Prussian vessels, and to transport them under the Prussian flag; not to employ themselves much in the coasting trade, but to apply themselves principally to a Prussian commerce without mixture, the better to avoid all accidents, misunderstandings, and difficulties.

ART. III. All the Prussian vessels which shall put to sea, ought to furnish themselves with passports and attestations of the Admiralties, Chambers of War, and the domains of each Province, or of the magistrates of each city, as also with charter-parties, recognizances, and other certificates of common usage, which ought to express the quality and the quantity of the cargo, the name of the proprietor, and of him to whom the merchandises are consigned, as well as the place of the destination. These sea-papers ought to be clear, and to contain no equivocation. They ought to be found on board every vessel, and they ought not, under any pretence whatsoever, to throw them into the sea. The captains of vessels and skippers will take care above all, not to have in their vessels any sea-papers, double, equivocal, or false, by which they would render themselves unworthy of all protection.

"ART. IV. Every Prussian vessel loaded in a foreign port, ought to furnish herself in the said port with sea-papers necessary, and in the form used in the place where she loads, to the end to be able to prove everywhere of what nation she is, what is her cargo, from whence she comes, and whither she goes.

"ART. V. There ought not to be found on board of Prussian vessels, neither officers of marine, nor persons employed in it of the belligerent nations, nor more than one third of the crew of those nations.

"ART. VI. It is forbidden to Prussian navigators to transport cargoes or merchandises of any sort whatever to places or ports besieged, blocked, or shut up closely by any one of the belligerent powers.

ART. VII. It is forbidden to Prussian navigators, or merchants, to lend their names to foreign nations, and they ought to exercise commerce in general in a manner conformable to the rights and customs of nations, so that they commit no infringement of the rights of any of the belligerent powers, and that they may have no just subject of complaint.

"The subjects of the King who shall conform exactly to the present edict, may promise themselves on the part of his Majesty all possible protection and assistance, instead of which, those who may contravene it, ought not to expect it, but to attribute to themselves the dangers and damages, which they may draw upon themselves, by a conduct contrary to this ordinance. Given at Berlin, the 30th of April, 1781.

"By express order of the King.

HERTZBERG."

I have the honor to be, &c.

JOHN ADAMS.

TO B. FRANKLIN.

Amsterdam, May 23d, 1781.

Sir,

I have the honor of your letter of the 19th with its enclosures, and I thank your Excellency for the pains you have taken to communicate the news from America, which I think can scarcely be called bad, though General Greene lost the field. I had before received and published in the Amsterdam Gazette the same accounts. The gazetteers are so earnest after American news, that I find it the shortest method of communicating the newspapers to all.

I have received from Congress their resolution of the 3d of January, 1781, to draw bills upon me in favor of Lee & Jones, at six months sight, for the full amount of the balance due on the contract made with them for a quantity of clothing for the army. I have also a letter from Mr Gibson, of the treasury office, of January 28th, which informs me that the amount of Jones & Lee's account is sixteen thousand two hundred and fortyfour pounds one shilling sterling.

I have just received from Gottenburg the enclosed letters, one to your Excellency and one to Mr Jay. I received both unsealed, with a direction to take copies. I have put my own seal upon that to your Excellency, and request the favor of you to put yours upon that to Mr Jay, and to convey it in the safest manner. It contains matter of great importance, which ought to be carefully concealed from every eye but yours and Mr Jay's; for which reason I should be cautious of conveying it, even with the despatches of the Spanish Ambassador, especially as there are intimations in Mr Lovell's letter of too much curiosity with regard to Mr Jay's despatches, and as Mr Jay himself complains that his letters are opened. I hope this instruction will remove all the difficulties with Spain, whose accession to the treaty would be of great service to the reputation of our cause in every part of Europe.

It seems to me of vast importance to us to obtain an acknowledgment of our independence from as many other Sovereigns as possible, before any conferences for peace shall be opened; because, if that event should take place first, and the powers at war with Great Britain, their armies, navies, and people weary of the war, and clamoring for peace, there is no knowing what hard conditions may be insisted on from us, nor into what embarrassments British arts and obstinacy may plunge us.

By the tenth article of the Treaty of Alliance, the contracting parties agree to invite or admit other powers who may have received injuries from Great Britain, to accede to that treaty. If Russia and the northern powers, or any of them, should be involved in the war in support of the Dutch, would it not be a proper opportunity for the execution of this article? Or, why would it not be proper now to invite the Dutch?

I have the honor to enclose a memorial to their High Mightinesses. My mission is now a subject of deliberation among the Regencies of the several

cities and the bodies of nobles who compose the sovereignty of this country. It is not probable that any determination will be had soon. They will probably confer with Russia, and the northern powers, about it first. Perhaps, if these come into the war, nothing will be done but in concert with them. But if these do not come into the war, this Republic, I think, in that case will readily accede to the Treaty of Alliance between France and America; for all ideas of peace with England are false and delusive. England will make peace with the Dutch upon no other condition than their joining her in the war against all her enemies, which it is impossible for them to do, even if their inclinations were that way, which they are not. The public voice here is well decided against England.

I have the honor to be much of your Excellency's opinion respecting duties. I mentioned tobacco, to show what duties America was able to bear. Whatever sums a people are able to bear, in duties upon exports or imports upon the decencies, conveniences, or necessities of life, they are undoubtedly able to raise by a dry tax upon polls and estates, provided it is equally proportioned. Nay more, because the expense of collecting and guarding against frauds is saved.

Our countrymen are getting right notions of revenue, and whenever these shall become general, I think there can be no difficulty in carrying on the war.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, May 24th, 1781.

Sir,

A proposition of very great consequence has been made in the Assembly of the States of Holland, by the city of Amsterdam. It is conceived in these words;

"The gentlemen, the Deputies of the city of Amsterdam, have, by the express orders of the gentlemen their principals, represented in the Assembly, that the venerable magistrates had flattered themselves that they should see the effects of the efforts attempted for some time by the Admiralties, to put to sea a quantity of vessels of war capable of protecting the commerce and the navigation of the inhabitants of this State, or at least some branches of them; that the gentlemen, their principals, had had reason to be confirmed in their expectation, above all when they were informed that a number sufficiently considerable of vessels of war, provided with things necessary, were ready to put to sea, and that orders had been positively given upon this subject; but, to their extreme astonishment they had learned some time after, that the officers who commanded the said vessels, upon the point of executing the said orders, had given notice that the want of stores, provisions, and victuals put them out of a condition to obey the said orders, that the gentlemen, their constituents, having considered that not only this want of stores, &c., ought not to have existed, but that it might have been seasonably obviated; they had been so struck with this unexpected delay in an affair, which they judged of the last importance for this country, especially on account of certain particular circumstances, that they could not refrain from declaring freely, that they had lawful reasons to fear that such inactivity left little hope of seeing effected a protection which is of the last necessity for the commerce and navigation, the total interruption of which cannot fail to occasion a great dearth, and to bring on very soon a most sensible scarcity, without speaking of the impossibility of striking blows to an enemy who has for five months attacked this State by an unjust war, and has already rendered himself master by surprise of a great number of rich vessels of war, and merchant ships, and of some of our distant possessions.

"That the gentlemen, the principals, in virtue of these reasons, and of others not less pressing, have judged that they could not longer delay to lay before the eyes of the members of the Assembly of your Noble and Grand Mightinesses, in a manner the most pressing and the most lively, the terrible

consequences, which this deplorable state of things makes them apprehend for their dear country. That the powers of the north, with whom the Republic is entered into alliance, and from whom she has sufficient reasons to expect succors, have marked more than once their astonishment at our inactivity, and at the affected tranquillity with which the Republic suffers all the insults of her enemy, without making the least preparation to repel them. That, from time to time, advices have come from our Ambassadors Extraordinary to the Court of Petersburg, that we had not to expect, neither from that Court, nor from her allies, succors, but in proportion to the efforts which the Republic should make on her part. That these things have appeared to the gentlemen, the principals, of so great importance, and of so extensive consequence, that it is more than time, that this sovereign Assembly pass, as soon as possible, to a scrupulous examination of the true causes of such inactivity; that she cause to be given instructions, and an explanation of the state of defence of the country, relative to the necessary orders which she has given; that she obtain information concerning the reasons of the extreme sloth and lukewarmness, with which they proceed to the protection of the country against an enemy formidable, especially for his activity, and concerning the means which we may and ought to employ, to shut up the source of these evils, and make them disappear.

"That the gentlemen, the constituents, have desired to put themselves out of the reach of all reproach from the inhabitants of this country, whose total ruin advances with rapid strides, and who, to this day, have not ceased to pour out with joy into the public treasury, the imposts and taxes, which we have imposed on them, demanding in return, with the greatest justice, to be protected by the fathers of the country. To this end, and to ward off as much as it is in their power, the ruin of this Republic, formerly so flourishing and so respected by its neighbors, they have charged in the manner the most express their Deputies to these States to insist in the strongest manner, that we proceed to the beforementioned examination, and that on the part of this Province things be directed in the generality in such a manner, that we demand, as soon as possible, to enter into negotiation with the Court of France, which has not ceased to give us such numerous and shining marks of her good will, and of her inclination to succor us against the common enemy, and has already shown us, by the effects, that her offers of service do not consist in vain words; to deliberate with this Court concerning the

manner in which it will be convenient and practicable to act, by communicating to each other the reciprocal plans of operation, which we may attempt during this summer.

"That at the same time, it is not expedient to neglect to instruct our Ministers at the Courts of Russia, Sweden, and Denmark, of the state of things in this country, and of the means of defence, which the Republic puts in motion, with the express orders to make, without relaxation, to the said Courts, pressing and redoubled instances to send us a large number of vessels of war well equipped, to which at least one of them has already shown herself disposed; representing to them, at the same time, in a pressing manner, the present necessity of sending us, conformably to the stipulations of the convention lately concluded and ratified, as soon as possible, the succors promised in the said convention.

"That, besides the propositions, which we have pointed out, and from the success of which the gentlemen, the constituents, promise themselves all sorts of advantages, the venerable magistrates are still in the opinion, that this State, although abandoned to itself, against all expectation and all hope, does not yet cease to have numerous and sufficient resources, not to consider its defence as absolutely desperate; for it is very true, that after a long peace, the first alarm of a war, and of an unforeseen attack, may at first throw men's minds into terror, disorder, and consternation; but it is not less true, that the riches and the resources of the nation in general, having received a considerable increase by the enjoyment of the fruits of this peace, the supreme government finds itself, by employing them in a useful and salutary manner, in a condition to make head for a long time against an enemy already exhausted by a long and expensive war, and to take so good measures, that we may force her to renew an honorable and advantageous peace.

"In fine, the gentlemen, the said constituents, are of opinion, that, to give a ready effect to the resolutions tending to the said objects, and which may serve for the protection of the State, and of its establishments in the other parts of the world, and to discuss the resolutions with all the secrecy requisite, there be formed by the Lords the States, a committee of some gentlemen of the respective Provinces, giving them the power and

instructions necessary to labor conjointly with his Highness, the Prince Hereditary Stadtholder, to contrive, prescribe, and put in execution, all the measures, which shall appear the most proper and the most convenient, to the end that we may, under the benediction of God Almighty, repair the past, and wash out the shame and the dishonor, with which this Republic is stained in the eyes of foreigners, and by a vigorous defence of the country, and of all which it holds most dear and precious, and to maintain it in the advantages of a liberty purchased so dear, against all further evils and calamities.

"Finally, the gentlemen, the said Deputies, find themselves, moreover, expressly charged to cause to be laid in the records of Holland the said proposition for the apology and the discharge of the gentlemen, their constituents, and to insist in all the ways possible, that we take in this regard prompt resolutions, whereof we may see the effects; in the view of accomplishing their salutary designs, to pray in the manner the most earnest and pressing the other members to labor to obtain in favor of this proposition, the suffrage of the gentlemen, their principals, to carry it into the approaching Assembly."

Thus ends this manly address, in which there is the appearance of the old Batavian spirit. In my excursions through the various parts of this country, I have found the eyes of all parties turned towards Amsterdam, and all true patriots said, that the salvation of this country depended upon the firmness of that city. There has indeed been in this city the appearance of feebleness and irresolution, but it has stood its ground. The presentation and publication of my Memorial to the States-General, which was more universally and highly applauded than was expected by me or any one else, furnished the regency of the city an opportunity to discover the general sense of the public voice, and they have not failed to take an early advantage of it. They have not mentioned a treaty with America, the reason of which was, that this subject was already taken *ad referendum*, and under the consideration of the several branches of the sovereignty. They mention only a negotiation with France, knowing very well, that this would necessarily draw on the other; so that things seem at present in a good train; but a long time will necessarily be taken up, according to the constitution,

and in the present disposition of this country, before anything can be done to effect.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, May 25th, 1781.

Sir,

The following convention, concerning recaptures made from the English, is, it is hoped, the first step towards more intimate connexions between this Republic, on one side, and France and the United States of America on the other.

FRENCH AND DUTCH CONVENTION CONCERNING RECAPTURES.

"The Lords the States-General, having judged, that it would be of reciprocal utility to establish between France and the United Provinces of the Low Countries, uniform principles with relation to captures and recaptures, which their respective subjects might make upon those of Great Britain, their common enemy, they have proposed to the Most Christian King to agree with them on a regulation concerning this matter. His Most Christian Majesty, animated with the same views, and desiring to consolidate more and more the good correspondence, which subsists between him and the United Provinces, has well received the overture of the Lords the States-General. In consequence, his said Most Christian Majesty, and the said Lords the States-General have given their full powers, to wit; His Most Christian Majesty to the Sieur Gravier, Count de Vergennes, &c. his Counsellor of State of the Sword, his Counsellor in all his Councils, Commander of his Orders, Minister and Secretary of State, and of his

commands and finances; and the Lords the States-General to the Sieur de Berkenrode, their Ambassador to the Most Christian King, who, after having duly communicated their respective powers, have agreed on the following articles.

"ARTICLE I. The vessels of one of the two nations, French and Dutch, retaken by the privateers of the other, shall be restored to the first owner, if they have not been in the power of the enemy during the space of twentyfour hours, at the charge of the said owner, to pay one third of the value of the vessel recaptured, as well as of her cargo, cannon, and apparel, which shall be estimated by agreement between the parties interested, and if they cannot agree among themselves, they shall apply to the officers of the Admiralty of the place where the recaptor shall have conducted the vessel retaken.

"ART. II. If the vessel retaken has been in the power of the enemy more than twentyfour hours, it shall belong entirely to the recaptor.

"ART. III. In case a vessel shall have been retaken by a vessel of war belonging to the Most Christian King, or to the United Provinces, it shall be restored to the first proprietor, paying the thirtieth part of the value of the vessel, of the cargo, cannon, and apparel, if it has been retaken in twentyfour hours; and the tenth, if it has been taken after the twentyfour hours; which sums shall be distributed as a gratification to the crews of the vessels recaptured. The estimation of the thirtieth and tenth, beforementioned shall be regulated conformably to the tenor of the article first of the present Convention.

"ART. IV. The vessels of war and privateers of the one and the other of the two nations shall be admitted reciprocally both in Europe, and in the other parts of the world, in the respective ports with their prizes, which may be there unloaded, and sold according to the formalities used in the State where the prize shall have been conducted; provided, nevertheless, that the lawfulness of the prizes made by the French vessels shall be decided conformably to the laws and regulations established in France concerning this matter, in the same manner as that of prizes made by Dutch vessels shall be judged according to the laws and regulations established in the United Provinces.

"ART. V. Moreover, it shall be free to His Most Christian Majesty, as well as to the Lords the States-General, to make such regulations as they shall judge good relative to the conduct, which their vessels and privateers respectively shall hold in regard to the vessels, which they shall have taken and carried into one of the ports of the two dominions.

"In faith of which, the aforesaid Plenipotentiaries of His Most Christian Majesty, and of the Lords the States-General, in virtue of our powers respectively, have signed these presents, and have hereunto affixed the seal of our arms. Done at Versailles, the first of the month of May, 1781.

GRAVIER DE VERGENNES,
LESTEVENON VAN BERKENRODE."

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, May 27th, 1781.

Sir,

In the Assembly of the States-General, the following Report has lately been made.

"Messrs de Lynden de Hemmen, and other Deputies of their High Mightinesses for Maritime Affairs, have, in consequence of the commissorial Resolution of the 27th of the last month, examined a letter of the Directors named in the commission by the respective chambers of the granted general company of the Dutch East Indies, to the Assembly of Seventeen, held the 23d of the same month at Amsterdam, representing the great inconveniences to which it would be exposed by the delay of the expedition of the vessels of the company, if it were not soon provided with

the customary provisions, at least as much as in ordinary times, as well as the possibility that the enemy may attempt an attack in that country, upon which the Directors would be exposed to answer for it, having in the different chambers seven vessels ready to put to sea, with the hope that ere long this number will be still further augmented; soliciting to this end, a convenient number of vessels of war, to give a safe escort to the ships of the company, while the Directors on their parts will put all in motion to watch over the safety of their vessels; wishing to this end to arm some of these vessels in an extraordinary manner, to the end that they may be able to oppose some resistance both for themselves and for the others, scattered over the sea of the Indies. That, nevertheless, if their High Mightinesses could not determine themselves to this, they, the Directors, hoped that they should not be responsible for the consequences which might result. That on the contrary, all the sharers in general, and their High Mightinesses in particular, would agree that in this the Directors have done all that could be required of persons to whom had been confided the direction of the goods of so many widows and orphans, of persons who, under the immediate auspices of their High Mightinesses, had the honor to direct a Colony whose prosperity is essentially connected with that of this country.

"Upon which, having demanded and received the considerations and the advice of the committees of the Colleges of the respective Admiralties, which are at present here, we have reported to the Assembly, that the gentlemen, the Deputies, should be of opinion, that notwithstanding the most ardent wishes to employ a sufficient number of vessels of war, not only for the defence of the ships but also that of the possessions of the company of the East Indies of this country, it would, however, be impracticable at this time, considering the present situation of the navy of this State, universally known, which could not appear strange to any one instructed in the natural representations so often repeated from time to time by the Colleges of the Admiralty in this respect; especially if he considers, that a navy, fallen into so great a decay, could not be rebuilt so suddenly, and placed so soon upon a respectable footing; that, moreover, this navy already so enfeebled, was become still more so by the surprise and capture of different vessels of war, by casual disasters happened to others, and because the rest were dispersed into so many different places, that for the equipment projected for this year, there was wanting a great quantity of

vessels and frigates well equipped and provided, at least such as in the case in question could be used; that besides the vessels ready to act, which are actually in the ports of the Republic, ought in the first place, and before all things, to serve for the defence of the coasts and harbors (or mouths of the rivers) as well as for the protection of the navigation towards the North Sea and the Baltic, and of the ships, which return from thence; that principally by reason of the unheard of scarcity of seamen, occasioned in a great measure by the capture of so enormous a quantity of Dutch merchant ships, which had been manned by the best seamen of the nation, it was almost impossible to determine the time when the other vessels of war in commissions should be able to act.

"That, nevertheless, the Company of the East Indies was of too great importance to this country, for us to be able to reject entirely her demand; and by so much the less as the Directors do not request to be protected to the detriment of the Republic, but they demonstrate also that they are really willing on their part to make their last efforts for their own defence, and contented themselves to require the suitable support of the State, to sustain the forces which the company was about to put in action; that from the refusal of a requisition of this nature it might result, that in losing all hope in the protection of the State, they may neglect also those efforts, which otherwise might be employed with some appearance of success; that, besides, the national establishments in this distant part of the globe would also fall, and without the least resistance, into the hands of the enemy, and that this Republic at the end of the present war would find itself destitute of all its resources; that this presentiment, apparently, ought to effect a close union of all the forces, to fulfil as far as possible the desire of the said Directors, and that to the end to try all practicable means, expecting at the same time the celestial benediction, and the prompt and effectual succor of our high allies, in default of ordinary remedies, it is necessary to have recourse without the smallest loss of time to extraordinary remedies, and to this effect his Most Serene Highness, in his quality of Stadtholder and Admiral-General of the Republic, ought to be solicited and authorised, if it was possible, either by borrowing vessels of war, their equipages, or by purchasing or hiring here or elsewhere, other suitable ships, which might be appropriated to this, or finally in every other practicable manner to reinforce at the expense of the country, the marine of the State, with the

greatest celerity, and as much as possible; in consequence of which, in concert with the said Directors of the East India Company, we may regulate the time, the manner, and the force of the protection to be procured for the company in question; the whole, as his Most Serene Highness, saving the sense of the resolution of their High Mightinesses of the 26th of March last, shall judge the most convenient for the greatest utility of the Republic, and of the said Company. Finally, that it would be convenient also to intimate to the Colleges of the Admiralty respectively of this country, to co-operate as much as possible with his Most Serene Highness, not only to put and hold with the greatest expedition in a convenient state the vessels of the Republic, but also in particular for everything that may contribute to accelerate their equipment and sailing, and to the greatest success of the enrolments; with a promise, that the extraordinary expenses which shall result from it and be advanced with the advice of his Most Serene Highness, shall be restored and made good to them.

"Upon which, having deliberated, the Deputies of the Province of Zealand have taken a copy of this report, to be able to communicate more amply."

I do myself the honor to transmit such state papers entire, because Congress will be able from them to collect the real state of things better than from any remarks of mine. The state of the Republic is deplorable enough. There is but one sure path for it to pursue, that is, instantly to accede to the Treaty of Alliance between France and America. They see this, but have not firmness to venture upon the measure. Indeed, the military character both at land and sea, seems to be lost out of this nation. The love of fame, the desire of glory, the love of country, the regard for posterity, in short, all the brilliant and sublime passions are lost, and succeeded by nothing but the love of ease and money; but the character of this people must change, or they are finally undone.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, May 29th, 1781.

Sir,

The English, by the capture of St Eustatia, seem to have committed the most complete blunder of all. There was found in that Island a greater quantity of property belonging to the Britons themselves, than to the French, Dutch, or Americans. They have broken up a trade, which was more advantageous to them, than to any of their enemies, as it was a channel through which British manufactures were conveyed to North America, and much provisions and assistance to their fleets and armies in the West Indies. As the British merchants were warranted by an act of Parliament to trade to this Island, all those who are sufferers by its capture are clamoring against government and especially against Rodney and Vaughan, for illegally seizing their property and threatening these commanders with as many law-suits as there are losses. But what completes the jest is, that M. de la Motte Piquet has carried safe into Brest two and twenty of the vessels loaded with the spoils of St Eustatia, which Rodney had sent under convoy of Commodore Hotham and four ships of the line; so that Rodney after having lost his booty is likely to have law-suits to defend, and very probably the whole to repay to the owners.

Thus the cards are once more turned against the gambler; and the nation has gained nothing but an addition to their reputation for iniquity. This is good justice. There is room to hope for more instances of it; because their fleets are coming home from the West Indies, and the Spanish fleet of thirty sail of the line under Cordova is again at sea, and it is hoped the French fleet will soon go out again.

The English fleets are so fully employed by the French and Spaniards, that the Dutch might do a great deal if they would; but something in this machine is fatally amiss. The patriots weep, but all in vain. The fleets and ships that sail, are said to have orders to act only on the defensive. The courtiers say, that Amsterdam is the cause of the war; the friends of Amsterdam say, the courtiers are corrupted by the English. Some say, the

Prince declares he will never do anything against the English; others say, that he has authorised the French Ambassador to assure the King his master, that he was ready to make arrangements with him; others report sayings of the Princess, that the conduct of some of the courtiers will be the ruin of her family. All these reports serve to no purpose, but to show the confusion and distraction of the country. However, there must be a change soon for the better or worse, for hunger will break down all ordinary fences.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, May 31st, 1781.

Sir,

The following memorial lays open a dispute between two nations.

"High and Mighty Lords,

"It is well known to your High Mightinesses, with what constancy and for how long a time, the subscriber has had the honor to lay before you, by order of his Court, how much she desires to accomplish a settlement of the differences, which exist upon the Rio Volta between her subjects and yours, who have by little and little wrongfully occupied and fortified the posts of Creve Cœur and of Good Hope, which at present incommode and restrain the Danish establishments upon that coast to a degree almost to destroy the existence of them, to put them to expenses for their maintenance, which absorb their utility, and to render more and more necessary measures, which his Majesty would desire not to be obliged to think of. In consequence, although the subscriber has rendered a faithful account of the assurances, which have been repeatedly given him, of the desire, which your High Mightinesses have to take away even from its source all subject of

misunderstanding reciprocally, a desire very conformable with that of the King his master; nevertheless, as nothing has resulted from these general assurances he finds himself at present obliged to execute the orders, which he has received; to demand of your High Mightinesses to cause to be evacuated the said forts of Creve Cœur and Good Hope, the existence of which cannot consist with that of the establishment of Denmark. He has express orders to make this requisition, and to give to understand, that as his Majesty will be very sensible of this friendly manner of terminating the present differences upon the coast of Guinea, so will he see with sincere regret that you will oblige him to give to this affair a more serious attention. The Hague, April 28th.

ST SAPHORIN."

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, May 31st, 1781.

Sir,

The cities of Haerlem and Dort have seconded Amsterdam, although the other cities of Holland have hitherto been silent, as appears by the following declarations.

"A declaration of the gentlemen, the Deputies of Dort, concerning the proposition of the city of Amsterdam, made at the assembly of their Noble and Grand Mightinesses on the 18th of May, 1781.

"The gentlemen, the Deputies of Dort, have declared to the assembly, that they had been earnest to transmit to the Regency of their city the propositions of the gentlemen, the Burgomasters and Counsellors of

Amsterdam, communicating to them at the same time, that with regard to the matter, which makes the object of it, the gentlemen, the Deputies, had beforehand declared, that since the substance of the said proposition was entirely conformable to that, which for some time had formed among the gentlemen, the Constituents, the object of preliminary deliberations, the Deputies had believed themselves tacitly authorised to adopt immediately the said proposition in all its points, which determined them also to testify their very sincere gratitude to the gentlemen, the Deputies of Amsterdam, and in their persons to the gentlemen, the Burgomasters and Regents of the same city, for the enlightened and vigilant zeal with which these gentlemen in taking this step, so salutary and so necessary, had shown that they have at heart the true interests of their dear country, which had already experienced so many injuries. That at present, the gentlemen, the Deputies, after the communications alleged, found themselves expressly instructed to cause to be inserted in the minutes of their Noble and Grand Mightinesses, for the justification of the Regency of their city before posterity, that the venerable Magistracy of Dort, approving what is before mentioned, had learned with a lively satisfaction the proposition before mentioned; that it was ready and disposed in the name of that city, to concur efficaciously in all the means, which may be judged the most convenient, to save with alacrity this country, now threatened and surrounded with the greatest and most terrible dangers; that to this end the venerable Regents of Dort would not fail to deliberate immediately upon the particular points, which the proposition in question presents, and to cause in course their resolution to be transmitted to the assembly of their Noble and Grand Mightinesses."

Note of the Deputies of Haerlem, touching the provisional resolution taken by their Noble and Grand Mightinesses, upon the proposition of Amsterdam.

"The gentlemen, the Deputies of the city of Haerlem, resuming the extension of the 18th of May, have declared, that in accepting the proposition of the gentlemen, the Deputies of the city of Amsterdam, their advice had been, that since the said proposition ought to be attributed to a laudable desire to watch over the common interests, the gentlemen, the Deputies of Amsterdam, and in their persons, the gentlemen their constituents, ought to be thanked for the zeal and marked attention upon

this occasion for the utility of their dear country. But, as at that time almost all the members relished this advice in such a manner, that the assembly had converted it into a provisional resolution, the gentlemen, the Deputies, had a good right to presume, that, in imitation of many antecedent facts, this advice would have become an essential measure, to cause to be passed the beforementioned provisional resolution. But the gentlemen, the Deputies, seeing the contrary, and their remarks made in this regard, answered by a frozen silence on the part of the other members, they have, both on account of this circumstance, and to ascertain what really passed in consequence of the proposition in question, and to justify the report made to the gentlemen, their principals, upon this object, judged necessary to cause this note to be inserted in the minutes of their Noble and Grand Mightinesses."

With hearty wishes that this dumb spirit may be soon cast out, I have the honor to be, &c.

JOHN ADAMS.

**TO THE PRESIDENT OF THE ASSEMBLY OF THE
STATES-GENERAL.**

Amsterdam, June 1st, 1781.

Sir,

I have received from my Sovereign, the United States of America, in Congress assembled, their express instructions to notify to their High Mightinesses, the States-General, the complete and final ratification of the confederation of the Thirteen United States, from New Hampshire to Georgia, both included, on the 1st day of March last.

I do myself the honor to enclose an authentic copy of this important act, and to request the favor of you, Sir, to communicate it to their High Mightinesses in such a manner as you shall judge most convenient; as in the

present circumstances of affairs I know of no more proper mode of discharging this part of my duty.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, June 5th, 1781.

Sir,

The Deputies of Middleburg, in the assembly of the States of Zealand, on the 14th of May, consented to the petition for granting larger bounties to those who shall engage in the service of the Republic by sea. Their advice has been given in this manner;

"The gentlemen, the Deputies of Middleburg, have said that they were authorised by the gentlemen, their principals, to conform themselves to the report in question, in all its parts. They are further specially instructed and ordered, (renewing the advice of their city, communicated with their consent to the two States of war of the 9th of last month,) to represent upon this occasion, in the name of the gentlemen, their principals, and to insist strongly, that without delay it should be deliberated by a committee, concerning the measures the most prompt and the most efficacious to be taken by this Province, to direct things in course in the generality, in such a manner, that in the critical and disastrous situation in which the Republic is, we should apply our attention conjointly, with redoubled zeal, activity, and wisdom, in defence of the territory, commerce, and possessions of the Republic; that we finally awake out of that unexpected inaction, in which as is too apparent the Republic is still found, the causes of which cannot, and ought not in any degree, to be attributed to this Province; or that at least, without delay and without reserve, the true reasons of this dangerous and disgraceful situation should be communicated to the Lords, the States of

Zealand, from whom nothing, which concerns the Union ought to be concealed; to the end, that in course they may deliberate sincerely with the other confederates upon the means of deliverance and of precaution, the most prompt, and the most convenient for the common advantage, safety, and preservation.

"The Lords, the States of Zealand, have also represented to their High Mightinesses, the propriety of establishing batteries upon the coast of Flanders, upon the places the most exposed, and to provide them with cannon and necessary stores, that they may be able to act, with the armed vessels stationed upon the river, against any enterprises which may be attempted by the enemy's vessels.

"On the 22d of last month, their Noble and Grand Mightinesses deliberated upon the proposition of the Counsellor Pensionary, made on the 18th of the same month, in the name of the gentlemen, the counsellors' committees, viz. that it having been resolved, by a resolution of their Noble and Grand Mightinesses of the 16th of January, to negotiate a sum of eight millions, at two and a half per cent interest, this negotiation had had so happy a success, that it was almost filled up, as the treasury general and the other treasuries of the quarter of the south of this Province have received seven millions fortysix thousand six hundred and fifty florins, and those of the quarter of the north, five hundred and seventyeight thousand eight hundred florins. That the Counsellor Pensionary, seeing that the present situation of affairs requires in all respects, that the treasury of the State should be provided of a larger quantity of money, has proposed to the consideration of their Noble and Grand Mightinesses, whether they did not judge it convenient to augment the negotiation in question by four other millions, and, consequently, to extend it to twelve millions, upon the same footing and with the same interest, as determined by their resolution of the 16th of January last.

"Upon which it was thought fit, and resolved, to consent to the negotiation of these eight millions, and to increase it with four others, so as to make twelve millions upon the same footing. The Prince has made a tour to the Brille, Helvoetsluys, Goeree, and Willemstadt, where he has reviewed the

troops and vessels of war, and returned to the Hague on the third of this month."

I send to Congress an account of these faint and feeble symptoms of life, because there is no appearance of any more vigorous. I am told that this *vis inertiae* is profound policy. If it is policy at all, it is so profound, as to be perfectly incomprehensible. However, their property and dominion, their honor and dignity, their sovereignty and independence are their own, and if they choose to throw them all away, for aught I know, they have a right to do it. There is one comfort, if other nations have nothing to hope, they have nothing to fear from such policy.

I have the honor to be, &c.

JOHN ADAMS.

**TO M. BERENGER, SECRETARY OF THE FRENCH
EMBASSY AT THE HAGUE.**

Amsterdam, June 8th, 1781.

Sir,

I have received the letter, which you did me the honor to write me, on the 5th of this month, informing me, that you have received a letter from the Count de Vergennes, by which his Excellency directs you to tell me, that the interests of the United States require my presence at Paris, and that he should desire that I should go there, as soon as my affairs in Holland will permit me.

I should be extremely obliged to you, Sir, if you would confide to me the nature of the business that requires me at Paris, that I might be able to form some judgment, whether it is of so much importance, and so pressing, as to make it necessary for me to go forthwith.

His Excellency Dr Franklin, and Colonel Laurens, have arranged affairs in such a manner, that the accounts of the Indian are to be produced to me, and I am to draw bills to discharge them, so that it would retard the departure of that interesting vessel, if I were to go now; and it is of some importance to the public that I should complete my despatches to go to Congress by her. I am also unfortunately involved in a good deal of business, in accepting and discharging bills of exchange, a course of business which would be put into some confusion, if I were to go immediately; and the general affairs of Congress in this Republic might suffer somewhat by my absence. But notwithstanding all, if I were informed that it is anything respecting a general pacification, or an invitation of this Republic to accede to the alliance between France and the United States, or any other affair of sufficient weight to justify my quitting this port immediately, I would do it. Otherwise it would, as I humbly conceive, be more for the public interest, that I should wait until some of the business that lies upon me here is despatched, and the rest put into a better order. Let me beg the favor of your sentiments, Sir. Whenever I go, I must beg the favor of you to furnish me with a passport.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, June 11th, 1781.

Sir,

The following petition is too curious in itself, and too much attended to by the public at this time, to be omitted.

"To the Gentlemen, the Burgomasters, Sheriffs and Counsellors of the city of Antwerp.

"The inhabitants of the city of Antwerp in general, and those who are there concerned in commerce, in particular, should think that they injured their own interests, if they neglected, at a time when all Europe talks of the advantages, which the opening of the Scheldt would produce, to address themselves to you, Gentlemen, to make known their desire, that you would please to take the necessary measures for this purpose. While all nations fix at present their attention upon the liberty of navigation, shall we be the only people, who, although having a greater interest in it than others, should remain quiet, and suffer to pass away, unimproved, the moment, which appears to be now arrived to deliver ourselves from the yoke, which the Republic of Holland imposed upon us in the days of their first celebration? No! It is time that we awake! Since the treaty of Munster, this city and its commerce are fallen into a great decay, but we have still the means in our hands to revive them, because the inhabitants have ever continued to have an indirect portion in commerce. It was they, who after the suppression of the Company of Ostend, have assisted in the establishment of the East India Companies of Sweden and Denmark; and it would not be difficult to prove, that projects of all sorts have taken place in their speculations. What could they not do, therefore, when it shall be free to them to make a direct and unrestrained commerce? The simple hope, which they have of it, causes among them a revival of the spirit of commerce. When we compare the situation of the cities of Amsterdam and Antwerp, we shall find that that of the latter has many advantages over the former. The commerce of corn, which makes of Holland the factory of Europe, and all the trade of the North, offers itself to the city of Antwerp. We should soon find there magazines provided with everything necessary to extend commerce, and equal that of Amsterdam. This commerce alone would be sufficient to make a revival of the bright days, which preceded the peace of Munster.

"But what afflicts us, Gentlemen, is, that there are persons who would divide the interests of provinces, and give birth to a rivalry between the ports of Ostend and Antwerp, as if one port the more would be too much for the States of his Majesty. If this could be a question, no man could doubt that the city of Antwerp is much better situated to make an extensive commerce, than the city of Ostend. Experience alone is sufficient to demonstrate it. The commerce, which Antwerp has made heretofore, came there naturally of itself, although it had been formerly at Bruges, because

the port of Antwerp was better, and in all respects more advantageous. But these cities have nothing in common, and if the Scheldt was open, and remained open, Ostend would not suffer any damage from it. We have the advantage to have in our Sovereign a Prince, whose whole application tends to render his subjects happy; nothing can contribute more to their prosperity than commerce. The fine arts, which have supported themselves at Antwerp, in spite of the decay of commerce, for near one hundred and forty years, would acquire here a new degree of perfection and lustre.

"We hope, Gentlemen, that your care and zeal for everything, which can contribute to the prosperity of a city, which you have already lately delivered from beggary, will make you discover, with particular satisfaction, new means of procuring labor for the poor and needy, diminish thereby the expense of their maintenance, without reckoning all the other advantages, and especially the augmentation of our population, which would be the result of our demand."

This petition discloses objects of so much weight in those scales, in which the political and commercial interests of the nations of Europe are now balancing, that it is worth while to transmit some observations, which have been made upon it, which will lay open the whole subject, with all its connexions. They were written in French by M. Cerisier.

"It is to have a false idea of things, to think and to say, that Holland and Zealand, taking an unjust advantage of their victories, and of the weakness of their enemies, have dictated, with arms in their hands, the outrageous and despotic conditions of holding their ports shut up. We have only to cast our eyes upon the geographical situation of Antwerp, we have only to recollect the first events of the Belgic Revolution, to acknowledge this error. The city of Antwerp for a long time made a part of the Belgic confederation; she entered into the union of Utrecht, as she had entered into the pacification of Ghent, she was even for several years the centre of the new Republic; it was not until 1585, that she fell back under the yoke of the Spaniards. But the Duke of Parma, in retaking Antwerp, could not equally make himself master of all the forts situated below that city, towards the mouth of the Scheldt. The confederates continued masters of these, and even retook some places, which had been taken from them in the course of the war. Thus they

remained masters of the lower navigation of this river, an advantage, which they caused to be confirmed to them in the treaty of peace. In casting our eyes on the other hand, on the memorable siege of Antwerp, it is to this city that it is necessary to impute the misfortune of having an useless port, since, by a more vigorous and wise defence, she would have remained in the union, with all the advantages which resulted from it.

"Zealand and the city of Amsterdam, have always held the slavery of the port of Antwerp of much importance. But it is very far from being true, that this city, by recovering the liberty of her navigation, would be able to draw away any considerable part of their commerce. The maritime places of the United Provinces have had for several ages, and many years before the revolution, a great navigation and a flourishing commerce; this has been demonstrated by modern authors. See the *Tableau de l'Histoire des Provinces Unies, et la Richesse de la Hollande*. It is an error then to believe, that they were raised upon the ruins of Ghent, Bruges, and Antwerp; although we cannot deny, that they have received some augmentation from them.

"But it is England, which has drawn the greatest advantages from them. The cause is evident; it is, that the same troubles, which chased commerce from these cities, agitated at the same time Holland, Zealand, Friesland, and the neighboring Provinces. The factions of the Houcks and the Cabeliaux, the Schieringers, and the Vetkopers, the Litchemborgs, and the Gunterlings, the Hekeren, and the Bronkhorst, have nearly at the same time for many years, torn almost the whole country, which forms at this day the Republic of the United Provinces, in the times when Flanders was a prey to the most violent intestine dissensions, when Ghent and Bruges held the Emperor Maximilian in prison; and when the chastisements inflicted on these two cities, drove out the industry, and commerce, which enriched them. The United Provinces were the centre of the rebellion and the theatre of the most afflicting calamities, when the cruelties of the Spaniards chased commerce from the city of Antwerp. The most violent causes, in fact, are necessary to drive commerce from a country where she has fixed her residence. The powerful houses of commerce, the immense funds necessary to carry it on, the credit, the industry, do not transplant themselves easily from one country to another.

"We ought not to impute to slavery the fall of the commerce of the Austrian Low Countries. We must ascend to that epocha, when the fiscal and religious despotism of Spain carried into the Low Countries the yoke of civil servitude and the flames of the Inquisition. Commerce cannot harmonise with slavery, with the tyrannical exaction of imposts, with persecutors, or with hangmen. It was principally to London, that industry, and the merchants of Louvain, Ghent, Bruges, and Antwerp, fled. Although Holland and Zealand were at the same time a prey to similar misfortunes, and even still more terrible, they found themselves in a condition to raise a powerful marine, to beat their ancient masters, and to seize upon their spoils in the Indies. It was upon their courage, upon their navigation, upon their establishments in the Indies, and not upon the mouth of the Scheldt, that they laid the foundations of a commerce, the richest and most extensive that ever was.

"If all the Low Countries had remained attached to the confederation, they would all have partaken of the riches, the industry, the power, and the grandeur of the United Provinces. The Austrian Low Countries were not able to recover their brilliant commerce, because they had lost it. To repair this loss, it would have been necessary, that Holland and England, filled with their manufactures, should have had the complaisance to send them back all these manufactures with their riches, their workmen, and their raw materials. It was only Louis the Fourteenth who could in this respect take Philip the Second for a model. If the Flemish and the Brabantians, should have again a source of raw materials, and of workmen, would it be easy to recall industry and naturalise it there, after so long an exile? The little progress of commerce in those countries has many other causes, besides the subjugation of one of its brooks. It is necessary to look for them in the multitude and enormity of the duties imposed upon merchandises, which enter, or go out of the Austrian dominions, duties, which are repeated from one Province, and even from one city to another; it is necessary to look for them in the tyrannical and insolent inquisition of officers, with whom the frontiers are covered, in the fiscal and iniquitous subjection, to which packages and travellers are exposed; the former to a search, which exposes the goods to be spoiled, and the other to an indecent and odious inspection. They have forced women to strip themselves, even to their shifts, to discover, with a scandalous avidity, effects subject to these odious taxes.

"A part of the commerce of Germany, and several Provinces of France with Holland, would have no other market than the Low Countries, if the imposts and the collection of them were not tyrannical. The merchants of St Quentin, of Rheims, of Paris, will all tell you, that the lawns, wines, and modes, which they send into the countries situated upon the Baltic, would be embarked at Ostend, without those armies of inquisitors like highwaymen, who drive away, by a perpetual restraint, commerce, the friend of liberty. Add to this, the delays, and the dearness of land-carriage, interrupted with barriers, in the countries, where there are no canals; all these obstacles do not only hurt the commerce of transportation, but also that of importation and exportation. The foreigner, finding so many difficulties in spreading his superfluities in those countries, is the less capable of taking off theirs.

"Moreover, how many ameliorations may be made in the natural resources of that country? Before they allow themselves in uncertain speculations abroad, they should carry to the highest point, industry at home. There are even reformatations, which are very difficult, and without which these countries will never hold the balance against countries, in which the number, the celibacy, the riches, and the laziness of the clergy, do not devour the industry of the people. Is the slavery of the Scheldt then the cause, that Louvain is peopled only with students and professors? Malines filled with attornies and judges? That Mons, Tournay, Ypres, Ghent, and Bruges, are no longer more than carcasses? If there were a means of reviving these cities, would it not be by the enlargement and the safety of the port of Ostend?

"Even if the ports of Ostend, of Nieuport, and Antwerp offered roads free, safe, and commodious, would business fly to them for refuge, and abandon the ports of Hamburg, Dantzick, Amsterdam, Rotterdam, Middleburg, Dunkirk, Rouen, Nantes, Rochelle, Bordeaux, the Elbe, the Somme, the Seine, the Loire, the Garonne, and the ports of the three kingdoms of Great Britain, where it enjoys all the advantages and facilities, which it can desire? The English themselves, who dazzle at this day the Austrian Low Countries with the hope of a free and flourishing commerce, would not they be the first to oppose this revolution, if it had any appearance of success? It is their jealousy of the prosperity of Amsterdam, which makes them clamor

against the subjection of the Scheldt. But they would clamor much louder, if the liberty of the Scheldt should restore to the Low Countries the hope of recovering their ancient commerce. All States seek with emulation to augment the national industry. Russia, and even other northern States, are making efforts and sacrifices to procure for themselves manufactures. All countries, even Spain and Portugal, begin to perceive that these things are more useful than *autos-da-fe*. The Austrian Low Countries have them also. But could they augment them at the expense of other countries; especially at a time, when so many States pique themselves in having a warlike marine to maintain their commerce and their national industry?

"But, it will be said, is it not manifest that the navigation of Antwerp being opened, commerce, by reascending the river, would diffuse her benign influence throughout all the extent of an agreeable, and fertile territory, full of canals and great roads, &c.? I answer again, why would not the ports of Bruges, Ghent, Ostend, and Nieuport produce the same effect? It is even apparent, that these ports would lose by the new outlet of Antwerp, the little commerce which remained to them. In that case, Brabant would only raise itself on the ruins or at the expense of Flanders. The liberty of this river would enrich perhaps the interior of the country, but it would certainly impoverish the coasts of the sea. They say it is unjust to hold the Scheldt shut up; but would it not, on the contrary, be the height of injustice to open again a navigation, assured to the Hollanders by the natural consequence of a revolution universally ratified, and by a long possession? What man, what State, would be authorised to appropriate a thing to itself because it was for his convenience? This rule, it is true, has in our days effected the dismemberment of Poland, the invasion of Silesia, and the present war of England against Holland. But in taking away the property of the Dutch, with what right can one find fault with the violence of Russia?

"It will be said, that the restraint of a river dug by nature, for the use of the inhabitants who live upon the banks, is contrary to natural right, against which no prescription ever runs. But do not the turnpikes, or fall-stops, with which these rivers are thickset, contravene also the rights of nature? The house of my neighbor intercepts the light, of which I have great occasion; have I the right for this reason to pull it down?

"In one word, the mouth of the Scheldt is in the territory of the United Provinces. The Republic, according to received principles, may interdict the navigation of it to foreigners, as well as to its own subjects. She excludes only the former; because she finds her advantage in it, as the English find theirs in their famous act of navigation, much more tyrannical than the subjection of the Scheldt. The Belgians will say, the waters of this river wash and fertilize our country in passing through it. But have not the French still a better right to the same navigation, because this river takes its rise in France? The Swiss would have a good grace to wish to arrogate to themselves the free navigation of the whole course of the Rhone, the Po, the Danube, and the Rhine, because these rivers flow from the mountains of Helvetia. The subjection of the Scheldt was ratified in 1648, in the famous treaty of Munster, or Westphalia, whereof all the powers of Europe are warranties, and which still passes for the basis of the political system of Europe, and for a fundamental law of the empire. We have seen in 1778, the Emperor himself obliged to renounce a succession supported upon authentic titles, because the powers, warranties of the peace of Westphalia, sustained, that this succession was contrary to that treaty. And yet it is wished, that in full peace, without title, without pretence, the Emperor should wrest from the Dutch a property, the fruits of which will never indemnify them for the sacrifices they have made for his house.

"They would have the Emperor an ambitious Prince, rolling the vastest projects in his head. But with what eye will the other powers view an usurpation, which they ought to seek to prevent by all the motives of honor and of interest; even although it should be from the ambitious idea of acting their part in the affairs of Europe? How? Shall he expose himself in the present moment to spread the flames of a general war in Europe, and to lose perhaps the Low Countries, which would be from that moment surrounded by inimical powers. For what? To procure to the inhabitants of Antwerp, the facility of conducting a few ships into the German ocean.

"Holland is in the last degree of weakness, embarrassment, and disunion; she has fear. Oh! yes; but the King of Prussia, but the electors of Saxony and Palatine, but the King of France, would have fear also; fear would unite them; and when one has a great deal, he begins to have less fear.

"That which would make of Antwerp a new Sidon, or a new Carthage, which would render this city the rival of Bordeaux, of Rouen, of Amsterdam, and of London, would be infinitely prejudicial to the French and the Russians. Either this business would be a part detached from that of the ports of the channel, and of the Baltic sea, and, in that case, France and Russia would not consent to build up a place of commerce, which would flourish at their expense; they would oppose the opening of a port, which would draw away the inhabitants from those, which they are laboring to make flourish; or it would be composed of branches torn from that which is done at the Texel, upon the Meuse, and the Thames, and, in that case, they will refuse their consent to this transplantation. If it is necessary, that the commerce of the Dutch and the English should fall, Russia and France will choose to take advantage of its decay, to transport it into their harbors."

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, June 12th, 1781.

Sir,

The States of Holland and West Friesland are adjourned to the 27th. In their last session, they consented to the augmentation of seventeen thousand six hundred and eightysix land forces, according to the plan, which the Council of State, in concert with the Stadtholder, had formed, on the 18th of April, and which had been carried on the 19th of the same month, to the Assembly of the States of the Province. They have also taken the resolution to lend to the East India Company the sum of one million two hundred thousand florins, at three per cent interest, to be reimbursed in thirtythree years, in payments of thirtysix thousand florins. The affairs of the Colony of Surinam are about to engage the attention of government, according to a petition, which the Deputies of the merchants of Dort, Haerlem, Amsterdam, and Rotterdam, presented on the 6th, to the States of Holland and West Friesland, and for which the merchants have demanded, in an audience, which they have had of the Stadtholder, the support of His Most Serene Highness. This petition was conceived in these terms.

PETITION FROM THE DEPUTIES OF DORT, HAERLEM, AMSTERDAM, AND ROTTERDAM, TO HOLLAND AND WEST FRIESLAND.

"The merchants, deputies of the cities of Dort, Haerlem, Amsterdam, and Rotterdam, represent in the most respectful manner, that the mortal stagnation of navigation and of commerce, which cannot preserve their well-being but by continual activity, has forced the petitioners not to disguise any longer the fatal effects, and in circumstances, when the naval force of the Republic is not yet in a state to procure them a sufficient protection, to seek for themselves a succor, which, in the extreme danger in

which the colonies, which yet remain to the State, and even the State itself, are found at this day, may serve apparently to advance in more than one manner, the general interest of this Republic; that the supplicants, both for themselves, and speaking in favor and in the name of several thousands of their fellow-citizens, have taken the part to present to their High Mightinesses the States-General of the United Provinces, the petition, a copy of which is here joined, and to which they respectfully refer, as follows.

Petition.

"That as your Noble and Grand Mightinesses, have always testified, that the well-being of your fellow-citizens in general, and that of merchants in particular, ought to be supported in every manner, the petitioners assure themselves, that the more the danger becomes imminent, the more the zeal of your Noble and Grand Mightinesses will animate itself to prevent, under the divine blessing, the total ruin of the essential sources of the existence of the country; so that this danger being at present so great, and becoming from day to day more pressing, the petitioners dare to promise themselves, on the part of your Noble and Grand Mightinesses, all the succor and assistance requisite, and to hope, that they shall not invoke in vain their powerful support, relative to the prayer beforementioned. It is for this, that the petitioners address themselves to this Sovereign Assembly, in the manner the most respectful, and in a confidence the most entire in the inclination of your Noble and Grand Mightinesses for the protection of the citizens of the Republic, seriously praying, that it may please your Noble and Grand Mightinesses, to authorise your Deputies in the Assembly of the States-General to concur in directing, with all the earnestness possible, things in such a manner, that there be given to the petition aforesaid a prompt and favorable answer, and that measures be taken, to the end that the petitioners and those who are otherwise interested with them, may enjoy without delay the effect of a definitive determination, &c.

"To their High Mightinesses, the States-General of the United Provinces give respectfully to understand, the undersigned proprietors, and owners of vessels navigating to the Colony of Surinam, owners of plantations, situated there, merchants and others interested in the commerce of the said colony;

"That this Colony, independently of the interest, which the undersigned, and a great number of others equally interested, take in it, may be regarded as of the greatest importance for the Republic itself, by reason of the very considerable revenues, which, for a long course of years, it has procured, not only to the direction privileged by grant, but also to the Republic itself, and which become every day more lucrative, by the enormous expenses, which the proprietors of plantations have made to cultivate new lands, and to improve the culture of several territorial productions.

"To this effect, the petitioners refer to the estimate annexed, containing the quantity of productions, which for some years have been transported from the Colony into the ports of the country. That these productions, after having been transported from this country, some wrought up here, and others as they were received, procure continually to the treasury of the Republic very important sums, proceeding from different duties, which are directly or indirectly relative to them. That the necessity to go in search of all these productions of the Colony, and that of transporting thither provisions and other effects, employs annually a large number of great ships, which are for the most part fine frigates, solidly built, the number of which amounted to more than fourscore, which all pay every voyage the duties of lest, which are considerable, and serve, at the same time, for the maintenance of a numerous body of navigators, which amount to about three thousand well experienced seamen. That, moreover, the importance of this Colony does not fall short in point of utility of any other, both with relation to what has been alleged, and because, in exchange for its productions, we receive here the precious metals, and the cash of other nations, which remain in the bosom of the United Provinces; while, on the contrary, it is necessary to export them to the East Indies, there to pay for territorial productions, the manufactures of the Indies; and the payments, which foreigners make to us, to procure themselves merchandises, must equally return to the Indies for new purchases. That thus the navigation and the commerce with this Colony serve not only to the amelioration of the finances of the Republic, and to the augmentation of the national cash; but they are still an abundant source of general prosperity for the inhabitants, scattered in the Seven Provinces.

"Many, by means of the free property of their plantations, draw from thence important revenues, and encouraged by success make them largely circulate; while a much larger number of our countrymen are the bearers of obligations, carrying large interests negotiated upon mortgages, the preservation of which is of the greatest weight, considering that the sustenance of so many thousands of our fellow-citizens depends upon them. That, moreover, all which serves for housekeeping, all which is wanted for the culture of the land, the building and repairing of edifices, and even eatables, must be transported from hence into this Colony. This commerce, therefore, cannot fail to procure to a great number of manufacturers, mercers, and traders, a continual outlet, which even surpasses all belief, and which is by so much the more useful, as this commerce consists for the most part in objects furnished by our territory, either in raw materials, or in things manufactured here. This article alone procures the maintenance of an infinite number of artisans in the cities, and of the cultivators of the field; without mentioning the construction and repairs of a great number of vessels employed in this navigation; of their provisions, both for the voyage and the return, which gives a living to several thousands of men.

"That thus the public prosperity and that of individuals, so intimately connected together, would both receive an irreparable blow, if they were deprived of the advantages, which they draw from this abundant source. That this misfortune has already denounced itself, and in the most sensible manner from the commencement of this war, the further consequences of which are so alarming, that they deserve to be warded off or prevented by all means imaginable. That, nevertheless, the petitioners on their part cannot otherwise obviate them, than by putting the vessels they use in this navigation, in a necessary state of defence, and in equipping them sufficiently for the war; which will render them strong enough to repel all the enemy's privateers, of whatever size, and that they may be able to defend themselves even against the English men-of-war, and thereby assist and relieve the military marine of the Republic.

"But that the excessively increased prices of everything, which concerns the equipment of vessels, the bounties and the pay, risen to near double, which must now be given to seamen, would render an equipment of this nature so expensive, that the charges would never be repaid by the freight. That,

nevertheless, without an equipment of such vessels, we should risk too much; this consideration has even determined the owners, whose vessels were loaded before the hostile attack of the English, to unload them and suspend the voyages, to the great prejudice of the Colony, of themselves, and of their freighters. That, moreover, they still find great difficulties to expedite their ships; on the one hand, from the certainty that the passage to the Colony and in the West Indies themselves, is infested with the enemy's vessels of war and privateers, who by surprise have already made themselves masters of a great number of our merchant vessels, and have even invaded the defenceless possessions of the State, such as St Eustatia, St Martins, Essequibo, and Demerara; on the other hand, in the uncertainty whether this excellent Colony, in the neighborhood of which, as they have learned, the enemy's squadrons cruise without opposition, has not undergone the same fate; in which case their valuable vessels with their rich cargoes, would fall into the power of an enemy, who from the heights of fortresses, taken by surprise, continue to display the Dutch flag, under shelter of which, and by means of a certain number of vessels of war, he seizes upon merchant ships destitute of defence, who, confiding in the public faith, go in there without fear.

"That, nevertheless, if by these considerations and others of the same nature, the navigation to this Colony is longer suspended, the well-being of the Republic cannot avoid the most sensible prejudice, and the Colony must be considered as abandoned; her inhabitants will see themselves even reduced to deliver themselves into the hands of their enemies, to the ruin and total loss not only of the classes the most at their ease, but of all the inhabitants whatsoever of the United Provinces; so that we ought not to delay a single moment, nor neglect any means of encouragement or precaution to preserve them; so much the rather, as it appears scarcely convenient under this embarrassment, to invoke the assistance of foreign nations, to make the transportation, and to go to the Colony and to return; because, that in that case, we should lose this navigation, and we should lend our own hand to the entire declension, not only of the aid furnished to the treasury of the Republic, by the activity of this commerce and this navigation, but also to the interruption of the sales of so many manufacturers, mercers, and traders, and even to the entire privation of the sustenance of an immense number of workmen and artisans, to whom this

construction of vessels and this navigation so extended, procured their daily gain, which they cannot forego without being reduced to the most deplorable situation. That this repugnance to navigate on one's own account will be further followed by the desertion of a great number of sailors, who for want of finding employment here, and tempted by the advantageous promises of the enemy, will go there in search of service, to the double detriment of the public interest of the Republic. That the respectable fleet, composed of valuable vessels destined to this navigation, would rot in our ports, and the officers who command them, many of whom have not been thought unworthy to be called to the service of their country, would be obliged to abandon with their families this country, where all the other means of gaining a livelihood fail more and more; and as they have solely applied themselves to navigation, they would go in search of their subsistence into places, where, by our interruption, navigation makes new advances every day. That this method, indicated by necessity, of recurring to foreign flags, by the more considerable expenses which arise from it, would so absorb the revenues, that not only no planter would be able, with the little which should remain to him, to support his plantation, but, moreover, there would remain no well-grounded hope for the great number of bearers of obligations to flatter themselves with obtaining any payment, still less the entire payment of the interests promised them; since without having yet supported these additional expenses, and notwithstanding the excessive prices at which the productions have been sold, they have seen themselves forced to diminish considerably the interests, and in some cases to suspend even the entire payment; without mentioning so many other political considerations relative to this object, which cannot escape the penetrating eye of the Sovereign, so that without hope of a full protection, this single means of obtaining something, in ever so small a degree, is even considered as very precarious, and as augmenting more and more an inaction so fatal to a country, which under the divine blessing, owes its prosperity so envied, to its application, its valor, and the fortitude of its inhabitants. Time may pass away, (and certainly the moments are too precious) before they may dare to flatter themselves with a protection so efficacious, as the danger of the crews, the valuable cargoes, and the pressing necessity of the Colony require.

"That to this effect, the pensioners take the liberty to solicit your High Mightinesses with profound respect, in case it is impossible to grant immediately a sufficient escort to go to the Colony and return, that in that case, as upon other occasions, it has been graciously granted by your High Mightinesses, for the support of trade, the equipment of vessels, societies, &c., to be so good also, as to grant generously in favor of the equipments to make for this Colony, Berbicia, and the interesting establishment of Curaçao, an encouragement equivalent to the design of the considerable disbursements, which they will be obliged to make, to put their vessels in a certain state of defence; and, moreover, for better order and direction, to cause to be escorted, their ships sailing in company, by as many vessels of war as it will be possible to spare for this expedition. In fine, that under the good pleasure of your High Mightinesses, and that these ships well armed may also serve to molest as much as possible the enemy, there may be granted them letters of marque and reprisals, under the customary condition, to the end that they make use of them upon occasion, by the brave officers, which the subscribers dare boast that they will employ in their ships."

This petition has been referred to the respective Deputies of the Colleges of the Admiralty, to make report on it as soon as possible. The Deputies of the merchants having beforehand solicited, in the most pressing manner, the Prince Stadtholder, to support with his powerful recommendation an affair of so great importance.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, June 15th, 1781.

Sir,

The long expected courier has at last arrived at the Hague from St Petersburg. The contents of his despatches are not public, but all hopes of assistance from the armed neutrality seem to be dissipated. The question now is, what is to be done next. Some are for alliances with the house of Bourbon and America, but a thousand fears arise. France, the Emperor, and the Republic, have Provinces so intermixed together in Brabant and Flanders, that it is supposed the Emperor would be much alarmed at an alliance between France and Holland, lest they should soon agree to divide his Provinces between them. The people in these Provinces would, it is supposed, have no objection. They all speak the French language, are of the same religion, and the policy of France in governing conquered Provinces, according to their ancient usages, and with great moderation, has taken away all aversion to a change of masters.

Some people think, that an alliance between France and Holland would occasion a general war. This I think would be an advantage to America, although philanthropy would wish to prevent the further effusion of human blood.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, June 23d, 1781.

Sir,

The answer from St Petersburg, as it is given to the public, is this;

"Her Majesty, the Empress of all the Russias, declares, That as much as she has been satisfied with the zeal with which their High Mightinesses have accepted her mediation, so much and more has her compassionate heart been affected with the difficulties formed by the Court of London, in

referring the reconciliation with the Republic to a subsequent and general negotiation of peace between all the belligerent powers, under the combined mediation of Her Imperial Majesty, and His Majesty, the Roman Emperor. As soon as this negotiation shall take place, her Majesty promises beforehand to the Republic, all the assistance, which depends upon her, to the end, that the Republic may without delay, return into the rank of neutral powers, and thereby enjoy entirely, and without restraint, all the rights and advantages, which her accession to the engagements between Her Imperial Majesty and the Kings, her high allies, ought to assure to her.

"In this expectation, the intention of Her Imperial Majesty is, conjointly with their Majesties, to persuade that Court to that moderation, and those pacific sentiments, which their High Mightinesses, on their part have manifested. The Empress flatters herself, that the times and the events, which may unexpectedly happen, will bring forth circumstances of such a nature, as will put her in a situation to make appear, in a manner the most efficacious, her good will and her affection, of which she sincerely desires to be able to give proof to their High Mightinesses."

This answer gives great scope to speculation and conjecture, but I shall trouble Congress with a very few remarks upon it.

1. In the first place, and without insinuating her opinion concerning the justice or injustice of the war, between Great Britain and the United Provinces, she imputes the ill success of her mediation between them, to the Court of London, and not at all to the Republic.

2. She applauds the moderation and pacific sentiments of their High Mightinesses, and implicitly censures the Court of London, for opposite dispositions.

Thus far the declaration is unfavorable to the English, and a pledge of her Imperial honor, at least not to take any part in their favor.

3. It appears, that the Court of London has proposed a negotiation for peace between all the belligerent powers, under the mediation of the Empress and the Emperor. But, as it is certain the Court of London does not admit the United States of America to be one of the belligerent powers, and as no

other power of Europe, except France, as yet admits it to be a power, it is very plain to me, that the British Ministry mean nothing but chicanery, to unman and disarm their enemies with delusive dreams of peace, or to intrigue them, or some of them, into a peace separately from America, and without deciding our question.

4. The declaration says not, that the Empress has accepted this mediation, nor upon what terms she would accept it. Here we are left to conjecture. The Dutch Ambassadors at St Petersburg wrote last winter to the Hague, that the Empress would not accept of this mediation with the Emperor, but upon two preliminary conditions, viz. that the Court of London should acknowledge the independence of America, and accede to the principles of the late marine treaty, concerning the rights of neutrals. To this she may have since added, that Holland should previously be set at peace, and become a neutral power, or she may have altered her sentiments. Here we can only conjecture.

5. It appears, that the Kings of Denmark and Sweden have joined, or are to join, the Empress in a new effort with the Court of London, to persuade it to make peace with Holland. But how vigorous, or decisive this effort is to be, or what will be their conduct, if they should still be unsuccessful, is left only to conjecture.

6. There are hints at future events, and circumstances, which her Majesty foresees, but the rest of the world do not, which may give her occasion to show her good will. Here is nothing declared, nothing promised, yet it leaves room to suppose, that her Majesty and her high allies may have insisted on conditions from the Court of London, which accepted, may give peace to the Republic, or rejected, may oblige Russia, Sweden, and Denmark, to join Holland in the war. But all this is so faint, reserved, and mysterious, that no dependence whatever can be placed upon it. I am sorry to see the idea of a negotiation for a general peace held up, because I am as well persuaded it is only an insidious manœuvre of the British Ministry, as I am that many powers of Europe, and especially Holland, will be the dupe of it. I confess I should dread a negotiation for a general peace at this time, because I should expect propositions for short truces, *uti possidetis*, and other conditions, which would leave our trade more embarrassed, our union

more precarious, and our liberties at greater hazard, than they can be in a continuance of the war, at the same time it would put us to as constant, and almost as great an expense. Nevertheless, if proposals of peace, or of conferences and negotiations to that end, should be proposed to me, which they have not as yet from any quarter, it will be my duty to attend to them with as much patience and delicacy too, as if I believed them sincere.

Americans must wean themselves from the hope of any signal assistance from Europe. If all the negotiations of Congress can keep up the reputation of the United States so far as to prevent any nation from joining England, it will be much. But there are so many difficulties in doing this, and so many deadly blows are aimed at our reputation for honor, faith, integrity, union, fortitude, and power, even by persons who ought to have the highest opinion of them, and the tenderest regard for them, that I confess myself sometimes almost discouraged, and wish myself returning through all the dangers of the enemy to America, where I could not do less, and possibly might do more for the public good.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, June 23d, 1781.

Sir,

The Deputies of the city of Zieriksee have presented to their Noble Mightinesses, the Lords, the States of Zeeland, on the 12th of this month, their advice concerning the report of the State, of the 19th of April last, relative to the building of vessels of war, to be done by the College of the Admiralty of this Province, in these words, viz.

"That the venerable Regency having seen, by the Memorial of the gentlemen, the committees of the Admiralty of this Province, annexed to the said report, the serious difficulties which appear to oppose themselves to the resolution of building a larger number of vessels of war and frigates, has thought itself obliged to declare, that it is greatly afflicted at the dangerous situation in which the Republic and this Province are at present, being involved in a ruinous war, and almost entirely destitute of all convenient means, which could be employed for the safety and defence of the country; that this great distress might furnish to the venerable Regency, one of the best occasions to enlarge in reflections, how, by prompt directions and active foresight, in case that the re-establishment of our marine had really been taken to heart, the greatest obstacles alleged in the Memorial in question might have been prevented in time; but, that a repetition of what ought to have been executed in time, would in no degree ameliorate the present situation of affairs; and so much the more, as it is indispensably necessary that the deliberations concerning the further building of ships, should be at length terminated; the venerable Regency, then, for the present, would abstain from making even well founded observations, which, nevertheless, they might allege, both with regard to the contents of the Memorial in question, and to the means of advancing with greater vigor the construction, or to put the marine upon a more respectable footing by another way; they content themselves then, with declaring simply, that they are ready to concur in the completion of the aforesaid point of construction, either by conforming to the disposition of this report, or in any other manner whatsoever, that a general deliberation of all the members of the State may find the most convenient.

"That, nevertheless, the venerable Regency cannot abstain from remarking further here, that at the beginning of this war, they had always been persuaded that the other confederates, whose sentiments concerning the first causes of this war have continually influenced those of Zealand, had taken the precautions necessary to be able to oppose the enemy conveniently, either by the national forces, or by the efficacious assistance of their allies, but that the issue of affairs already shows visibly with how much lukewarmness and levity, notwithstanding the serious exhortations and informations repeatedly made by this Province, we have conducted ourselves both with regard to the one and the other. The venerable Regency

now sees the Republic at this moment deprived of all foreign succor, and abandoned to herself against a formidable enemy.

"That, as such a dangerous situation ought naturally to excite in all those who participate in the public government, and really take to heart the true interests of their country, a redoubled zeal to set immediately at work, and in proportion to the danger, all the means of defence imaginable, and to employ them to protect, in the most effectual manner, their country, her commerce and possessions, and to annoy the enemy; the venerable Regency, seeing on the contrary, that the indolence, the inactivity, and even the continual indifference, are only increasing more and more, and that public affairs are administered in a manner, which cannot be reconciled with the danger to which the Republic is exposed, judge, in consequence, that the Lords, the States of this Province, will not be able longer to see, without speaking out, a situation so perilous; but that they ought to examine seriously the true causes and reasons of all this, to the end, that when we have obtained the explanations which we have a right to require, we may take, with the most serious zeal, the resolutions proper to maintain the excellent prerogatives, which we yet possess, and to guard against such misfortunes.

"That the venerable Regency, having learnt with a great deal of satisfaction that similar observations have been made by other members of the body politic, hope that the deliberations concerning an object of this importance will be no longer delayed; but they trust that the affair, for which the advice of the gentlemen of Middleburg carried on the 15th of May to the Assembly of the States has been sent back, will be discussed as soon as possible, and without delay. The venerable Regency declaring, that they shall be always disposed to co-operate in taking every measure proper to obtain an end so salutary."

Thus we see, that two cities of Zealand, Middleburg and Zieriksee, are co-operating with Amsterdam, Haerlem, Dort, Delft, &c. in order to arouse the Republic to action; how many months or years may roll away before they succeed, it is impossible for me to say, because it will depend upon events of war, reports of peace, and the councils of other sovereigns in Europe, as

yet inscrutable, but it will depend upon nothing more than the fate of Clinton and Cornwallis in America.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, June 26th, 1781.

Sir,

The Emperor appears to be more intent at present upon taking a fair advantage of the present circumstances, to introduce a flourishing commerce into the Austrian Flanders, than upon making treaties with England, or waging war in its favor. His Imperial, Royal, and Apostolical Majesty, has condescended to take off and break the shackles, which restrained the commerce and the communication of the port of Nieuport, in the interior of the country, and to discharge by his gracious decree, the commerce from the charges and impositions which were raised on the lands bordering upon the said port, under the denomination of Vate, Geld, Hast-Geld, Myle-Geld, &c. The frequentation of the port of Nieuport presents all the facilities which the merchants can require. Thus the city of Nieuport enjoys the most extensive privileges, both for storage and transportation to foreigners.

We find there good magazines, merchants, factors, and commissioners, who will all serve punctually. The communications, both to the interior parts of the country and to foreigners, are free and easy, both by land, by means of the new causeway of Nieuport, which communicates with all the roads, and by water by means of the direct canals of Nieuport, to Bruges, to Ostend, to Ypres, to Dixmuide, to Furnes, and to Dunkirk, and from thence further on. One passes by the canal from Nieuport to Bruges, nearly in the same space of time, that we pass by the canal from Ostend to Bruges. All these canals

have daily barks ready, easy and convenient for travellers, merchandises, and effects. The fishery of the sea, both of fresh fish, and of all sorts of herring and cod, is at Nieuport, in the most flourishing state, and enjoys there every privilege and exemption. The distillery of gin in the Dutch way, established at Nieuport, makes excellent gin, the transportation and expedition of which enjoys the greatest facilities. And the government of his Imperial Majesty, in the Low Countries, does not cease to grant all the privileges and facilities, which can tend to the well-being of the inhabitants, and of the commerce of the city and port of Nieuport. I should rejoice at these measures, for the benefit which American commerce would receive from them, provided the Emperor could oblige Americans to take their goods from Germany and not from England; but immense quantities of British manufactures will go to America from Nieuport, Ostend, and Bruges.

This is a subject, which deserves the serious consideration of every American. British manufactures are going in vast quantities to America, from Holland, the Austrian Flanders, France, and Sweden, as well as by the way of New York and Charleston, &c. Whether it is possible to check it, much less to put a stop to it, I know not; and whether it would be good policy to put an end to it, if that were practicable, is made a question by many. If the Germans, the Dutch, the French, and Spaniards, or any other nations, would learn a little commercial policy, and give a credit to Americans, as the British merchants do, and encourage in their own countries manufactures, adapted to the wants and tastes of our countrymen, it is certain that in such a case, it would be our interest and duty to put an end to the trade in British goods, because nothing would weaken and distress the enemy so much, and therefore nothing would contribute more to bring the war to a conclusion. At present manufactures flourish in England, and the duties paid at the custom houses have been increasing these two or three years, merely owing to their recovering more and more of the American trade by neutral bottoms, and by other clandestine channels.

Any American merchant by going over to London, obtains a credit. The language of the London merchants to the American merchants is, "Let us understand one another, and let the governments squabble." But Americans

ought to consider, if we can carry on the war forever, our allies cannot, and without their assistance we should find it very difficult to do it.

I wish the taste for British manufactures may not cost us more blood, than the difference between them and others is worth.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, June 26th, 1781.

Sir,

The rubicon is passed. A step has been at last taken by the Regency of Amsterdam, which must decide the fate of the Republic. The city of Amsterdam, finding that their proposition of the 18th of last month was not sufficient to change the conduct of administration, have ventured on another manœuvre. On the 8th of this month, as soon as the States of Holland were separated, two Burgomasters of Amsterdam, M. Tenminck and M. Rendorp, accompanied with M. Vesser, the Pensionary of the city, demanded an audience of the Prince Stadtholder, who granted it, at his house in the grove. In this audience, they made to the Prince, by word of mouth, a representation, which they repeated in a memorial sent on the 14th, to the Counsellor Pensionary of the Province, the substance of which is as follows. The gentlemen of Amsterdam, said,

"That their proposition of the 18th of May last, founded perhaps upon former examples, did not result from any suspicions with regard to the good dispositions and intentions of his Most Serene Highness, which they had no reason to distrust, although the Regency of the city of Amsterdam had learned with the most profound grief, that evil minded persons had endeavored to insinuate the contrary to his Most Serene Highness; but that

their distrust fell solely upon him, whose influence over the mind of his Most Serene Highness was held for the most immediate cause, of the sloth and weakness in the administration of affairs, which as they could not but be extremely prejudicial to the well-being of the public, they had a long time expected, but in vain, that the dangerous circumstances in which the Republic found itself involved, would have, in the end, given rise to serious deliberations upon the means, which we ought to employ in their order and with more vigor; but that these hopes had hitherto been fruitless, and, that as the question now in agitation was concerning the safety of their dear country, of her dear bought liberty, of that of his Most Serene Highness and his house, in one word, of everything which is dear to the inhabitants of the Republic, the Regency of Amsterdam had judged, that they ought not any longer to render themselves guilty by their silence, of a neglect of their duty.

"That, although with regret, they see themselves obliged to take this step, and to represent to his Highness with all due respect, but at the same time with all that frankness and freedom, which the importance of the affair requires, and to declare to him openly, that, according to the general opinion, the Field Maréchal, the Duke Louis of Brunswick Wolfenbuttel, is held for the primary cause of the miserable and defective state in which this country finds itself, in regard to its defence, of all the negligence of duty, which has taken place with respect to this subject, and of all the perverse measures, which have been taken for a long time, with all the fatal consequences which have proceeded from them; and that they could assure his Highness, that the hatred and aversion of the nation for the person and administration of the Duke, were risen to such a height, that there was reason to apprehend from them, events the most melancholy, and the most disagreeable for the public prosperity and the general tranquillity.

"That there was no doubt that the same assertion had been made to his Highness from other quarters; but that in case this had not been, it ought to be attributed solely to the fear of the effects of the resentment of the Duke, while, at the same time, they dared to appeal in this respect, with the firmest confidence, to the testimony of all the members of government, gentlemen of honor and frankness, that his Serene Highness would interrogate upon this subject, after having assured them of the necessary liberty of speaking

without reserve, and after having exhorted them to tell him the truth, according to their duty and their conscience.

"That the Regents of Amsterdam, had learned more than once with grief, that the Counsellor Pensionary of the Province had complained, in presence of divers members of the Regency of Holland, of the misunderstanding which took place between him, the Counsellor Pensionary, and the Duke, as also of the influence which the Duke has upon the spirit of his Highness, and by which his efforts for the good of the country had often been rendered fruitless.

"That this discord, and this difference of views and sentiments between the principal Counsellor of his Serene Highness and the first Minister of this Province, might not only have consequences the most prejudicial, but that it furnished also a motive sufficient to make the strongest instances, to the end, to remove the source of this distrust and discord, while that, without the previous re-establishment of confidence and unanimity, there remained no longer any means of saving the Republic.

"That nothing was more necessary for the well-being of the illustrious House of his Highness, to maintain his authority, to preserve to him the esteem and the attachment of the nation, and for his own reputation with the neighboring powers, since they could assure, and they ought to advertise his Highness, that it is possible he may become one day the object of the indifference and distrust of the public, instead of being and continuing always the worthy object of the love and esteem of the people; and the Regencies, as they made the sincerest wishes, that his Highness and his illustrious posterity might constantly enjoy them, considering, that thereon depended in a great measure, the conservation of the well-being of their country, and of the House of Orange.

"That although they know very well, that the members of the sovereignty have always a right, and that their duty requires them even to expose their sentiments to his Highness and their co-regents, concerning the state and administration of public affairs, they should, however, have now voluntarily spared the present measure, if there had been only the smallest hope of amendment or alteration, but that from the aforesaid reasons, they dared not longer flatter themselves, and that the necessity having arisen to the highest

point, it appeared that there was no other part to take, but to lay open in this manner to his Highness the real situation of affairs, praying him most earnestly to take it into serious consideration, and no longer listen to the counsels and insinuations of a man, upon whom the hatred of the great and the little was accumulated, and whom they regard as a stranger, not having a sufficient knowledge of our form of government, and not having a sincere affection for the Republic.

"That the Regents of Amsterdam were very far from desiring to accuse this nobleman of that of which, however, he was too publicly charged; or to consider as well founded, the suspicions of an excessive attachment to the Court of London, of bad faith and of corruption, that they assure themselves, that a person of so illustrious a birth and so high rank, is incapable of such baseness; but that they judge, that the unfortunate ideas, which have been unhappily conceived with regard to him, and which have caused a general distrust, have rendered him absolutely useless and hurtful to the service of the country, and of his Highness.

"That thus it was convenient to dismiss him from the direction of affairs, from the person and Court of his Highness, as being a perpetual obstacle to the re-establishment of that good harmony, so highly necessary between his Highness and the principal members of the State, while his continuance would but too much occasion the distrust conceived of his counsels, to fall, whether with or without reason, upon the person, and the administration of his Highness himself.

"That these representations did not proceed from a principle of personal hatred or private rancor against the Duke, who, in former times, has had reason to value himself on the benevolence and real proofs of the affection of the Regency of Amsterdam; but that they ought to protest before God and the world, that the conservation of their country, and of the illustrious House of his Highness, and the desire to prevent their approaching ruin, had been the only motives of these representations.

"That they had seen themselves obliged to them, both in quality of citizens of the country, and as an integral member of its sovereign Assembly, to the end to make by this step one last effort, and to furnish yet, perhaps in time, a means of saving, under the blessing of the Almighty, the vessel of the

State from the most imminent dangers, and conduct it to a good port, or at least, in every case, to acquit themselves of their duty, and to satisfy their consciences, and to place themselves in safety from all reproach from the present age, and from posterity."

To this representation, the Duke has made an answer to their High Mightinesses, in which he demands an inquiry and a vindication of his honor, as dearer to him than his life. This answer will be transmitted as soon as possible. The transaction will form a crisis, but what will be the result of this, or any other measure taken in this country, I cannot pretend to foretel.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, June 27th, 1781.

Sir,

Major Jackson has been some time here, in pursuance of instructions from Colonel Laurens, in order to despatch the purchase of the goods, and the shipping of the goods and cash, for the United States, which are to go by the South Carolina.

But when all things appeared to be ready, I received a letter from his Excellency Dr Franklin, informing me that he feared his funds would not admit of his accepting bills for more than fifteen thousand pounds sterling, the accounts of the Indian and the goods amounted to more than fifty thousand pounds, which showed that there had not been an understanding sufficiently precise and explicit between the Doctor, and the Colonel. There was, however, no remedy but a journey to Passy, which Major Jackson undertook, despatched the whole business, and returned to Amsterdam in seven days, so that I hope now there will be no more delays.

Major Jackson has conducted, through the whole of his residence here, as far as I have been able to observe, with great activity and accuracy in business, and an exemplary zeal for the public service.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, June 29th, 1781.

Sir,

On the 21st of this month, the Field Maréchal, Duke Louis, of Brunswick, presented to the States-General the following paper.

"High and Mighty Lords,

"It is not without the greatest reluctance, that I see myself forced to interrupt the important deliberations of your High Mightinesses, and to have recourse to you in an affair, which indeed regards me personally, but the simple explanation of which, I assure myself, will prove, that if I should neglect this step, I should be essentially wanting to the dignity of character, with which your High Mightinesses have clothed me.

"After having passed in 1750 into the service of the State, it pleased your High Mightinesses, by your resolution of the 13th of November of the same year, to create me Field Maréchal of your troops. When, afterwards, the arrangements for the tuition of the Stadtholder in his minority were resolved on, by express resolutions of all the High Confederates, and it was resolved, that his Highness should be represented in the administration of his military employments, your High Mightinesses then condescended, by honoring me with their distinguished confidence, to confer upon me, by your resolution

of the 13th of January, 1759, the title of the representative of the Prince Stadtholder, as Captain-General during the time of his minority.

"I shall say nothing of the resolutions, which your High Mightinesses and the respective Provinces took on the 8th of March, 1766, the day of the majority of the Prince, and in the sequel, under different dates, relative to the manner in which I had answered to the confidence, which you had condescended to put in me. These resolutions are too flattering to be recited here; they are, however, sure pledges, that at that time, at least, I had the good fortune to see my conduct and my services rendered to the State, approved by the high government. In fine, your High Mightinesses continued to honor me with your confidence, even after the time of the minority of the Stadtholder. You took on the same 8th of March, 1766, the resolution to cause to be solicited by your Envoy Extraordinary at the Court of Vienna, the consent of her Imperial and Royal Majesty, in whose service I was also engaged as Field Maréchal, to continue me still in the same quality in the service of your High Mightinesses. The pleasure of her Majesty being obtained, I did not refuse this honor, but continued vested with the character of Field Maréchal of the troops of the State, in the service of your High Mightinesses.

"Having thus filled for more than thirty years, under the eyes of their High Mightinesses, and in a manner which is sufficiently known to you, the employments which you had confided to me, could I have expected that they would one day render my person the object of the public hatred to such a degree, that I could be exposed to the step which they have taken upon my subject; a step the most dishonorable to the character, with which your High Mightinesses have condescended to invest me, and which puts me in the absolute necessity of addressing myself this day to you.

"In effect, High and Mighty Lords, after having seen myself in public, the object of accusations and calumnies the most atrocious, (but which I have always despised as such, and of which I shall never take notice, while no one presents himself to support them) after that they had excited against me a general cry, as if my person could be no longer endured, it was necessary for me still further to suffer, that the gentlemen, the Deputies of the city of Amsterdam, and namely the two reigning Burgomasters, Messieurs

Temminck and Rendorp, accompanied with the Pensionary Vischer, should have addressed themselves to my Lord, the Prince of Orange, and in presence of the Counsellor Pensionary of Holland, should have read to him a certain memorial, in the name and by the order of their constituents, who are therein throughout introduced as speaking in the name of the Regency of Amsterdam, and in which I receive an affront the most sensible for an upright heart. It is true, that the Deputies whom I have just named, took back with them this memorial; but, since, changing their plan, they have thought fit to transmit it, on the 14th of the month, by the Burgomaster Rendorp, not indeed in the name of the Regency of Amsterdam, but in that of the gentlemen the Burgomasters to the Counsellor Pensionary, praying him to transmit it to the Prince, to whom they left the liberty to make such use of it as should seem to him convenient.

"Informed in this way, and by the communication which his Highness made to me of it, of the contents of this memorial, I there found so long a concatenation of expressions and reasonings, each more insulting than the other, against my person, which I should be afraid to abuse the attention of your High Mightinesses by inserting them here; lest, however, I should represent them out of their order, and the chain which connects them together, your High Mightinesses will pardon me, I hope, if I transcribe from the memorial, the periods which relate to me, and by which I am attacked.

"After having made several reflections, which in nowise concern me, and which I ought, consequently, to leave to be answered by those who are attacked by them, but which tend to justify the proposition, which the gentlemen, the Deputies of the city of Amsterdam, made the 18th of May last, in the Assembly of the States of Holland in particular, to join to his Highness a privy council or committee, the gentlemen, the Burgomasters, continue to address themselves to the Prince literally in these terms."

[Here follows the substance of the representations of the Burgomasters, contained in my letter to Congress, of the 26th of June, 1781.]

"In those pieces, which I have just now literally related, your High Mightinesses will perceive, and probably not without indignation, that after a train of reflections, each more injurious than the other, in which there is

no accusation against me as Field Maréchal, and which, moreover, are only grounded upon pretended public sentiments and reports artfully circulated, that nevertheless the gentlemen, the Burgomasters, have judged it necessary to insist that his Highness would remove me from his person and Court, in a manner the most disgraceful, and condemn me without further examination, as a criminal attainted and convicted to dishonorable exile.

"I cannot then but consider a proceeding, accompanied with so many odious and humiliating expressions, which is not made by simple individuals, but a deputation of two reigning Burgomasters, with the Pensionary of one of the most considerable cities of Holland, in the name and by the order of the Regency of that city, (according to the terms of the memorial, although according to the letter whereof I have spoken of the Burgomaster Rendorp, it was only in the name of the gentlemen, the Burgomasters of that city) and that in a formal manner, after mature deliberation, and after having confirmed this action in the most injurious manner, by taking back the memorial, and causing it to be sent to his Highness, I cannot, I say, but consider this proceeding as wounding, in the most violent manner, my character and my person; and in this same writing, where they dare not specify any crime to my charge, and where they are obliged to acknowledge the falsity of the reports which have circulated against me, and of the suspicions of an excessive and illicit attachment to the English Court, of bad faith and of corruption, they appear, notwithstanding, to give credit to these calumnies, and to be willing to cast upon me the blame of the evils of the times, to the end, to exculpate those who are the true causes of it. I should think myself unworthy of bearing any longer the character that your High Mightinesses have confided to me, if I testified upon this article an indifference or an insensibility.

"I dare also assure myself, that your High Mightinesses will consider my proceeding in the same point of light, and that they will agree with me, that it is of the highest importance to know, if he, whom your High Mightinesses have clothed with the dignity of Field Maréchal, whom they have engaged and continued in their service in the manner abovementioned, is in fact the true cause of the deplorable state of the weakness of the Republic, of all the negligence they suppose to have taken place, of all the false steps, that they say have been taken, and of all the unhappy consequences, that have

resulted from them. Your High Mightinesses are to examine in the most exact manner, things so interesting, and to see if this person is the source of the distrust and disunion; for what reasons he would be totally unuseful and prejudicial to the service of the State and of his Highness; what are the proofs of his want of affection to the country; in one word, for what reason he should be hereafter unworthy of the confidence of the Prince, who is placed at the head of this Republic, to whose testimony I here take the liberty of appealing; finally, for what reason he hath merited to be removed from the person of his Highness, and of his Court, as a perpetual obstacle to the good intelligence between his Highness and the Court.

"And as my honor is more dear to me than life, and as I am attacked in a part so sensible, it is also for this reason, and in consideration of that, which I owe to myself even, and to the relations, which I have as well with this State and to your High Mightinesses, as to those which I still have with his Imperial and Royal Majesty, to which otherwise I should be too much wanting, that I see myself obliged to address myself to your High Mightinesses, and by them to all the confederates, to supplicate them respectfully, and to insist in the most express manner, that your High Mightinesses would deign, after the most severe and scrupulous examination, to take such measures in protecting efficaciously the character, which your High Mightinesses have confided to me, that I may be justified in a proper manner from the blame, that the abovementioned proceeding hath cast upon me, and that so sensible an affront as hath been offered me by it, may be suitably repaired; that to this end it may please your High Mightinesses to direct things in such a manner, that the four reigning Burgomasters of Amsterdam, who have caused to be delivered in their name the said Memorial, according to the letter of Burgomaster Rendorp, be obliged, as well as the Pensionary Vischer, to allege the reasons they have had of injuring me so grievously as they have done by the said proceeding, and by the accusation, therein contained, and to verify the whole in a suitable manner, which I cannot but consider all that, which is there said as calumnies, and that they may be obliged, moreover, to specify more precisely the other heads of accusation, that they pretend to allege to my charge, and to bring the requisite judiciary proofs of them; and in case that they can specify nothing, or that they cannot prove sufficiently their allegations, that the authors of the infamous reports circulated against me

may be sought out, to the end, that they may be punished as calumniators, according to their deserts; finally, that your High Mightinesses will then, conjointly with all the confederates, take such justificatory resolutions, as will save my honor and my reputation in the nation, and in the eyes of all Europe; that thus I may be placed in a situation to support with proper dignity the character, which your High Mightinesses have given me, and that I may obtain the satisfaction, that your High Mightinesses, according to their profound wisdom and known equity, shall judge equivalent to the affront offered to my character and my relations.

"I have the honor to be, with the most sincere and respectful attachment, High and Mighty Lords, your High Mightinesses' most humble, most obedient, and faithful servant,

L. DUC DE
BRUNSVIC."

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, July 5th, 1781. [\[1\]](#)

Sir,

The following is an extract from the registry of the resolutions of their High Mightinesses, the States-General of the United Provinces of the Low Countries.

Thursday, June the 20th, 1781. His Serene Highness, the Prince of Orange and Nassau, having appeared in the Assembly, made to their High Mightinesses the following proposition.

"High and Mighty Lords,

"I have judged necessary to propose to your High Mightinesses to examine, with the greatest care, if, since the present troubles have arisen, proper attention has been paid to the placing the marine of the State in that situation, that it had been able to act efficaciously against an enemy, particularly one so strongly armed by sea as the kingdom of Great Britain is, or if any negligence or supineness hath had place in that respect, and in that case, to what it ought to be attributed; and to the end to receive the necessary information on that head, to write to the respective Colleges of Admiralty, that they may make report, and declare how many vessels they had in 1776, and how many were then equipped, and with how many men, what they have done since the English have begun to molest the ships of the inhabitants of this country, employed in the West India trade under pretext of the disputes arisen with their colonies in North America, and by consequence from the end of 1776 and the beginning of 1777, to place themselves as much as was possible and in their power, in a state to protect the commerce of this country, and what they have done since the troubles have begun in Europe, and that it was to be feared, that the Republic would have a share in them, for to put it as much as depended on them, in a state of not only protecting her commerce, but also to be able to assist in defending the country, and in attacking the enemy; if they have been active to effect that, which hath been resolved by your High Mightinesses for this object, or if there has been a negligence in this respect; and in that case, for what reason they have not executed these resolutions; if it has been possible for them to furnish the ships put in commission and equip them, to the end, that it may appear from whence it arises, that the Republic finds itself in so deplorable a state of defence by sea, which is certainly the point the most interesting in this war, and upon which all the inhabitants of this country have an eye. Although on this occasion I make only mention of the defence by sea, I esteem it necessary to represent to your High Mightinesses, that I am very far from avowing by that, that the land forces of this State are sufficient to assure us, that the country is in a respectable state of defence by land.

"I do not think myself under the necessity of justifying my conduct, and that your High Mightinesses are ignorant of the efforts I have made since my

majority to place everything, which regards this Republic, in a respectable posture of defence; nevertheless, I have thought it in my power to represent to your High Mightinesses, that I have on more than one occasion, given it as my opinion, that this Republic ought to be placed not only by land but also by sea, in a proper state of defence, to the end to be able to maintain its liberty and independence, and not to be obliged to take measures contrary to the true interests of the country; but conformable to those of a power from whose menaces it has at length more to fear, because it is not in a state to resist it.

"It is for that reason that even in the beginning of 1771, I have given to understand, that the Deputies of the Province of Holland and West Friesland had proposed in the assembly of your High Mightinesses, by the express orders of the gentlemen, the States their constituents, to cause to be formed a petition for the construction of twentyfour vessels of war; that I have not neglected to insist upon all occasions, as well upon the re-establishment of the marine as upon the augmentation of the land forces, and to press particularly more than once the conclusion of the petition for the construction of vessels.

"It is for the same reason, that in the beginning of the year 1775, upon occasion of the exertions made by the gentlemen, the Commissaries of your High Mightinesses for the affairs of war, with some members of the Council of State, to conciliate the different sentiments of the respective confederates, in regard to the plan of augmentation of the land forces, proposed by the Council of State, the 19th of July, 1773, I have made a conciliatory proposition to this purport, viz. 'that the sum for the department of war should be fixed at six hundred thousand florins for the marine, and to make amends for that, that the sum of one million five hundred thousand florins demanded in 1773, for an augmentation to be made of the land forces, should be reduced to nine hundred thousand florins;' which proposition was embraced at that time by the gentlemen, the States of Guelderland, Friesland, Overijssel, and Gronigen, but hath had no further operation.

"I shall not allege here the entreaties that I have annually made with the Council of State by the general petition; but shall communicate only to your

High Mightinesses the proposition that I have made to the assembly of the gentlemen, the States of Holland and West Friesland, the 10th of March, 1779, which is of the same tenor with the letter I wrote the same day to the gentlemen, the States of Guelderland, Zealand, Utrecht, Friesland, Overijssel, and Groningen, a copy of which I have the honor to remit to your High Mightinesses. I cannot disguise that in my opinion it was to have been wished, that what I then proposed had been more attended to, since I dare assure myself that if the republic had found it good at that time to have caused to be armed fifty or sixty vessels well equipped, and provided with every necessary, whereof not less than twenty or thirty should have been of the line, and to have augmented the land forces to fifty or sixty thousand men of foot, it would not have found itself in its present unhappy circumstances, but it would have been respected as an independent State by all the powers, it would have been able to maintain the system of neutrality, which it had embraced; and it would have seen itself in a state to promise itself with reason, under the divine benediction, that in giving great weight to the party to which it should be joined, it would not have been to be feared that any power whatsoever would have attacked it, but that it would have been managed by each, and that her friendship being sought by all, and not giving to any one of them just causes of complaint, it would have obtained the esteem and confidence of all the powers, which would have produced the best effects for the true interests of this State, certainly and in every case, if it had been attacked by an unjust war, to which a State is always exposed, it would have seen itself in a state to make an opposition with hopes of success, and of obliging the enemy to seek the friendship of this State, upon honorable terms for the Republic."

The following is the letter from his Serene Highness to the Lords, the States of Guelderland, Zealand, Utrecht, Friesland, Overijssel, and Groningen, dated March 10th, 1779.

"Noble and Mighty Lords, intimate and good Friends;—We think ourselves obliged to communicate to your Noble Mightinesses our sentiments respecting one of the most important objects of your deliberations, viz. we are very far from judging that it would be expedient that this Republic should renounce the lawful rights, which appertain to its inhabitants in virtue of solemn treaties; we think, on the contrary, that they ought to be

maintained by all the means that Providence hath placed in the hands of this Republic, but that it belongs only to your Noble Mightinesses, and to the Noble Mighty Lords, the States of the other Provinces to decide, when it is time that their High Mightinesses ought to take the resolution of granting an unlimited protection to their commercial inhabitants, and that their High Mightinesses not having engaged themselves by any treaty whatsoever with any foreign power, to protect all branches of commerce without distinction, no one hath a right to exact from them, that, in granting protection, they ought to grant it to all vessels without distinction, without leaving to their prudence to decide if they are in a condition to protect all the branches of commerce; and if they can do it in the present moment without hazarding important interests, and exposing themselves to the greatest danger.

"We think, then, that in this case it will be proper to pay no regard to anything else than the true interests of the Republic, and it is for this reason that before a final resolution is taken to convoy vessels loaded with wood, it would be necessary to examine the state of the Republic, both by land and sea. In our opinion, nothing will be more expedient for this Republic than an exact and punctual neutrality, without prejudicing the treaties which it has with foreign powers, but we think that to maintain and support it efficaciously, and not only for so long a time as it may please one of the belligerent powers to require of the Republic, in a violent and threatening manner, that it takes a part, that it will be proper that the Republic be put in an armed state, that to this end it will be necessary to equip at least fifty or sixty vessels, not less than twenty or thirty of them of the line, and to augment the land forces to fifty or sixty thousand men, and that the frontier places should be put in a proper state of defence, and the magazines provided with the requisite munitions of war. In which case we are of opinion, that the Republic would be respected by all the powers, and could do, without obstacle, what is permitted it by the treaties, or would not be prevented from doing and acting what it should judge proper to its true interests.

"For these reasons we judge, that the fidelity we owe to our country requires us to offer this consideration to the enlightened minds of your Noble Mightinesses, and to give your Noble Mightinesses the deliberation of it, to take a resolution, to the end that by the construction of a

considerable number of vessels, and particularly of the line, the marine may be reinforced, and that by the augmentation of the monthly pay or premiums, or by such other arrangements as your Noble Mightinesses, and the Lords, the States of the other Provinces, shall judge proper, it may be effected that the sailors necessary to equip them be procured, and that at the same time your Noble Mightinesses grant the sums for the necessary augmentation, to the end to carry the land forces to the number of fifty or sixty thousand men, and for the petitions respecting the fortifications and magazines.

"When your Noble Mightinesses and the Lords the States of the other Provinces shall have done that, and this reinforcement, both by sea and land, shall have been carried into execution, we think that this is the epoch when the Republic may with advantage, and as an independent State, take the resolution of maintaining the rights which appertain to their inhabitants according to the treaties, and particularly that of Marine, in 1674. But before the Republic is put in a respectable state of defence, we should fear, that a resolution to take under convoy all vessels indiscriminately, according to the letter of the said treaty, and particularly vessels loaded with ship timber, might have very bad consequences for the true interests of this State, and expose the honor of its flag to an affront. And is for this reason we are of opinion, that it would be proper, that it should be resolved by an ulterior resolution, that the vessels loaded with masts, knees, beams, and other kinds of wood necessary to the construction of ships of war should not be taken under convoy, before an equipment of fifty or sixty vessels, (not less than twenty or thirty of them of the line,) is ready, and before having augmented the land forces to fifty or sixty thousand men of foot; but that in the meantime, to the end to protect as much as possible, the general commerce of this country, without exposing the important interests of the State, the necessary convoys as they were announced, shall be granted to all other vessels not loaded with contraband effects, to the end that all the branches of commerce may not be suspended and left without protection, during the time of the deliberation upon the protection of one branch only. We expect, that when the Republic shall be put into this armed state, all the powers will leave her to exercise the right which belongs to her of keeping an exact neutrality, and of observing also on their part, everything which the treaties it hath made may require, &c."

Which having been deliberated, their High Mightinesses have thanked his Serene Highness for the said proposition.

"They regard it as a new mark of his assiduous zeal and solicitude for the interests of the State, in declaring that their High Mightinesses acknowledged with gratitude, all the efforts that his Serene Highness hath employed since his majority, and in particular since the commencement of the war between the two neighboring kingdoms, to put the Republic in a proper state of defence, both by sea and land, and could have wished that these efforts might have had the desired effect in every respect; and besides, it has been found good and resolved, that conformably to the proposition of his Serene Highness, it shall be notified to the respective Colleges of the Admiralty, (in sending to them a copy of the said proposition,) that they make report and render an account how many vessels they had in 1776; in what condition they were, and how many of them were equipped with the number of men; afterwards what they have done since the English have begun to molest the ships of the inhabitants of this country trading to the West Indies, under pretext of disputes arisen with their Colonies in North America, and thus from the end of the year 1776, and at the beginning of 1777, to put themselves in a condition, as much as was possible and in their power, to protect the commerce of this country, and what they have done since the troubles have begun in Europe, and that it was to be feared that the Republic would become a party, to put themselves in a condition for what depended upon them, to protect not only their commerce, but also to be able to aid in defending the country and attacking the enemy; if they have been active to carry into effect what your High Mightinesses have resolved upon this subject, and if any negligence hath had place in this regard, and in this case, for what reasons they have not executed those resolutions; if they have been in a possibility of supporting and equipping the vessels put in commission, to the end that it may appear to what we ought to attribute the present situation."

I have the honor to be, &c.

JOHN ADAMS.

TO THE COUNT DE VERGENNES.

Versailles, July 7th, 1781.

Sir,

I have the honor to inform your Excellency, that upon an intimation from you, signified to me by M. Berenger, and afterwards by the Duc de la Vauguyon, that the interest of the United States required me here, I arrived last night in Paris, and am come today to Versailles, to pay my respects to your Excellency, and receive your further communications. As your Excellency was in council when I had the honor to call at your office, and as it is very possible that some other day may be more agreeable, I have the honor to request you to appoint the time, which will be most convenient for me to wait on you.

I have the honor to be, with great respect, Sir, your most obedient, and most humble servant,

JOHN ADAMS.

The foregoing letter I sent by my servant, who waited until the Count descended from council, when he delivered it into his hand. He broke the seal, read the letter, and said he was very sorry he could not see Mr Adams, but he was obliged to go into the country immediately after dinner; that Mr Adams, *seroit dans le cas de voir M. de Rayneval*, who lived at such a sign in such a street. After dinner, I called on M. Rayneval, who said; M. le Duc de la Vauguyon has informed me, that there is a question of a pacification, under the mediation of the Emperor of Germany and the Empress of Russia, and that it was necessary that I should have some consultations at leisure with the Count de Vergennes, that we might understand each other's views; that he would see the Count tomorrow morning, and write me when he would meet me; that they had not changed their principles nor their system; that the treaties were the foundation of all negotiation. I said, that I lodged at the hotel de Valois, where I did formerly; that I should be ready to wait on the Count when it would be agreeable to him, and to confer with him upon everything relative to any proposition, which the English might have made. He said the English had not made any propositions, but it was

necessary to consider certain points, and make certain preparatory arrangements; to know whether we were British subjects, or in what light we were to be considered, &c. Smiling, I said, I was not a British subject, that I had renounced that character many years ago, forever; and that I should rather be a fugitive in China or Malabar, than ever reassume that character.

On the 9th, was brought me by one of the Count de Vergennes' ordinary commissaries the following billet.

M. DE RAYNEVAL TO JOHN ADAMS.

Translation.

Versailles, July 9th, 1781.

Sir,

I have had the honor to inform you, that the Count de Vergennes desired to have an interview with you, and it will give him pleasure if you can meet him on Wednesday next, at nine o'clock in the morning.

Meantime, I have the honor to be, &c.

GERARD DE
RAYNEVAL.

TO M. DE RAYNEVAL.

Paris, July 9th, 1781.

Sir,

I have this moment the honor of your billet of this day's date, and will do myself the honor to wait on his Excellency the Count de Vergennes at his office, on Wednesday next, at nine of the clock in the morning according to his desire.

I have the honor to be, &c.

JOHN ADAMS.

Accordingly on Wednesday I went to Versailles, and met the Count at his office, with M. de Rayneval, at nine o'clock, who communicated to me the following articles proposed by the two Imperial Courts. That Spain had prepared her answers; that of France was nearly ready; but did not know that England had yet answered.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, July 7th, 1781.

Sir,

The following Resolution was passed at the Hague, the 2d of this month, by their High Mightinesses the States-General, respecting the Duke of Brunswick.

"Heard the report of Messrs de Lynden, de Hemmen, and other deputies of their High Mightinesses for marine affairs, who, in consequence and conformably to a commissorial resolution of their High Mightinesses of the 21st of last month, have examined a letter of the Duke of Brunswick, dated at the Hague the same day, and containing serious complaints upon the proposition, that the gentlemen, the Deputies of the city of Amsterdam, have made to his Highness, after that many calumnies and atrocious accusations had been circulated against him in public; upon which, having deliberated, it hath been found good and resolved,

"That, saving the deliberations of the Lords, the States of the respective Provinces, upon the complaints relative to the proceeding of the gentlemen, the Deputies of Amsterdam, their High Mightinesses, not being able to see with indifference, that my Lord the Duke of Brunswick, in quality of Field Maréchal of this State, be publicly accused in so enormous a manner, it may

from this time be declared, and it is declared by the present, that it is not manifest to their High Mightinesses that there are any reasons, which could furnish any ground for such accusations and suspicions of bad faith and of corruption as have been alleged to the charge of my Lord the Duke, and that have been circulated abroad in anonymous writings, defamatory libels, and dishonorable reports; that, on the contrary, their High Mightinesses regard them as false and injurious calumnies, spread with design to disgrace and wound the honor and reputation of my Lord the Duke; whilst that their High Mightinesses hold the said Lord the Duke entirely innocent and exempt from the blame, with which the libels and reports alleged endeavor to disgrace him.

"That in consequence, the gentlemen, the States of the respective Provinces, should be required by writing, and that it should be submitted to their consideration, if they could not find it good each in their Provinces, conformably to the placards of the country, to make the necessary regulations to restrain the authors, printers, and distributors of such like defamatory libels and malicious and calumnious writings, by which the said Lord the Duke is so sensibly attacked and wounded in his honor and reputation."

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, July 7th, 1781.

Sir,

Under the head of St Petersburg is the following article.

"On the 8th of June, the Minister of the Court of Versailles had a conference with the Count Osterman, Vice Chancellor of the empire, and remitted to

him a memorial, containing representations upon the continued proceedings of the English against the commerce and navigation of neutrals; upon the little activity of these last to prevent these arbitrary proceedings, and supporting thereby the principles of their declarations made to the belligerent powers, and the convention of neutrality which has been agreed upon between them; upon the prejudice which ought naturally to result from it to the whole world, and upon the desire which the king his master has that it should be remedied by the vigorous co-operation of her Imperial Majesty, seeing that without that the said association of neutrality would turn only to the advantage of the enemies of France, and that the King, who to this moment has confined himself exactly to the principle of the abovementioned declaration and convention of neutrality, would see himself, although with regret, in the indispensable necessity of changing in like manner the system which he had hitherto followed, with respect to the commerce and navigation of neutrals, and of measuring and regulating it upon the conduct which the English shall allow themselves, and which was so patiently borne by the neutrals. Objects, in regard to which his Majesty has nevertheless judged it his duty to suspend his final resolution, until he can concert upon this subject with her Imperial Majesty."

Mr Dana left Amsterdam this day, and is gone to Utrecht and from thence he will proceed on his journey to Petersburg without delay. Mr Jennings does not accompany him.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, July 10th, 1781.

Sir,

On Wednesday, the 4th of July, M. de Lynden Blitterswyk, presiding in the Assembly, hath related and acquainted their High Mightinesses, that the Duke of Brunswick had been with him that morning and given him to understand,

"That he had been informed of the resolution, that their High Mightinesses had taken the 2d of July upon the letter, that he had the honor of remitting to them, the 21st of June last; that He was extremely sensible of the marks of confidence and affection, that their High Mightinesses had been pleased to give him on this occasion, and that in an affair, to the subject of which he had not directly carried his complaints to their High Mightinesses; that he was nevertheless not less persuaded, that the intention of their High Mightinesses could not be by that to let the affair rest provisionally, much less that thereby they should have satisfied the respectful demand and requisition contained in his said letter, by which he had required an exact and vigorous examination, and demanded for that purpose of their High Mightinesses such steps as had been more amply mentioned in the said letter; and that then only he had required such a justificatory resolution and satisfaction as had been afterwards demanded by that letter; that he ought to insist upon that so much the more, as by that provisional resolution, as taken without previous inquiry, one could by no means think him cleared from the blame and affront, which had been offered him, for which reason he had conceived that he could and ought to implore the resolution of all the High Confederates themselves, as he still continued to implore it with earnestness;" praying M. de Lynden, as President of the Assembly of their High Mightinesses, to be pleased to acquaint them therewith.

Which having been deliberated, it hath been resolved and concluded,

"To pray by the present, the gentlemen, the Deputies of the respective Provinces, to be pleased to acquaint the gentlemen, the States, their principals, with the above, to the end that in the deliberations upon the letter of the Duke of Brunswick, such reflections may be made upon the above as they shall judge proper."

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, July 11th, 1781.

Sir,

I have only time by Major Jackson, to inform Congress, that upon information from the Count de Vergennes, that questions concerning peace under the mediation of the two Imperial Courts were in agitation, that required my presence here, I undertook the journey, and arrived here last Friday night, the 6th of the month, and have twice waited on the Count de Vergennes at Versailles, who this day communicated to me the enclosed propositions.

These propositions are made to all the belligerent powers, by the Courts of Petersburg and Vienna, in consequence of some wild propositions made to them by the Court of London, "that they would undertake the office of mediators upon condition, that the league as they call it, between France and their rebel subjects in America should be dissolved, and these left to make their terms with Great Britain, after having returned to their allegiance and obedience."

France and Spain have prepared their answers to these propositions of the Empress and Emperor, and I am desired to give my answer to the articles enclosed. It is not in my power at this time to enclose to Congress my answer, because I have not made it, nor written it, but Congress must see, that nothing can come of this manœuvre, at least for a long time. Thus much I may say to Congress, that I have no objection to the proposition of treating with the English separately in the manner proposed, upon a peace, and a Treaty of Commerce with them, consistent with our engagements with France and Spain; but that the armistice never can be agreed to by me. The objections against it are as numerous as they are momentous and decisive. I may say further, that as there is no judge upon earth, of a Sovereign Power, but the nation that composes it, I can never agree to the mediation of any powers, however respectable, until they have acknowledged our sovereignty, so far at least as to admit a Minister Plenipotentiary from the

United States, as the representative of a free and independent power. After this, we might discuss questions of peace or truce with Great Britain, without her acknowledging our sovereignty, but not before.

I fancy, however, that Congress will be applied to for their sentiments, and I shall be ever ready and happy to obey their instructions, because I have a full confidence, that nothing will be decided by them, but what will be consistent with their character and dignity. Peace will only be retarded by relaxations and concessions, whereas firmness, patience, and perseverance will ensure us a good and lasting one in the end. The English are obliged to keep up the talk of peace, to lull their enemies, and to sustain their credit. But I hope the people of America will not be deceived. Nothing will obtain them real peace but skilful and successful war.

I have the honor to be, &c.

JOHN ADAMS.

ARTICLES

To serve as a Basis to the Negotiation for the Re-establishment of Peace.

Translation.

ARTICLE I.

The re-establishment of peace in America shall be negotiated between Great Britain and the American Colonies, but without the intervention of any of the other belligerent parties, nor even with that of the two Imperial Courts, unless their mediation should be formally asked and granted upon this object.

ARTICLE II.

This separate peace cannot, however, be signed, but conjointly, and at the same time with that of those powers whose interests shall have been negotiated by the mediating Courts, for this reason, although each peace may be separately treated, yet they cannot be concluded without each other. Care shall be taken to inform the mediators with certainty of the measures and state of that, which regards Great Britain and the Colonies, to the end, that the mediation may be able to regulate the measures intrusted to it, by the state of the negotiation relating to the colonies, and both of the pacifications, which shall have been concluded at the same time, although separately, shall be solemnly guaranteed by the mediating Courts, and every other neutral power, whose guarantee the belligerent parties may think proper to claim.

ARTICLE III.

To render the negotiations for peace independent of the events of war, always uncertain, which may put a stop to, or at least retard their progress, there shall be a general armistice between all parties during the term of a year, reckoning from —— of the month of —— of the present year, or of —— years, reckoning from —— of the month of —— of the year 1782, should it happen that peace should not be re-established in the first period, and whilst the duration of either of these periods continue, everything shall remain in the state in which they shall be found at signing the present preliminary articles.

TO THE COUNT DE VERGENNES.

Paris, July 13th, 1781.

Sir,

I have the honor to enclose to your Excellency some remarks upon the articles, to serve as a basis of the negotiation for the re-establishment of peace, which you did me the honor to communicate to me.

As I am unacquainted, whether you desired my sentiments upon these articles merely for your own government, or with a design to communicate them to the Imperial Courts, I should be glad of your Excellency's advice concerning them. If your Excellency is of opinion there is anything exceptionable, or which ought to be altered, I should be glad to correct it; or if I have not perceived the points, or questions, upon which you desired my opinion, I shall be ready to give any further answers.

I have the honor to be, &c.

JOHN ADAMS.

ANSWER

Of the Minister Plenipotentiary of the United States of America, to the Articles to serve as a Basis to the Negotiation for the Re-establishment of Peace.

ARTICLE I. The United States of America have no objection, provided their allies have none, to a treaty with Great Britain, concerning the re-establishment of peace in America, or to another concerning the re-establishment of commerce between the two nations, consistent with their obligations to France and Spain, without the intervention of any of the other belligerent parties, and even without that of the two Imperial Courts, at least, unless their mediation should be formally demanded and granted upon this object, according to the first article communicated to me.

ART. II. The United States have nothing to say, provided their allies have not, against the second article.

ART. III. To the armistice, and the *statu quo*, in the third article, the United States have very great objections, which indeed are so numerous and decisive, and at the same time so obvious, as to make it unnecessary to state them in detail.

The idea of a truce is not suggested in these articles; but as it is mentioned in some observations shown me by his Excellency, the Count de Vergennes, it may be necessary for me to add, that the United States are so deeply impressed with an apprehension, that any truce whatsoever would not fail to be productive of another long and bloody war at the termination of it, and that a short truce would be in many ways highly dangerous to them, that it would be with great reluctance that they should enter into any discussion at all upon such a subject.

Two express conditions would be indispensable preliminaries to their taking into consideration the subject of a truce at all. The first is, that their allies agree, that the treaties now subsisting remain in full force during and after the truce, until the final acknowledgment of their independence by Great Britain. The second is, the antecedent removal of the British land and naval armaments from every part of the United States. Upon these two express conditions as preliminaries, if a truce should be proposed for so long a period, or for an indefinite period, requiring so long notice, previous to a renewal of hostilities, as to evince that it is on the part of Great Britain a virtual relinquishment of the object of the war, and an expedient only to avoid the mortification of an express acknowledgment of the independence and sovereignty of the United States, they, with the concurrence of their allies, might accede to it.

It is requisite, however, to add; first, that the United States cannot consider themselves bound by this declaration, unless it should be agreed to before the opening of another campaign. Secondly, that it is not in the power of the Crown of Great Britain, by the constitution of that kingdom, to establish any truce, or even armistice with the United States, which would not be illusory without the intervention of an act of Parliament, repealing or suspending all their statutes, which have any relation to the United States, or any of them. Without this, every officer of the navy would be bound by the laws, according to the maxims of their constitution, to seize every American vessel that he should find, whose papers and distinction should not be found conformable to those statutes, and every French, Spanish, Dutch, or other foreign vessel, which he should find going to, or coming from America; notwithstanding any convention that is in the power of the Crown to make.

After all, the greatest difficulty does not lie in anything as yet mentioned. The great question is, in what character are the United States to be considered? They know themselves to be a free, sovereign, and independent State, of right and in fact.

They are considered and acknowledged as such by France. They cannot be represented in a Congress of Ministers from the several powers of Europe, whether their representative is called Ambassador, Minister, or Agent, without an acknowledgment of their independence, of which the very admission of a representative from them is an avowal. Great Britain cannot agree with their representative upon a truce, or even an armistice, without admitting their freedom and independence.

As there is upon earth no judge of a sovereign State, but the nation that composes it, the United States can never consent, that their independence shall be discussed or called in question by any sovereign or sovereigns, however respectable, nor can their interests be made a question in any Congress, in which their character is not acknowledged, and their Minister admitted. If, therefore, the two Imperial Courts would acknowledge and lay down as a preliminary, the sovereignty of the United States, and admit their Minister to a Congress, after this, a treaty might be commenced between the Minister of Great Britain and the Minister of the United States, relative to a truce, or peace and commerce, in the manner proposed, without any express acknowledgment of their sovereignty by Great Britain, until the treaty should be concluded.

The sovereigns of Europe have a right to negotiate concerning their own interests, and to deliberate concerning the question, whether it is consistent with their dignity and interests, to acknowledge expressly the sovereignty of the United States, and to make treaties with them, by their Ministers in a Congress, or otherwise; and America could make no objection to it; but neither the United States nor France can ever consent, that the existence of their sovereignty shall be made a question in such Congress; because, let that Congress determine as it might, their sovereignty, with submission only to Divine Providence, never can, and never will be given up.

As the British Court, in first suggesting the idea of a Congress to the Imperial Courts, insisted upon the annihilation of the league, as they were

pleased to call it, between France and their rebel subjects, as they were pleased again to phrase it, and upon the return of these to their allegiance and obedience, as preliminaries to any Congress or mediation; there is too much reason to fear, that the British Ministry have no serious intentions or sincere dispositions for peace, and that they mean nothing but amusement. Because, the support of the sovereignty of the United States was the primary object of the war, on the part of France and America; the destruction of it, that of Great Britain. If, therefore, the treaty between France and America were annulled, and the Americans returned to the domination and monopoly of Great Britain, there would be no need of troubling all Europe with a Congress to make peace. All points between France, Spain, and Great Britain, might be easily adjusted among themselves. Surely the affairs of Great Britain are, in no part of the world so triumphant, nor those of any of their enemies so adverse, as to give this Ministry any serious hopes, that France and America will renounce the object of the war. There must, therefore, be some other view.

It is not difficult to penetrate the design of the British Ministry upon this, any more than upon many former occasions. They think that a distrust of them, and a jealousy that they would not adhere with good faith to the propositions of reconciliation, which they have made from time to time, were, in the minds of the Americans, the true cause why these propositions were not accepted. They now think, that by prevailing on the two Imperial Courts, and other Courts, to warranty to the Americans any similar terms they may propose to them, they shall remove this obstacle; and by this means, although they know that no public authority in America will agree to such terms, they think they shall be able to represent things in such a light, as to induce many desertions from the American army, and many apostates from the American independence and alliance. In this way, they pursue their long practised arts of seduction, deception, and division. In these again, as in so many former attempts, they would find themselves disappointed, and would make very few deserters or apostates. But it is to be hoped, that the powers of Europe will not give to these superficial artifices, with which that Ministry have so long destroyed the repose of the United States, and of the British dominions at home and abroad, and disturbed the tranquillity of Europe, so much attention as to enable them to continue much longer such evils to mankind.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Paris, July 15th, 1781.

Sir,

I have the honor to enclose a copy of a letter to the Count de Vergennes, and of certain articles and their answers. The British Court proposed to the Imperial Courts, a Congress, upon two preliminary conditions, the rupture of the treaty with France, and the return of America to their obedience. The two Imperial Courts have since proposed the enclosed articles. Spain and France have prepared their answers. England has not answered yet, and no Ministers are yet commissioned or appointed by any power. If she accepts the terms, I should not scruple to accept them too, excepting the armistice and the *statu quo*. I mean I should not insist upon a previous explicit acknowledgment of the sovereignty of the United States, before I went to Vienna. I see nothing inconsistent with the character or dignity of the United States, in their Minister going to Vienna, at the same time when Ministers from the other powers are there, and entering into treaty with a British Minister without any explicit acknowledgment of our independence, before the conclusion of the treaty. The very existence of such a Congress would be of use to our reputation.

But I cannot yet believe that Britain will wave her preliminaries. She will still insist upon the dissolution of the treaty, and upon the return of the Americans under her government. This, however, will do no honor to her moderation or pacific sentiments, in the opinion of the powers of Europe.

Something may grow out of these negotiations in time, but it will probably be several years before anything can be done. Americans can only quicken these negotiations by decisive strokes. No depredations upon their trade, no conquests of their possessions in the East or West Indies will have any effect upon the English to induce them to make peace, while they see they

have an army in the United States, and can flatter themselves with the hope of conquering or regaining America; because they think that with America under their government, they can easily regain whatever they may lose now in any part of the world. Whereas, the total expulsion of their forces in the United States would extinguish their hopes, and persuade them to peace, sooner than the loss of everything less. The belligerent powers and the neutral powers may flatter themselves with the hopes of a restoration of peace, but they will all be disappointed while the English have a soldier in America. It is amazing to me that France and Spain do not see it, and direct their forces accordingly.

I have the honor to be, &c.

JOHN ADAMS.

TO THE COUNT DE VERGENNES.

Paris, July 16th, 1781.

Sir,

Since my letter of the 13th, upon further reflection, I have thought it necessary to explain myself a little more, particularly in some points, to your Excellency. If I comprehend the facts, the British Court first proposed to the Imperial Courts a Congress and a mediation, upon two conditions. 1st. The dissolution of the treaties between France and the United States. 2d. The return of the Americans under the British government.

In consequence of this proposal from the Court of St James, the two Imperial Courts have made the proposition of the articles, which were shown to me, to the Courts of France, Spain, and England, neither of which has yet given its answer. Their Imperial Majesties have omitted the two conditions, which the British Court insisted on as preliminaries, and mean to admit a representative of the United States to the Congress, to negotiate separately with the British Minister, without ascertaining the title or

character of the American representative, until the two pacifications shall be accomplished.

I am in my own mind apprehensive, though I devoutly wish I may be mistaken, that the British Court in their answer to the articles, will adhere to their two preliminaries. It is very convenient for the English to hold up the idea of peace; it serves them to relieve their credit at certain times when it is in distress; it serves to disconcert the projects of the neutral powers to their disadvantage; it enables their friends in the United Provinces, to keep the Dutch nation in that state of division, sloth and inactivity, from which they derive so much plunder, with so much safety. But I cannot persuade myself, that the English will soberly think of peace, while they have any military force in the United States, and can preserve a gleam of hope of conquering or regaining America. While this hope remains, no depredations on their commerce, no loss of dominions in the East or West Indies, will induce them to make peace; because they think, that with America reunited to them they could easily regain whatever they may now lose. This opinion of theirs may be extravagant and enthusiastical, and they would not find it so easy to recover their losses; but they certainly entertain it, and while it remains, I fear they will not make peace.

Yet it seems they have negotiated themselves into a delicate situation. If they should obstinately adhere to their two preliminaries, against the advice of the two Imperial Courts, this might seriously affect their reputation, if they have any, for moderation and for pacific dispositions, not only in those Courts, but in all the Courts and countries of Europe, and they would not easily answer it to their own subjects, who are weary of the war. Peace is so desirable an object, that humanity, as well as policy, demands of every nation at war a serious attention to every proposition, which seems to have a tendency to it, although there may be grounds to suspect, that the first proposer of it was not sincere. I think, that no power can judge the United States unreasonable in not agreeing to the *statu quo*, or the armistice. But perhaps I have not been sufficiently explicit upon another point.

The proposal of a separate treaty between the British Minister and the Representative of the United States, seems to be a benevolent invention to avoid several difficulties; among others, first, that England may be allowed

to save her national pride, to think and to say, that the independence of America was agreed to voluntarily, and was not dictated to her by France and Spain; secondly, to avoid the previous acknowledgment of American independence, and the previous ascertaining the title and character of the American Representative, which the Imperial Courts may think would be a partiality inconsistent with the character of mediators, and even of neutrals, especially as England has uniformly considered any such step as a hostility against them; though I know not upon what law of nations, or of reason.

I cannot see, that the United States would make any concession, or submit to any indignity, or do anything inconsistent with their character, if their Minister should appear at Vienna, or elsewhere, with the Ministers of other powers, and conduct any negotiation with a British Minister, without having the independence of the United States or his own title and character acknowledged or ascertained, by any other power, except France, until the pacification should be concluded. I do not see, that America would lose anything by this, any more than by having a Minister in any part of Europe, with his character unacknowledged by all the powers of Europe. In order to remove every embarrassment, therefore, as much as possible, if your Excellency should be of the same opinion, and advise me to it, I would withdraw every objection to the Congress on the part of the United States, and decline nothing but the *statu quo*, and the armistice, against which such reasons might be given, as I think would convince all men, that the United States are bound to refuse them. If your Excellency should think it necessary for me to assign these reasons particularly, I will attempt some of them; but it is sufficient for me to say to your Excellency, that my positive instructions forbid me to agree either to the armistice, or *statu quo*.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, July 17th, 1781.

Sir,

Since my letter of the 26th of June last, the Memorial of the Deputies of the City of Amsterdam, of the 8th of June, has appeared entire, and is conceived in the following terms.

"Most Serene and Illustrious Prince and Lord,

"The gentlemen, the Deputies of the City of Amsterdam, in the name and by the order of the gentlemen, their constituents, have the honor to represent to your Most Serene Highness, that the said constituents having learnt, with much uneasiness the discontent, that your Highness had taken, on the subject of their last proposition, made in the Assembly of their Noble and Grand Mightinesses, although it had been contrary to their intention to give your Highness the least offence, or to offer him any insult or displeasure, they have seized with great satisfaction, an opportunity to give your Highness the most sincere assurances of it; that they flatter themselves, that, from what they shall have the honor of laying before you your Highness will be able to deduce the reasons, for which they have not previously acquainted him with the contents of the said proposition, before it hath been remitted to the Assembly of their Noble and Grand Mightinesses; that they should feel a real chagrin, if your Highness attributed this silence to any particular distrust towards his person; they declare, that they are absolutely divested of it, and that they have nothing so much at heart as to excite and cherish between your Highness and their City that confidence, that the well-being and advancement of the public cause render inevitably necessary; that by their proposition they have only wished to open a way to find out and carry into execution, such measures as the critical situation of affairs most pressingly requires for the safety and preservation of their dear country.

"That placed at the head of the government of a very populous city, in which the lower class of the people begin already to feel that indigence, which results from a want of business, they are obliged to show in effect, and in the best manner possible, that they desire not to let any opportunity escape of encouraging and promoting the well-being of the country, and of its good citizens, unless they would run the risk of entirely destroying the proper authority, and the good order, which in a popular government are founded only upon the confidence of the people, and of the Burgesses in its

Regents, and of seeing in a little time a total anarchy, that they had thought that affairs had, for a long time, and particularly since the rupture with England, appeared in the eyes of the whole nation, and not without reason, to be administered in a strange and inconceivable manner, seeing, that notwithstanding the extreme condescendence to the wishes of England, we had only experienced from that kingdom, each year contempt, affronts, and insults, which have been lately crowned by an open war, commenced by the capture of a considerable number of our vessels, and the invasion of our foreign possessions, and that, nevertheless, we had remained in a defenceless state, and taken no sufficient steps to place the Republic in a situation to protect its liberty, its well acquired rights, its extensive navigation, and its lawful commerce.

"That, nevertheless, it is an incontestible truth, that the members of government have for a long time been of opinion, that it is principally by sea, that it is necessary to place themselves upon a respectable footing, as it evidently appears by the different resolutions taken in the year 1778, and following, by different reports, petitions, and assents to augment and reinforce the equipages of vessels of war, and particularly by the report of the 30th of March, 1779, that notwithstanding the said opinions and resolutions of the confederates, to equip all the vessels of war of the State, and to construct new ones, yet at this moment, after so much time has elapsed, and some things have taken so disadvantageous a turn, there hath not been put to sea the thirtytwo vessels stipulated in the month of April, 1779, much less still the fiftytwo, whose armament had been resolved upon the last year, so that to this moment none of the precautions proposed in the month of March, 1779, to the generality for the defence of our coasts, and the mouths of our rivers, have been taken.

"That the regency of our city, with all the good citizens of the Republic, who discover the best disposition possible to pay the ordinary and extraordinary imposts, has been much surprised at the little promptitude and at the slowness in the executions of resolutions so important for the Sovereign; for it is impossible to believe that the situation in which the respective admiralties found themselves, should be so bad that they could not effect in two years the equipments that they themselves had proposed; as they had no want of money, and as the necessity of them became more

and more pressing daily; that in consequence, one could not conceive what were the causes of this slowness and inactivity no more than of the non-execution of the resolutions and orders to secure the coasts and harbors, and above all, one could not form an idea of the unforeseen obstacles and difficulties which have prevented the sailing of few vessels, which had been supposed perfectly in a state of putting to sea, even when your Highness after a suitable examination of things, had given the necessary orders to this effect.

"That seeing it is to this state of inactivity and incapacity of defending themselves, that it is necessary to attribute in the greatest measure the evils and calamities which have happened to the Republic, and which still threaten it, and that to this moment we have not been able to observe that any vigorous measures are taken to prevent future misfortunes, and to repair those already suffered, (without which we ought soon to expect the total ruin of the Republic,) we have judged it the indispensable duty of the brave regents, and that they cannot dispense themselves from searching out to what one ought to attribute this inexcusable negligence? And by what means one may remedy it, and direct and re-establish still affairs, as much as possible, for the safety of the State?

"That this having been attempted from time to time, privately, but in vain, and affairs becoming more and more disadvantageous and critical, it was so much the more necessary to take vigorous resolutions, and one could not longer defer the concerting of suitable measures; that from a mature and deliberate consideration of the whole of this had resulted the proposition, made by order of the Regency of Amsterdam the 18th of May last to the Assembly of Holland, and submitted to the judgment and deliberations of the other members, to the end that these deliberations might give rise to resolutions the most useful and the most salutary to the country; that the said Regency are still of opinion, that duty to themselves, to their country, and to its good citizens, who for a long time had expected a similar measure on their part, required them to make the said proposition.

"That, nevertheless, it was very far from their intention to give your Highness any uneasiness or discontent, or to introduce innovations, or to diminish and circumscribe in more narrow limits the authority lawfully

acquired of my Lord the Stadtholder; that on the contrary, they could assure solemnly, that they would assist constantly with all their power, to maintain the present constitution of government with which they judge the well-being of the Republic is intimately connected; that they considered at the same time, that in the present circumstances of affairs nothing would be more necessary or more useful, for the direction and execution of the operations of the present war, and for to combine them with more secrecy and despatch than to form and establish a small council or committee, composed of the regencies of the respective Provinces, to assist your Highness with the advice and labors, and to co-operate conjointly to the preservation of the country.

"That this proposition, (founded perhaps upon former examples,) proceeded not from any motive of distrust of the good intentions and designs of your Serene Highness, of which there is no reason to suspect their purity, although according to the information of the Regency of that city, some evil minded persons have endeavored to insinuate the contrary to your Serene Highness.

"That such a distrust fell only upon him, whose influence over the mind of your Serene Highness is regarded as the first cause of the slowness and indolence in the administration of affairs, and as that cannot but be very prejudicial to the general good, one had in vain expected for a long time, that the dangerous circumstances in which the Republic finds itself at present, would at length have given rise to serious deliberations upon the measures necessary to be employed in future, and with more vigor than the past; but that this expectation having been vain to the present moment, and as the question in agitation was concerning the preservation of the country, of its dear bought liberty, of your Serene Highness, of his illustrious House, in one word, of everything dear and precious to the inhabitants of the Republic, it is for these reasons that the Regency of Amsterdam have judged that they could no longer by silence be wanting in their duty, but saw themselves forced, although with regret, to the present measure.

"It is therefore with all the respect that they owe to your Serene Highness, but at the same time with the candor and honest freedom that the importance of the affair requires, that they represent to your Serene

Highness, and declare to him expressly, that, according to the general opinion, the Lord the Duke is regarded as the principal cause of the deplorable state of weakness in which the Republic finds itself at this day, of all the negligence which hath had place, of all the false measures that have been taken for a long time, and of all the fatal consequences that have resulted from them; that your Serene Highness may be assured that the aversion and hatred of the nation against the person and administration of the Duke, are arisen to such a degree that one ought to dread an event the most grievous and the most disagreeable for the public tranquillity.

"That without doubt your Serene Highness has been already informed by others of all these things; but in case your Serene Highness is still ignorant of them, it is necessary to attribute it solely to a fear of the effects of the resentment of the Duke. We dare, nevertheless, to appeal with confidence upon everything now advanced, to the testimony of all the honest and sincere members of the Regency, that your Serene Highness shall deign to interrogate, after granting them full liberty of speech, and summoning them to answer according to their duty and their conscience.

"That they had heard many times with much regret, M. the Counsellor Pensionary, complain, in presence of divers members of the Province of Holland, of the misunderstanding which existed between him and the Lord the Duke, as well as of the ascendancy that the said Lord has over the mind of your Serene Highness, whereby all his effects for the good of the country were rendered fruitless.

"That this disunion and this diversity of sentiments and views between the principal Counsellor of your Serene Highness and the first Minister of this Province must have not only consequences the most fatal, but furnished also a sufficient motive to make the strongest instances to remove the source of that distrust and of that discord; seeing it is only a previous re-establishment of confidence and concord that can save the Republic; that nothing is also more necessary for the happiness of your Most Serene House, for the support of your authority, the preservation of the esteem and confidence of the nation, and of your consideration among the neighboring powers; for we can assure your Serene Highness, and we are obliged to apprise him, that he might indeed lose one day the esteem and confidence

of the people, instead of being and continuing the worthy object of the love and the veneration of this people, and of its Regents; which we pray and wish ardently that your Serene Highness may ever experience, seeing upon that depends, in a great measure, the preservation and the happiness of our dear country and of the House of Orange.

"That as well persuaded as we may be, that the members of the sovereignty have always the liberty, and that it is sometimes even their duty to communicate to your Serene Highness and to the other members, their sentiments upon the state and administration of public affairs, we should have preferred, nevertheless, to have abstained from the present measure, if we had been able to conceive any hope, amelioration, and change; but since we can no longer flatter ourselves with that, for the reasons above alleged, and the danger has arisen to its highest degree, there remains no other part to take than that of laying before your Serene Highness the true state of things, of praying him, in the most solemn manner, to reflect seriously upon them, and of no longer listening to the councils and insinuations of a man loaded as he is with the hatred of the great and the small, regarded as a stranger destitute of a sufficient knowledge of the form of our government, and not possessed of a true affection to our country.

"That we are very far from wishing to accuse this Lord of what he is but too openly charged, or of considering as founded, the suspicions circulated against him of an excessive and illicit attachment to the Court of England, or of bad faith and corruption; that we believe, that a Lord of so high a birth and so distinguished a rank, is incapable of such baseness, but that we think, that the unhappy ideas that have been unfortunately entertained of him, and which have caused a general distrust, render him totally useless and pernicious, even to the service of the State and of your Serene Highness, that he consequently be removed from the direction of affairs, and from the Court of your Serene Highness, as being a perpetual obstacle to the re-establishment of the good intelligence so necessary between your Serene Highness and the principal members of the State; seeing that on the contrary, his presence cannot but for the future, occasion the distrust conceived, whether with or without reason, of his counsels to fall upon your Serene Highness.

"That these representations do not spring from a principle of hatred or of ill will against the Lord, the Duke, who has formerly had occasion to be well satisfied, even with the benevolence and the real marks of affection of the Regency of Amsterdam, but that we protest before God and the whole world, that the only motives which have dictated them to us, are the preservation of the country and of the illustrious House of your Most Serene Highness, and to prevent their approaching total ruin; that the Regency of our city have seen themselves obliged to take this measure, both in quality of inhabitants of this country, and as a member of its sovereign Assembly; to the end to make by this means the last effort, and to point out, perhaps, yet in time, a means of saving, with the blessing of the Almighty, the vessel of State from the most imminent danger, and of conducting it into a safe port, or of acquitting themselves at least in every case of their duty, and of exculpating themselves in the eyes of their fellow citizens and posterity.

"That, in truth, it is not necessary to despair of the safety of the country; but that, nevertheless, affairs appear to have arrived to such an extremity, that it cannot be saved without the use of extraordinary means, and that for this reason, we ought still, with the approbation of your Serene Highness, to take the liberty to submit to his consideration, if the best means of managing hereafter affairs with success would not be, that your Serene Highness should associate to himself a small number of persons, chosen from among the most distinguished and the most experienced citizens born in the country, to concert assiduously with them everything which should be the most necessary or the most useful for the preservation and the service of the country during the present war, with such powers and such restrictions, as should be judged requisite to fulfil effectually the object of this commission; that we expect therefrom the two following effects, as important as useful.

"1st. That, in a conjuncture like the present, in which every moment is precious, no delay occasioned by deliberations of long duration shall take place, and the requisite despatch would be given to the execution of that which shall have been resolved.

"2dly. That thereby the confidence of the nation would be re-established, an universal tranquillity and content promoted, and each one would be encouraged and animated to contribute with joy everything in his power to the execution of the measures of the sovereign, whilst, that at present, we see the contrary take place, and hear everywhere of the general complaints of the division and of the inactivity of the government.

"That this proposition appears of the highest necessity, not only to the Regency of Amsterdam, but we have reason to think, that it is considered in the same point of light by the principal members of this Province, and of all the others.

"Besides, nothing is more necessary than to adopt a fixed system and plan of conduct, seeing that the Republic ought to choose between two conditions; either to re-establish the peace with England, or to prosecute the war with all our forces, to the end to accelerate by this means an honorable peace; which ought to be the sincere wish of every good citizen, and to which alone, without any further views, (as we can assure your Serene Highness in the most serious manner) has tended the overture made by our proposition of concerting with France the operations for this campaign. We desire nothing more ardently on our part, than to deliberate seriously with your Serene Highness upon the option between the two conditions alleged, and what means it will be necessary to employ to arrive at the end which shall be chosen; but we are absolutely of opinion, that above all things, we must never lose sight, although a reconciliation may be preferred, that nothing ought to be neglected or omitted, to place in every respect, the Republic in such a position that it has nothing to fear from its enemies, but, on the contrary, that it may be in a state to force them to wish the re-establishment of that peace, which, without any lawful cause, they have so unjustly and wickedly broken.

"That the above piece is word for word the same without any addition or omission, as that which has been read to his Serene Highness, the 8th of June, 1781, by the order of the gentlemen, the Burgomasters, by the Pensionary Vischer, in presence of the Counsellor Pensionary of Holland, and which is written with the hand of the said Pensionary, is that which we attest.

"Amsterdam, June 12th, 1781.

E. DE VRY TEMMINCK, J. RENDORP, C. W. VISCHER, <i>Pensionary.</i>	}	<i>Reigning Burgomasters.</i>
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"Deposed in the cabinet of the gentlemen, the Burgomasters, the said 12th of June, 1781."

"The original of this memorial, which after the reading has been put into the hands of his Most Serene Highness, but taken back during the audience, has been sent, the 14th of June, to the Counsellor Pensionary, accompanied with a letter in the name of the Burgomasters, written by the Burgomaster Rendorp to the said Counsellor Pensionary."

"By a resolution of the 6th of this month, the States-General have revoked the order, that their High Mightinesses had given, at the beginning of the war, to all captains or patrons of merchant-ships belonging to the subjects of this Republic, to remain in the ports where they found themselves, and not to make sail from them, either for their destination or to return into this country. Their High Mightinesses have this day given to the proprietors and captains of these vessels, the liberty of navigating and employing them in such a manner, and when they shall judge proper.

I have the honor to be, &c.

JOHN ADAMS.

COUNT DE VERGENNES TO JOHN ADAMS.

Translation

Versailles, July 18th, 1781.

Sir,

I have received the letter, which you did me the honor to write to me the 13th instant. It was owing to the confidence I placed in your judgment and zeal for your country, that I intrusted to you the propositions of the two Imperial Courts, and requested that you would make such observations as you might think them susceptible of. Things are not yet sufficiently advanced to admit of communicating them to the two mediating Courts. As you have seen in the sketch of our answer, there are preliminaries to be adjusted with respect to the United States, and until they are adjusted you cannot appear, and consequently you cannot transact anything officially with respect to the two mediators. By so doing you would hazard and expose the dignity of the character with which you are invested.

I have the honor to be, &c.

DE VERGENNES.

TO THE COUNT DE VERGENNES.

Paris, July 18th, 1781.

Sir,

I have received the letter, which your Excellency did me the honor to write me this day. I assure your Excellency, I never had a thought of appearing upon the scene, or of taking ministerially or otherwise any step towards the two mediators. I must confess to your Excellency that I have too many jealousies of the motives, and too many apprehensions of the consequences of this negotiation to be willing to take any part in it, without an express vocation. The English are tottering on such a precipice, and are in such a temper, that they will not hesitate at any measure, which they think can move every latent passion, and awaken every dormant interest in Europe, in order to embroil all the world. Without looking much to consequences, or weighing whether the quarrels they wish to excite will be serviceable to them or not, they seem to think the more confusion they can make the

better; for which reason my fears from the proposed mediation are greater than my hopes.

Nevertheless, if properly called upon, it will be my duty to attend to every step of it; but there are many questions arise in my mind, upon which in due time I should wish to know your Excellency's opinion.

The two Imperial Courts have proposed, that there should be an American Representative at the Congress. This is not merely by implication, but expressly acknowledging, that there is a belligerent power in America, of sufficient importance to be taken notice of by them and the other powers of Europe. One would think after this, that the two Imperial Courts would have communicated their propositions to Congress. The propositions they have made and communicated to the Courts of France, Spain and England, imply that America is a Power, a free and Independent Power, as much as if they had communicated them also to Congress at Philadelphia. Without such a formal communication and an invitation to the United States in Congress, or to their Representative here by the two Imperial Courts, I do not see how an American Minister can with strict propriety appear at the proposed Congress at Vienna at all. I have never heard it intimated, that they have transmitted their propositions to Philadelphia; certainly I have received no instructions from thence, nor have I received any intimation of such propositions from any Minister of either of the mediating Courts, although as my mission has been long public and much talked of, I suppose it was well known to both that there was a person in Europe vested by America with power to make peace.

It seems, therefore, that one step more might have been taken, perfectly consistent with the first, and that it may yet be taken, and that it is but reasonable to expect that it will be. How is the American Minister to know that there is a Congress, and that it is expected that he should repair to it? And that any Minister from Great Britain will meet him there? Is the British Court, or their Ambassador, to give him notice? This seems less probable, than that the mediators should do it.

The dignity of North America does not consist in diplomatic ceremonials, or any of the subtleties of etiquette; it consists solely in reason, justice, truth, the rights of mankind, and the interests of the nations of Europe; all of

which well understood, are clearly in her favor. I shall therefore never make unnecessary difficulties on the score of etiquette, and shall never insist upon anything of this sort, which your Excellency or some other Minister of our allies does not advise me to as indispensable; and therefore I shall certainly go to Vienna or elsewhere, if your Excellency should invite or advise me to go. But as these reflections occurred to me upon the point of propriety, I thought it my duty to mention them to your Excellency.

I have the honor to be, &c.

JOHN ADAMS.

TO THE COUNT DE VERGENNES.

Paris, July 19th, 1781.

Sir,

In my letter of the 18th, I had the honor to mention some things, which lay upon my mind; but still I am apprehensive, that in a former letter, I have not conveyed my full meaning to your Excellency.

In my letter of the 16th, I submitted to your Excellency's opinion and advice, whether an American Minister could appear at the Congress at Vienna, without having his character acknowledged by any power, more expressly than it is now. This was said upon the supposition, and taking it for granted, that it was the intention of the mediating Courts to admit a representative of the United States to the Congress, with such a commission and such a title as the United States should think fit to give him, and that during his whole residence and negotiations at Vienna, whether they should terminate in peace or not, he should enjoy all the prerogatives, which the law of nations has annexed to the character, person, habitation, and attendants of such a Minister. It is impossible that there should be a treaty at Vienna between Great Britain and the people of America, whether they are called United States or American Colonies, unless both nations appear there

by representatives, who must be authorised by commissions or full powers, which must be mutually exchanged, and consequently admitted to be, what upon the face of them they purport to be. The commission from the United States for making peace, which has been in Europe almost two years, is that of a Minister Plenipotentiary, and it authorises him to treat only with Ministers vested with equal powers. If he were to appear at Vienna, he would certainly assume the title and character of a Minister Plenipotentiary, and could enter into no treaty or conference with any Minister from Great Britain, until they had mutually exchanged authentic copies of their full powers. This it is true, would be an implied acknowledgment of his character and title, and of those of the United States too; but such an acknowledgment is indispensable, because without it there can be no treaty at all. In consequence he would expect to enjoy all the prerogatives of that character, and the moment they should be denied him, he must quit the Congress, let the consequences be what they might.

And I rely upon it, this is the intention of the two Imperial Courts; because otherwise, they would have proposed the Congress upon the basis of the two British preliminaries, a rupture of the treaty with France, and a return of the Americans to their submission to Great Britain; and because I cannot suppose it possible, that the Imperial Courts could believe the Americans capable of such infinite baseness, as to appear upon the stage of the universe, acknowledge themselves guilty of rebellion, and supplicate for grace; nor can I suppose they meant to fix a brand of disgrace upon the Americans in the sight of all nations, or to pronounce judgment against them; one or all of which suppositions must be made, before it can be believed, that these Courts did not mean to protect the American Representative in the enjoyment of the privileges attached to the character he must assume; and because, otherwise, all their propositions would be to no effect, for no Congress at Vienna can make either the one or the other of the two proposed peaces, without the United States. But upon looking over again the words of the first article, there seems to be room for dispute, of which a British Minister, in the present state of his country, would be capable of taking advantage. The terms used seems to be justly exceptionable. There are no "American Colonies" at war with Great Britain. The power at war is the United States of America. No American Colonies have any Representative in Europe, unless Nova Scotia or Quebec, or some

of the West India Islands, may have an agent in London. The word Colony, in its usual acceptation, implies a metropolis, a mother country, a superior political Governor, ideas which the United States have long since renounced forever.

I am therefore clear in my opinion, that a more explicit declaration ought to be insisted on, and that no American Representative ought to appear, without an express assurance, that while the Congress lasts, and in going to it, and returning from it, he shall be considered as a Minister Plenipotentiary from the United States of America, and entitled to all the prerogatives of such a Minister from a sovereign power. The Congress might be to him and to his country but a snare, unless the substance of this is *bona fide* intended, and if it is intended, there can be no sufficient reason for declining to express it in words.

If there is a Power upon earth, that imagines that America will ever appear at a Congress, before a Minister of Great Britain, or any other power in the character of repenting subjects, soliciting an amnesty, or a warranty of an amnesty, that Power is infinitely deceived. There are few Americans who would hold their lives upon such terms. I know of none who would not rather choose to appear upon a scaffold in their own country, or in Great Britain. All such odious ideas ought to be laid aside by the British Ministry, before they propose mediations. The bare mention of such a thing to the United States by Great Britain would be considered only as another repetition of injury and insult. The proposal of a rupture of the treaty is little less to France. But it is possible, that in the future course of this negotiation, there may be a proposal of a Congress of Ministers of the several mediating and belligerent powers, exclusive of the United States, to deliberate on the question, in what character the United States are to be considered, whether a Representative of the people of North America can be admitted, and what shall be his title and privileges.

All that I can say to this case at present is this. The United States have assumed their equal station among the nations. They have assumed a sovereignty, which they acknowledge to hold only from God and their own swords. They can be represented only as a sovereign; and, therefore, although they might not be able to prevent it, they can never consent that

any of these things shall be made questions. To give their consent, would be to make the surrender of their sovereignty their own act.

France has acknowledged all these things, and bound her honor and faith to the support of them, and, therefore, although she might not be able to prevent it, she can never consent that they should be disputed. Her consent would make the surrender of the American sovereignty her act. And what end can it answer to dispute them, unless it be to extend the flames of war? If Great Britain had a color of reason for pretending, that France's acknowledgment of American independence was a hostility against her, the United States would have a stronger reason to say, that a denial of their sovereignty was a declaration of war against them. And as France is bound to support their sovereignty, she would have reason to say, that a denial of it is a hostility against her. If any power of Europe has an inclination to join England, and declare war against France and the United States, there is no need of a previous Congress to enable her to do it with more solemnity, or to furnish her with plausible pretexts. But on the other hand, if the powers of Europe are persuaded of the justice of the American pretensions, and think it their duty to humanity to endeavor to bring about peace, they may easily propose, that the character of the United States shall be acknowledged, and their Minister admitted.

I cannot but persuade myself, that the two Imperial Courts are convinced of the justice of the American cause, of the stability of the American sovereignty, and of the propriety and necessity of an acknowledgment of it by all the powers of Europe. This, I think, may be fairly and conclusively inferred from the propositions themselves. Was there ever an example of a Congress of the powers of Europe to exhort, to influence, to overawe the rebellious subjects of any one of them into obedience? Is not every sovereign adequate to the government, punishment, or pardon of its own criminal subjects? Would it not be a precedent mischievous to mankind, and tending to universal despotism, if a sovereign, which has been proved to be unequal to the reformation or chastisement of the pretended crimes of its own subjects, should be countenanced in calling in the aid of all or any of the other powers of Europe to assist them? It is quite sufficient, that England has already been permitted to hire twenty thousand German troops, and to have the number annually recruited for seven years, in addition to

her own whole force; it is quite sufficient, that she has been permitted to seduce innumerable tribes of savages, in addition to both, to assist her in propagating her system of tyranny, and committing her butcheries in America, without being able to succeed.

After all this, which is notorious to all Europe, it is impossible to believe, that the Imperial Courts mean to give their influence in any degree towards bringing America to submission to Great Britain. It seems to me, therefore, most certain, that the Imperial Courts perceive, that American independence must be acknowledged; and if this is so, I think there can be no objection against ascertaining the character of the American Minister before any Congress meets, so that he may take his place in it as soon as it opens.

But if any sentiments of delicacy should induce those Courts to think it necessary to wait for Great Britain to set the example of such acknowledgment, one would think it necessary to wait until that power shall discover some symptoms of an inclination that way. A Congress would have no tendency, that I know of, to give her such a disposition; on the contrary, a Congress in which Great Britain should be represented, and France and the United States not, would only give her an opportunity of forming parties, propagating prejudices and partial notions, and blowing up the coals of war.

I have the honor to be, &c.

JOHN ADAMS.

TO THE COUNT DE VERGENNES.

Paris, July 21st, 1781.

Sir,

Since my letter of the 19th, another point has occurred to me, upon which it seems necessary, that I should say something to your Excellency, before my departure for Holland, which will be on Monday morning.

An idea has, I perceive, been suggested of the several States of America choosing agents separately to attend the Congress at Vienna, in order to make peace with Great Britain; so that there would be thirteen instead of one. The constitution of the United States, or their confederation, which has been solemnly adopted and ratified by each of them, has been officially and authentically notified to their Majesties, the Kings of France and Spain, and to their High Mightinesses, the States-General of the United Provinces of the Low Countries, and communicated to all the Courts and nations of the world, as far as all the gazettes of Europe are able to spread it; so that it is now as well and universally known as any constitution of government in Europe. By this constitution, all power and authority of negotiating with foreign powers is expressly delegated to the United States in Congress assembled. It would, therefore, be a public disrespect and contempt offered to the constitution of the nation, if any power should make any application whatever to the Governors, or Legislature of the separate States. In this respect, the American Constitution is very different from the Batavian. If the two Imperial Courts should address their articles to the States separately, no Governor or President of any one of those Commonwealths could even communicate it to the Legislature. No President of a Senate could lay it before the body over which he presides. No Speaker of a House of Representatives could read it to the House. It would be an error, and a misdemeanor in any one of these officers to receive and communicate any such letter. All that he could do would be, after breaking the seal and reading it, to send it back. He could not even legally transmit it to Congress.

If such an application, therefore, should be made and sent back, it would consume much time to no purpose, and perhaps have other worse effects.

There is no method for the Courts of Europe to convey anything to the people of America but through the Congress of the United States, nor any way of negotiating with them but by means of that body. I must, therefore, entreat your Excellency, that the idea of summoning Ministers from the thirteen States may not be countenanced at all.

I know very well, that if each State had in the confederation reserved to itself a right of negotiating with foreign powers, and such an application should have been made to them separately upon this occasion, they would all of them separately refer it to Congress, because the people universally know and are well agreed, that all connexions with foreign countries must, in their circumstances, be made under one direction.

But all these things were very minutely considered in framing the confederation, by which the people of each State have taken away from themselves even the right of deliberating and debating upon these affairs, unless they should be referred to them by Congress for their advice, or unless they should think proper to instruct their delegates in Congress of their own accord.

This matter may not appear to your Excellency in so important a light as it does to me, and the thought of such an application to the United States may not have been seriously entertained; but as it has been mentioned, although only in a way of transient speculation, I thought I could not excuse myself from saying something upon it, because I know it would be considered in so unfavorable a light in America; that I am persuaded Congress would think themselves bound to remonstrate against it in the most solemn manner.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, July 21st, 1781.

Sir,

From the Hague, there is an article of the following tenor.

"As to the affair of the Field Maréchal, the Duke of Brunswick, which makes an object of deliberation in the Assemblies of the Provinces, one sees in public a copy of the opinion of the Quarter of Westergo, (one of the four Chambers which form the States of Friesland,) in which it is joined by four Manors or Intendancies of the Quarter of Sevenwonde, which have protested against the opinion of the plurality of their Chamber; this opinion is of the following tenor."

"The Quarter having examined with all due attention the memorial, presented by the Duke to their High Mightinesses, is of opinion, that the paragraphs of the memorial, remitted to his Highness in the name of the Burgomasters of Amsterdam, of which the said Lord the Duke complains, contain not the least thing by which the Lord the Duke may be considered to have been any way hurt in his character; but rather, that the paragraphs or complaints contained in the said Memorial, exhibit an accusation against the Duke in his quality of Counsellor of his Highness, and that they express the sentiments of the people, which the gentlemen, the Burgomasters of Amsterdam, have infused into the breast of our well beloved hereditary Stadtholder; by means of which, they have manifested an evident proof of their sincere attachment to his Highness and to his illustrious House. The Quarter is therefore of opinion, that in case the Lord Duke thinks himself aggrieved by the Burgomasters of Amsterdam, he ought to address himself to their ordinary and competent judge, seeing that this Assembly of their High Mightinesses is not a competent judge in this matter; and that, therefore, it is proper to charge the gentlemen, the Deputies in the Assembly of the States-General, not to enter into any deliberations upon this matter."

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, August 3d, 1781.

Sir,

I have the honor to enclose copies of some papers, which passed between the Count de Vergennes and me, lately at Paris. The conjecture, that the British Court would insist upon their two preliminaries, is become more probable by the publication of the King's speech at the prorogation of Parliament.

"The zeal and ardor, which you have shown for the honor of my Crown," says the King, "your firm and steady support of a just cause, and the great efforts you have made to enable me to surmount all the difficulties of this extensive and complicated war, must convince the world, that the ancient spirit of the British nation is not abated or diminished.

"While I lament the continuance of the present troubles, and the extension of the war, I have the conscious satisfaction to reflect, that the constant aim of all my counsels has been to bring back my deluded subjects in America to the happiness and liberty they formerly enjoyed, and to see the tranquillity of Europe restored.

"To defend the dominions, and to maintain the rights of this country, was on my part the sole cause, and is the object of the war. Peace is the earnest wish of my heart, but I have too firm a reliance on the spirit and resources of the nation, the powerful assistance of my Parliament, and *the protection of a just and all ruling Providence*, to accept it upon any other terms or conditions than such as may consist with the honor and dignity of my Crown, and the permanent interest and security of my people."

We all know very well what his meaning is when he mentions "the honor and dignity of his Crown, and the permanent interest and security of his people." Could the Minister who composed this speech expect that anybody would believe him when he said, that the constant aim of all his counsels

had been to bring back the Americans to the happiness and liberty they formerly enjoyed?

The whole of this speech is in a strain, which leaves no room to doubt that the cabinet of St James is yet resolved to persevere in the war to the last extremity, and to insist still upon the return of America to British obedience, and upon the rupture of the treaty with France, as preliminaries to the Congress at Vienna. Thus the two Imperial Courts will find themselves trifled with by the British. It is not to be supposed that either will be the voluntary bubble of such trickish policy. The Empress of Russia is supposed to be as sagacious as she is spirited; yet she seems to have given some attention to the pacific professions of the English. If she could see herself intentionally deceived, she will not probably be very patient.

The Emperor, in his late journey through Holland, made himself the object of the esteem and admiration of all; affable and familiar, as a great sovereign can ever allow himself to be with dignity, he gave to many persons unequivocal intimations of his sentiments upon public affairs. Patriotism seemed to be the object which he wished to distinguish. Whoever espoused with zeal the honor and interest of his own country, was sure of some mark of his approbation; whoever appeared to countenance another country in preference to his own, found some symptom of his dislike; even the ladies, French or Dutch, who had any of the English modes in their dress, received from his Majesty some intimation of his disapprobation of their taste. Everybody here, since his departure, is confident of his entire detestation of the principles on which the English have conducted this war, and of his determination to take no part in it, in their favor. His sentiments concerning America are inferred from a very singular anecdote, which is so well attested, that it may not be improper to mention to Congress.

His Majesty condescended, in a certain company, to inquire after the Minister of the United States of America to their High Mightinesses, said he was acquainted with his name and character, and should be glad to see him; a lady in company, asked his Majesty if he would drink tea with him at her house? He replied in the affirmative, in the character of the Count of Falkenstein. A lady in company undertook to form the party; but upon inquiry, the American was at Paris. It is supposed with good reason, that

there could be nothing personal in this curiosity, and therefore that it was intended as a political signification of a certain degree of complaisance towards America.

Thus it is, that the words, gestures, and countenances of sovereigns are watched, and political inferences drawn from them; but there is too much uncertainty in this science, to depend much upon it. It seems, however, that the Emperor made himself so popular here, as to excite some appearance of jealousy in Prussia. For my own part, I think that the greatest political stroke which the two Imperial Courts could make, would be upon receiving the answer from England adhering to her preliminaries, immediately to declare the United States independent. It would be to their immortal honor; it would be in the character of each of these, extraordinary geniuses; it would be a blessing to mankind; it would even be friendship to England.

I have the honor to be, &c.

JOHN ADAMS.

B. FRANKLIN TO JOHN ADAMS.

Passy, August 6th, 1781.

Sir,

I sometime since gave orders, as you desired, to Mr Grand to furnish you with a credit in Holland for the remainder of your salary to November next. But I am now told that your account having been mixed with Mr Dana's, he finds it difficult to know the sum due to you. Be pleased therefore to state your account for two years, giving credit for the sums you have received, that an order may be made for the balance. Upon this occasion, it is right to acquaint you that I do not think we can depend on receiving any more money here, applicable to the support of the Congress Ministers.

What aids are hereafter granted, will probably be transmitted by the government directly to America. It will, therefore, be proper to inform Congress, that care may be taken to furnish their servants by remittances from thence.

I have the honor to be, &c.

B. FRANKLIN.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, August 6th, 1781.

Sir,

In the Utrecht Gazette of this morning is an article from Petersburg, of the 13th of July, in these words.

"Saturday last, the government despatched a courier for London. He carries, it is assured, instructions to M. Simolin, our Minister to the King of England, to make to his Britannic Majesty, conjointly with the Ministers of Sweden and Denmark, certain representations concerning the war, which he has thought fit to declare against the Republic of the United Provinces.

"The Minister of England, at our Court, received a courier from London, the day before yesterday, with the answer of the British Ministry to the preliminary articles of a Treaty of Peace to be concluded between the belligerent powers of Europe under the high mediation of her Majesty, the Empress, our Sovereign, and of his Majesty, the Emperor, King of Hungary and Bohemia; but nothing has transpired of the contents of this answer."

"It is said, that the Grand Duke and the Grand Dutchess of Russia, will set off from hence for the Courts of Europe, which their Imperial Highnesses propose to visit, about the end of August or the beginning of September."

A man, who is master of the history of England for the last twenty years, would be at no loss to conjecture the answer to the preliminary articles of the two Imperial Courts. Indeed the King's speech has already answered them before all the world. The King has not probably given one answer to Parliament, and his Ministers another to the mediating Courts.

Thus all Europe is to be bubbled by a species of chicanery, that has been the derision of America for a number of years. In time, the Courts of Europe will learn the nature of these British tricks by experience, and receive them with the contempt or the indignation they deserve.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, August 6th, 1781.

Sir,

In several of the London newspapers of July the 26th, appeared the following paragraph.

"An order has been sent from Lord Hillsborough's office for bringing Curson and Gouverneur, (whom we sometime ago mentioned to have been confined by command of Sir George Rodney, and General Vaughan, for having carried on a traitorous correspondence with the enemy at St Eustatia,) to town, to be confined in Newgate, to take their trial for the crime of high treason. The whole circumstances of their case, and all their correspondence has been submitted to the inspection of the Attorney and Solicitor-General, and they consider the offence in so serious a light, that a direct refusal has been given to a petition from Mr Curson to be indulged with the privilege of giving bail for appearance, on account of the ill-health, which he has experienced on board the Vengeance, where he and his

colleague have been for some months confined, and which is now lying at Spithead. It has been discovered, from an inspection of their papers, that Mr Adams, the celebrated negotiator to Holland, was the man, with whom they held their illicit correspondence, and it is said, that the appearance of proof against them, has turned out much stronger than was originally supposed."

Last fall Mr Searle informed me, that Messrs Curson and Gouverneur were Continental Agents at Eustatia, and advised me to send my despatches to their care, as worthy men, a part of whose duty it was to forward such things to Congress. I accordingly sent several packets of letters, newspapers, and pamphlets to their address, accompanied only with a line, simply requesting their attention to forward them by the first safe opportunity. I never saw those gentlemen, or received a line from either. It must have been imprudence, or negligence, to suffer my letters to fall into the hands of the enemy. I have looked over all the letters, which I wrote about that time, and I find no expression in any, that could do harm to the public, if printed in the gazettes, yet there are some things, which the English would not choose to publish, I fancy. What other correspondences of Messrs Curson and Gouverneur might have been discovered, I know not.

The British Ministry seem to be growing outrageous. The more they despair, the more angry they are. They think not at all of peace. America should think of it as little; sighing, and longing for peace, will not obtain it. No terms short of eternal disgrace and irrecoverable ruin would be accepted. We must brace up our laws and our military discipline, and renounce that devoted and abandoned nation for ever. America must put an end to a foolish and disgraceful correspondence and intercourse, which some have indulged, but at which all ought to blush, as inconsistent with the character of man.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, August 8th, 1781.

Sir,

This people must have their own way. They proceed like no other. There cannot be a more striking example of this, than the instructions given to privateers and letters of marque.

The commander is ordered to bring his prizes into some port of the United Provinces, or into the ports or roads of the allies and friends of this Republic, especially France, Sweden, North America, or Spain; and the ship shall be at liberty to join, under a written convention, with one or more privateers or other similar ships of war, belonging to Hollanders, Zealanders, French, Americans, or Spanish, to undertake jointly anything advantageous, &c. This is not only an acknowledgment of the independence of North America, but it is avowing it to be an ally and friend. But I suppose, in order to elude and evade, it would be said, that these are only the instructions given by owners to their commanders; yet these instructions are required to be sworn to, and produced to the Admiralty for their approbation.

It is certain, that the King of Spain, when he declared war against Great Britain, sent orders to all his officers to treat the Americans, as the best friends of Spain, and the King's pleasure, being a law to his subjects, they are bound by it. But what is there to oblige a citizen of the United Provinces to consider the Americans as the friends of the Republic? There is no such law, and these instructions cannot bind. Yet it is very certain, that no Dutchman will venture to take an American.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, August 16th, 1781.

Sir,

Mr Temple has held offices of such importance, and a rank so considerable in America, before the revolution, that his return to his native country at this time, cannot fail to cause much speculation, and it is to be feared some diversity of sentiments concerning him. As he came from London to Amsterdam, and did me the honor of a visit, in which he opened to me his design of returning, and his sentiments upon many public affairs, it will be expected in America by many, although it has not been requested by Mr Temple, that I should say something concerning him.

I was never before personally acquainted with this gentleman, but I have long known his public character and private reputation. He was ever reputed a man of very delicate sentiments of honor, of integrity, and of attachment to his native country, although his education, his long residences in England, his numerous connexions there, and the high offices he held under the British government, did not even admit of a general opinion, that his sentiments were in all respects perfectly conformable to those of the most popular party in the Colonies. Nevertheless, he was never suspected, to my knowledge, of concurring in, or countenancing any of those many plots which were laid by other officers of the Crown, against our liberties, but on the contrary, was known to be the object of their jealousy, revenge, and malice, because he would not. He was, however, intimate with several gentlemen, who stood foremost in opposition, particularly Mr Otis, who has often communicated to me intelligence of very great importance, which he had from Mr Temple, and which he certainly could have got no other way, as early I believe as 1763 and 1764, and onwards.

I cannot undertake to vindicate Mr Temple's policy in remaining so long in England; but it will be easily in his power to show what kind of company he has kept there; what kind of sentiments and conversation he has maintained, and in what occupations he has employed his time. It is not a view to recommend Mr Temple to honors or emoluments, that I write this. It would not be proper for me, and Congress know very well, that I have not ventured upon this practice, even in cases where I have much more personal knowledge than in this. But it is barely to prevent, as far as my poor opinion

may go, jealousies and alarms upon Mr Temple's arrival. Many may suspect that he comes with secret and bad designs, in the confidence of the British Ministry, of which I do not believe him capable.

Mr Temple it is most certain, has fallen from high rank and ample emoluments, merely because he would not join in hostile designs against his country. This I think should at least entitle him to the quiet enjoyment of the liberties of his country, and to the esteem of his fellow-citizens, provided there are no just grounds of suspicion of him. And I really think it a testimony due to truth, to say, that after a great deal of the very freest conversation with him, I see no reason to suspect his intentions.

I have taken the liberty to give Mr Temple my own sentiments concerning the suspicions which have been, and are entertained concerning him, and the causes of them, and of all parts of his conduct, which have come to my knowledge, with so little disguise, that he will be well apprised of the disappointments he may meet with, if any. I hope, however, that he will meet a more friendly reception in America, and better prospects of a happy life there, than I have been able to assure him. Whether any services or sufferings of Mr Temple could support any claim upon the justice, gratitude, or generosity of the United States, or of that of Massachusetts in particular, is a question upon which it would be altogether improper for me to give my opinion, as I know not the facts so well as they may be made known, and as I am no judge, if I knew the facts. But this I know, that whenever the facts shall be laid before either the great Council of the United States, or that of Massachusetts, they will be judged of by the worthy Representatives of a just, grateful, and generous people, and therefore Mr Temple will have no reason to complain if the decision should be against him.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, August 16th, 1781.

Sir,

The following verbal insinuation, made to the Ambassador of Holland at the Court of Russia, was transmitted to Congress in my absence, and is now repeated by me, in order to complete the setts already forwarded.

"The affection of the Empress to the interests of the Republic of the United Provinces, and her desire to see re-established, by a prompt reconciliation, a peace and good harmony between the two maritime powers, have been sufficiently manifested by the step, which she has taken, in offering them her separate mediation.

"If she has not had the desired success, her Imperial Majesty has only been for that reason the more attentive to search out the means capable of conducting her to it. One such means offers itself in the combined mediation of the two Imperial Courts, under the auspices of which it is to be treated at Vienna of a general pacification of the Courts actually at war.

"It belongs only to the Republic to regulate itself in the same manner. Her Imperial Majesty by an effect of her friendship for it, imposing upon herself the task to bring her co-mediator into an agreement to share with her the cares and the good offices, which she has displayed in its favor. As soon as it shall please their High Mightinesses to make known their intentions in this regard to the Prince de Gallitzin, the Envoy of the Empress at the Hague, charged to make to them the same insinuation, this last will write of it immediately to the Minister of her Imperial Majesty at Vienna, who will not fail to take with that Court the arrangements, which are prescribed to him, to the end to proceed in this affair by the same formalities, which we have made use of with the other powers.

"Her Imperial Majesty flatters herself, that the Republic will receive this overture, as a fresh proof of her benevolence, and of the attention, which she preserves, to cultivate the ties of that friendship, and of that alliance, which subsists between them."

It does not appear by this insinuation, that the articles proposed by the two Imperial Courts, to serve as a basis for the negotiations of peace at Vienna, were communicated to the Dutch Minister at Petersburg, or the Russian Minister at the Hague, or by either to their High Mightinesses; as the word, Courts at war, is used, and no hint about the United States in it, the probability is that the articles are not communicated.

I must confess, I like the insinuation very much, because it may be in time an excellent precedent for making such an insinuation to the Minister of the United States of America.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, August 18th, 1781.

Sir,

We have received at last, Parker's account of the action with Admiral Zoutman; according to which, the battle was maintained with a continual fire for three hours and forty minutes, when it became impossible to work his ships. He made an attempt to recommence the action, but found it impracticable. The Bienfaisant had lost her maintopmast, and the Buffalo her mizzen-yard, and the other vessels were not less damaged in their masts, rigging, and sails. The enemy did not appear in a better condition. The two squadrons remained some time over against each other; at length the Dutch retired, taking with their convoy the course to the Texel. He was not in a condition to follow them. The officers and all on board behaved with great bravery, and the enemy did not discover less courage. He encloses the particulars of the number killed and wounded, and of the damages which the vessels have sustained. The last is prudently suppressed by the Ministry.

The following is a list of the killed and wounded in the action of the 5th of August.

English.

	Killed.	Wounded.	Total.
Fortitude,	20	67	87
Bienfaisant,	6	21	27
Berwick,	18	58	76
Princess Amelia,	19	56	75
Preston,	10	40	50
Buffalo,	20	64	84
Dolphin,	11	33	44
	104	339	443

Dutch.

	Killed.	Wounded.	Total.
Admiral de Ruyter,	43	90	133
Admiral-General,	7	41	48
Batavier,	18	48	66
Argo,	11	87	98
Holland,			64
Admiral Ret Hein,	9	58	67
			476

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, August 22d, 1781.

Sir,

The late glorious victory, obtained by Admiral Zoutman over Admiral Parker, is wholly to be ascribed to the exertions of Amsterdam. Pretences and excuses would have been devised for avoiding to send out the fleet, and indeed for avoiding an action when at sea, if it had not been for the measures which have been taken to arouse the attention and animate the zeal of the nation. The officers and men of the army, and especially of the navy, appear to have been as much affected and influenced by the proceedings of the Regency of Amsterdam, as any other parts of the community. Notwithstanding the apparent ill success of the enterprises of the great city, it is certain that a flame of patriotism and of valor has been kindled by them, which has already produced great effects, and will probably much greater.

It is highly probable, however, that if the Regency of Amsterdam had taken another course, they would have succeeded better. If instead of a complaint of sloth in the Executive department, and a personal attack upon the Duke, they had taken the lead in a system of public measures, they would have found more zealous supporters, fewer powerful opposers, and perhaps would have seen the ardor of the nation increase with equal rapidity. For example, as the sovereignty of the United States was a question legally before them, they might have made a proposition in the States of Holland to acknowledge it, and make a treaty with them. This measure would have met with general applause among the people, throughout the Seven Provinces, and their example would have been followed by the Regencies of other cities, or they might have proposed in the States to accede to the treaty of alliance between France and America. However, we ought to presume, that these gentlemen know their own countrymen, and their true policy, better than strangers, and it may be their intention to propose other things in course. It is certain, that they have animated the nation to a high degree, so that a separate peace, or any mean concessions to Great Britain, cannot now be made.

The good party have the upperhand, and patriotic counsels begin to prevail.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS,

Amsterdam, August 22d, 1781.

Sir,

The constitution of this country is such, that it is difficult to discover the general sense. There have been all along circumstances in which it might be discerned, but these were so feeble, and so susceptible of contradiction and disguise, that some extraordinary exertions were necessary to strike out unquestionable proofs of the temper and opinion of the nation.

Last spring, the part of this people, which was most averse to war, was for making propositions and concessions to England, in order to obtain peace. This policy was not only injudicious, but would have been fruitless, because the English would have made peace upon no other terms, than this nation's joining them against France, Spain, and America, which would have been its ruin. Nevertheless, if the party had prevailed, and sent Ambassadors to London to solicit peace, the Court of London would have found so many arts and pretences for spinning out the negotiation, and would have obstructed the commerce of Holland so much, as to bring on a discouragement and despair among the people.

In these critical circumstances, something uncommon was necessary to arouse the nation, and bring forth the public voice. The first step of this kind, was the proposition of the United States of America to their High Mightinesses, which being taken *ad referendum*, became a subject of deliberation in every city of the Republic, and the publication of the memorial of the 19th of April, 1781, which made the American cause, the primary object and main spring of the war, the topic of conversation in every private circle, as well as in every public assembly.

This memorial gave all parties an opportunity to know with certainty the public opinion; and accordingly, such a general and decided approbation was discovered everywhere, that the few who detested it in their hearts, never dared to open their mouths. Emboldened by this, M. Van Berckel

came forward with his application to the States for a vindication of his character, and although he has not obtained an answer, yet it has been discovered that his enemies have not been powerful enough either to condemn or to censure him. Not long after, followed the manly proposition of the Regency of Amsterdam for an inquiry into the causes of the inactivity of the State, and, in course, their direct attack upon the Duke of Brunswick.

The American memorial has not obtained, and probably will not obtain for a long time, an acknowledgment of American independence, but it discovered with absolute certainty the sentiments of the nation. M. Van Berckel's petition has not procured him a formal justification, but it has proved that his enemies are too weak to punish or to censure him. The proposition of Amsterdam has not obtained an inquiry into the causes of the sloth of the State, nor the appointment of a committee to assist the Prince; but it has occasioned a universal declaration of the people's sentiments, that the State has been too inactive, and the counsels of the Court too slow. The application of Amsterdam against the Duke has not procured his removal, but it has procured a universal avowal, that the public counsels have been defective, and a universal cry for an alteration, and has obliged the Court to adopt a different system. When the public counsels of a country have taken a wrong bias, the public voice, pronounced with energy, will sometimes correct the error, without any violent remedies. The voice of the people, which had been so often declared, by the late sea action was found to be so clear, that it has produced many remarkable effects. Among which, none deserve more attention than the following declarations of the Prince. The first was inserted by order in the newspapers in these words.

"As pains are taken to draw the public into an opinion, that the vessels of the Meuse, (Rotterdam) and of Middleburg, (Zealand) which at first had orders to join the squadron of the Texel, (only those of Amsterdam) had afterwards received counter orders, as it is given out in some cities almost in so many words, and which is propagated, (God knows with what design) it is to us a particular satisfaction to be able to assure the public, after authentic information, and even from the supreme authority, that such assertions are destitute of all foundation, and absolutely contrary to the truth; that the orders, given and never revoked, but, on the contrary, repeated more than once to the vessels of the Meuse, to join the convoy of

the Texel, could not be executed, because it did not please Providence to grant a wind and the other favorable circumstances necessary to this effect, while the Province of Zeeland, threatened at the same time with an attack from an English squadron, would not willingly have seen diminished the number of vessels, which lay at that time in their Road. It is, nevertheless, much to be regretted, that circumstances have not permitted us to render the Dutch squadron sufficiently strong, to have obtained over the enemy a victory as useful as it was glorious."

On the 14th of August, the Prince wrote the following letter to the crews of the vessels of the State.

"Noble, respectable, and virtuous, our faithful and well beloved; We have learned with the greatest satisfaction, that the squadron of the State, under the command of Rear Admiral Zoutman, although weaker by a great deal in ships, guns, and men, than the English squadron of Vice Admiral Parker, has resisted so courageously on the 5th of this month his attack, that the English squadron, after a most obstinate combat, which lasted from eight o'clock in the morning to half past eleven, has been obliged to desist and to retire. The heroic courage, with which Vice Admiral Zoutman, the captains, officers, petty officers, and common sailors and soldiers, who have had a part in the action, and who, under the blessing of God Almighty, have so well discharged their duty in this naval combat, merits the praises of all, and our particular approbation; it is for this cause, we have thought fit by the present, to write to you, to thank publicly in our name, the said Vice Admiral, captains, officers, petty officers, and common sailors and soldiers, by reading this letter on board of each ship, which took part in the action, and whose captains and crews have fought with so much courage and valor, and to transmit by the Secretary of the fleet of the State an authentic copy, as well to the said Rear Admiral Zoutman, as to the commanders of the ships under his orders, of the conduct of whom the said Rear Admiral had reason to be satisfied; testifying, moreover, that we doubt not, that they and all the other officers of the State, and soldiers, in those occasions, which may present, will give proofs that the State is not destitute of defenders of our dear country and of her liberty, and that the ancient heroic valor of the Batavians still exists, and will not be extinguished. Whereupon, noble,

respectable, virtuous, our faithful and well beloved, we recommend you to the divine protection."

"Your affectionate friend,

WILLIAM, *Prince of Orange*.

Thus, although the enemies of England in this Republic do not appear to have carried any particular point against the opposite party, yet it appears that they have forced into execution their system by means of the national voice, and against all the measures of the Anglomans. The national spirit is now very high; so high that it will be dangerous to resist it. In time, all things must give way to it. This will make a fine diversion, at least for America and her allies. I hope in time we may derive other advantages from it. But we must wait with patience here, as we are still obliged to do in Spain, and as we were obliged to do in France, where we waited years before we succeeded.

I have the honor to be, &c.

JOHN ADAMS.

TO B. FRANKLIN.

Amsterdam, August 25th, 1781.

Sir,

Last evening I received your Excellency's letter of the 16th of this month, accompanied with a letter from the President of Congress, containing the commissions you mention.

You desire to know what steps have already been taken in this business. There has been no step taken by me in pursuance of my former commission, until my late journey to Paris, at the invitation of the Count de

Vergennes, who communicated to me certain articles proposed by the mediating Courts, and desired me to make such observations upon them as should occur to me. Accordingly, I wrote a number of letters to his Excellency of the following dates; July 13th, enclosing an answer to the articles sixteen, eighteen, nineteen, twentyone. I would readily send you copies of the articles, and of those letters, but there are matters in them, which had better not be trusted to go so long a journey, especially as there is no necessity for it. The Count de Vergennes will readily give you copies of the articles and of my letters, which will prevent all risk.

I am very apprehensive that our new commission will be as useless as my old one. Congress might very safely, I believe, permit us all to go home, if we had no other business, and stay there some years; at least, until every British soldier in the United States is killed or captivated. Till then, Britain will never think of peace, but for the purposes of chicanery.

I see in the papers, that the British Ambassador at Petersburg has received an answer from his Court to the articles. What this answer is, we may conjecture from the King's speech. Yet the Empress of Russia has made an insinuation to their High Mightinesses, which deserves attention. Perhaps you may have seen it; but, lest you should not, I will add a translation of it, which I sent to Congress in the time of it, not having the original at hand. ^[2]

I must beg the favor of your Excellency to communicate to me whatever you may learn, which has any connexion with this negotiation; particularly the French, Spanish, and British answers to the articles, as soon as you can obtain them. In my situation, it is not likely that I shall obtain any information of consequence, but from the French Court. Whatever may come to my knowledge, I will communicate to you without delay.

If Britain persists in her two preliminaries, as I presume she does, what will be the consequence? Will the two Imperial Courts permit this great plan of a Congress at Vienna, which is public and made the common talk of Europe, to become another sublime bubble, like the armed neutrality? In what a light will these mediating Courts appear, after having listened to a proposition of England, so far as to make propositions themselves, and to refer to them in many public acts, if Britain refuses to agree to them? and

insists upon such preliminaries as are at least an insult to France and America, and a kind of contempt to the common sense of all Europe? I am weary of such round-about and needless negotiations, as that of the armed neutrality, and this of the Congress at Vienna. I think the Dutch have at last discovered the only effectual method of negotiation, that is, by fighting the British fleets until every ship is obliged to answer the signal for renewing the battle by the signal of distress. There is no room for British chicanery in this. If I ever did any good, it was in stirring up the pure minds of the Dutchmen, and setting the old Batavian spirit in motion, after having slept so long.

Our dear country will go fast asleep, in full assurance of having news of peace by winter, if not by the first vessel. Alas! what a disappointment they will meet. I believe I had better go home, and wake up our countrymen out of their reveries about peace. Congress have done very well to join others in the commission for peace, who have some faculties for it. My talent, if I have one, lies in making war. The Grand Seignior will finish the *procès des trois rois*, sooner than the Congress of Vienna will make peace, unless the two Imperial Courts act with dignity and consistency upon the occasion, and acknowledge American independency at once, upon Britain's insisting on her two insolent preliminaries.

I have the honor to be, &c.

JOHN ADAMS.

JAMES LOVELL TO JOHN ADAMS.

Philadelphia, September 1st, 1781.

Sir,

Enclosed you have some important instructions, passed in Congress upon the 16th of last month.^[3] They will probably reach you first through our Minister at Versailles, an opportunity to France having earliest presented

itself. Should that not be the case, you will be careful to furnish copies to Dr Franklin and Mr Jay.

I remain, &c.

JAMES LOVELL,
For the Committee of Foreign Affairs.

TO B. FRANKLIN.

Amsterdam, October 4th, 1781.

Sir,

Since the 25th of August, when I had the honor to write to you, this is the first time I have taken a pen in hand to write to anybody, having been confined and reduced too low, to do any kind of business, by a nervous fever.

The new commission for peace has been a great consolation to me, because it removed from the public all danger of suffering any inconvenience, at a time, when, for many days together, there were many chances to one, that I should have nothing more to do with commissions of any sort. It is still a great satisfaction, because I think it a measure essentially right, both as it is a greater demonstration of respect to the powers, whose Ministers may assemble to make peace, and as it is better calculated to give satisfaction to the people of America in all parts, as the Commissioners are chosen from the most considerable places in that country.

It is probable, that the French Court is already informed of the alteration. Nevertheless, I should think it proper, that it should be officially notified to the Count de Vergennes, and, if you are of the same opinion, as you are near, I should be obliged to you if you would communicate to his Excellency an authentic copy of the new commission.

I should think, too, that it would be proper to give some intimation of it to the public, in the *Gazette*, or *Mercure de France*, the two papers, which are published with the consent of the Court, and, if you are of the same opinion, upon consulting the Count de Vergennes, I should be glad to see it done.

Have you any information concerning Mr Jefferson, whether he has accepted the trust? Whether he has embarked? Or proposes soon to embark? I saw a paragraph in a Maryland paper, which expressed an apprehension, that he was taken prisoner, by a party of horse, in Virginia.

I feel a strong curiosity to know the answer of the British Court, to the articles to serve as a basis, &c. and should be much obliged to your Excellency for a copy of it, if to be procured, and for your opinion, whether there will be a Congress or not.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, October 15th, 1781.

Sir,

I am very sorry to learn, that Congress have received no letters from me from October to June. It is not that I wrote less than usual in that period, but that I was more unfortunate. Two vessels, which sailed from hence for Boston, each of which had despatches from me for Congress, destroyed them, one upon being taken, and the other upon being chased. But the most of my despatches were lost at St Eustatia, I fear.

While that island was in the possession of the Dutch, I sent a great number of letters, packets of papers, &c. by several vessels, to the care of Curson and Gouverneur, to be forwarded to Congress. It is very certain, the enemy

have got possession of some, one very short and insignificant one they have published, and the London papers give intimations of more; but I fancy they will not choose to publish them.

I hope Commodore Gillon has arrived before this day, who had letters from me, and all the public papers for some time. I sent despatches also by several other vessels, which have sailed from hence. It is extremely difficult for me to send letters by the way of Nantes, L'Orient, &c. or by the way of Spain. There is so much bad faith in the public posts, that it would not be possible for me to write without having my letters opened, perhaps copied, and there is scarcely ever an opportunity by a private hand to any sea-port in France.

But I have a further apology to make to Congress for the few letters I have lately written. On the 2d of July I left Amsterdam at the invitation of the Count de Vergennes for Paris, for a conference upon the subject of peace, at the mediation of the two Imperial Courts, and the Congress at Vienna. After despatching all that was necessary relative to these sublime bubbles, I returned to Amsterdam. Not long after I got home, I found myself attacked by a fever, of which at first I made light, but which increased very gradually and slowly, until it was found to be a nervous fever of a very malignant kind, and so violent as to deprive me of almost all sensibility for four or five days, and all those who cared anything about me, of the hopes of my life.

By the help, however, of great skill, and all powerful bark, I am still alive; but this the first time I have felt the courage to attempt to write to Congress. Absence and sickness are my apologies to Congress for the few letters they will receive from me since June. Whether it was the uncommon heat of the summer, or whether it was the mass of pestilential exhalations from the stagnant waters of this country, that brought this disorder upon me, I know not; but I have every reason to apprehend, that I shall not be able to re-establish my health in this country. A constitution ever infirm, and almost half a hundred years old, cannot expect to fare very well amidst such cold damps and putrid steams as arise from the immense quantities of dead water, that surround it.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, October 15th, 1781.

Sir,

I wish it were possible to communicate to Congress the present state of every affair, which they have been pleased to confide in any measure to me. I have received the new commission for peace, and the revocation of my commission and instructions of the 29th of September, 1779.^[4] To both of these measures of Congress, as to the commands of my sovereign, I shall pay the most exact attention. The present commission for peace, is a demonstration of greater respect to the powers of Europe, and must be more satisfactory to the people of America, than any former one; besides that it guards against accidents, which in my late sickness I had reason to think may well happen. I am, however, apprehensive that this commission will lie a long time neglected, and as useless as the former one.

I am myself seriously of opinion, that the English will not treat with the United States for many years. They will see all their dominions in the East and West Indies conquered by the French and Spaniards; they will see their government reduced to the limits of their own island before they will do it. The present Ministers must die off, and the King too, before there will be any treaty between Britain and America. The nation will stand by the King and Ministry through every loss, while they persevere; whereas both would sink into total contempt and ridicule, if they were to make peace. While they persevere, they are masters of the purses and commerce too of the whole nation. Make peace and they lose a great part of this influence. National pride, when it has become a habitual passion by long indulgence, is the most obstinate thing in the world; and this war has been made so completely, though so artfully the national act, as well as that of King and Ministers, that the pride of the nation was never committed more entirely to the support of anything. It is not to be supposed that the present Ministry

will treat with America, and if there should be a change, and the leaders of opposition should come in, they will not treat with America in any character, that she can with honor or safety assume. They might propose a peace separate from France, or they might withdraw their troops from the United States, but they would not make a general peace. The Congress at Vienna will prove but a magnificent chimera, as the British Ministry ever intended it should be.

It has already answered their insidious ends, and now they are giving it a dismissal, by insisting upon their two preliminaries; so that upon the whole, according to the best judgment I can form, it will not be worth while for Congress to be at the expense of continuing me in Europe, with a view to my assisting at any conferences for peace, especially as Dr Franklin has given me intimations, that I cannot depend upon him for my subsistence in future.

My commission for borrowing money has hitherto been equally useless. It would fill a small volume to give a history of my negotiations with people of various stations and characters, in order to obtain a loan, and it would astonish Congress to see the unanimity with which all have refused to engage in the business, most of them declaring they were afraid to undertake it. I am told that no new loan was ever undertaken here, without meeting at first with all sorts of contradiction and opposition for a long time; but my loan is considered not only as a new one, but as entering deep into the essence of all the present political systems of the world, and no man dares engage in it, until it is clearly determined what characters are to bear rule, and what system is to prevail in this country.

There is no authority in Europe more absolute, not even that of the two empires, not that of the simple monarchies, than that of the States-General is in their dominions, and nobody but M. de Neufville dares advance faster in a political manœuvre than the States. M. de Neufville has done his utmost, and has been able to do nothing; three thousand guilders, less than three hundred pounds, is all that he has obtained. Notwithstanding this, there is a universal wish that the world may be made to believe that my loan is full. It is upon 'Change, by a unanimous dissimulation, pretended to be full, and there are persons, (who they are I know not,) who write to London,

and fill the English papers with paragraphs that my loan is full. M. de Neuville has advertised in the customary form, for all persons possessed of American *coupons*, to come and receive the money at the end of the first six months. These persons cannot be more than three in number.

My letters of credence to their High Mightinesses have been taken *ad referendum* by the several Provinces, and are now under consideration of the several branches of the sovereignty of this country; but no one city or body of nobles has as yet determined upon them. None have declared themselves in favor of my admission to an audience, and none have decided against it; and it is much to be questioned whether any one will determine soon.

I have often written to Congress, that I never could pretend to foretell what the States-General would do. I never found anybody here who guessed right; and upon reading over all the negotiations of Jeannin, Torcy, d'Avaux, and d'Estrades, in this country, I found every one of those Ministers were, at the several periods of their residence here, in the same uncertainty. It appears to have been for this century and a half, at least, the national character, to manage all the world as long as they could, to keep things undetermined as long as they could, and finally to decide suddenly upon some fresh motive of fear. It is very clear to me, that I shall never borrow money until I have had an audience; and if the States pursue their old maxims of policy, it may be many years before this is agreed to. I am much inclined to believe that nothing decisive will be done for two or three years, perhaps longer; yet it may be in a month. Parties are now very high, and their passions against each other warm; and to all appearance, the good party is vastly the most numerous; but we must remember, that the supreme Executive is supposed to be determined on the other side, so that there is real danger of popular commotions and tragical scenes.

The question really is, whether the Republic shall make peace with England, by furnishing her ships and troops according to old treaties, and joining her against all her enemies, France, Spain, America, and as many more as may become enemies in the course of the war? The English party dare not speak out and say this openly; but if they have common sense they must know that England will make peace with them upon no other terms.

They pretend that upon some little concessions, some trifling condescendencies, England would make peace with Holland separately. Some pretend that a separate peace might be had upon the single condition of agreeing not to trade with America; others upon the condition of considering naval stores as contraband goods; but the commercial cities are almost unanimously against both of these articles. The English party are sensible of this, yet they entertain hopes by keeping the Republic in a defenceless state, that commerce will be so far ruined, and the common people in the great trading cities reduced to such want and misery, as to become furious, demand peace at any rate, and fall upon the houses and persons of those who will not promote it.

The English party, I think, will never carry their point so far as to induce the nation to join the English. There are three considerations, which convince me of this beyond a doubt. First, corrupted and abandoned as a great part of this nation, as well as every other in Europe is, there is still a public national sense and conscience, and the general, the almost universal sense of this nation is, that the English are wrong and the Americans right in this war. The conduct of the Americans is so like that of their venerable and heroic ancestors, it is evidently founded in such principles as are uniformly applauded in their history, and as every man has been educated in a habitual veneration for, that it is impossible for them to take a part in the war against America. This was universally conspicuous upon the publication of my memorial to the States. Secondly; the commercial part of these Provinces, I think, will never give up the American trade. Thirdly; England is so exhausted and so weak, and France, Spain, and America so strong, that joining the former against the three latter, would be the total ruin of the Republic. Nevertheless, the court party will find means of delay, and will embarrass the operations of war in so many ways, that it will be long before any decisive measures will be taken in favor of America.

Whether, under all these circumstances, Congress will think proper to continue me in Europe, whether it will be in their power to furnish me with the means of subsistence, as Dr Franklin in his letter to me thinks I cannot depend upon him, and I have no hopes at all of obtaining any here, I know not, and must submit to their wisdom. But after all, the state of my health, which I have little reason to hope will be restored without a voyage home,

and more relaxation from care and business than I can have in Europe, makes it very uncertain whether I shall be able to remain here. In short, my prospects both for the public and for myself are so dull, and the life I am likely to lead in Europe so gloomy and melancholy, and of so little use to the public, that I cannot but wish it may suit with the views of Congress to recall me.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, October 17th, 1781.

Sir,

There is at present a fermentation in this nation, which may arise to violent extremities. Hundreds of pamphlets have appeared, all of which must be adjudged to be seditious libels; some against the Court, and some against the city and sovereign magistrates of Amsterdam. At length, a large pamphlet has appeared in Dutch, and been distributed through the streets of the Hague, Leyden, Rotterdam, and other cities, which has occasioned a great alarm to the government, and a great agitation of spirits among the people. All parties speak of it as a composition, in the strongest terms of admiration. The substance of it will appear from the following placard against it.

"We, the Deputies of the States of Utrecht, make known, that as it is come to our knowledge, that, notwithstanding the strong and serious advertisements and publications against the composition, sale, and distribution of lampoons, scandalous pamphlets, or libels, and defamatory writings of whatever sort, or in whatever form they may be, to the prejudice of the high sovereignty of these Provinces, and of those who are placed in any administration or direction of public affairs already, heretofore, and

lately promulgated, both by the Lords, the States of this Province, and by others, and the rigorous penalty therein decreed against transgressors; nevertheless, the spirit of discord, of wickedness, of calumny, and of sedition has burst forth, and spread itself in this State so far, that it has not been possible, hitherto to restrain it by such advertisements, but, on the contrary, it has arrived at such a height, that there has been printed and dispersed within a few days a most pernicious libel, under the title of Aan het Volk van Nederland, (to the people of the Low Countries) containing a great number of wicked and slanderous imputations against the Most Serene Person of his Most Serene Highness, our Lord, the Prince of Orange and Nassau, Hereditary Stadtholder, Captain and Admiral-General of these Provinces, against his Most Serene father and mother of glorious memory, as also our Lords, the Princes of Orange, William the First, Maurice, Frederick, Henry, William the Second, and William the Third, illustrious predecessors of his Most Serene Highness, and interspersing efforts the most seditious, tending to overturn not only the present form of the Regency, but even to introduce, instead of the Regency in the State, which also is therein painted, in the most hateful manner, a democracy, or Regency of the people, and thus to cause the Republic to fall into an entire anarchy, which would increase and multiply still more extremely, the dangers to which the dear country is exposed at present by a foreign war, joined to an intestine division; and taking into consideration that such most detestable wickedness, if not restrained, can have no other consequences, than the total ruin and destruction of the dear country, if God by his grace does not prevent it, and that it is incumbent on us to employ all the means possible to hinder it, and to punish offences according to their demerit; for these causes, we renew that which has been heretofore and lately ordained in this respect by the publication of their Noble Mightinesses, of the 4th of July of the present year, 1781, and not only the punishments by fine, but also of discretionary correction, according to the exigence of the case against the transgressors there mentioned, to discover the author or the authors, and the distributor or the distributors of such a dangerous libel as that before mentioned, and to the end that they be punished, as examples to others, according to the magnitude of such a crime, tending to the ruin of the country; we have thought fit to promise, as we do by these presents, a premium of a hundred ryders (fourteen hundred guilders) in favor of those who may discover or make known, the author or authors, distributor or

distributors, in such manner that they may be juridically convicted and punished, concealing the name of the informer if he requires it. And we ordain, moreover, to all the officers and judges in the city, cities, and countries of this Province, to make all possible search, and to endeavor, without any negligence, dissimulation, or connivance, to discover and arrest the aforesaid malefactor, or malefactors, and to proceed and to cause to be proceeded, as is convenient, against them, as seditious persons, and disturbers of the public repose, guilty of overturning the foundations of the government of these Provinces, and of the sovereignty of the Lords, the States of the Provinces respectively, and as the enemies the most dangerous of the country; and to the end, that no man may pretend ignorance, these presents shall be published and posted up in convenient places.

"Done at Utrecht, the 3d of October, 1781.

I. TACTS VAN AMERONGEN.

"By order of the said Lords Deputies,

C.A. VOS."

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, October 18th, 1781.

Sir,

The Committees of the Fisheries of Vlaardingen and Maaslleys have presented to their High Mightinesses a petition to give them to understand, "that they learned with the most lively sensibility that the gentlemen, the committees of the respective colleges of Admiralty had proposed to their

High Mightinesses to permit the free navigation of the ports of the Republic, with or without convoy, excepting, nevertheless, until further order, the vessels destined to the greater and lesser fisheries. The petitioners represent the inevitable losses, with which they are more and more threatened, in case that all the fishery, without exception, remain longer suspended; that they might very well find a remedy in a certain manner by excepting from this prohibition the ships employed in taking fish for salting, and in the fishery of fresh cod. They solicit, that it may please their High Mightinesses to revoke in this regard the placard of the 26th of January, 1781, or at least to make in it such alteration as their High Mightinesses may find convenient."

This petition, accepted by the Province of Holland, has been rendered commissorial, and sent to the colleges of the Admiralty respectively.

ANOTHER PETITION,

*From divers Merchants, Bookkeepers, and Owners of Ships of Amsterdam,
containing in substance,*

"That the petitioners having caused their vessels and cargoes, for the most part loaded beforehand, to sail under the escort of the convoy, there has resulted from it on the 5th of August, the famous rencounter between this convoy, commanded by the Vice Admiral Zoutman, and the British Vice Admiral Parker; a rencounter, which in truth had covered the naval forces of the Republic with immortal glory, but at the same time given to commerce a terrible blow, the merchant vessels having seen themselves obliged to return into the ports of the State. That the petitioners seeing themselves disappointed of their just and equitable expectation, of being able to obtain an escort sufficient and seasonably ready, found themselves forced to submit to necessity, and consequently to call back their ships, which without running the greatest danger, could not remain longer in their then station; that the petitioners could not refrain from representing to their High Mightinesses in the most pressing manner, the enormous prejudice which resulted from it to the petitioners and the freighters of vessels, who, after having for so many months held their vessels and crews ready, must now pay the expense of equipping them, the wages, the monthly pay and

subsistence of their crews, as well as all the other charges that result from them.

"But as all these disbursements are lost, the petitioners for the causes alleged, and others particularised in the petition, pray that it may please their High Mightinesses to assign to the petitioners, and especially to the proprietors and freighters of vessels, a convenient indemnification and sufficient for the cost, damages, and interest borne and suffered, because the said convoy has not set sail; from whence it has resulted, that they have detained the vessels belonging to the petitioners, who, at the first requisition, are ready to produce the particulars to their High Mightinesses, that it may also please their High Mightinesses to give the necessary orders, to the end that the convoy destined for this purpose may be ready early enough to be able to set sail next spring, even by the month of March, to the end that by accelerating their departure, the loss of time suffered in the current year may be, at least in some degree, compensated, and that there may be an opportunity that the ships which are now in Norway and at Elsinore; supposing they should be obliged to pass the winter there, may then profit of this convoy for their return. Finally, that they would please to give, concerning all these objects, precise orders, and such as their High Mightinesses may judge the most proper to fulfil the wishes of the petitioners, and for the greatest utility of commerce."

This petition has been rendered commissorial for the respective Admiralties.

ANOTHER PETITION.

"The undersigned, merchants trading to the Levant, living at Amsterdam and Rotterdam, give respectfully to understand, that the petitioners acknowledge with the most lively gratitude the paternal care which your High Mightinesses have always manifested for the prosperity of the commerce of the Levant, and particularly the advantages procured to the Belgic navigation by the resolutions of your High Mightinesses of the 21st of May, 1770, and of the first of April, 1776; the first of which authorises the directors of the commerce of the Levant, and of the navigation of the Mediterranean, besides the accustomed imposition of six per cent of freight,

to require of all foreign vessels coming from the Levant, five per cent of the value of the effects; and the second of which tends to raise considerably the tariff, after which they always tax the abovementioned effects; which has also fully answered to the salutary end of your High Mightinesses, to wit, to inspire a general aversion in foreign ships to suffer themselves to be employed in the transportation of productions from the Levant into the ports of these countries. But, the situation of the navigation of this country by the unfortunate and cruel war, which the King of England unjustly makes upon our dear country, is in fact entirely changed, and almost entirely interrupted and ruined, in such sort, that by the present impossibility to make use of those ships which have not been taken, business in general, and that of the Levant in particular, is in the deplorable condition, even for the account of neutral foreigners, (for that upon our own account is entirely stopped) either to be wholly abandoned, or to be carried on by the means of foreign vessels.

"The petitioners think it unnecessary to enumerate, particularly the disadvantages of the first points alleged, that is to say, the abandoning of this commerce, because in all times the considerable importance of the Levant trade has been universally acknowledged, and your High Mightinesses yourselves have always shown that you have been intimately persuaded of it. It is then manifest, that in the present situation of affairs there remains only the second means, which is to employ foreign ships; nevertheless, as the small quantity of these vessels joined to the inclination on all sides to employ them, has already occasioned an enormous rise of their freights, and since moreover they cannot be ensured, but by paying a premium three times larger than in past times, we encounter here obstacles the most discouraging and invincible, considering, that besides all this, the extraordinary imposition beforementioned of five per cent of the value of the merchandises calculated after the augmented tariff renders almost impracticable this manner of negotiating, and deprives it of all advantage; which in this critical situation of affairs, must ruin absolutely the commerce of the Levant; for since at this time it cannot be carried on, but for the account of neutral foreigners, it is incontestible that their enterprises being in all cases so much confined, they will find themselves in the indispensable necessity to suspend this commerce with us, and to transmit it to other places; besides this, there will be found many foreigners, who for these causes will excuse themselves from remitting to the petitioners what they

justly owe because at present, by the enormous rise of bills of exchange this cannot be effected but by sending merchandises, which still augments and extends, in an aggravating manner, the risk of the petitioners.

"But finally to ward off this misfortune in season, if possible, the petitioners take the liberty respectfully to address themselves to your High Mightinesses, praying that you would please, during the course of this war, consequently as long as the Belgic vessels cannot be employed, to exempt the effects, loaded upon foreign ships and coming from the Levant to the ports of this country, from the said extraordinary imposition of five per cent of their value, and that you would also give the same advantages to the merchandises loaded on board the *Pisano*, a Venetian vessel, commanded by Captain Antonio Ragusin, from Smyrna, and lately arrived at the Texel; to the end that this branch of Commerce, so important, may not perish entirely, and that it may be preserved for the general well-being of the dear country.

"Divers freighters and part owners of vessels, fitted out for the Colony of Surinam, by the proprietors of plantations, merchants, and others interested in this commerce, as well as that of Curaçao, have addressed a petition to their High Mightinesses, and laid open the "deplorable condition of the two Colonies; that in consequence of the Resolution of the 14th of last June, in virtue of the petition, which they then presented, they equipped their vessels with despatch, and that in two months they had put in order a fleet of seventeen vessels, armed with four hundred guns, and manned with twelve hundred men, expecting a suitable convoy; but that several circumstances having without doubt hindered it from being ready, they pray first, their High Mightinesses, that they would prepare as soon as possible a convenient convoy, to go out with their ships, at a certain day, and conduct them to the West Indies; secondly, that their High Mightinesses, in case of delay, would be so good as to grant them an indemnification; thirdly, that their High Mightinesses, upon the exhibition of a certificate, as it was stipulated by their resolution of the 31st of July last, would be so good as to cause to be given to those who shall have made the armaments required, the bounties which they shall judge convenient, the petitioners being ready to give convenient sureties, and even to engage their vessels, in case they are not ready to sail at the time appointed."

At the requisition of his Highness, the request has been rendered commissorial in the respective Admiralties.

The representative and the directors of the East India Company have notified to their High Mightinesses, "that their finances are diminished, and that they are in the indispensable necessity of demanding of their High Mightinesses a succor of at least 550,000 florins; adding, that if some favorable change does not take place, they will soon be obliged to have again recourse to their High Mightinesses."

This petition has been rendered commissorial.

These papers will sufficiently show Congress how much the trade of this country is affected by the war, and what discontents must arise from it. Yet the British Ministry are amusing the government with their delusive ideas of mediation, armistices, Congresses, peace, and anything to lay them asleep.

I have the honor to be, &c.

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, October 23d, 1781.

Dear Sir,

The enclosed resolution will inform you that Congress have thought it advisable to new model their department of foreign affairs, by the appointment of a Secretary, through whose hands the communications with their Ministers abroad are to pass. Though they did me the honor to elect me so long since as August last, I but lately determined to accept, and did not enter upon business till two days ago, so that you must not expect those minute communications, which I shall think it my duty to make to you

when I have had leisure to arrange my department, and to acquaint myself more fully with the sentiments of Congress, which must upon the whole be my direction.

I can only say in general, that we consider your situation as extremely delicate, the state you are in, divided by powerful parties, and the bias that every man has to his own country, naturally gives him a predilection for that which most favors its interests. But this, though the child of virtue, is often the greatest obstacle to successful negotiations; it creates distrust and jealousies; it excites prejudices, which unfit us for conciliating the affections of those whose assistance we require, and induce too fond a reliance upon the information of those who wish to serve us. Aristocratic governments are, of all others, the most jealous of popular commotions; the rich and the powerful are equally engaged to resist them, and nothing will, in my opinion, so soon contribute to a peace between England and the United Provinces as the commotions which now clog the government of the latter.

You must, Sir, be infinitely better acquainted with the interior of the State you are in than I can pretend to be, and I rely much on your information for light, which I cannot attain here. If I venture to give you my sentiments, it is with the hope that you will correct my errors when I have discovered them by my freedom.

The United Provinces appear to me one of those governments whose very constitution disposes them to peace; the ambition of making conquests, either is or ought to be unknown to them. A war for the extension of commerce is a solecism in politics, since the shocks that the established trade sustains, infinitely overbalance any new accession that may be made by it. War, then, while the true interest of the United Provinces is considered, will be the child of necessity. That necessity happily exists at present, and will exist till Great Britain ceases to be the tyrant of the ocean. We are greatly interested in its continuance; but let us always bear in mind that the moment Great Britain makes the sacrifices, which prudence and justice require, the United Provinces will be drawn by the interest of commerce and the love of peace to close with them. Their acknowledgment of our independence would be an important and a leading object. Success

here, and the injustice and cruelty of the British may affect it, but do not let us appear to be dissatisfied if it is delayed. They have a right to judge for themselves; from the very nature of their government, they must be slow in determining. Every appearance of dissatisfaction on our part, gives room to the British to believe the United Provinces disinclined to us, and paves the way to negotiations, which may end in a peace, which we are so much interested in preventing.

Your first object, then, if I may venture my opinion, is to be well with the government; your second, to appear to be so, and to take no measures, which may bring upon you a public affront. You will naturally treat the friends we have with the politeness and attention that they justly merit, and even with that cordiality which your heart must feel for those who wish your country well, but your prudence will suggest to you to avoid giving offence to government, by the appearance of intrigue. I know nothing of the refinements of politics, nor do I wish to see them enter into our negotiations. Dignity of conduct, the resources of our country, and the value of our commerce, must render us respectable abroad. You will not fail to lay the foundation of your alliances in these, by displaying them in the strongest point of view. The spirit of injustice and cruelty, which characterise the English, must also afford you advantages, of which I dare say you avail yourself.

I make no apology for the length or freedom of this; it is of the last importance to you (and I am satisfied you will think it so,) to be intimately acquainted with the sentiments entertained on this side of the water. In return, Sir, you will let me know, minutely, everything that can in any way be of use to us, particularly if either of the belligerent powers takes measures that may tend to establish a partial or general peace. At your leisure, acquaint me with the interior of the government you are in, and everything else interesting, which you may learn relative to others. Remember that Ministers are yet to be formed in this country, and let them want no light, which your situation enables you to afford them.

I would submit it to you, whether it would not be most advisable to spend as much time as possible at the Hague, and to form connexions with the Ministers of the powers not interested in our affairs. They are frequently

best informed, because least suspected, and while your public character is unacknowledged, and you can visit without the clog of ceremony, I should conceive it no difficult task to engage the friendship of some among them.

But it is time to let you breathe; this I shall do without closing my letter, reserving the remainder of it for the communication of the most agreeable intelligence you ever received from America. The enclosed prints will announce one important victory to you, and we are in hourly expectation of the particulars of another, which will enable you to open your negotiations this winter with the utmost advantage.

October 24th. I congratulate you, Sir, upon the pleasing intelligence which, agreeable to my hopes, I am enabled to convey to you; enclosed you have a letter from General Washington to Congress; the terms granted to Lord Cornwallis, his fleet and army, and the letters that passed previous to the surrender of both. I make no comments upon this event, but rely upon your judgment to improve it to the utmost; perhaps, this is the moment in which a loan may be opened with most advantage. The want of money is our weak side, and even in the high day of success we feel its pressure.

As you may not perhaps be fully acquainted with the steps that led to this important victory, I enclose also an extract of my last letter to Dr Franklin. The British fleet consisting of twentysix sail of the line, including three fifties as such, with five thousand land forces, and General Clinton himself on board, sailed the 19th for the relief of Cornwallis. Count de Grasse is also out with thirtyfour sail of the line. I shall keep this open as long as possible, from the hopes of communicating an interesting account of their meeting.

November 1st. I am under the necessity of closing this without being able to give you any other account of the fleets, than that the British have not yet returned to New York; nor are we certain that the Count de Grasse has yet left the Chesapeake. If anything in the nature of a Court calendar is published at the Hague, you will be pleased to send me one or two impressions of it, as it may be of use to us.

I am, Sir, &c.

ROBERT R. LIVINGSTON.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, October 25th, 1781.

Sir,

I see in the London Courant, which arrived today, an advertisement of a translation into English of the address to the people of the Netherlands; so that this work is likely to be translated into all languages, and read by all the world, notwithstanding the placards against it. I have before sent that of Utrecht; that of Holland is as follows.

"The States of Holland and of West Friesland, to all those who shall see these presents, or hear them read, Greeting. As it is come to our knowledge, that notwithstanding the placards and ordinances, from one time to another, issued against the impression and dissemination of seditious and slanderous writings, there has been lately dispersed in various places of this Province, a certain very seditious and slanderous libel, entitled *Aan het Volk van Nederland*, (To the People of the Low Countries) in which the supreme government of this country, his Most Serene Highness, our Lord the Prince Hereditary Stadtholder, as well as his illustrious predecessors, to whom under God, we are indebted for the foundation and maintenance of our Republic, as well as of its liberty, are calumniated in the most scandalous and enormous manner, and in which the good people are invited to an insurrection and to seditious commotions.

"For these causes, being desirous to make provision in this case, without derogating from our former placards against lampoons, and other defamatory and scandalous writings, issued from time to time, and in particular from our renovation of the 18th of January, 1691, and our placard of the 17th of March, 1754, we have thought fit for the discovery of the author or authors of the said seditious and slanderous libel, entitled *Aan het Volk van Nederland*, and of his or their accomplices, to promise a reward of

a thousand ryders of gold, (fourteen thousand florins) to him who shall give the necessary indications by which the author, writer, or printer of the said libel, or all those who may have had a part in it in any other manner, may fall into the hands of justice, and may be convicted of the fact; and in case that the informer was an accomplice in it, we declare by these presents, that we will pardon him for whatever upon this occasion he may have done amiss against his sovereign; moreover, he shall also enjoy the reward in question, and his name shall not be pointed out, but kept secret.

"Forbidding, consequently, in the most solemn manner by these presents, every one of what estate, quality or condition soever he may be, to reprint in any manner the said seditious and slanderous libel, to distribute, scatter, or spread it, upon pain of the confiscation of the copies, and a fine of six thousand florins, besides at least, an everlasting banishment from the Province of Holland and West Friesland, which fine shall go, one third to the officer who shall make the seizure; another third to the informer; and the remaining third to the use of the poor of the place where the seizure shall be made. And whereas, some persons, to keep their unlawful practices concealed, may be tempted to pretend, that the libel in question had been addressed to them under a simple cover, they know not by whom, nor from what place, we ordain and decree, that all printers, booksellers, and moreover all and every one, to whom the said seditious and slanderous libel, entitled *Aan het Volk van Nederland*, may be sent, whether to be sold, given as a present, distributed, lent or read, shall be held to carry it forthwith; and deliver it to the officer or the magistrate of the place of their residence, or of the place where they may receive it, under penalty of being held for disseminators of it, and as such punished in the manner before pointed out. Ordaining most expressly to our Attorney-General, and to all our other officers, to execute strictly and exactly the present placard, according to the form and contents of it, without dissimulation or connivance, under pain of being deprived of their employments. And to the end, that no one may pretend cause of ignorance, but that every one may know how he ought to conduct himself in this regard, we order that these presents be published, and posted up everywhere, where it belongs, and where it is customary to do it.

"Done at the Hague, under the small seal of the country, the 19th of October, 1781. By order of the States.

C. CLOTTERBOOKE."

Such are the severe measures, which this government think themselves bound to take to suppress this libel. They will have, however, a contrary effect, and will make a pamphlet, which otherwise perhaps would have been known in a small circle, familiar to all Europe. The press cannot be restrained; all attempts of that kind in France and Holland are every day found to be ineffectual.

I consider the disputes in the city of Geneva as arising from the progress of democratical principles in Europe. I consider this libel as a demonstration that there is a party here, and a very numerous one, too, who are proselytes to democratical principles. Who and what has given rise to the assuming pride of the people, as it is called in Europe, in every part of which they have been so thoroughly abased? The American revolution. The precepts, the reasonings, and example of the United States of America, disseminated by the press through every part of the world, have convinced the understanding, and have touched the heart. When I say democratical principles, I do not mean that the world is about adopting simple democracies, for these are impracticable, but multitudes are convinced that the people should have a voice, a share, and be made an integral part; and that the government should be such a mixture, and such a combination of the powers of one, the few and the many, as is best calculated to check and control each other, and oblige all to co-operate in this one democratical principle, that the end of all government is the happiness of the people; and in this other, that the greatest happiness of the greatest number is the point to be obtained. These principles are now so widely spread, that despotisms, monarchies, and aristocracies must conform to them in some degree in practice, or hazard a total revolution in religion and government throughout all Europe. The longer the American war lasts, the more the spirit of American government will spread in Europe, because the attention of the world will be fixed there, while the war lasts. I have often wondered that the Sovereigns of Europe have not seen the danger to their authority, which arises from a continuance of this war. It is their interest to get it finished,

that their subjects may no longer be employed in speculating about the principles of government.

The people of the Seven United Provinces appear to me of such a character, that they would make wild steerage at the first admission to any share in government; and whether any intimations of a desire of change at this time will not divide and weaken the nation, is a problem. I believe rather it will have a good effect, by convincing the government that they must exert themselves for the good of the people, to prevent them from exerting themselves in innovations.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, November 1st, 1781.

Sir,

It is still as problematical as ever, what is the political system of this Republic, and indeed whether it has any system at all. They talk much, and deliberate long, but execute nothing. By the violence with which they speak and write of each other, a stranger would think them ripe for a civil war. In the Assembly of the States of Guelderland, held to consider the requisition of the King of France of a negotiation of five millions of florins, under the warranty of the Republic, the debates were sustained with great warmth. Some were for an alliance with France. The Baron de Nagel, Seneschal of Zutphen, evaded the putting of the question, and said among other things, "that he had rather acknowledge the independence of the Americans, than contract an alliance with France."

The Baron Van der Cappellen de Marsch, was for an alliance with France and America too. He observed, "that nothing being more natural, than to act

in concert with the enemies of our enemy, it was an object of serious deliberation to see if the interest of the Republic did not require to accept, without further tergiversation, the invitations and offers of the Americans; that no condescension for England could hinder us at present from uniting ourselves against a common enemy, with a nation so brave and so virtuous, a nation, which, after our example, owes its liberty to its valor, and even at this moment, is employed in defending itself from the tyranny of the enemy of the two nations; that, consequently, nothing could restrain us from acknowledging the independence of this new Republic; that our conduct differed very much from that held by our ancestors, who allied themselves to the Portuguese, as soon as they shook off the yoke of the Spaniards; that there was no doubt that the said alliances with the enemies of our enemy would soon restrain his fury, and operate a general peace advantageous for us."

As this is the first opinion given openly, which has been published, in favor of acknowledging American independence, it deserves to be recorded, but it will be long, very long, before the Republic will be unanimously of this opinion.

I have the honor to be, &c.

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, November 20th, 1781.

Sir,

Since my last of the 23d of October, nothing material has happened here, unless it be the return of Digby to New York, where he has relanded great part of his troops, and, as is said, proceeded to the West Indies with the fleet, though this is not fully ascertained. Nor have we any authentic

account, that the Count de Grasse sailed from the Chesapeake on the 4th instant.

It gives me pleasure, however, to mention an incident to you, which shows how much the yeomanry of this country have improved in military discipline, and must defeat every hope that Britain entertains of conquering a country so defended. It has been the custom of the enemy to move a large body of troops every fall, from Canada to Ticonderoga, while a light corps, with a number of Indians, entered the State from the westward, and destroyed the frontier settlements, burning the houses and barns, and scalping the old men, women, and children. Last year, they effected the destruction of Schoharie, and most of the settlements on the Mohawk River, before the militia could assemble to oppose them. This year, a small body of State troops, drafted from the militia for three months, about sixty New Hampshire levies, part of the militia of the country, and forty Oneida Indians, to the number of four hundred and eighty in all, under the command of Colonel Willet, hastily collected, upon the report of the enemy's coming from the westward to oppose them, while the rest of the militia, and some Continental troops marched upon Hudson's River, (the enemy having about two thousand men at Ticonderoga.) Willet met the enemy, who consisted of a picked corps of British troops, to the amount of six hundred and six, besides a number of Indians and tories; he fought and defeated them twice with his militia, killed their leader, Major Ross, and young Butler, as is said, made a number of prisoners, and pursued them three days, till he had driven them into the thickest part of the wilderness, whence fatigue and want of provision will prevent many of them from returning. Those at Ticonderoga have remained inactive ever since.

It must be a mortifying circumstance to the proudest people in the world, to find themselves foiled, not only by the American regular troops, but by the rough undisciplined militia of the country.

Admiral Zoutman's combat must also, I should imagine, have some effect in humbling their pride, and, what is of more consequence, in raising the spirits of the Dutch.

We find from your letters, as well as from other accounts of the United Provinces, that they are divided into powerful parties for and against the

war, and we are sorry to see some of the most distinguished names among what you call the Anglomans. But your letters leave us in the dark relative to the principles and views of each party, which is no small inconvenience to us, as we know not how to adapt our measures to them. It is so important to the due execution of your mission, to penetrate the views of all parties, without seeming to be connected with either, that I have no doubt you have insinuated yourself into the good graces and confidence of the leaders, and that you can furnish the information we require; you may be persuaded no ill use will be made of any you give, and that it is expected from you.

We learn from M. Dumas, that you have presented your credentials to the States-General; we are astonished, that you have not written on so important a subject, and developed the principle, that induced you to declare your public character before the States were disposed to acknowledge it. There is no doubt from your known prudence and knowledge of the world, that some peculiarity in your situation, or that of the politics and parties in the United Provinces, furnished you with the reasons, that overbalanced the objections to the measure, which arise from the humiliating light in which it places us. Congress would, I believe, wish to have them explained, and particularly your reason for printing your Memorial. I may form improper ideas of the government, interest, and policy of the United Provinces, but I frankly confess, that I have no hope, that they will recognise us as an independent State, and embarrass themselves in making their wished for peace, with our affairs. What inducements can we hold out to them? They know, that our own interest will lead us to trade with them, and we do not propose to purchase their alliance, by giving them any exclusive advantage in commerce.

Your business, therefore, I think lies in a very narrow compass; it is to conciliate the affection of the people, to place our cause in the most advantageous light, to remove the prejudices, that Britain may endeavor to excite, to discover the views of the different parties, to watch every motion, that leads to peace between England and the United Provinces, and to get the surest aid of government in procuring a loan, which is almost the only thing wanting, to render our affairs respectable at home and abroad. To these objects I am satisfied you pay the strictest attention, because I am satisfied no man has more the interest of his country at heart, or is better

acquainted with its wants. As our objects in Holland must be very similar to those of France, I should suppose it would be prudent for you to keep up the closest connexion with her Minister; to advise with him on great leading objects, and to counteract his opinion only upon the most mature deliberation.

You were informed, before I came into office, that Mr Jay and Mr Franklin are joined in commission with you, and have received copies of the instructions, that Congress have given their commissioners; this whole business being terminated before I came down, I make no observations upon it, lest I should not enter fully into the views of Congress, and by that means help to mislead you in so important a subject. I enclose you a resolution, discharging the commission for *establishing a Commercial Treaty with Britain*. This also being a business of long standing, I for the same reason, transmit it without any observations thereon.

I would recommend it to you, to be, in your language and conduct, a private gentleman. This will give you many advantages in making connexions, that will be lost on your insisting upon the assumption of a public character, and the rather, as this sentiment prevails generally among the members of Congress, though, for reasons of delicacy with respect to you, I have not chosen to ask the sense of Congress, to whom it is my sincere wish, as well as my leading object, in the free letters I wrote you, to enable you to render your measures acceptable. A number of your letters, written last winter and spring, have this moment come to hand.

This letter will be sent to Europe by the Marquis de Lafayette, who has obtained leave of absence during the winter season. He wishes to correspond with you, and as from his connexion, his understanding, and attachment to this country he may be serviceable to you, I would wish you to write as freely to him, as you conceive those considerations may render prudent.

I have the honor to be, &c.

ROBERT R. LIVINGSTON.

TO THE DUC DE LA VAUGUYON, AMBASSADOR OF FRANCE AT THE HAGUE.

Amsterdam, November 24th, 1781.

Mr Adams presents his most respectful compliments to his Excellency the Duc de la Vauguyon, and begs leave to acquaint him, that by the last night's post he received from Congress some important despatches, which it is his duty to communicate to the Ambassador of France. Mr Adams requests his Excellency to inform him, what hour will be most convenient for him to wait on him at the Arms of Amsterdam. Meantime, he most sincerely congratulates his Excellency on the glorious news from America by the Duc de Lauzun, of the surrender of Lord Cornwallis with his whole army, to the arms of the allies.

This card I sent by my secretary Mr Thaxter. The Duke returned for answer, that he would call upon me at my house, between twelve and one, to congratulate me on the news from America. Accordingly about one, he came and spent with me about an hour and a half.

I communicated to him my fresh instructions, and agreed to send him a copy of them tomorrow or next day, by the post waggon (*chariot-de-poste*.) He said he had not received any instructions from Versailles, upon the subject; but might receive some by next Tuesday's post. He asked me, what step I proposed to take in consequence of these instructions? I answered none, but with his participation and approbation; that I would be always ready to attend him at the Hague, or elsewhere, for the purpose of the most candid and confidential consultations, &c. He said that he thought that the subject was very well seen (*très bien vû*) and the measure very well concerted, (*très bien combiné*) and that it would have a good effect at this time, to counteract the artifice of the British Ministry, in agreeing to the mediation of Russia, for a separate peace with this Republic.

RESOLVES OF CONGRESS, COMPRISING THE INSTRUCTIONS TO JOHN ADAMS.

In Congress, August 16th, 1781.

On the Report of the Committee, to whom was recommitted their report on the communications from the Honorable the Minister of France, and who are instructed to report instructions to the Honorable John Adams, respecting a Treaty of Alliance with the United Provinces of the Netherlands,

Resolved, That the Minister Plenipotentiary of these United States at the Court of Versailles, be directed to inform His Most Christian Majesty, that the tender of his endeavors to accomplish a coalition between the United Provinces of the Netherlands, and these States, has been received by Congress, as a fresh proof of his solicitude for their interests. That previous to the communication of this His Most Christian Majesty's friendly purpose, Congress, impressed with the importance of such a connexion, had confided to Mr John Adams full powers to enter, on the part of the United States, into a Treaty of Amity and Commerce with the United Provinces, with a special instruction to conform himself therein to the treaties subsisting between His Most Christian Majesty and the United States. That Congress do, with pleasure, accept His Most Christian Majesty's interposition, and will transmit further powers to their Minister at the Hague, to form a Treaty of Alliance between His Most Christian Majesty, the United Provinces, and the United States, having for its object, and limited in its duration to, the present war with Great Britain. That he will be enjoined to confer, on all occasions, in the most confidential manner, with His Most Christian Majesty's Minister, at the Hague; and that provisional authority will also be sent to admit his Catholic Majesty as a party.

Resolved, That the Minister Plenipotentiary of these United States at the Hague, be, and he is hereby instructed to propose a Treaty of Alliance between His Most Christian Majesty, the United Provinces of the Netherlands, and the United States of America, having for its object, and limited in its duration to, the present war with Great Britain, and conformed

to the treaties subsisting between His Most Christian Majesty and the United States.

That the indispensable conditions of the Alliance be, that their High Mightinesses, the States-General of the United Provinces of the Netherlands, shall expressly recognise the sovereignty and independence of the United States of America, absolute and unlimited, as well in matters of government as of commerce. That the war with Great Britain shall be made a common cause, each party exerting itself according to its discretion in the most effectual hostility against the common enemy; and that no party shall conclude either truce or peace with Great Britain, without the formal consent of the whole first obtained; nor lay down their arms, until the sovereignty and independence of these United States shall be formally or tacitly assured by Great Britain, in a Treaty, which shall terminate the war.

That the said Minister be, and he hereby is further instructed, to unite the two Republics by no stipulations of offence, nor guaranty any possessions of the United Provinces. To inform himself, from the Minister of these United States at the Court of Spain, of the progress of his negotiations at the said Court; and if an alliance shall have been entered into between his Catholic Majesty and these United States, to invite his Catholic Majesty into the Alliance herein intended; if no such alliance shall have been formed, to receive his Catholic Majesty, should he manifest a disposition to become a party to the alliance herein intended, according to the instructions given to the said Minister at the Court of Spain.

That in all other matters, not repugnant to these instructions, the said Minister at the Hague do use his best discretion.

Resolved, That the Minister Plenipotentiary of these United States at the Hague, be, and he hereby is instructed to confer in the most confidential manner with His Most Christian Majesty's Minister there.

Ordered, That the foregoing resolutions be communicated to our Ministers at the Courts of Versailles and Madrid, that they may furnish every information and aid in their power to our Minister at the Hague, in the accomplishment of this business.

Resolved, That the following commission be issued to Mr John Adams, for the purpose aforesaid.

The United States in Congress assembled, to all who shall see these presents, send, greeting.

Whereas a union of the force of the several powers engaged in the war against Great Britain may have a happy tendency to bring the said war to a speedy and favorable issue; and it being the desire of these United States to form an alliance between them and the United Provinces of the Netherlands; know ye, therefore, that we, confiding in the integrity, prudence, and ability of the Honorable John Adams, have nominated, constituted, and appointed, and by these presents do nominate, constitute, and appoint him, the said John Adams, our Minister Plenipotentiary, giving him full powers, general and special, to act in that quality, to confer, treat, agree, and conclude, with the person or persons vested with equal powers, by His Most Christian Majesty, and their High Mightinesses, the States-General of the United Provinces of the Netherlands, of and concerning a Treaty of Alliance between His Most Christian Majesty, the United Provinces of the Netherlands, and the United States of America; and whatever shall be so agreed and concluded for us, and in our name, to sign, and thereupon to make such treaty, convention, and agreements as he shall judge conformable to the ends we have in view; hereby promising, in good faith, that we will accept, ratify, and execute, whatever shall be agreed, concluded, and signed by him our said Minister.

In witness whereof we have caused these presents to be signed by our President, and sealed with his seal.

Done at Philadelphia, this sixteenth day of August, in the year of our Lord one thousand seven hundred and eightyone; and in the sixth year of our independence, by the United States in Congress assembled.

THOMAS M'KEAN,
President.

TO THE DUC DE LA VAUGUYON,

Amsterdam, November 25th, 1781.

Sir,

I have the honor to enclose to your Excellency a copy of the fresh instructions of Congress of the 16th of August last, which I received by the post on the 23d instant. I have also received a further commission from Congress, with full powers to confer, treat, agree, and conclude, with the person or persons vested, with equal powers by His Most Christian Majesty, and their High Mightinesses, the States-General of the United Provinces of the Netherlands, of and concerning a Treaty of Alliance between His Most Christian Majesty, the United Provinces of the Netherlands, and the United States of America.

This measure was apparently concerted between the Congress and the French Minister residing near them, and seems to be very happily adapted to the present times and circumstances.

I beg leave to assure your Excellency, that I shall be at all times ready to attend you, at the Hague, or elsewhere, to confer with you, in the most entire confidence, respecting this negotiation, and shall take no material step in it, without your approbation and advice.

There are three ways of proposing this business to their High Mightinesses; 1st, your Excellency may alone propose it in the name of His Most Christian Majesty; 2dly, it may be proposed jointly by the Minister of his Majesty, and the Minister of the United States; or 3dly, it may be proposed by the Minister of the United States alone, and as a consequence of his former proposal of a Treaty of Commerce. I beg leave to submit these three measures, to your Excellency's consideration, and shall very cheerfully comply with any, which you may most approve.

I have the honor to be, &c.

JOHN ADAMS

TO JOHN JAY, AMERICAN MINISTER AT MADRID.

Amsterdam, November 26th, 1781.

Sir,

By the last post, I received from L'Orient a set of fresh instructions from Congress, dated the 16th of August, and with the more pleasure, as I am enjoined to open a correspondence with your Excellency upon the subject of them.

I presume you have a copy by the same vessel; but as it is possible it may have been omitted, I shall venture to enclose a copy, and hope it may pass unopened. I have communicated it to the French Ambassador here, who says it is "*très bien vû; très bien combiné.*" I shall take no step in it, without his knowledge and approbation. I shall hope for your Excellency's communications as soon as convenient.

The Dutch have an inclination to ally themselves to France and America, but they have many whimsical fears, and are much embarrassed with party quarrels. In time, I hope, they will agree better with one another, and see their true interests more clearly. This measure of Congress is very well timed.

I congratulate you on the glorious news of the surrender of Cornwallis. Some are of opinion it will produce a Congress at Vienna; but I cannot be of that sentiment. The English must have many more humiliations before they will agree to meet us upon equal terms, or upon any terms, that we can approve.

What is the true principle of the policy of Spain, in delaying so long to declare themselves explicitly? Her delay has a bad effect here.

Mr Dana has been gone northward these four months, but I have no letters from him. Whether the post is unfaithful, or whether he chooses to be talked about as little as possible at present, which I rather suspect, I do not know.

My respects to Mr Carmichael, and to your family, if you please.

With great esteem, &c.

JOHN ADAMS.

TO B. FRANKLIN

Amsterdam, November 26th, 1781.

Sir,

I presume you have a copy from Congress of their instructions to me of the 16th of August; but, as it is possible it may be otherwise, I have enclosed one. I have communicated them to the Duc de la Vauguyon. I shall do nothing in the business without communicating it beforehand to him, with the most entire confidence, and receiving his approbation and advice. He informs me, that he has not yet received any instructions from his Court respecting it.

These instructions have arrived at a very proper time to counteract another insidious trick of the British Ministry, in agreeing to the mediation of Russia for a separate peace with Holland.

With unfeigned joy I congratulate your Excellency on the glorious news of the surrender of Cornwallis to the arms of the allies. How easy a thing would it be to bring this war to a happy conclusion, if Spain and Holland would adopt the system of France, and co-operate in it with the same honor and sincerity. There is nothing wanting but a constant naval superiority in the West Indies, and on the coast of the United States, to obtain triumphs upon triumphs over the English, in all quarters of the globe. The allies now carry on the war in America with an infinite advantage over the English, whose infatuation, nevertheless, will continue to make them exhaust themselves there, to the neglect of all their possessions in other parts of the world.

I have the honor to be, &c.

JOHN ADAMS.

TO JOHN JAY.

Amsterdam, November 28th, 1781.

Sir,

I had the honor to write to you on the 26th instant by the post, a conveyance which I am determined to try until I am certainly informed of its infidelity; in which case I will ask the favor of the French or Spanish Ambassador, to enclose my despatches.

I received, by the last post, a duplicate of despatches from Congress, the originals of which I received some time ago. I presume you have received the same from Congress, or from Passy; but, if otherwise, I will enclose in a future letter a commission and instructions for assisting at the conferences for peace, at Vienna or elsewhere, whenever they may take place. In this commission, Congress have added Mr Franklin, President Laurens, your Excellency, and Mr Jefferson; a measure which has taken off my mind a vast load, which, if I had ever at any time expected I should be called to sustain alone, would have been too heavy for my forces.

The capture of Cornwallis and his army is the most masterly measure, both in the conception and execution, which has been taken this war. When France and Spain shall consider the certain triumphant success, which will ever attend them while they maintain a naval superiority in the West Indies and on the coast of North America, it is to be hoped, they will never depart from that policy. Many here are of opinion, that this event will bring peace; but I am not of that mind, although it is very true that there are distractions in the British Cabinet, a formidable faction against Lord G. Germain, and, it is said, the Bedford party are determined to move for peace.

Our late triumphs have had an effect here. I have received several visits of congratulation, in consequence of them, from persons of consequence, from whom I did not expect them. But they are invisible fairies, who disconcert in the night all the operations of the patriots in the day.

There will, probably, be a proposal soon of a triple alliance between France, America, and Holland. If Spain would join, and make it quadruple, it would be so much the better.

General Green's last action in South Carolina, in consequence of which, that State and Georgia have both re-established their governments, is quite as glorious for the American arms as the capture of Cornwallis. The action was supported even by the militia, with a noble constancy. The victory on our side was complete, and the English lost twelve hundred men.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, December 4th, 1781.

Sir,

I have received those instructions, with which I was honored by Congress on the 16th of August, and communicated them forthwith to the French Ambassador, to their High Mightinesses, and to the American Ministers at Versailles and Madrid. ^[5] The Duc de la Vauguyon was of opinion, that they were very well considered and very well timed, to counteract another trait of British policy, in agreeing to the mediation of Russia for a separate peace with Holland. The British Ministry mean only to aid the stocks, and lull the Dutch.

There is no longer any talk of a Congress at Vienna. The late news of General Washington's triumphs in Virginia, and of the friendly and effectual aid of the Counts de Rochambeau and de Grasse, have made a great impression here, and all over Europe. I shall punctually observe my instructions, and consult in perfect confidence with the Duc de la Vauguyon, in the execution of my late commission. A quadruple alliance, for the duration of the war, would, probably, soon bring it to a conclusion; but the Dutch are so indolent, so divided, so animated with party spirit, and above all so entirely in the power of their Chief, that it is very certain that they will take the proposition *ad referendum* immediately, and then deliberate upon it a long time.

This nation is not blind; it is bound and cannot get loose. There is great reason to fear, that they will be held inactive, until they are wholly ruined. Cornwallis' fate, however, has somewhat emboldened them, and I have received unexpected visits of congratulation from several persons of note; and there are appearances of a growing interest in favor of an alliance with France and America. If I were now to make the proposition, I think it would have a great effect. I must, however, wait for the approbation of the Duke, and he, perhaps, for instructions from Versailles, and, indeed, a little delay will perhaps do no harm, but give opportunity to prepare the way. The general cry at this time in pamphlets and public papers, is for an immediate connexion with France and America.

The consent of Zealand is expected immediately to the loan of five millions for his Most Christian Majesty. My loan rests as it was, at a few thousand guilders, which, by the advice of Dr Franklin, I reserve for the relief of our countrymen, who escape from prison in England in distress. I have ordered a hundred pounds for President Laurens in the Tower, at the earnest solicitation of his daughter, who is in France, and of some of his friends in England; but for further supplies have referred them to Dr Franklin. I some time since had an intimation that the British Ministry were endeavoring to form secret contracts with traitorous Americans to supply the masts for the royal navy. According to my information, the British navigation in all parts of the world is at present distressed for masts, especially those of the largest size. Congress will take such measures as to their wisdom shall appear proper to prevent Americans from this wicked and infamous commerce, I

wrote to Dr Franklin upon the subject, who communicated my letter, as I requested, at Court, and his Excellency supposes that the Count de Vergennes will write to Congress, or to the Chevalier de la Luzerne upon the subject.

The Continental goods left here by Commodore Gillon, are detained for freight and damages, and very unjustly as I conceive. I am doing all in my power to obtain possession of them, and send them to America, or dispose of them here, at as little loss as possible, according to the desire and advice of Dr Franklin. It is not necessary to trouble Congress to read a volume of letters upon the subject of these goods. All that can be done by me, has been and shall be done to save the public interest. This piece of business has been managed as ill as any that has ever been done for Congress in Europe, whether it is owing to misfortune, want of skill, or anything more disagreeable.

The Court of Russia does not at present appear to be acting that noble part, which their former conduct gave cause to expect. Mr Dana is at Petersburg, but he prudently avoids writing. If he sees no prospect of advantage in staying there, he will be very silent, I believe, and not stay very long.

I have the honor to be, &c.

JOHN ADAMS.

THE DUC DE LA VAUGUYON TO JOHN ADAMS.

Translation.

The Hague, December 7th, 1781.

Sir,

I have received the letter you did me the honor to write me, and the copy of the resolutions of Congress, of the 16th of August last. I flatter myself, that

you will not doubt of my zeal to concert with you the ulterior measures, which they may require, as soon as the King has authorised me. But until his Majesty has transmitted to me his orders on this point, I can only repeat to you the assurances of my zeal for everything interesting to the common cause of France and North America, and the peculiar satisfaction I shall derive from my connexions with you in all circumstances.

I have the honor to be, &c.

DE LA VAUGUYON.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, December 13th, 1781.

Sir,

The answer of my Lord Stormont to M. Simolin is as follows.

"The alliance, which has subsisted so many years between Great Britain and the States-General, has always been considered by his Majesty as a connexion founded on the most natural relations, and which was not only conformable to the interests of the two nations, but as essential to their mutual well-being. The King has done everything on his part to maintain these connexions and to strengthen them; and if the conduct of their High Mightinesses had been answerable to that of his Majesty, they would have subsisted at this hour in all their force. But from the commencement of the present troubles, the single return with which the Republic has requited the constant friendship of the King, has been the renunciation of the principles of an alliance, the primary object of which was the mutual defence of the two nations; an obstinate refusal to fulfil the most sacred obligations; a daily violation of the most solemn treaties; an assistance given to those very enemies against whom the King had a right to demand succor; an asylum granted to American pirates in the ports of Holland, in public violation of the clearest stipulations; and to fill up the measure, a denial of justice and of

satisfaction for the affront offered to the dignity of the King by a secret league with his rebel subjects.

"All these accumulated grievances have not permitted the King to act any other part, than that which he has taken with the most sensible reluctance. When we laid before the public the motives which had rendered this rupture inevitable, the King attributed the conduct of the Republic to its true cause, viz. the unfortunate influence of a faction, which sacrificed the interest of the nation to private views; but the King at the same time manifested the sincerest desire to be able to draw back the Republic to a system of strict union, efficacious alliance and reciprocal protection, which has so greatly contributed to the well-being and to the glory of the two nations.

"When the Empress of Russia offered her good offices to effectuate a reconciliation by a particular peace, the King testified his gratitude for this fresh proof of a friendship, which is to him so precious, and avoided to expose the mediation of her Majesty to the danger of a fruitless negotiation; he explained the reasons which convinced him, that in the then prevailing disposition of the Republic, governed by a faction, any reconciliation during the war with France, would be but a reconciliation in appearance, and would give to the party which rule in the Republic, an opportunity to re-assume the part of a secret auxiliary of all the King's enemies, under the mask of a feigned alliance with Great Britain. But if there are certain indications of an alteration in this disposition; if the powerful intervention of her Imperial Majesty can accomplish this change, and reclaim the Republic to principles, which the wisest part of the nation has never abandoned; his Majesty will be ready to treat of a separate peace with their High Mightinesses; and he hopes that the Empress of all the Russias may be the sole mediatrix of this peace. She was the first to offer her good offices; and an intervention so efficacious and so powerful as her's, cannot gain in weight and influence by the accession of the most respectable allies. The friendship of the Empress towards the two nations, the interest which her empire has in their reciprocal welfare, her known impartiality, and her elevated views, are so many securities for the manner in which she will conduct this salutary work, and in a negotiation, which has for its end the termination of a war, caused by the violation of treaties, and an affront offered to the Crown of a King, his Majesty refers himself with equal

satisfaction and confidence to the mediation of a Sovereign, who holds sacred the faith of treaties, who knows so well the value of the dignity of Sovereigns, and who has maintained her own, during her glorious reign, with so much firmness and grandeur."

Thus the mediation of Russia is accepted, and that of Sweden and Denmark refused. The instructions of Congress and their new commission of last August are arrived in most happy time, to counteract this insidious manœuvre, and I hope the Duc de la Vauguyon will receive his instructions on the same subject before it be too late.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, December 14th, 1781.

Sir,

The first public body, which has proposed a connexion with the United States, is the Quarter of Oostergo, in the Province of Friesland. The proposition is in these words;

"Every impartial patriot has a long time perceived, that in the direction of affairs relative to this war with England, there has been manifested an inconceivable lukewarmness and sloth; but they discover themselves still more at this moment, by the little inclination which in general the Regencies of the Belgic Provinces testify to commence a treaty of commerce and friendship with the new Republic of the Thirteen United States of North America; and to contract engagements, at least during the continuance of this common war with the Crowns of France and Spain. Nevertheless, the necessity of these measures appears clearly, since according to our judgments, nothing was more natural, nor more

conformable to sound policy, founded upon the laws of nature the most precise, than that this Republic immediately after the formal declaration of war by the English, (not being yet able to do anything by military exploits, not being in a state of defence sufficiently respectable to dare at sea to oppose one fleet or squadron to our perfidious enemy,) should have commenced by acknowledging, by a public declaration, the independence of North America.

"This would have been from that time the greatest step to the humiliation of England, and our own re-establishment, and by this measure, the Republic would have proved her firm resolution to act with vigor. Every one of our inhabitants, all Europe, who have their eyes fixed upon us, the whole world expected, with just reason, this measure from the Republic. It is true, that before the formal declaration of war by England, one might perhaps have alleged some plausible reasons to justify in some degree the backwardness in this great and interesting affair. But, as at present Great Britain is no longer our secret, but our declared enemy, which dissolves all the connexions between the two nations; and as it is the duty not only of all the Regencies, but also of all the citizens of this Republic to reduce by all imaginable annoyances this enemy, so unjust to reason, and to force him if possible, to conclude an honorable peace; why should we hesitate any longer to strike, by this measure so reasonable, the most sensible blow to the common enemy? Will not this delay occasion a suspicion, that we prefer the interest of our enemy, to that of our country? North America, so sensibly offended by the refusal of her offer; France and Spain, in the midst of a war supported with activity, must they not regard us as the secret friends and favorers of their and our common enemy? Have they not reason to conclude from it, that our inaction ought to be less attributed to our weakness, than to our affection for England? Will not this opinion destroy all confidence in our nation heretofore so renowned in this respect? And our allies, at this time natural, must they not imagine, that it is better to have in us declared enemies, than pretended friends; and shall we not be involved in a ruinous war, which we might have rendered advantageous, if it had been well directed?

"While, on the other hand, it is evident that by a new connexion with the States of North America, by engagements at least during this war with

France and Spain, we shall obtain not only the confidence of these formidable powers instead of their distrust, but by this means we shall, moreover, place our Colonies in safety against every insult; we shall have a well-grounded hope of recovering with the aid of the allied powers, our lost possessions, if the English should make themselves masters of them, and our commerce, at present neglected and so shamefully pillaged, would reassume a new vigor, considering that in such case as it is manifestly proved by solid reasons, this Republic would derive from this commerce the most signal advantages. But since our interest excites us forcibly to act in concert with the enemies of our enemy; since the Thirteen United States of North America invited us to it long ago; since France appears inclined to concert her military operations with ours, although this power has infinitely less interest to ally itself with us, whose weakness manifests itself in so palpable a manner than we are to form an alliance the most respectable in the universe; it is indubitably the duty of every regency to promote it with all its forces, and with all the celerity imaginable.

"To this effect we have thought it our duty to lay before your Noble Mightinesses, in the firm persuasion that the zeal of your Noble Mightinesses will be as earnest as ours, to concur to the accomplishment of this point, which is for us of the greatest importance; that consequently, your Noble Mightinesses will not delay to co-operate with us, that upon this important object there may be made to their High Mightinesses a proposition so vigorous, that it may have the desired success; and that this affair, of an importance beyond all expression for our common country, may be resolved and decided by unanimous suffrages, and in preference to every particular interest."

M. Van der Capellan de Marsch was the first individual who ventured to propose in public a treaty with the United States, and the Quarter of Oostergo the first public body. This, indeed, is but a part of one branch of the sovereignty. But these motions will be honored by posterity. The whole Republic must follow. It is necessitated to it by a mechanism, as certain as clockwork; but its operations are and will be studiously and zealously slow. It will be a long time before the measure can be completed.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, December 18th, 1781.

Sir,

Having received an invitation to the Hague, in order to have some conversation with some gentlemen in the government, concerning the further steps proper for me to take in the present conjuncture, I had determined to have undertaken the journey today; but the arrival in town of the Duc de la Vauguyon, determined me to postpone it until tomorrow.

At noon, today, his Excellency did me the honor of a visit, and a long conversation upon the state of affairs at my house. He informed me, that upon the communication I had made to him, when he was here last, in person, and afterwards by letter, of my new commission and instructions, he had written to the Count de Vergennes; that he had explained to that Minister his own sentiments, and expected an answer. His own idea is, that I should go to the Hague in some week, when there is a President whose sentiments and disposition are favorable, and demand an answer to my former proposition, and afterwards, that I should go round to the cities of Holland, and apply to the several Regencies.

He thinks that I may now assume a higher tone, which the late *Cornwallization* will well warrant. I shall, however, take care not to advance too fast, so as to be unable to retreat. His advice is, to go to the Hague tomorrow, and meet the gentlemen who wish to see me there; this I shall do.

I have been very happy hitherto, in preserving an entire good understanding with this Minister, and nothing shall ever be wanting on my part, to deserve his confidence and esteem.

I have transmitted by two opportunities, one by Captain Trowbridge, from hence, another by Dr Dexter by the way of France, despatches from Mr Dana, at Petersburg, by which Congress will perceive that material advantages will arise from that gentleman's residence in that place, whether he soon communicates his mission to that Court or not.

The English papers, which I forward by this opportunity, will inform Congress of the state of things and parties in England. The Ministry talk of a new system. Perhaps they may attempt Rhode Island once more in exchange for Charleston, and try their skill in intercepting our trade.

I have the honor to be, &c.

JOHN ADAMS.

TO THE DUC DE LA VAUGUYON.

The Hague, December 19th, 1781.

Sir,

It has been insinuated to me, that the Spanish Ambassador here has instructions from his Court to enter into a negotiation with their High Mightinesses, concerning an alliance between Spain and the Republic. If this fact has come to your Excellency's knowledge, and there is no inconvenience nor impropriety in communicating it to me, I should be very much obliged to you for the information; not from curiosity merely, but for my government, in the steps I may have to take.

By my late instructions, of which your Excellency has a copy, I am to inform myself concerning the progress of American negotiations at the Court of Spain, and, if an alliance shall have been entered into between his Catholic Majesty and the United States, to invite his Catholic Majesty into the alliance proposed between France, their High Mightinesses, and the

Congress. If no such alliance shall have been formed, to receive his Catholic Majesty, should he manifest a disposition to become a party, &c.

Congress have wisely enjoined it upon me, to confer in the most confidential manner with your Excellency, and I have made it a law to myself, to take no material step in this negotiation without your approbation; but my instructions seem to make it necessary to take some measures, at least, to sound the disposition of the Spanish Ambassador. I would, therefore, beg leave to propose to your consideration, and to request your opinion, whether you think it advisable for me to do myself the honor of making a visit to the Spanish Ambassador, and communicating to him the substance of my instructions, as far as it relates to the Court of Madrid; or whether it would be better to communicate it by letter; or whether your Excellency will be so good as to take upon yourself this communication, and inform me of the result of it?

I am advised here to wait on the President of their High Mightinesses as soon as possible, and demand a categorical answer to my former proposition, and then to wait on the Grand Pensionary and Mr Secretary Fagel, and, in turn, upon the Pensionaries of all the cities of Holland, to inform them of the demand made to the President. But I submit to your consideration, whether it will not be expedient to communicate the project of a triple or quadruple alliance to some confidential members of the States; as to the Pensionary of Dort, Haerlem, and Amsterdam, for example, with permission to them to communicate it, where they shall think it necessary, in order to give more weight to my demand?

The Court of Great Britain are manifestly availing themselves of the mediation of Russia, in order to amuse this Republic, and restrain it from exerting itself in the war, and forming connexions with the other belligerent powers, without intending to make peace with her upon any conditions, which would not be ruinous to her. It is, therefore, of the last importance to Holland, as well as of much consequence to the other belligerent powers, to draw her out of the snare, which one should think might be now easily done by a proposition of a triple or quadruple alliance.

Tomorrow morning at ten, I propose to do myself the honor of waiting on your Excellency, if that hour is agreeable, in order to avail myself more

particularly of your sentiments upon these points.

In the meantime, I have the honor to be, &c.

JOHN ADAMS.

THE DUC DE LA VAUGUYON TO JOHN ADAMS.

Translation.

The Hague, December 20th, 1781.

Sir,

I have received the letter you did me the honor to address me. I shall be impatient to converse with you on the subject to which it relates, and shall expect to see you at ten o'clock tomorrow morning, as you desire.

Receive, Sir, my renewed assurances of the profound respect with which I have the honor to be, &c.

DE LA VAUGUYON.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, December 25th, 1781.

Sir,

There has appeared an ulterior declaration, in addition to the ordinances of the 30th of April and the 3d of November, concerning the navigation and the maritime commerce of the subjects of Prussia during the present war.

"The ordinances, which the King has caused to be published of the 30th of April and 3d of November of this year, have, in truth, already prescribed to the subjects of his Majesty, the manner in which they ought, for their greatest safety, to direct their navigation and their commerce; nevertheless, as several doubts have arisen in this regard, his Majesty, in order to obviate them, and to direct his subjects who trade by sea, has thought fit to establish, ordain, and declare, as follows.

"ARTICLE I. It cannot be doubted, and it is understood, that the Prussian vessels, which have put to sea before the publication of the ordinance of the 3d of November, and which, by consequence, could not be furnished with passports expedited by the Minister of foreign affairs, which are therein prescribed, cannot be taken or molested, by reason of the want of such passports, but that the passports heretofore in use, which they have taken at their departure, ought to have, until their return, their force and value, and to procure them, until that time, a sufficient security. To remove, however, still more effectually, all difficulties, which might exist in this regard, the obligation to furnish themselves with immediate passports from Berlin, is not to commence until after the 1st of January, 1782, to the end that every one may have time to take his measures in consequence.

"ART. II. It is repeated and ordained, that small vessels, which do not carry more than fifty lasts, as well as those which navigate only in the Baltic Sea, and in the North Sea, and which do not pass the Channel, which separates France and England, are not obliged, at least if they do not themselves think it proper, to take passports from Berlin; but to gain time, it is permitted to them to take them as heretofore, at their convenience, from the Admiralties, the Chambers of War, and of the Domains of each Province, and from the magistrates of the cities. In consequence of which, it is ordained to these Colleges in the most express manner, not to grant these passports but to the real and actual subjects of the King, with the greatest precaution, providing carefully against all abuses which may be made of them, and observing strictly the ordinances published upon this object. The end which his Majesty proposed to himself in publishing the declaration of the 3d of November, has been, and is, singly, to procure to Prussian vessels, which navigate beyond the Channel in the ocean or the Atlantic Sea, and which carry their commerce into these distant seas and regions, a safety so much

the greater against all prejudicial accidents, in causing to be expedited to them passports by his Minister of Foreign Affairs, who, by his knowledge of the state of public affairs, is the most in a condition to take the necessary precautions.

"ART. III. The navigators, not being able to send to Berlin complete bills of lading of the cargoes of their vessels, before they are entirely loaded, there is not required of those who have occasion for immediate passports of the Court, any other thing, except that they produce certificates, and general attestations from the Admiralties, the Chambers of Domains, or the magistrates of the cities, concerning the property of the vessel, and when the passport should express also the cargo, concerning the quality of the cargo, that is to say, in what it consists; which is sufficient to judge, whether the merchandises are lawful, and whether the passports requested can be granted. The bills of lading, and complete and specific attestations of the quantity of each merchandise may be expedited as heretofore, in the usual manner, to places where the loading is made by the Admiralties, the Chambers of Finances, or the magistrates of the cities.

"ART. IV. In the ordinance of the 30th of April, his Majesty has been pleased, to encourage his subjects to the national commerce, to advise them to engage in maritime commerce as much as possible upon their own account, and with their own merchandises; and it has been established in consequence, in the declaration of the 3d of November, that to obtain passports from the Court, it was necessary to prove, by requisite certificates, that the owners both of the vessel and the cargo were Prussian subjects; nevertheless, all this was done properly in the form of advice, and to render them so much the more attentive to the precautions which they ought to take; it is not, for this the less free and lawful to the subjects of the King, who have obtained requisite passports, to transport also in their vessels, in conformity to the ordinance of the 30th of April, to places and ports which are not besieged, nor close blocked, merchandises and effects belonging to foreign nations, and even to belligerent nations, provided that these merchandises are of the nature of those, which, according to the 2d article of the declaration of the 30th of April, and conformably to the customs and rights of nations, are permitted and not of contraband; his Majesty will not fail to protect them, in such cases according to the

principles which he has adopted and established in this regard with other powers, allies, and friends, and he has judged necessary to declare all which goes before, for preventing all abusive interpretation of the declaration of the 3d of November.

"ART. V. The captains and commanders of Prussian vessels ought, when they arrive in ports or places, where reside consuls of the King, to present to them their passports, and demand of them attestations, which certify that their vessels are still furnished with passports expedited to them.

"ART. VI. The commanders of these vessels would do well also, to take with them the ordinances of the 30th of April and the 3d of November, and the present declaration, to follow so much the better the precepts of it, and to be able, in case of need, to show them, and justify their conduct by them. Nevertheless, those two ordinances, as well as this, which renews them and serves to explain them, have not been published but for the direction of Prussian subjects, who exercise navigation and maritime commerce; and in cases even where they may fail in some point of their observation, and where they may not be furnished with passports requisite, they are not responsible for their negligence, but to his Majesty, their lawful sovereign, and the commanders of armed vessels of the belligerent powers cannot think themselves authorised thereby to stop them, or to take them, when they have not acted openly in a manner contrary to the principles of the maritime neutrality, adopted by his Majesty.

"Given at Berlin, the 8th of December, 1781, by express order of the King.

DE HERTZBERG."

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, December 25th, 1781.

Sir,

On the 11th of September, Lord Stormont delivered to the Baron de Noleken, Envoy of Sweden, the following notification of the refusal of the mediation of the Court of Stockholm, and the acceptation of that of Russia.

"The conservation of the public tranquillity has been the first object of the care of his Majesty, during the whole course of his reign. The commencement of this reign has been signalised by the return of peace. The King has made great sacrifices to procure this blessing to humanity, and he had reason to flatter himself, that, by this moderation in the midst of victory, he was establishing the public tranquillity upon solid and durable foundations; but these hopes have been disappointed, and these foundations have been shaken by the ambitious policy of the Court of Versailles. This Court, after having secretly fomented the rebellion enkindled in America, has leagued herself openly with the rebel subjects of his Majesty; and by this violation of the public faith, by this direct act of hostility, she began the war.

"The conduct of the Republic of Holland, during the whole course of this war, has excited a general indignation. This nation presents itself under an aspect very different from that of a nation simply commercial. It is a respectable power, connected for a long time with Great Britain by the strictest alliance. The principal object of this alliance was their common safety, and especially their mutual protection against the ambitious designs of a dangerous neighbor, which their united efforts have so often defeated, to their mutual prosperity, and that of all Europe.

"The desertion of all the principles of this alliance, which the King on his part had constantly maintained; an obstinate refusal to fulfil the most sacred engagements; a daily infraction of the most sacred treaties; succors furnished to those very enemies, against whom the King had a right to demand succor; an asylum and protection granted in the ports of Holland to American pirates, in direct violation of stipulations, the most clear and the most precise; and, to fill up the measure, a denial of satisfaction and of justice, for the affront committed to the dignity of the King, by a

clandestine league with his rebel subjects; all these accumulated grievances have not left to the King any other part to take, than that which he has taken with the most sensible reluctance. In laying before the public the reasons, which have rendered this rupture inevitable, his Majesty attributed the conduct of the Republic to its true cause, the fatal influence of a faction, which sacrificed the national interest to private views; but the King has marked at the same time, the most sincere desire to draw back the Republic to the system of strict union, of efficacious alliance, and of mutual protection, which has so much contributed to the prosperity and the glory of the two States.

"When the Empress of all the Russias offered her good offices to effectuate a reconciliation by a separate peace, the King signifying his just gratitude for this new proof of a friendship, which is so precious to him, avoided to involve the mediation of her Imperial Majesty in a fruitless negotiation; but at present, as there are certain indications of an alteration of disposition in the Republic, some marks of a desire to return to those principles, which the wisest part of the Batavian nation has never forsaken, a negotiation for a separate peace between the King and their High Mightinesses, may be opened with some hopes of success under the mediation of the Empress of all the Russias, who was the first to offer her good offices for this salutary work. If his Majesty did not at first take advantage of it, it was because he had every reason to believe, that the Republic at that time sought only to amuse, by an insidious negotiation; but the King would think, that he answered ill the sentiments, which dictated those first offers, and that he was wanting to those regards so justly due to her Imperial Majesty, and to the confidence, which she inspires, if he associated in this mediation any other, even that of an ally most respectable, and for whom the King has the sincerest friendship."

I have the honor to be, &c.

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, December 26th, 1781.

Sir,

It is very long since we had the pleasure of hearing from you. Before this you will probably have received two letters of mine; a duplicate of the last goes with this.

Nothing material has happened since the date of that, except the evacuation of Wilmington, which was, as you know, a very important post, as it checked the trade of North Carolina, and kept up a dangerous connexion with almost the only Tories on the Continent, who have shown spirit enough to support their principles openly.

This new sacrifice by Britain of their partizans, conspiring with that made by the capitulation of York, must open their eyes, and teach them what the experience of ages should have taught, that those friendships are weak, which arise, from a fellowship in guilt.

Our army, and the French troops are in quarters. The first in the Jerseys, and upon the Hudson river; the last in Virginia. General Greene will be reinforced by about eighteen hundred men, under St Clair. The enemy are shut up in New York, Savannah, and Charleston, though I believe they may yet have one or two posts, near the latter, which they will keep till St Clair joins Greene. Count de Grasse is in the West Indies, with so formidable an armament as promises the most important successes, during the winter; when joined by the force, that has sailed from Brest, and so many of the Spanish fleet as are prepared to co-operate with him, he will have about fifty sail of the line under his command.

I enclose several resolutions of Congress, which will convince you that their late successes have not rendered them supine or negligent. The spirit which animates them will pervade most of the States. I need not suggest to you, the use that should be made of this information. I am persuaded, that your own knowledge of the world, and the particular situation of the government you are in, will direct you to the best means of rendering them useful to this country. I also enclose an ordinance relative to captures and recaptures lately passed by Congress. You will observe, that it is formed

upon the plan recommended by the armed neutrality. It does credit in that view to our moderation. Perhaps the conduct of Britain, and the neglect of the neutral powers to enforce their own regulations, may render the policy of the measure doubtful. This, however, gives new force to the deductions drawn from it in favor of our moderation and justice.

You will also observe, that it uses means to put an entire stop to all kind of commerce with Britain, or in British manufactures. In consequence of this, new habits and new fashions must be introduced. Wise nations will not neglect this favorable moment to render them subservient to the interest of their own commerce and manufactures. This affords you a topic which need not be urged to enlarge upon. I am very fearful that you will not fully understand the cyphers in which my last letters are written. I had them from the late committee of Foreign Affairs, though they say they never received any letters from you in them. Mr Lovell has enclosed what he thinks may serve as an explanation. I would recommend it to you to write to me in M. Dumas's cypher, till I can send you, or you send me one, by a safe hand. Should you be at Paris, Dr Franklin has Dumas's cypher.

And now, Sir, for all this American intelligence, let me receive from you a full return in European commodities of the like kind. I do not hesitate to impose this task upon you, because I know it is one that you have never neglected, and that you are fully impressed with the idea of its importance to us. Among other things, I am persuaded Congress would wish to know the success of your loan, and your prospects; the disposition of the government, and the strength of the Marine of the United Provinces; its objects and preparations for the ensuing campaign; the negotiations which may be carrying on at present, either for peace or war; the designs, finances, and Marine of Russia. I shall also apply to Mr Dana for information on this subject, as it will be much more practicable to correspond with him through you, than to get letters to him at this season of the year from here. I shall, however, attempt both.

I am too well acquainted with your industry and patriotism to think that you will repine at any trouble that this may give you. You know that Congress have a right to the fullest information from their Ministers, and that their Ministers have similar demands upon them. I shall endeavor, as far as lies

in my power, to satisfy the last in future, since that charge has devolved upon me.

I enclose a number of newspapers that may afford you some information and amusement, and have the honor to be, Sir, &c.

ROBERT R. LIVINGSTON.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, December 29th, 1781.

Sir,

The Minister of the Court of Vienna has announced to their High Mightinesses, the accession of the Emperor to the armed neutrality, in the following manner.

ACCESSION OF AUSTRIA TO THE ARMED NEUTRALITY.

"The Emperor having been invited by her Imperial Majesty of all the Russias, to accede to the principles of neutrality, which have been laid down in her declaration of the 28th of February, 1780, transmitted to the belligerent powers, his Majesty has accepted of this invitation, so much the more willingly, as he is convinced of the justice and equity of these principles. In consequence, their Imperial Majesties have resolved between themselves, and caused to be exchanged at St Petersburg, acts of accession on one part, and of acceptation on the other, of which the subscriber, Envoy Extraordinary, has the honor to transmit copies, by order of his Court, to their High Mightinesses, requesting them to accept of this communication, as a fresh testimony which the Emperor is pleased to give them of his affection, and of his most perfect confidence.

"His Imperial Majesty hopes that this step will be considered as a new proof of his sincere and unalterable intentions to observe the strictest neutrality,

and the most exact impartiality towards the belligerent powers. And as he has not ceased to give proofs of it through the whole course of this war, he flatters himself he shall be able to find in it sufficient pledges of that attention and regard, which he has a right to require in return on their part for the rights and liberties of neutral nations.

"Done at the Hague, this 11th day of December, 1781.

THE BARON DE KEISCHACH."

The act of accession, presented with the foregoing note, is of the following tenor.

"Joseph the Second, by the grace of God, &c. having been invited amicably by her Majesty, the Empress of all the Russias, to concur with her in the consolidation of the principles of the neutrality upon the sea, tending to the maintenance of the liberty of the maritime commerce, and of the navigation of neutral powers, which she has laid down in her declaration of the 28th of February, 1780, presented on her part to the belligerent powers, which principles imply in substance,

"1. That neutral vessels may navigate freely from port to port, and upon the coasts of the nations at war;

"2. That effects belonging to the subjects of powers at war be free upon neutral vessels, excepting merchandises of contraband;

"3. That no merchandises be considered as such, but those enumerated in the tenth and eleventh articles of the Treaty of Commerce, concluded between Russia and Great Britain the 28th of June, 1766;

"4. That to determine what characterises a port blocked, this denomination is only to be given to that, where, by the disposition of the power, which attacks it, with vessels sufficiently near, there is an evident danger of entering;

"5. Finally, that these principles serve as rules in proceedings and judgments concerning the legality of prizes.

"And her said Imperial Majesty of all the Russias, having proposed to us, to this effect, to manifest by a formal act of accession, not only our full adhesion to these same principles, but also our immediate concurrence in the measures to assure the execution of them, that we would adopt on our part, by contracting reciprocally with her said Majesty, the engagements and stipulations, following, viz.

"I. That on one part and on the other, we will continue to observe the most exact neutrality, and will carry into the most rigorous execution the prohibitions declared against the commerce of contraband of their respective subjects, with any of the powers already at war, or which may enter into the war in the sequel;

"II. That if, in spite of all the cares employed to this effect, the merchant vessels of one of the two powers should be taken, or insulted, by any vessels whatsoever of the belligerent powers, the complaints of the injured power shall be supported in the most efficacious manner by the other; and that, if they refuse to render justice upon these complaints, they shall concert immediately upon the most proper manner of procuring it by just reprisals;

"III. That if it should happen, that one or the other of the two powers, or both together, on occasion, or in resentment of this present agreement, should be disturbed, molested, or attacked, in such case they shall make common cause between themselves for their mutual defence, and labor in concert to procure themselves a full and entire satisfaction, both for the insult offered to their flag, and for the losses caused to their subjects;

"IV. That these stipulations shall be considered on one part, and on the other, as permanent, and as making a rule, whenever it shall come in question to determine the rights of neutrality;

"V. That the two powers shall communicate amicably their present mutual concert to all the powers who are actually at war.

"We, willing, by an effect of the sincere friendship, which happily unites us to her Majesty, the Empress of all the Russias, as well as for the well-being of Europe in general, and of our countries and subjects in particular, to

contribute on our part to the execution of views, of principles, and measures, as salutary as they are conformable to the most evident notions of the law of nations, have resolved to accede to them, as we do formally accede to them, in virtue of the present act, promising and engaging solemnly, as her Imperial Majesty of all the Russias engages herself to us, to observe, execute, and warrant all the foregoing points and stipulations. In faith of which, we have signed these presents with our own hand, and have hereto affixed our seal.

"Given at Vienna, the 9th of October, 1781.

JOSEPH."

The Prince de Gallitzin has notified the acceptance of Russia nearly in the same words. By the fifth article the two Imperial Courts ought to notify this to Congress, for it is most certain that the United States are one of the powers actually at war. Whether they will or no, time must discover; but by the articles, to serve as a basis of peace at the proposed Congress at Vienna, these two Courts have certainly acknowledged the American Colonies to be a power at war, and a power sufficiently free to appear at Vienna, and make peace with Great Britain.

The confederation for the liberty of navigation of neutral nations, is now one of the most formidable that ever was formed in the world. The only question is, whether it is not too complicated and various to be managed to effect. The conduct of the Empress of Russia towards this Republic, and especially in offering her mediation for a separate peace between England and Holland, has excited some jealousies of her sincerity or her constancy. But I think it will appear in the end, that she intends that Holland shall enjoy the full benefit of this confederation, which will effectually deprive England of that sovereignty of the sea, which she so presumptuously claims and boasts. But if it should appear, which I do not expect, that the Empress should advise the Dutch to give up the right of carrying naval stores, after the example of Denmark, her glory will suffer no small diminution, and I presume that Holland, humble as she is, will not submit to it, but make immediately common cause with the enemies of her enemy.

I have the honor to be, &c.

JOHN ADAMS.

THE DUC DE LA VAUGUYON TO JOHN ADAMS.

Translation.

Versailles, December 30th, 1781.

Sir,

You desired that on my arrival at Versailles, I should communicate to the Count de Vergennes your disposition to adopt the measure you have been advised to pursue by several well disposed members of the States of Holland, and that I should at the same time make known to him your determination not to take that step without his approbation.

The Minister directs me to inform you, that he sees no objection to the visit, which you wish to make to the President of the Assembly of the States-General, to the Ministers of the Republic, and to the deputies of the principal cities of the Province of Holland, provided that, without leaving with either of them any official writing, you limit yourself to the inquiry, whether the memorial, which you transmitted to them several months since has been made the subject of deliberation by their High Mightinesses, and what answer you may communicate to the Congress of the United States of North America.

I do not know the precise time of my return to the Hague, but see no reason to suppose that my absence will be longer than I expected.

Receive, Sir, my renewed assurance of the profound respect with which I have the honor to be, &c.

DE LA VAUGUYON.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, January 9th, 1782.

Dear Sir,

I write merely to put you on your guard against any falsehood the enemy may think it necessary to publish about the time of opening their budget. All is well here. There has been no action to the southward. Many of the tories in North Carolina, enraged at being deserted, have joined our army, and, as is said, executed some of their leaders. The enemy have drawn all their troops into Charleston, and our advanced parties are as low down as Haddell's point.

I congratulate you upon the brilliant expedition of the Marquis de Bouillé. It does him the highest honor, and his subsequent conduct forms such a contrast to that of the English, as must, I should suppose, have great influence upon the minds of the people with you, and forward your negotiations. The one fighting to oppress and enslave a free people, the other to establish their rights; the one attempting to tyrannize over the ocean, and fetter the commerce of the world, the other resisting that tyranny, and rendering trade as free as nature made it; the one insulting, plundering, and abusing an old friend, an ally, in the midst of profound peace, the other extending in war mercy to their bitterest enemies, and marching to conquest with domestic peace in their train; the one burning defenceless towns and peaceful villages, where they have been hospitably entertained, the other guarding from violence with scrupulous attention the firesides of their inveterate foes; the one murdering in cold blood, or more cruelly by want and misery in prison ships, those who speak the same language, profess the same religion, and spring from the same ancestors; the other forgetting difference of religion, language, and hereditary enmity, spare the vanquished, administer to their wants, offer consolation in their distress, and prove more by their conduct than by their professions, that they are armed in the cause of humanity.

The one, without regard to truth or decency, boasts of victories never gained, and ostentatiously exaggerates the little advantages, which superior

numbers have sometimes given, while the other leaves the debility of their enemy to express the brilliancy of their actions. The one—but I should never have done if I were to mark the points in which the British differ from a brave, humane, and polished nation. The recapture of St Eustatia in all its circumstances, and the disgraceful defence of Yorktown, prove that they are no longer the people we once thought them; if ever they were brave and generous, they have lost those virtues with the spirit of freedom. Adieu, my Dear Sir, may your exertions in the cause of your country be attended with all the success they merit.

I have the honor to be, &c.

ROBERT R. LIVINGSTON.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, January 14th, 1782.

Sir,

Having received the advice of several gentlemen, members of the States, and also of the opinion of the Duc de la Vauguyon and the Count de Vergennes, I went to the Hague on Tuesday, the 8th day of this month, and the next morning at ten, waited on the President of their High Mightinesses, M. Van der Sandheuvel of Dort, a city of Holland, to whom I made a verbal requisition in the following words.

"The 4th of May last I had the honor of a conference with the President of their High Mightinesses, in which I informed him that I had received a commission from the United States of America, with full powers and instructions to propose and conclude a treaty of amity and commerce between the United States of America and the United Province of the Netherlands. I had the honor in the same conference to demand an audience of their High Mightinesses, for the purpose of presenting my credentials and full powers. The President assured me, that he would report everything

that I had told him, to their High Mightinesses, so that the matter might be transmitted to the several members of the sovereignty, to be submitted to their deliberation and decision. I have not yet been honored with an answer, and for this reason I have the honor of addressing myself to you, Sir, to demand from you as I do demand, a categorical answer, which I may transmit to my sovereign."

The President assured me, that he would not fail to make report to their High Mightinesses. After this, I sent a servant to the Grand Pensionary Bleiswick, to know at what hour I should have the honor of a conversation with him. The answer returned to me, with the compliments of the Grand Pensionary, was, that he was sick, unable to attend the Assembly of the States, and to receive any visits at home from anybody; but if my business was of a public nature, I might communicate it to his Secretary, which would be as well as to himself. Upon this, I requested M. Dumas to call upon the Secretary, and communicate my intentions to him, which he did.

I went next morning at ten, to the Secretary of their High Mightinesses, M. Fagel, and communicated to him the step I had taken the day before, who told me that he had already been informed of it, for that the President, according to his promise, had made his report to their High Mightinesses; that it was true, that the Baron de Lynden de Hemmen had made his report to their High Mightinesses, on the 4th of last May, of my proposition to him, and that it had been forthwith taken *ad referendum* by all the Provinces, but that no member of the sovereignty had yet returned any answer at all, either in the affirmative or negative; that my proposition of yesterday had in like manner been taken *ad referendum* by all the Provinces, and that it was necessary to wait to see what answer they would give.

The Secretary, who is perfectly well with the Court, as his ancestors and family have been for a long course of years, and who is as complaisant to England as any man in this country, received me with perfect politeness, and, when I took leave, insisted upon accompanying me through all the anti-chambers and long entries quite to my chariot door in the street, where he waited until we entered and drove off.

After this, I went to the House of Dort, the Pensionary of which city, M. Gyselaer, received me with confidence and affection; told me, that all he could say to me in his public character was, that he thanked me for the communication I had made to him, and would communicate it to the deputation and to the Regency of his city, and that he hoped I should have as friendly an answer as I desired, for that he personally saw me with great pleasure, and very readily acknowledged my character, and that of my country.

I went next, at the hour agreed on, to the House of Haerlem, where I was received by the whole deputation, consisting of two Burgomasters, two Schepins, and a Pensionary. Here passed a scene, which really affected my sensibility, and gave me great pleasure. The five gentlemen were all aged and venerable magistrates, who received me with an affection and cordiality, which discovered, in their air and countenance, the sincerity and satisfaction they felt in the word of their Pensionary when he told me, that they were only Deputies; that by the constitution of Haerlem, like all the others in the Republic, the sovereignty resided in their constituents, the Regency; that they thanked me for the communication I had made to them, that they would communicate it to the Regency of their city, and that for themselves, they heartily wished it success; for that the United States, as sufferers for, and defenders of the great cause of liberty, might depend upon the esteem, affection, and friendship, of the city of Haerlem, and that they heartily wished a connexion between the two Republics, and they congratulated us on the capture of Lord Cornwallis, to which we returned to them a congratulation for the recapture of St Eustatia, and took our leave.

At the House of Leyden, we were received by the Pensionary, who told us he had the orders of his Burgomasters to receive me, to thank me for the communication, and to promise to communicate it to their Regency.

At the House of Rotterdam, we were received by the whole deputation, consisting of two Burgomasters, two Schepins, or Judges, and the Pensionary. We received thanks for the communication, and a promise to lay it before the Regency.

At the House of Gouda and the Brille, the same reception and the same answer. At another House, where the Deputies of five small cities lived

together, the same answer. At the House, where the Deputies of Alcmæer and Enkhuisen reside, we were received by the whole deputations, obtained the same answers, with the addition of professions of esteem and wishes, that in time there might be a closer connexion between the two nations.

Thus I had been introduced to the Ministers of the Republic, and to the Deputies of all the cities of Holland, except Amsterdam. In my messages to the deputations, I had followed the order of the cities, according to the rank they held in the confederation. I had sent to the House of Amsterdam in its course. The messenger, the first time, found only one of the Burgomasters at home, M. Rendorp, who returned for answer, that the gentlemen were not then together, but that they would send me word at what time they would receive me; but no answer came for a day or two. I sent again. The messenger found only the same Burgomaster, who returned the same answer. On Friday morning, having no answer, I sent a third time. The answer from the same Burgomaster was, that the gentlemen were then setting off for Amsterdam, being obliged to return upon business, and could not then see me, but would send me word. Upon this, I concluded to return to Amsterdam too, and to make the communication there in writing to the Regency; but reflecting that this step would occasion much speculation and many reflections upon Amsterdam, I desired M. Dumas to wait on M. Vischer, the Pensionary, who remained in town, and consult with him. The result was, that I made my visit to the House of Amsterdam, and made the communication to M. Vischer, who received me like a worthy Minister of the great city.

It may not be amiss to conclude this letter by observing, that every city is considered as an independent Republic. The Burgomasters have the administration of the executive, like little kings. There is in the great council, consisting of the Burgomasters and Counsellors, a limited legislative authority. The Schepins are the judges. The Deputies are appointed by the Regency, which consists of the Burgomasters, Counsellors, and Schepins; and in the large cities, the Deputies consist of two Burgomasters, two Schepins or Counsellors, and one Pensionary. The Pensionary is the Secretary of State, or the Minister of the city. The Pensionaries are generally the speakers upon all occasions, even in the Assembly of the States of the Province.

These operations at the Hague have been received by the public with great appearance of approbation and pleasure, and the gazettes and pamphlets universally cry against the mediation of Russia, and for an immediate alliance with France and America. But the leaders of the Republic, those of them I mean who are well intentioned, wish to have the two negotiations, that for peace under the mediation of Russia, and that for an alliance with France, Spain, and America, laid before the States and the public together, not so much with an expectation of accomplishing speedily an alliance with Bourbon and America, as with a hope of checking the English party, and preventing them from accepting a peace with England, or the mediation of Russia to that end, upon dangerous or dishonorable terms. If it was in any other country, I should conclude from all appearances, that an alliance with America and France, at least would be finished in a few weeks; but I have been long enough here to know the nation better. The constitution of government is so complicated and whimsical a thing, and the temper and character of the nation so peculiar, that this is considered everywhere as the most difficult embassy in Europe. But at present it is more so than ever; the nation is more divided than usual, and they are afraid of everybody, afraid of France, afraid of America, England, Russia, and the Northern powers, and above all of the Emperor, who is taking measures, that will infallibly ruin the commerce of this country, if they do not soon change their conduct.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, January 15th, 1782.

Sir,

The following note was presented to the Secretary Fagel by the Prince Gallitzin, and by the Secretary to the Assembly of their High Mightinesses, the 10th of this month.

"Her Imperial Majesty of all the Russias, having reflected upon the loss of time, which is occasioned by a correspondence relative to complaints formed by the subjects of neutral powers, her allies, concerning the vexations and violations which they may suffer sometimes in their commercial navigation, has perceived that it will be essential to provide the Ministers of the allied powers with instructions sufficient for all cases of this nature. To this effect, her Imperial Majesty has thought fit to propose also to their High Mightinesses, the necessity and utility of general orders and instructions upon this object, with which they ought to provide their Ministers residing near the belligerent powers. Her Imperial Majesty is even of opinion that it will be indispensably necessary to detail the instructions in question in a manner so ample, that the Ministers may never be reduced to wait for ulterior orders; but on the contrary, that in all cases of this nature, they may be authorised to sustain each other efficaciously in their complaints and operations in making a common cause, and in interesting themselves without hesitation in the first complaints of the respective subjects of their Sovereigns, who claim their assistance.

"Her Imperial Majesty has already exerted herself to despatch to her Ministers residing at the belligerent Courts, the necessary instructions to this effect. Certainly none of them will fail to contribute to the good of the common cause, conformably to mutual engagements, and to that which her Imperial Majesty has caused to be proposed to her other allies."

I have transmitted this, as well as all other State papers, relative to the maritime confederation, because I hope it will be finally established, as it appears to be for the good of mankind in general, and of the United States in particular. The Dutch are so attached to it, that I think they will not give it up, and if the Empress has it sincerely at heart, she will not consent that the Dutch should relinquish it.

I have the honor to be, &c.

JOHN ADAMS.

TO THE PRESIDENT OF CONGRESS.

Amsterdam, January 16th, 1782.

Sir,

The following verbal insinuation made by the Baron de Noleken, Envoy of Sweden at London, to my Lord Stormont, the 31st of August, 1781, is of importance to show the intentions of the maritime confederacy.

"The King has no occasion at this time to declare the principles, which have determined his conduct, from the time when he ascended the throne of his ancestors. He has been guided by the love of peace; and he would have wished to see all the powers of Europe enjoy the same happiness, equally constant and durable. These wishes dictated by the sentiments of humanity, which are natural to him, have not been satisfied. The flames of war, enkindled in another hemisphere, have communicated themselves to Europe, but the King still flattered himself that this conflagration, would not pass the bounds to which it was confined, and above all that a nation merely commercial, which had announced a neutrality as an invariable foundation of her conduct, would not be involved in it. Nevertheless, the contrary has happened almost at the very moment, when this power had contracted the most innocent engagements with the King and his two allies in the north.

"If a neutrality the most exact, which was ever observed has not been able to warrant the King from feeling at first the inconveniences of the war, by the considerable losses, which were sustained by his trading subjects; by a stronger reason he was able to foresee the vexatious consequences when these disorders should become more extensive, when an open war, between Great Britain and the Republic of Holland should multiply them; finally, when the commerce of neutrals was about to suffer new shackles by the hostilities, which were to be committed between these two powers. Accordingly the King did not fail soon to perceive it, and sincerely to wish, that the measures taken by the Empress of Russia, for extinguishing in its beginning the flame of this new war, had been followed with a perfect success. But as this salutary work has not been carried to perfection, the King has resolved to join himself to his allies, the Empress of Russia and

the King of Denmark, to endeavor to dispose his Britannic Majesty to adopt those pacific sentiments, which their High Mightinesses, the States-General, have already manifested by their consent, to open a negotiation of peace.

"If such were the dispositions of this monarch, as it ought not to be doubted, it seems that a suspension of hostilities should be a preliminary, by so much the more essential to their accomplishment, as military operations necessarily influencing a negotiation of this nature, would only serve to embarrass and to prolong it, while the allied Courts would not wish for anything so much, as to be able to accelerate it by all the means, which might serve for the satisfaction and advantage of the two belligerent parties. In the sincerity and the rectitude of the intentions, which animate his Majesty, as well as his allies, he cannot conceal the apprehension he is in, with regard to the continuation of the war, from whence may arise vexatious incidents, capable of exciting all sorts of wrangles and most disagreeable disputes.

"This motive, and still more, that of preventing a still greater effusion of blood, are proper to operate upon the heart of the King of Great Britain; and in the entire confidence, which his Majesty places in it, he would feel a real satisfaction, if by his good offices and by his mediation joined to that of his allies, he could succeed in terminating the differences, which have arisen between his Britannic Majesty and the States-General of the United Provinces."

They write from Stockholm, that the Court of London has thought proper to make representations to that of Sweden, concerning the rencounter which a convoy of merchant ships, under the escort of the Swedish frigate, the *Jaramas*, had with the English squadron of Commodore Stewart, who would have visited these merchant ships. The Court of London pretends, that he was authorised to make such a visit, even in virtue of the articles of the convention of the armed neutrality, concluded between the three powers of the north; but that the Court of Stockholm, far from blaming the refusal of the Captain of the *Jaramas*, to permit the visit, had highly approved his conduct, and answered, "that this officer had acted, conformably to his duty, for that the regulation in one of the articles of the convention of the armed neutrality in regard to the visits of merchant ships, respected only the

vessels, which navigated without convoy, but not at all those which should be found under convoy, and consequently under the protection of a sovereign flag (Pavillon,) the warranty of the nature of their cargo, and of the property."

Petersburg, December 14th, 1781. "The Minister of Sweden having communicated, by express order of the King his master, to our Court, the complaints which that of London had made, concerning the rencounter of the Swedish frigate, the Jaramas, with the squadron of Commodore Keith Stewart, as well as the answer, which had been given to those complaints, the Vice Chancellor, the Count d'Ostermann, declared the day before yesterday to this Minister, 'that her Imperial Majesty highly approved the answer of the Court of Stockholm, and found it in all points conformable to the principle, which she herself would follow in a parallel case. In consequence, if contrary to all appearance, the Court of London should not be satisfied with it, and should pretend to be able to visit neutral merchant ships, which should be found under the protection of the King, or under that of the sovereign flag of one of the allies, her Imperial Majesty would be always ready to concur, and to co-operate with his Swedish Majesty and the other allies, to oppose themselves to it, as well as to maintain the independence and respect due to their respective flags.' At the same time, orders have been sent to all the Ministers of the Empress, at the belligerent powers, that 'in case there should arise just complaints or difficulties, with relation to the detention, the capture, the carrying off, or the ill treatment, which merchant ships, navigating under the flag of this empire, or under that of one of the allies of the convention of neutrality, shall have suffered, from ships of war or armed vessels, of one or another of the belligerent powers, they should make at first, in such case, every one in his place, the necessary representations and requisitions, for reclaiming the said vessels, the reparation of losses, &c. and concur and concert to this effect with the other Ministers of the contracting Courts, without asking or waiting for further orders. The allied Courts will be requested, moreover, to give the orders to their respective Ministers residing near the belligerent powers.' A courier, despatched this day to the Hague and to London, carries these orders to the Ministers of the Empress, as well as the acts of accession of the Emperor to the principles of the convention of neutrality. The day

before yesterday, the usual day of the conferences with the Vice Chancellor, he communicated the same acts to the foreign Ministers."

With great respect, I have the honor to be, &c.

JOHN ADAMS.

**TO ROBERT R. LIVINGSTON, SECRETARY OF FOREIGN
AFFAIRS.**

Amsterdam, February 14th, 1782.

Dear Sir,

Yesterday the duplicate of your letter of the 23d of October was brought to me, the original is not yet arrived. It is with great pleasure I learn, that a Minister is appointed for foreign affairs, who is so capable of introducing into that department an order, a constancy, and an activity, which could never be expected from a committee of Congress, so often changing, and so much engaged in other great affairs, however excellent their qualifications or dispositions. Indeed, Sir, it is of infinite importance to me to know the sentiments of Congress; yet I have never known them in any detail or with any regularity, since I have been in Europe. I fear Congress have heard as little from me since I have been in Holland. My despatches by the way of St Eustatia, and by several private vessels, and by the South Carolina, have been vastly unfortunate.

My situation, Sir, has been very delicate; but as my whole life from my infancy has been passed through an uninterrupted series of delicate situations, when I find myself suddenly translated into a new one, the view of it neither confounds nor dismays me. I am very sensible, however, that such a habit of mind borders very nearly upon presumption, and deserves very serious reflections. My health is still precarious. My person has been thought by some to have been in danger; but at present I apprehend nothing to myself or the public.

This nation will have peace with England, if they can obtain it upon honorable terms; but upon no other. They cannot obtain it upon any other, without giving offence to France, and England will not make peace upon such conditions. I shall, therefore, probably remain here in a very insipid and insignificant state a long time, without any affront or answer. In the parties, which divide the nation, I have never taken any share. I have treated all men of all parties whom I saw alike, and have been used quite as well by the Court party as their antagonists. Both parties have been in bodily fear of popular commotions, and the politics of both appear to me to be too much influenced by alternate fears, and I must add, hopes of popular commotions. Both parties agree in their determinations to obtain peace with England, if they can; but Great Britain will not cease to be the tyrant of the ocean until she ceases to be the tyrant of America. She will only give up her claims of empire over both together.

The Dutch have an undoubted right to judge for themselves, whether it is for their interest to connect themselves with us or not. At present I have no reason to be dissatisfied. I have, in pursuance of the advice of the Count de Vergennes and the Duc de la Vauguyon, added to that of several members of the States, demanded an answer. I was received politely by all parties, though you will hear great complaints from others that I am not received well. They have their views in this; they know that this is a good string for them to touch. I stand now in an honorable light, openly and candidly demanding an answer in my public character. But it is the Republic that stands in a less respectable situation, not one member of the Sovereignty having yet ventured to give an answer in the negative. The dignity of the United States is, therefore, perfectly safe, and if that of this Republic is questionable, this is their own fault, not ours. Your advice, to be well with the government, and to take no measures which may bring upon me a public affront, is perfectly just. All appearance of intrigue, and all the refinements of politics, have been as distant from my conduct as you know them to be from my natural and habitual character.

Your advice to spend much of my time at the Hague, I shall in future pursue, though I have had reasons for a different conduct hitherto. As to connexions with the Ministers of other powers, it is a matter of great delicacy. There is no power but what is interested directly or indirectly in

our affairs at present. Every Minister has at his own Court a competitor, who keeps correspondences and spies, to be informed of every step; and open visits to or from any American Minister are too dangerous for them to venture on. It must be managed with so much art, and be contrived in third places, and with so much unmeaning intrigue, that it should not be too much indulged, and after all, nothing can come of it. There is not a Minister of them all, that is intrusted with anything, but from time to time to execute positive instructions from his Court.

A loan of money has given me vast anxiety. I have tried every experiment and failed in all; and am fully of opinion, that we never shall obtain a credit here until we have a treaty. When this will be, I know not. If France has not other objects in view of more importance, in my opinion she may accomplish it in a short time. Whether she has or not, time must discover.

Mr Barclay is here doing his utmost to despatch the public effects here; but these will turn out the dearest goods that Congress ever purchased if they ever arrive safe. It has been insinuated, I perceive, that I was privy to the purchase of a parcel of English manufactures among these goods. This is a mistake. It was carefully concealed from me, who certainly should not have countenanced it, if I had known it. Mr Barclay will exchange them all for the manufactures of Germany or Holland, or sell them here. The ordinance of Congress against British manufactures, is universally approved as far as I know, as a hostility against their enemies of more importance than the exertions of an army of twenty thousand men.

With great esteem, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Amsterdam, February 19th, 1782.

Sir,

On the 14th instant, I had the honor to acknowledge the receipt of your duplicate of the 23d of October. Today Major Porter brought me your favor of the 20th of November, and the original of that of the 23d of October.

I congratulate you, Sir, on the glorious news contained in these despatches; but I cannot be of your opinion, that, great as it is, it will defeat every hope that Britain entertains of conquering a country so defended. Vanity, Sir, is a passion capable of inspiring illusions, which astonish all other men; and the Britons are, without exception, the vainest people upon earth. By examining such a witness as Arnold, the Ministry can draw from him evidence, which will fully satisfy the people of England, that the conquest of America is still practicable. Sensible men see the error; but they have seen it these twenty years, and lamented it till their hearts are broken. The intention of government seems to be to break the spirit of the nation, and to bring affairs into so wretched a situation, that all men shall see that they cannot be made better by new Ministers, or by the punishment of the old ones.

It is suggested, that some plan of conciliation will be brought into Parliament; but it will be only as deceitful as all the former ones. They begin to talk big, and threaten to send Arnold with seventeen thousand men to burn and destroy in the northern States; but this will prove but an annual vapor. I rejoice the more in Colonel Willet's glorious services, for a personal knowledge and esteem I have for that officer. Zoutman's battle on Doggerbank shows what the nation could do. But ... It is somewhat dangerous to write with perfect freedom concerning the views and principles of each party, as you desire. Indeed, the views of all parties are enveloped in clouds and darkness. There are unerring indications, that all parties agree secretly in this principle, that the Americans are right if they have power. There is here and there an individual who says the Americans are wrong; but these are very few. The English party are suspected to have it in view to engage the Republic to join the English in the war against France, Spain, and America.

The Prince is supposed to wish that this were practicable, but to despair of it. Some of the great proprietors of English stocks, several great mercantile houses in the service of the British Ministry, are thought to wish it too; but if they are guilty of wishes so injurious to their country and humanity, none

of them dares openly avow them. The Stadtholder is of opinion, that his house has been supported by England; that his office was created, and is preserved by her. But I do not see why his office would not be as safe in an alliance with France as with England, unless he apprehends that the republican party would in that case change sides, connect itself with England, and by her means overthrow him. There are jealousies that the Stadtholder aspires to be a sovereign; but these are the ordinary jealousies of liberty, and I should think, in this case, groundless. The opposite, which is called the republican party, is suspected of desires and designs of introducing innovations. Some are supposed to aim at the demolition of the Stadtholdership; others, of introducing the people to the right of choosing the Regencies; but I think these are very few in number, and very inconsiderable in power, though some of them may have wit and genius.

There is another party, at the head of which is Amsterdam, who think the Stadtholdership necessary, but wish to have some further restraints or check upon it. Hence the proposition for a committee to assist his Highness. But there is no appearance that the project will succeed. All the divisions of the Republican party are thought to think well of America, and to wish a connexion with her and France. The opposite party do not openly declare themselves against this; but peace is the only thing in which all sides agree. No party dares say anything against peace; yet there are individuals very respectable, who think that it is not for the public interest to make peace.

As to Congress' adapting measures to the views and interest of both parties, they have already done it in the most admirable manner. They could not have done better if they had been all present here, and I know of nothing to be added. They have a Plenipotentiary here, with instructions; they have given power to invite the Republic to accede to the alliance between France and America, with a power to admit Spain. All this is communicated to the Count de Vergennes and the Duc de la Vauguyon, and I wait only their advice for the time of making the proposition. I have endeavored to have the good graces of the leaders, and I have no reason to suspect that I do not enjoy their esteem, and I have received from the Prince repeatedly, and in strong terms by his Secretary the Baron de Larray, assurances of his personal esteem.

I wrote, Sir, on the 3d and 7th of May, as full an account of my presenting my credentials, as it was proper to write, and am astonished that neither duplicates nor triplicates have arrived. I will venture a secret. I had the secret advice of our best friends in the Republic to take the step I did, though the French Ambassador thought the time a little too early. My situation would have been ridiculous and deplorable indeed, if I had not done it, and the success of the measure, as far as universal applause could be called success, has justified it. Those who detested the measure, Sir, were obliged to applaud it in words. I am surprised, to see you think it places us in a humiliating light. I am sure it raised me out of a very humiliating position, such as I never felt before, and shall never feel again, I believe. I have lately by the express advice of all our best friends, added to that of the Duc de la Vauguyon and the Count de Vergennes, demanded a categorical answer. I knew very well I should not have it; but it has placed the United States and their Minister in a glorious light, demanding candidly an answer, and the Republic has not yet equal dignity to give it.

In this manner we may remain with perfect safety to the dignity of the United States, and the reputation of her Minister, until their High Mightinesses shall think fit to answer, or until we shall think it necessary to repeat the demand, or make a new one, which I shall not do without the advice of the French Ambassador, with whom I shall consult with perfect confidence.

My motives for printing the Memorial were, that I had no other way to communicate my proposition to the Sovereign of the country. The gentlemen at the Hague, who are called their High Mightinesses, are not the Sovereign, they are only Deputies of the States-General, who compose the Sovereignty. These joint Deputies form only a diplomatic body, not a legislative nor an executive one. The States-General are the Regencies of cities and bodies of nobles. The Regencies of cities are the Burgomasters and Schepins, or Judges and Counsellors, composing in the whole a number of four or five thousand men, scattered all over the Republic. I had no way to come at them but by the press, because the President refused to receive my memorial. If he had received it, it would have been transmitted of course to all the Regencies; but in that case it would have been printed; for

there is no memorial of a public Minister in this Republic, but what is printed.

When the President said, "Sir, we have no authority to receive your memorial until your title and character are acknowledged by our constituents and sovereigns; we are not the sovereign;" I answered, "In that case, Sir, it will be my duty to make the memorial public in print, because I have no other possible way of addressing myself to the sovereign, your constituents."

The President made no objection, and there has been no objection to this day. Those who dreaded the consequence to the cause of Anglomania, have never ventured to hint a word against it. The Anglomaniacs would have had a triumph if it had not been printed, and I should before this day have met with many disagreeable scenes, if not public affronts. This openness has protected me. To conciliate the affections of the people, to place our cause in an advantageous light, to remove the prejudices that Great Britain and her votaries excite, to discover the views of the different parties, to watch the motives that lead to peace between England and Holland, have been my constant aim since I have resided here. The secret aid of government in obtaining a loan, I have endeavored to procure, but it can never be obtained until there is a treaty. I have hitherto kept a friendly connexion with the French Ambassador, and that without interruption. The new commission for peace, and the revocation of that for a treaty of commerce with Great Britain I have received.

My language and conduct are those of a private gentleman; but those members of Congress who think this proper, know that I have held public places in Europe, too public and conspicuous for me to be able to remain incognito in this country, nor is it for the interest of the public that I should attempt it.

I should be extremely obliged to you, Sir, if you would let me know the dates of all the letters that have been received from me, since I have been in Holland, that I may send further copies of such as have miscarried. The States of Holland have accepted the mediation of Russia, on condition of saving the rights of the armed neutrality. There has been a balancing between a treaty with France, and the acceptance of this mediation.

Amsterdam said nothing. The mediation was accepted; but several provinces have declared for a treaty with France. People of the best intentions are jealous of a peace with England upon dishonorable terms; but France will prevent this, though she does not choose to prevent the acceptance of the mediation, as she might have done by consenting to my making the proposition of a triple or quadruple alliance. Her Ambassador says, the King must not oppose the Empress of Russia, who will be of importance in the final settlement of peace.

France has never discovered much inclination to a treaty with the Republic. The demolition of the barrier towns may explain this, as well as the Ambassador's opinion against presenting my memorial at the time it was done. I believe that France too can explain the reason of the delay of Spain, where we make a less respectable appearance than in this Republic. The delay of Spain is fatal to our affairs. Yet I know the American Minister there to be equal to any service, which makes me regret the more the delay of that kingdom. The constant cry is, why is Spain silent? We must wait for Spain. Nothing gives greater advantage to the English party.

The nature of the government in an absolute monarchy, would render it improper to make any application or memorial public. The nature of this government rendered it indispensably necessary. The business must begin in the public, that is in all the Regencies. De Witt and Temple it is true, made a treaty in five days; but De Witt risked his head by it, upon the pardon and confirmation of the Regencies. But it was a time and a measure, which he knew to be universally wished for. The case at present is different. M. Van Bleiswick, though he told me he thought favorably of my first application, would not have dared to take a single step without the previous orders of his masters, as he told me.

It is the United States of America, which must save this Republic from ruin. It is the only power that is externally respected by all parties, although no party dares as yet declare openly for it. One half the Republic nearly declares every day very indecently against France, the other against England; but neither one nor the other declares against America, which is more beloved and esteemed than any other nation of the world.

We must wait, however, with patience. After oscillating a little longer, and grasping at peace, finding it unattainable, I think they will seek an alliance with America, if not with France. I had a week ago a visit from one of the first personages in Friesland, who promised me that in three weeks I should have an answer from that Province.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Amsterdam, February 21st, 1782.

Sir,

I know very well the name of the family where I spent the evening with my worthy friend Mr —— before we set off, and have made my alphabet accordingly; but I am, on this occasion, as on all others hitherto, utterly unable to comprehend the sense of the passages in cypher. The cypher is certainly not taken regularly under the two first letters of that name. I have been able sometimes to decypher words enough to show that I have the letters right; but, upon the whole, I can make nothing of it, which I regret very much upon this occasion, as I suppose the cyphers are a very material part of the letter.

The friendly and patriotic anxiety with which you inquire after my motives and reasons for making the proposition of the 4th of May, and for printing the memorial, has put me upon recollecting the circumstances. If the series of my letters had arrived, I think the reasons would have appeared, but not with that force in which they existed at the time. I have never expressed in writing those reasons so strongly as I felt them. The hopes have never been strong in anybody of inducing the Republic to a sudden alliance with France and America. The utmost expectation, that many of the well intentioned have entertained has been to prevent the government from

joining England. I am sorry to be obliged to say it, and if it ever should be made public, it might be ill taken. But there is no manner of doubt, that the most earnest wish of the cabinet has been to induce the nation to furnish the ships and troops to the English according to their interpretation of the treaty. Amsterdam distinguished itself, and its ancient and venerable Burgomaster, Temmink, and its eldest Pensionary, Van Berckel, have distinguished themselves in Amsterdam.

When Mr Laurens's papers were discovered, they were sent forthwith to the Hague. The Prince, in person, laid them before the States. Sir Joseph Yorke thundered with his memorials against Amsterdam, her Burgomasters, and Pensionary. The nation was seized with amazement, and flew to the armed neutrality for shelter against the fierce wrath of the King. Instantly Sir Joseph Yorke is recalled, and a declaration of war appears, levelled against the city, against the Burgomasters, and M. Van Berckel. Sir George Rodney, in his despatches pursues the same partiality and personality against Amsterdam. What was the drift of all this? Manifestly to excite seditions against Temmink and Van Berckel. Here then, is a base and scandalous system of policy, in which the King of Great Britain, and his Ministry and Admiral, all condescended to engage, manifestly concerted by Sir Joseph Yorke, at the Hague; and I am sorry to add, too much favored by the cabinet, and even openly by the Prince, by his presenting Laurens's papers to the States, to sacrifice Temmink and Van Berckel to the fury of an enraged populace.

This plan was so daringly supported by writers of the first fame on the side of the Court, that multitudes of writings appeared, attempting to show that what Temmink and Van Berckel had done was high treason. All this had such an effect, that all the best men seemed to shudder with fear. I should scarcely find credit in America, if I were to relate anecdotes. It would be ungenerous to mention names, as well as unnecessary. I need only say, that I was avoided like a pestilence by every man in government. Those gentlemen of the rank of Burgomasters, Schepins, Pensionaries, and even lawyers, who had treated me with great kindness and sociability, and even familiarity before, dared not see me, dared not be at home when I visited at their houses; dared not return my visit; dared not answer in writing, even a card that I wrote them. I had several messages in a roundabout way, and in

confidence, that they were extremely sorry they could not answer my cards and letters in writing, because "*on fait tout son possible pour me sacrifier aux Anglomanes.*"

"Not long after, arrived the news of the capture of St Eustatia, &c. This filled up the measure. You can have no idea, Sir; no man, who was not upon the spot, can have any idea of the gloom and terror that was spread by this event. The creatures of the Court openly rejoiced in this, and threatened some of them in the most impudent terms. I had certain information, that some of them talked high of their expectations of popular insurrections against the Burgomasters of Amsterdam, and M. Van Berckel, and did Mr Adams the honor to mention him as one, that was to be hanged by the mob in such company.

In the midst of this confusion and terror, my credentials arrived from Paris, through a hundred accidents and chances of being finally lost. As soon as I read my despatches, and heard the history of their escape by post, diligence and treck-schoots, it seemed to me as if the hand of Providence had sent them on purpose to dissipate all these vapors.

With my despatches, arrived from Paris intimations of their contents, for there are no secrets kept at Paris. The people, who are generally eager for a connexion with America, began to talk, and paragraphs appeared in all the gazettes in Dutch, and French, and German, containing a thousand ridiculous conjectures about the American Ambassador and his errand. One of my children could scarcely go to school without some pompous account of it in the Dutch papers. I had been long enough in this country to see tolerably well where the balance lay, and to know that America was so much respected by all parties, that no one would dare to offer any insult to her Minister, as soon as he should be known. I wrote my memorial and presented it, and printed it in English, Dutch, and French. There was immediately the most universal and unanimous approbation of it expressed in all companies, pamphlets and newspapers, and no criticism ever appeared against it. Six or seven months afterwards a pamphlet appeared in Dutch, which was afterwards translated into French, called *Considerations on the Memorial*; but it has been read by very few, and is indeed not worth reading.

The proposition to the President being taken *ad referendum*, it became a subject of the deliberation of the sovereignty. The Prince, therefore, and the whole Court, are legally bound to treat it with respect, and me with decency, at least it would be criminal in them to treat me or the subject with indecency. If it had not been presented and printed, I am very sure I could not long have resided in the Republic, and what would have been the consequence to the friends of liberty, I know not. They were so disheartened and intimidated, and the Anglomans were so insolent, that no man can say, that a sudden frenzy might not have been excited among the soldiery and people, to demand a junction with England, as there was in the year 1748. Such a revolution would have injured America and her allies, have prolonged the war, and have been the total loss and ruin of the Republic.

Immediately upon the presentation of my memorial, M. Van Berckel ventured to present his *requête* and demand for a trial. This contributed still further to raise the spirits of the good people, and soon after the Burgomasters of Amsterdam appeared with their proposition for giving the Prince a committee for a council, and in course their attack upon the Duke; all which together excited such an enthusiasm in the nation, and among the officers of the navy, as produced the battle of the Doggerbank, which never would have happened, in all probability, but would have been eluded by secret orders and various artifices, if the spirit raised in the nation by the chain of proceedings, of which the American memorial was the first and an essential link, had not rendered a display of the national bravery indispensable for the honor of the navy, and perhaps for the safety of the Court.

The memorial as a composition, has very little merit; yet almost every gazette in Europe has inserted it, and most of them with a compliment, none without any criticism. When I was in Paris and Versailles afterwards, no man ever expressed to me the smallest disapprobation of it, or the least apprehension that it could do any harm. On the contrary, several gentlemen of letters expressed higher compliments upon it than it deserved. The King of Sweden has done it a most illustrious honor, by quoting one of the most material sentiments in it, in a public answer to the King of Great Britain; and the Emperor of Germany has since done the author of it the honor to desire in the character of Count Falkenstein to see him, and what is more

remarkable, has adopted the sentiments of it concerning religious liberty into a code of laws for his dominions; the greatest effort in favor of humanity, next to the American revolution, which has been produced in the eighteenth century.

As my mission to this Republic was wisely communicated to the Court of Versailles, who can say that this transaction of Congress had not some influence in bringing De Grasse into the Chesapeake Bay? Another thing I ought to mention; I have a letter from Mr Jay, informing me that in the month of June last M. Del Campo was appointed by the Court of Madrid to treat with him; the exact time when my memorial appeared at Madrid. You may possibly say, that my imagination and self-love carry me extraordinary lengths; but when one is called upon to justify an action, one should look all round. All I contend for is, that the memorial has certainly done no harm; that it is probable it has done some good, and that it is possible it has done much more than can be proved. A man always makes an awkward figure when he is justifying himself and his own actions, and I hope I shall be pardoned. It is easy to say, "*il abonde trop dans son sens; il est vain et glorieux; il est plein de lui-même; il ne voit que lui;*" and other modest things of that sort, with which even your Malesherbes, your Turgots, and Neckers, are sometimes sacrificed to very small intrigues.

Your veterans in diplomacy and in affairs of State, consider us as a kind of militia, and hold us, perhaps, as is natural, in some degree of contempt; but wise men know that militia sometimes gain victories over regular troops, even by departing from the rules. Soon after I had presented the memorial, I wrote to the Duc de la Vauguyon upon the subject of inviting or admitting in concert, the Republic to accede to the alliance between France and America. The Duke transmitted that letter to the Count de Vergennes, which produced the offer to Congress from the King, to assist us in forming a connexion with the Republic, and the instructions upon the subject, which I shall execute as soon as the French Ambassador thinks proper. With him it now lies, and with him, thank God, I have hitherto preserved a perfectly good understanding, although I differed from him in opinion concerning the point of time to make the former proposition.

The evacuation of the barrier towns has produced an important commentary upon the conversation I had with the Duke, and his opinion upon that occasion. How few weeks was it, after the publication of my memorial, that the Roman Emperor made that memorable visit to Brussels, Ostend, Bruges, Antwerp, and all the considerable maritime towns in his Provinces of Brabant and Flanders? How soon afterwards his memorable journies to Holland and to Paris? Was not the American memorial full of matter for the Emperor's contemplation, when he was at Ostend, Antwerp, and Bruges? Was it not full of matter, calculated to stimulate him to hasten his negotiations with France concerning the abolition of the barrier towns? Was not the same matter equally calculated to stimulate France to finish such an agreement with him, as we have seen the evidence of in the actual evacuation of those towns? If this evacuation is an advantage to France and to America, as it undoubtedly is, by putting this Republic more in the power of France, and more out of a possibility of pursuing the system of Orange by joining England, and my memorial is supposed to have contributed anything towards it, surely it was worth the while.

The period since the 4th of May, 1781, has been thick sown with good events, all springing out of the American revolution, and connected with the matter contained in my memorial. The memorial of M. Van Berckel, the proposition of the Burgomasters of Amsterdam, their attack upon the Duke of Brunswick, and the battle of Doggerbank, the appointment of Señor del Campo, to treat with Mr Jay; the success of Colonel Laurens, in obtaining orders for the French fleet to go upon the coast of America; their victory over Graves, and the capture of Cornwallis; the Emperor's journey to his maritime towns, to Holland, and to Paris; his new regulations for encouraging the trade of his maritime towns; his demolition of the barrier fortifications; and his most liberal and sublime ecclesiastical reformation; and the King of Sweden's reproach to the King of England for continuing the war, in the very words of my memorial; these traits are all subsequent to that memorial, and they are too sublime and decisive proofs of the prosperity and glory of the American cause, to admit the belief, that the memorial has done it any material harm.

By comparing facts and events, and dates, it is impossible not to believe, that the memorial had some influence in producing some of them. When

Courts, Princes, and nations, have been long contemplating a great system of affairs, and their judgments begin to ripen, and they begin to see how things ought to go, and are going, a small publication, holding up these objects in a clear point of view, sometimes sets a vast machine in motion at once like the springing of a mine. What a dust we raise, said the fly upon the chariot wheel? It is impossible to prove, that this whole letter is not a similar delusion to that of the fly. The Councils of Princes are enveloped in impenetrable secrecy. The true motives and causes, which govern their actions, little or great, are carefully concealed. But I desire only that these events may be all combined together, and then, that an impartial judge may say, if he can, that he believes that that homely, harmless memorial had no share in producing any part of this great complication of good.

But be all these speculations and conjectures as they will, the foresight of which could not have been sufficiently clear to have justified the measure, it is sufficient for me to say, that the measure was absolutely necessary and unavoidable. I should have been contemptible and ridiculous without it. By it I have secured to myself and my mission universal decency and respect, though no open acknowledgment or avowal. I write this to you in confidence. You may entirely suppress it, or communicate it in confidence, as you judge, for the public good.

I might have added, that many gentlemen of letters, of various nations, have expressed their approbation of this measure, I will mention only two. M. d'Alembert and M. Raynal, I am well informed, have expressed their sense of it in terms too flattering for me to repeat. I might add the opinion of many men of letters in this Republic.

The charge of vanity is the last resource of little wits and mercenary quacks, the vainest men alive, against men and measures, that they can find no other objection to. I doubt not but letters have gone to America, containing their weighty charge against me; but this charge, if supported only by the opinion of those who make it, may be brought against any man or thing. It may be said, that this memorial did not reach the Court of Versailles, until after Colonel Laurens had procured the promise of men and ships. But let it be considered, Colonel Laurens brought with him my credentials to their High Mightinesses, and instructions to Dr Franklin, to acquaint the Court of

Versailles with it, and request their countenance and aid to me. Colonel Laurens arrived in March. On the 16th of April, I acquainted the Duc de la Vauguyon at the Hague, that I had received such credentials, and the next day waited on him in person, and had that day and the next two hours' conversation with him each day upon the subject, in which I informed him of my intention to go to their High Mightinesses. All this he transmitted to the Count de Vergennes; and though it might procure me the reputation of vanity and obstinacy, I shall forever believe, that it contributed to second and accelerate Colonel Laurens's negotiations, who succeeded to a marvel, though Dr Franklin says he gave great offence. ^[6]

The earnest opposition made by the Duc de la Vauguyon, only served to give me a more full and ample persuasion and assurance of the utility and necessity of the measure. His zeal convinced me, that he had a stronger apprehension, that I should make a great impression somewhere, than I had myself. "Sir," says he, "the King and the United States are upon very intimate terms of friendship. Had not you better wait until we can make the proposition in concert?" "God grant they may ever continue in perfect friendship," said I; "but this friendship does not prevent your Excellency from conducting your negotiations without consulting me. Why then am I obliged, in proposing a simple treaty of commerce, which the United States have reserved the entire right of proposing, to consult your Excellency? If I were about to propose an alliance, or to invite or admit the Dutch to accede to the alliance between the King and the States, I should think myself obliged to consult your Excellency." "But," said he, "there is a loan talked of, to be opened by the United States here, under the warranty of the King. How will it look for you to go to the States without my concurrence?" "Of this I know nothing," said I, "but one thing I know, that if such a loan should be proposed, the proposition I design to make to the States, instead of obstructing, will facilitate it, and your proposal of a loan will rather countenance me."

"Is there not danger," said he, "that the Empress of Russia, and the other northern powers, will take offence at your going to the States-General before them?" "Impossible," said I; "they all know, that the Dutch have been our old friends and allies, that we shall have more immediate connexions of commerce with Holland than with them. But what is decisive

in this matter is, America and Holland have now a common enemy in England at open war, which is not the case with the northern powers."

"Had you not better wait, until I can write to the Count de Vergennes, and have his opinion?" "I know already beforehand," said I, "what his opinion will be." "Aye, what?" "Why, directly against it." "For what reason?" "Because the Count de Vergennes will not commit the dignity of the King, or his own regulation, by advising me to apply until he is sure of success; and in this he may be right; but the United States stand in a different predicament. They have nothing to lose by such a measure, and may gain a great deal."

"But," said he, "if Holland should join England in the war, it will be unfortunate." "If there was danger of this," said I, "a proposition from the United States would be one of the surest means of preventing it; but the situation of Holland is such, that I am persuaded they dare not join England. It is against their consciences, and they are in bodily fear of a hundred thousand men from France." "True," said he, "you have used an argument now, that you ought to speak out boldly, and repeat, peremptorily in all companies, for this people are governed very much by fear." "I have, however, spoken upon this subject with delicacy, upon all occasions, and shall continue to do so," said I, "but shall make no secret, that I am sensible of it."

After turning the subject in all the lights it could bear I told him, that I believed he had urged every objection against the measure, that could be thought of, but that I was still clear in my former opinion. "Are you decided to go to the States?" "Yes, Sir. I must think it my duty." "Very well; in that case," said he, "you may depend upon it, I will do all in my power, as a man, to countenance and promote your application."

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Amsterdam, February 27th, 1782.

Sir,

Friesland has at last taken the provincial resolution to acknowledge the independence, of which United America is in full possession. It is thought that several cities of Holland will soon follow this example, and some say it will be followed forthwith by the whole Republic. The first Burgomaster of this city has said, within a few days past, that in six weeks at farthest the independence of America would be acknowledged by all seven of the United Provinces; but I have no expectation of such haste. This government does nothing with such celerity.

By what I hear and read of their speculations, it seems to me, that the general sense is at present not to shackle themselves with any treaties either with France or Spain, nor to make any treaty of alliance with America, nor to make even a treaty of commerce with America, as yet for a considerable time, but for the several members of the Sovereignty, one after another, to acknowledge the Independence of America in the manner that Friesland has done; and for the States, the Prince and the Admiralties to exert themselves in preparing a fleet to command the North Sea, and wash out some of the stains in their character, which the English have so unjustly thrown upon it in their blood. There is a loud cry for vengeance, a stern demand of a fleet and battle with the English; and if the Court contrive to elude it, the Stadtholder will run a great risk of his power.

Sensible and candid men tell me, "we wait for Spain, and we wait for Russia. We will not make any treaty with you. It is of no great importance to us or to you. We see there is a tremendous power arising in the West. We cannot meddle much; but we will at all events be your good friends. Whoever quarrels with you, we will not."

In short I expect no treaty. I do not expect that our independence will be acknowledged by all the Provinces for a long time. Nevertheless, it appears to me of indispensable importance that a Minister should reside constantly here, vested with the same powers from Congress, with which they have

honored me; for which reason, having the offer of a large and elegant house in a fine situation, on a noble spot of ground at the Hague, at a very reasonable rate, I have, in pursuance of the advice of Mr Barclay, M. Dumas, and other friends, purchased it and shall remove into it on or before the first of May. In case I should be recalled, or obliged to go away upon other services, any Minister that Congress may appoint here in my room, will find a house furnished at the Hague ready for him.

The negotiation for the purchase was conducted secretly, but when it came to be known, I am informed, it gave a great deal of satisfaction in general.

To pay for it, I have applied all the money I had of M. de Neufville's loan, and some cash of my own, which I brought with me from America; and for the second payment, I must borrow of a friend, if Dr Franklin cannot furnish the money, for which indeed I do not love to ask him, he has so many demands upon him from every quarter. The house, including purchase charges, &c. will amount to about sixteen thousand guilders, ten thousand of which I paid yesterday. I have been obliged to take the title in my own name, but shall transfer it to the United States as soon as they are acknowledged and the account settled, provided Congress approve of the transaction; otherwise I shall take the risk upon myself, and sell it again. I shall live hereafter at a smaller rent than I ever did before, though in a house much superior.

I have the honor to be, &c.

JOHN ADAMS.

THE DUC DE LA VAUGUYON TO JOHN ADAMS.

Translation.

The Hague, March 4th, 1782.

Sir,

I have received the letter you did me the honor to address to me from Amsterdam, the 1st instant. I cannot answer it officially, in the capacity of King's Minister, not having any ulterior instructions on the subject to which it relates; but as you request my private opinion, I will give it to you with the greatest sincerity.

"After having seriously reflected on the views, which you have communicated to me, whatever inclination I may have to adopt your opinions, I cannot conceal from myself the inconveniences attending the plan, which you appear disposed to follow. I think and I believe, that I have sufficient reason to lead me to the conclusion, that it will retard rather than accelerate the ultimate success. I shall have the honor of explaining myself more fully by word of mouth, if, as M. Dumas gives me to hope, you visit the Hague in the course of a few days.

Receive, Sir, my renewed assurances of inviolable attachment, and profound respect, &c.

DE LA VAUGUYON.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, March 6th, 1782.

Dear Sir,

I have now before me your letters of the 15th, 17th, and 18th of October last. I am sorry to find that your health has suffered by the climate, but hope that the setting in of the winter has ere this re-established it. I am not directed to return any answer to your request to come home. Should I obtain the sense of Congress upon it before this is closed, it will be transmitted by this conveyance.

The success of the allied arms in America, the recovery of the Dutch Islands, and the avowed superiority of the French in the West Indies, have

so changed the face of affairs, that there is strong reason to believe negotiations will be set on foot this winter. Whether Britain is yet sufficiently humbled to desire peace is still doubtful; but whether she is or is not, she will probably negotiate, in which case your presence in Europe will be necessary; so that I believe you cannot at the most flatter yourself with anything more than a conditional leave to return.

Your statement of the decline of commerce in the United Provinces, agrees exactly with that which we have received from other hands. I lament that a nation, which has such important reasons for exertion, and such means in their power, should want vigor to call them forth. They must and will, however, sooner or later, be brought to it. A separate peace with England is now impossible, without degrading the character of the nation, and exposing it to greater evils than they are threatened with from England. Besides, what advantages are to be derived from such a peace? Can Britain restore her conquests, now in the hands of the French? Can she give back the plunder of St Eustatia, or the cargoes of the Indiamen divided among the captors? Can she afford them a compensation for the loss of last year's commerce? Or can she draw from her exhausted purse sufficient sums to defend the barrier against the troops of France, who would certainly avenge herself for such ingratitude?

The distress of the nation, then, must in the end force them to exertions, and however reluctantly they may go into the war, they must still go into it with vigor. But, Sir, though your letters detail the politics of the country, though they very ably explain the nature and general principles of the government, they leave us in the dark with respect to more important facts. They have not led us into the dock yards or arsenals; they have not told us what ships are prepared for sea, what are preparing, what the naval force will be this spring, or how it is to be applied. You have not yet introduced us to any of the leading members of the great council; you have not repeated your private conversations with them from which infinitely more is to be collected, than from all the pamphlets scattered about the streets of Amsterdam.

If they avoid your company and conversation, it is a more unfavorable symptom than any you have mentioned; and shows clearly that your public

character should have been concealed till your address had paved the way for its being acknowledged. If you have formed connexions with any of these people, and I cannot but presume that you have attended to so important a point, it will be very interesting to us to have their most striking features delineated, their sentiments with respect to us and to our opponents detailed, and the influence of each in the Assembly of the States. This will best acquaint us with the principles of the government, and direct our course towards them.

Among other things, I wish to know in what light they view our cause, as just or unjust? What influence they imagine our independence will have upon the general system of Europe, or their own States? What expectations they form from our commerce; whether the apprehension of its being altogether thrown into another channel, if infused with address, would not awaken them into action? What are their ideas of the comparative power of France and Britain, so far as it may affect them? Whether they have entered into any treaty with France since the war; if they have, what are its objects? If they have not, whether any such thing is in contemplation?

None of your letters takes the least notice of the French Ambassador at the Hague; is there no intercourse between you? If not, to what is it to be attributed? It appears to me, that our interests in Holland are similar to those of France. They are interested with us in forwarding our loans; in procuring a public acknowledgment of our independence; in urging the States to exertion. They have considerable influence on the government, as appears from the success that the loan, opened under their guarantee met with.

I must again, therefore, request you to spend much of your time at the Hague, that great centre of politics, to cultivate the acquaintance and friendship of the French Ambassador, to confer with him freely and candidly upon the state of our affairs; and by his means, to extend your acquaintance to the other representatives of crowned heads at the Hague. Your having no public character, together with our avowed contempt for rank and idle ceremony, will greatly facilitate your intercourse with them, and enable you to efface the ill impressions they daily receive of us from our enemies.

You see, Sir, I rely so much upon your good sense, as to write with freedom to you, and to mark out that line, which I conceive will best tend to render your mission useful. Should I suggest anything, which you may not approve, I should be happy to be informed of it, and the reasons upon which you act; so that I may be able fully to justify your measures, if, at any time, they should not be entirely approved on this side of the water. I communicated to Congress the letter of Dr Franklin, relative to your salary, in consequence of which, they have directed the superintendent of the finances to make provision for it in future.

We have no intelligence of importance at this time, but have our eyes fixed with anxious expectation on the West Indies, whence we hourly expect to hear the particulars of the engagement between the Count de Grasse and Hood; and the issue of the attack upon St Christopher's.

To the southward, things remain in the state they were, though we have some reason to believe the enemy entertain serious thoughts of withdrawing their troops from Charleston. Thirty empty transports have sailed from New York, with a view, as is said, to fetch them to that place, which will be the last they quit on the Continent. This we ought not to lament, since there is no situation better adapted to concentrate our force, and no part of America so easily defended with inferior force, as the ridge of hills which shut it in, at the same time that it is totally indefensible against a combined attack by land and water. So that we may reasonably hope, that York will again be fatal to the British arms. Every preparation is making to render it so.

I write nothing to you on the subject of a negotiation, conveyances to Dr Franklin being more easily obtained, as well as more secure. Every instruction on that head is sent to him, and will, of course, be communicated to you by the time you need it.

Nothing can be more pleasing, after the chaos into which our affairs were plunged, than the order which begins now to be established in every department. Paper ceases to be a medium, except the bank paper, which is in equal credit with specie; gold and silver have found their passage into the country; restrictions on commerce are removed; it flows in a thousand new channels, and has introduced the greatest plenty of every necessary, and even every luxury of life. Our harvests have been so abundant, that

provisions are in the utmost plenty. All the supplies of the army are procured by contracts, and the heavy load of purchasing and issuing commissaries is discharged. In short, our affairs wear such a face here, at present, that if we are only supported this year by foreign loans, we shall not be under the necessity of calling for them again. Would to heaven, that the present aspect of affairs might render your endeavors on this head successful. The use it would be of to the community, would amply compensate you for all the pain and distress, which your fruitless endeavors have occasioned you.

Among other articles of intelligence, I ought to inform you, that Burgoyne is exchanged, and that an exchange is now on foot for Cornwallis, in which it is designed that Mr Laurens shall be included. The British seem extremely anxious to have him, and to give him the command of their army in America. We, who know him best, have no objection to the measure. If they wish to carry on an active war, his precipitation will lead them into new difficulties. If to defend particular posts, they cannot put them into the hands of a man who knows less about the matter. His defence of York was a most contemptible series of blunders. We shall, besides these, derive two decisive advantages from his command; while a detestation of his cruelty has united the whigs, the tenth article of the capitulation at York has destroyed the confidence of the tories.

I have the honor to be, &c.

ROBERT R. LIVINGSTON

TO ROBERT R. LIVINGSTON.

Amsterdam, March 10th, 1782.

Sir,

By the address of the House of Commons to the King, his Majesty's answer, and the resolution of the House in consequence of it, "that he would be

highly criminal and an enemy to his country, who should attempt to carry on an offensive war in America against the sense of the House;" by the surrender of Minorca, and the disastrous face of British affairs in Ireland, as well as in the East and West Indies, and by the uncommon difficulties which my Lord North finds in raising the loan, I think we may fairly conclude that the United States are not to expect those horrid scenes of fire and sword in future, which they have so often seen heretofore.

Among the causes, which have operated to this effect, may be reckoned the late ordinance of Congress against British manufactures, and the prospect which has been opened to them, in Holland, of a sudden revival of the Dutch manufactures of Delft, Leyden, Utrecht, and indeed all the other cities of the Republic. The English have found all their artifices to raise mobs in their favor, in the Republic, to be vain; they found that there began to be an appearance of danger of popular tumults against them; they have seen their friends in this country driven out of all their strong holds, and forced to combat on the retreat; they have found that the American cause gained ground upon them every day, and that serious indications were given of a disposition to acknowledge our independence, for the sake of reviving their manufactures and extending their commerce, all which together has raised a kind of panic in the nation, and such a fermentation in Parliament, as has produced a formal renunciation of the principles of the American war.

The question now arises, what measures will the Cabinet of St James pursue? Will they agree to the Congress at Vienna? I believe not. Will they treat with the American peace Ministers now in Europe? I fancy not. They will more probably send agents to America, to propose some bad plan of American viceroys, and American nobility, and what not, except common sense and common utility.

I presume, with submission, however, that Congress will enter into no treaty or conference with them, but refer them to their Ministers in Europe.

France and Spain, I think, cannot mistake their interest and duty upon this occasion, which is, to strike the most decided strokes, to take the British armies in New York and Charleston prisoners. Without this, in all probability, before another revolution of the seasons, all the United States

will be evacuated, the British forces sent to Quebec, Halifax and the West India Islands, where it will cost France and Spain more time, blood, and treasure to dispose of them than it will this campaign to capture them in New York and Charleston.

With the greatest respect and esteem, I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Amsterdam, March 11th, 1782.

Sir,

The promise, which was made me by M. Bergsma, that I should have an answer from the Province of Friesland in three weeks, has been literally fulfilled. This gentleman, who, as well as his Province, deserves to be remembered in America, sent me a copy of the resolution in Dutch as soon as it passed. It is now public in all the gazettes, and is conceived in these terms;

"The requisition of Mr Adams, for presenting his letters of credence from the United States of North America to their High Mightinesses, having been brought into the Assembly and put into deliberation, as also the ulterior Address to the same purpose, with a demand of a categorical answer made by him, as is more amply mentioned in the minutes of their High Mightinesses of the 4th of May, 1781, and the 9th of January, 1782, whereupon, it having been taken into consideration, that the said Mr Adams would probably have some propositions to make to their High Mightinesses, and to present to them the principal articles and foundations upon which the Congress, on their part, would enter into a treaty of commerce and friendship, or other affairs to propose, in regard to which despatch would be requisite;

"It has been thought fit and resolved, to authorise the gentlemen, the Deputies of this Province at the generality, and to instruct them to direct things at the table of their High Mightinesses in such a manner, that the said Mr Adams be admitted forthwith as Minister of the Congress of North America, with further order to the said Deputies, that if there should be made, moreover, any similar propositions by the same, to inform immediately their Noble Mightinesses of them. And an extract of the present resolution shall be sent them for their information, that they may conduct themselves conformably.

"Thus resolved at the Province House, the 26th of February, 1782.

A. I. V. SMINIA."

This resolution has, by the Deputies of Friesland, been laid before their High Mightinesses at the Hague, and after deliberation, the Deputies of the Provinces of Guelderland, Zealand, Utrecht, and Groningen, have taken copies of it, to be communicated more amply to their constituents. In the States of the Province of Holland and West Friesland, the requisition of the 9th of January had been committed to the Committee of Grand Affairs, and taken into deliberation by the body of Nobles, and *ad referendum* by all the eighteen cities.

The sovereignty of the United States of America would undoubtedly be acknowledged by the Seven United Provinces, and their Minister received to an audience in state in the course of a few weeks, if the Regency of the city of Amsterdam had not visibly altered its sentiments, but all things are embroiled. The opposition to M. Van Berckel, and the glittering charms of an embassy to Petersburg or Vienna, which have been artfully displayed, as it is said, before the eyes of one man, and many secret reasonings of similar kind with others, have placed the last hopes of the English and Dutch Courts in a city, which had long been firm in opposition to the desires of both. The public in general, however, expect that the example of the Friesians will be followed. Wherever I go, everybody, almost, congratulates me upon the prospect of my being soon received at the Hague. The French gazettes all give their opinions very decidedly that it will be done, and the Dutch gazettes all breathe out, God grant that it may be so. I confess, however, that I doubt it, at least I am sure that a very little thing may

prevent it. It is certain, that the Court will oppose it in secret with all their engines, although they are already too unpopular to venture to increase the odium, by an open opposition.

Friesland is said to be a sure index of the national sense. The people of that Province have been ever famous for the spirit of liberty. The feudal system never was admitted among them; they never would submit to it, and they have preserved those privileges, which all others have long since surrendered. The Regencies are chosen by the people, and on all critical occasions the Friesians have displayed a resolution and an activity beyond the other members of the State. I am told that the Friesians never undertake anything but they carry it through, and, therefore, that I may depend upon it, they will force their way to a connexion with America. This may be the case if the war continues, and the enemies of Great Britain continue to be successful; but I have no expectations of anything very soon, because I have much better information than the public, of the secret intrigues both at the Hague and Amsterdam. Patience, however. We have nothing to fear. Courtiers and aristocrats, as well as the people, all say, "you know very well we love the Americans, and will ever be their good friends." This love and friendship consists, however, rather too much in mere words, "Be ye warmed," &c.; and a strong desire of gain by your commerce.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Amsterdam, March 19th, 1782.

Sir,

I have before transmitted to you the resolution of Friesland of the 26th of February, 1782, by which that Province acknowledged the independence of the United States, and directed their Minister to be received; but some

proceedings in Guelderland deserve to follow. In an extraordinary assembly of the county of Zutphen, held at Nimeguen the 23d of February, the following measures were taken.

"After the report of the committees of this Province to the generality, laid this day upon the table, relative to what passed in the precedent assembly, and after an examination of an extract of the register of the Resolutions of their High Mightinesses the States-General of the Low Countries, of the 9th of last month, in relation to the ulterior address of Mr Adams to the President of their High Mightinesses, concerning the presentation of his letters of credence to their High Mightinesses, in behalf of the United States of North America, for, and demanding a categorical answer, whereof the gentlemen, the Deputies of the respective Provinces, have taken copies, the Baron Robert Jasper Van der Capellan de Marsch, first by word of mouth, and afterwards in writing, proposed and insisted at the Assembly of this Quarter, that at present and without delay, we should make a point of deliberation, and that we should make upon the table the necessary overture, conceived more at length in the advice of this nobleman, inserted in these terms;

"Noble and Mighty Lords,

"The subscriber judges, upon good grounds, and without fear of being contradicted, that he is able to affirm, that it is more than time that we should give a serious attention to the offer and invitation, in every sense honorable and advantageous for the Republic, of friendship and reciprocal connexions with the Thirteen American Provinces, now become free at the point of the sword; in such sort that the categorical answer demanded by their Minister, Mr Adams, may become a subject of the deliberations of your High Mightinesses, and that they may decide as soon as possible concerning their respective interests. He judges that he ought not to have any further scruple in this regard, and the uncertain consequences of the mediation offered by Russia cannot, when certain advantages for this Republic are in question, hinder that out of regard for an enemy, with whom we (however salutary the views of her Imperial Majesty are represented) cannot make any peace at the expense of a negligence so irreparable; that the longer delay to unite ourselves to a nation already so powerful, will

have for its consequence, that our inhabitants will lose the means of extending, in a manner the most advantageous, their commerce and their prosperity; that by the rigorous prohibition to import English manufactures into America, our manufactures, by means of precautions taken in time, will rise out of their state of languor; and that, by delaying longer to satisfy the wishes of the nation, her leaders will draw upon them the reproach of having neglected and rejected the favorable offers of Providence; that, on the contrary, by adopting these measures, the essential interests of this unfortunate people will be taken to heart.

"The subscriber declaring, moreover, that he will abandon this unpardonable negligence of an opportunity favorable to the Republic, to the account of those whom it may concern; protesting against all the fatal consequences, that a longer refusal of these necessary measures will certainly occasion. Whereupon he demanded that for his discharge, this note should be inserted in the registers of the Quarter.

R. I. VAN DER CAPELLAN."

"This advice having been read, Jacob Adolf de Heeckeren d'Enghuisen, Counsellor, and First Master of Accounts in Guelderland, President at this time of the Assembly of the Quarter, represented to the said Robert Jasper Van der Capellan de Marsch, 'that although he must agree to the justice of all that he had laid down, besides several other reasons equally strong, which occurred to his mind, the deliberation upon the point in question appeared to him premature; considering that the Lords, the States of Holland, of West Friesland, and Zealand, as the principal commercial Provinces, who are directly interested, had not, nevertheless, as yet explained themselves in this regard; consequently, that it would not be so convenient for the States of this Dutchy and County, who are not interested in it, but in a consequential and indirect manner, to form the first their resolutions in this respect. For this reason he proposed to consideration, whether it would not be more proper to postpone the deliberations upon this matter to a future opportunity?

"Nevertheless, the beforementioned Robert Jasper Van der Capellan de Marsch, insisting that the voices should be collected upon the proposition and advice in question, and thereupon having deliberated, their Noble

Mightinesses have thought fit to resolve, that although the motives alleged by this nobleman in his advice, appear to merit a serious consideration, nevertheless, for the reasons before alleged, they judge that they ought to suspend the decision of it, until the commercial Provinces have formed their resolutions concerning it, and that upon the requisition of Robert Jasper Van der Capellan de Marsch, there be delivered to him an extract of the present, upon one as well as the other.

HERM. SCHOMAKER."

LEYDEN.

"To the Noble, Great, and Venerable Lords of the Grand Council of the city of Leyden.

"The undersigned, all manufacturers, merchants, and other traders, interested in the manufactures of this city, most respectfully give to understand, that it is a truth as melancholy as it is universally known, that the declension of the said manufactures, which all the well disposed citizens have remarked with the most lively grief, from the beginning of this century, has increased more and more for several years; and that this principal branch of the subsistence of the good citizens has fallen into such a state of languor, that our city, once so flourishing, so populous, so celebrated on account of its commerce, and of its traders, appears to be threatened with total ruin; that the diminution of its merchant houses, on one hand, and, on the other, the total loss or the sensible decrease of several branches of commerce, furnish an evident proof of it; which the petitioners could demonstrate by several examples, if there were need of them to convince your Noble and Grand Lordships, to whom the increase of the multitude of the poor; the deplorable situation of several families, heretofore in easy circumstances; the depopulation of the city, which we cannot observe without emotion, in the ruins of several streets, once neat and well inhabited, are fully known, will recollect no doubt upon this occasion, with grief, that this state of languor must appear so much the more desperate, if your Noble and Grand Lordships will take into

consideration, that in this decay of trades and manufactures, we find a new reason of their further fall, considering, that from the time, that there is not continual employment, and an uninterrupted sale, the workmen desert in such a manner, that when considerable commissions arrive, we cannot find capable hands, and we see ourselves entirely out of a condition to execute these orders.

"That the petitioners, with all the true friends of their country, extremely affected with this alarming situation of so rich a source of the public prosperity, have, indeed, sought the means of a remedy, in amending some defects from which it seemed to arise, at least in part; but that the measures taken in this view, as is well known to your Noble and Grand Lordships, have not had the desired effect; at least, that they have not produced a re-establishment so effectual, that we have been able to observe a sensible influence in the increase of the sales of the manufactures of Leyden, as appears most evidently by a comparison of the pieces fabricated here, which have been heretofore carried to the divers markets of this city, with those, which are carried there at this day; a comparison which a true citizen cannot consider without regret.

"That experience has also taught the petitioners, that the principal cause of the decay of the manufactures of Holland, particularly those of Leyden, is not to be found in any internal vice, either in the capacity or the economy of the inhabitants, but in circumstances, which have happened abroad, and to which it is, consequently, beyond the power of the petitioners, or of any citizen whatever, to provide a remedy; that we might cite, for example, the commerce of our manufactures with Dantzick, and, through that commercial city, with all Poland; a commerce which was carried on with success and advantage heretofore in our city, but is absolutely interrupted at this day, and vanished by the revolution, which has happened in that kingdom, and by the burthensome duties, to which the navigation of the Vistula has been subjected, but that, without entering into a detail of similar particular shackles, of which we might reckon a great number, the principal cause of the languishing state of our manufactures, consists in the jealous emulation of the neighboring nations, or rather of all the people of Europe, considering that in this age, the several Princes and governments, enlightened in the real sources of the public prosperity and the true interests

of their subjects, attach themselves with emulation, to revive in their kingdoms and states, the national industry, commerce, and navigation; to encourage them and promote them, even by exclusive privileges, or by heavy impositions upon foreign merchandises, which lend equally to the prejudice of the commerce and manufactures of our country, as your Noble and Grand Lordships will easily recollect the examples in the Austrian States and elsewhere; that in the midst of these powers and nations, emulous, or jealous, it is impossible for the citizens of our Republic, however superior their manufactures may be in quality and fineness, to resist a rivalry so universal, especially considering the dearness of labor, caused by that of the means of subsistence, which, in its turn, is a necessary consequence of the taxes and imposts, which the inhabitants of this State pay in a greater number and a higher rate, than in any other country, by reason of her natural situation, and of its means to support itself; so that, by the continual operation of this principal, but irreparable cause of decline, it is to be feared, that the impoverishment and the diminution of the good citizens increasing with want of employment, the Dutch nation, heretofore the purveyor of all Europe, will be obliged to content itself with the sale of its own productions in the interior of the country; (and how much does not even this resource suffer by the importation of foreign manufactures?) and that Leyden, lately so rich and flourishing, will furnish in its declining streets, desolated quarters, and its multitude disgraced with want and misery, an affecting proof of the sudden fall of countries formerly overflowing with prosperity.

"That, if we duly consider these motives, no citizen, whose heart is upright, (as the petitioners assure themselves) much less your Noble and Great Mightinesses, whose good dispositions they acknowledge with gratitude, will take it amiss, that we have fixed our eyes, in the present conjuncture of affairs, to inquire, whether these times might not furnish them some means of reviving the languishing manufactures of Leyden; and that, after a consideration well matured, they flatter themselves with a hope, (a hope, which unprejudiced men will not regard as a vain chimera) that in fact, by the present circumstances, there opens in their favor an issue for arriving at the re-establishment desired.

"That from the time, when the rupture between Great Britain and the Colonies upon the Continent of North America, appeared to be irreparable, every attentive spectator of this event perceived, or at least was convinced, that this rupture, by which there was born a Republic, as powerful as industrious, in the new world, would have the most important consequences for commerce and navigation, and that the other commercial nations of Europe would soon share in a very considerable commerce, whereof the kingdom of England had reserved to itself, until that time, the exclusive possession by its act of navigation, and by the other acts of Parliament prescribed to the colonies; that, in the time of it, this reflection did not escape your petitioners, and that they foresaw from that time the advantage, which might arise in the sequel from a revolution so important for the United Provinces in general, and for their native city in particular; but they should have been afraid to place this favorable occasion before the eyes of your Noble and Grand Lordships at an epoch, when the relations, which connected our Republic with Great Britain, her neighbors seemed to forbid all measures of this nature, or at least ought to make them be considered as out of season.

"That, in the meantime, this reason of silence has entirely ceased, by the hostilities, which the said kingdom has commenced against our Republic, under pretences, and in a manner, the injustice of which has been demonstrated by the supreme government of the State, with an irrefragable evidence in the eyes of impartial Europe; whilst the petitioners themselves, by the illegal capture of so large a number of Dutch ships, and afterwards by the absolute stagnation of navigation, and of voyages to foreign countries, have experienced in the most grievous manner, the consequences of this hostile and unforeseen attack, and feel them still every day, as is abundantly known to your Noble and Grand Lordships; that, since that epoch, a still more considerable number of workmen must have remained without employment, and that several fathers of families have quitted the city; abandoning to the further expense of the treasury of the poor, their wives and their children, plunged in misery.

"That during this rupture which has subsisted now for fifteen months, there has occurred another circumstance, which has encouraged the petitioners still more, and which to them appears to be of such a nature, that they

would be guilty of an excessive indifference, and an unpardonable negligence towards the city, towards the lower class of inhabitants, towards their own families, and towards themselves, if they should delay any longer to lay open their interests to your Noble and Grand Lordships, in a manner the most respectful, but the most energetic, to wit, that the United States of America have very rigorously forbid, by a resolution of Congress, agreed to in all the Thirteen States, the importation of all English manufactures, and, in general all the merchandises fabricated in the dominions, which yet remain to Great Britain; that the effect of this prohibition must necessarily be a spirit of emulation between all the commercial nations, to take place of the British merchants and manufacturers in this important branch of exportation, which is entirely cut off from them at this day; that, nevertheless, among all the nations, there is none which can entertain a hope better founded, and more sure in this respect, than the citizens of this free Republic, whether on account of the identity of religion, the fashion of living, the manners, whether because of the extent of its commerce, and the convenience of its navigation, but above all, by the reason of the activity and the good faith, which still at this day distinguishes (without boasting too much) the Dutch nation, above all other people; qualities, in consideration of which the citizens of United America are inclined, even, at present, to prefer, in equal circumstances, the citizens of our free States to every other nation.

"That, nevertheless, all relations and connexions of commerce between the two people cannot but be uncertain and fluctuating, as long as their offers and reciprocal engagements are not fixed and regulated by a Treaty of Commerce, that, at this day, if ever, (according to the respectful opinion of the petitioners) there exists a necessity the most absolute for the conclusion of a similar Treaty of Commerce, there, where we may say with truth, that there arises for the Republic, for our Leyden, especially, a moment, which, once escaped, perhaps never will return; since the National Assembly of Great Britain, convinced by a terrible and fatal experience, of the absolute impossibility of re-attaching United America to the British Crown, has laid before the Throne its desire to conclude a necessary peace with a people, free at this day at the price of their blood, so that, if this peace should be once concluded, the Dutch nation would see itself perhaps excluded from all advantages of commerce with this new Republic; or, at least would be

treated by her with an indifference, which the small value, which we should have put upon its friendship in former times, would seem to merit.

"That, supposing for a moment a peace between England and United America were not so near as we have reason to presume not without probability, there would be found, in that case, nations enough, who will be jealous of acquiring, after the example of France, the earliest right to commerce with a country, which, already peopled by several millions of inhabitants, augments every day in population, in a manner incredible; but, as a new people, unprovided as yet with several necessary articles, will procure a rich, even an immense outlet for the fabrics and manufactures of Europe. That, however manifest the interest, which the petitioners and all the citizens of Leyden would have in the conclusion of such a treaty of commerce, they would, however, have made a scruple to lay before the paternal eyes of your Noble and Grand Lordships the utility, or rather the necessity of such a measure in respect to them, if they could believe, that their particular advantage would be in anywise contrary to the more universal interests of all the Republic; but, as far as the petitioners may judge, as citizens, of the situation and the political existence of their country, they are ignorant of any reasons of this kind; but, on the contrary, they dare appeal to the unanimous voice of their fellow-citizens, well intentioned in the other cities and provinces, even of the Regents of the most distinguished, since it is universally known, that the Province of Friesland has already preceded the other confederates, by a resolution for opening negotiations with America; and that in other provinces, which have an interest less direct in commerce and manufactures, celebrated Regents appear to wait merely for the example of the commercial Provinces for taking a similar resolution.

"That the petitioners will not detain the attention of your Noble and Grand Mightinesses, by a more ample detail of the reasons and motives, since on one hand, they assure themselves that these reasons and motives will not escape the enlightened and attentive judgment of your Noble and Grand Lordships; and on the other, they know by experience that your Noble and Grand Lordships are disposed not to suffer any occasion to pass for promoting the well-being of their city, for advancing the prosperity of the

citizens, to render their names dear to their contemporaries, and make them blessed by posterity.

"In which firm expectation the petitioners address themselves to this Grand Council, with the respectful, but serious request, that it may please your Noble and Grand Lordships to direct by their powerful influence, things in such sort, that in the Assembly highly respected of their Noble and Grand Mightinesses, the Lords the States of Holland and West Friesland, there be opened deliberations, or if already opened, carried as speedily as possible to an effectual conclusion, such as they shall find the most proper for obtaining the lawful end, and fulfilling the desires of the petitioners, or as they shall judge conformable to the general interest."

AMSTERDAM.

"To their High Mightinesses, the States-General of the United Provinces,

"The undersigned, merchants, manufacturers, and other inhabitants living by commerce in this country, give respectfully to understand;

"That although the petitioners have always relied with entire confidence upon the administration and the resolutions, of your High Mightinesses, and it is against their inclinations to interrupt your important deliberations, they think, however, that they ought at this time to take the liberty and believe, as well-intentioned inhabitants, that it is their indispensable duty in the present moment, which is most critical for the Republic, to lay humbly before your High Mightinesses their interests.

"What good citizen in the Republic, having at heart the interest of his dear country, can dissemble, or represent to himself without dismay, the sad situation to which we are reduced by the attack, equally sudden, unjust, and perfidious of the English? Who would have dared two years ago to foretell, and, notwithstanding the dark clouds, which even then began to form themselves, could even have imagined that our commerce and our navigation, with the immense affairs which depend upon it, the support and the prosperity of this Republic, could have fallen and remained in such a

terrible decay? That in 1780 more than two thousand of Dutch vessels having passed the Sound, not one was found upon the list in 1781? That the ocean, heretofore covered with our vessels, shall see at present scarcely any, and that we may be reduced to see our navigation, formerly so much respected, and preferred by all the nations, pass entirely into the hands of other powers?

"It would be superfluous to endeavor to explain at length, the damages, the enormous losses, which our inhabitants experienced by the sudden invasion and pillage of the Colonies, and of their ships; disasters, which not only fall directly upon the merchant, but which have also a general influence, and make themselves felt in the most melancholy manner, even upon the lowest artisans and laborers, by the languor which they occasion in commerce. But how great soever they may be, it might perhaps be possible, by the aid of the paternal cares of your High Mightinesses, and by opposing a vigorous resistance to the enemy, already enervated, to repair in time all the losses, (without mentioning indemnifications,) if this stagnation of commerce was only momentary, and if the industrious merchant did not see beforehand the sources of his future felicity dried up. It is this gloomy foresight, which in this moment afflicts in the highest degree the petitioners; for it would be the height of folly and inconsideration to desire still to flatter ourselves, and to remain quiet in the expectation that after the conclusion of the peace, the business at present, turned out of its direction, should return entirely into this country, for experience shows the contrary, in a manner the most convincing, and it is most probable that the same nations, who are actually in possession of it, will preserve at that time the greatest part of it. The petitioners, terrified, throw their eyes round everywhere to discover new sources, capable of procuring them more success in future; they even flatter themselves, that they have found them upon the new theatre of commerce, which the United States of America offer them, a commerce of which in this moment, but in this moment only, they believe themselves to be in a condition, to be able to assure to themselves a good share, and the great importance of which, joined to the fear of seeing escape from their hands this only and last resource, has induced them to take the resolution to lay open respectfully their observations concerning this important object, to your High Mightinesses, with the earnest prayer, that you would consider them with a serious attention, and not interpret in ill part this measure of the

petitioners, especially, as their future well-being, perhaps even that of the whole Republic, depends on the decision of this affair.

"No man can call in question, that England has derived her greatest forces from her commerce with America. Those immense treasures, which that commerce has thrown into the coffers of the State, the uncommon prosperity of several of her commercial houses, the extreme reputation of her manufactures, the consumption of which, in quantities beyond all bounds, contributes efficaciously to their perfection, are convincing proofs of it. However it may be, and notwithstanding the supposition too lightly adopted, that we cannot imitate the British manufactures, the manufacture of painted linens of Rouen, those of wool of Amiens, of Germany, of Overysse, the pins of Zwoll, prove visibly, that all things need not be drawn from England; that, moreover, we are as well in condition, or shall be soon, to equal them in several respects.

"Permit us, High and Mighty Lords, to the end to avoid all further digression, to request, in this regard, the attention of your High Mightinesses to the situation of commerce in France at the beginning of the war. Continual losses had almost ruined it altogether, like ours; several of her merchants failed of capitals, and others wanted courage to continue their commerce; her manufactures languished; the people groaned; in one word, everything marked out the horrors of war; but, at present, her maritime towns overpeopled, have occasion to be enlarged; her manufactures, having arrived at a degree of exportation unknown before, begin to perfect themselves more and more; in such a degree, that the melancholy consequences of the war are scarcely felt in that kingdom. But since it is incontestible, that this favorable alteration results almost entirely from its commerce with America; that even this has taken place in time of war, which, moreover, is ever prejudicial, we leave it to the enlightened judgment of your High Mightinesses to decide, what it is we may expect from a commerce of this nature, even at present, but especially in time of peace.

"In the meantime, we have had the happiness to make a trial of short duration, it is true, but very strong in proportion to its continuance, in our Colony of St Eustatia, of the importance of the commerce, though not

direct, with North America. The registers of the West India Company may furnish proofs of it very convincing to your High Mightinesses. In fact, their productions are infinitely beneficial to our markets; whilst, on our side, we have to send them several articles of convenience and of necessity, whether from our country, or from the neighboring States of Germany. Moreover, several of our languishing manufactures, scattered in the Seven United Provinces, may perhaps be restored to their former vigor, by the means of bounties, or the diminution of imposts. The importance of manufactures for a country is sufficiently proved, by the considerable gratifications promised and paid by British policy for the encouragement of manufactures, which that kingdom has procured to itself, beyond even what had been expected.

"The petitioners know perfectly well the obstacles almost insurmountable, which always oppose themselves to the habitual use of new manufactures, although certainly better in quality; and they dare advance, without hesitation, that several of our manufactures are superior to those of the English. And for this end, a moment more favorable can never offer itself than the present, when, by a resolution of Congress, the importation of all the effects of the produce of Great Britain, and of her Colonies, is forbidden, which reduces the merchant and purchaser to the necessity of recurring to other merchandises, the use of which will serve to dissipate the prejudice conceived against them. It is not only the manufactures, High and Mighty Lords, which promise a permanent advantage to our Republic; the navigation will derive also great advantages; for it is very far from being true, (as several would maintain,) that the Americans, being once in the tranquil possession of their independence, would exercise themselves with vigor in these two branches, and that in the sequel, we shall be wholly frustrated of them. Whoever has the least knowledge of the country of America, and of its vast extent, knows that the number of inhabitants is not there in proportion; that the two banks of the Mississippi, even the most beautiful tract of this country, otherwise so fertile, remain still uncultivated; and as there are wanted so many hands, it is not at all probable to presume, that they will, or can occupy themselves to establish new manufactures, both in consequence of the new charges, which are thereto attached, and because of the shackles, which they would put upon the augmentation and exportation of their productions.

"It is then for this same reason, (the want of population,) that they will scarcely find the hands necessary to take advantage of the fisheries, which are the property of their own country; which will certainly oblige them to abandon to us the navigation of freight. There is not, therefore, any one of our Provinces, much less any one of our cities, which cannot enjoy the advantage of this commerce. No, High and Mighty Lords, the petitioners are persuaded, that the utility and the benefit of it will spread itself over all the Provinces and countries of the Generality. Guelderland and Overysse cannot too much extend their manufactures of wool, of mouleton, and other things; even the shoemakers of La Maire and of Lang Straat, will find a considerable opening; almost all the manufactures of Utrecht, and those of Leyden, will flourish anew; Haerlem will see revive its manufactures of stuffs, of laces, of ribbands, of twist (*de cordons*), at present in the lowest state of decay; Delft will see vastly augmented the sale of its (*porcelaine*) earthen ware, and Gouda, that of its tobacco pipes.

"However great may be the advantages foreseen by the petitioners from a legal commerce duly protected with America, their fear is not less, lest we should suffer to escape the happy moment of assuring to themselves, and to all the Republic, these advantages. The present moment would determine the whole. The English nation is weary of the war; and, as that people run easily into extremes, the petitioners are afraid, with strong probable appearances, that a complete acknowledgment of Independence will soon take place; above all, if the English see an opportunity of being able still to draw from America some conditions favorable for them, or, at least, something to our disadvantage. Ah! what is it which should instigate the Americans, in making peace and renewing friendship with Great Britain, to have any regard for the interests of our Republic? If England could only obtain for a condition, that we should be obliged to pay duties more burthensome for our vessels, this would be not only a continual and permanent prejudice, this would be sufficient to transmit to posterity, a lamentable proof of our excessive deference for unbridled enemies.

"The petitioners dare flatter themselves, that a measure, so frank in this Republic, may powerfully serve, for the acceleration of a general peace. A general ardor to extinguish the flames of war reigns in England; an upright

and vigorous conduct, on the part of this Republic, will contribute to accelerate the accomplishment of the wishes for peace.

"We flatter ourselves, High and Mighty Lords, that we have in this regard alleged sufficient reasons for immediate decision, and that we have so visibly proved the danger of delay, that we dare to hope, from the paternal equity of your High Mightinesses, a reasonable attention to the respectful proposition which we have made. It proceeds from no other motive than a sincere affection for the precious interests of our dear country, since we consider it as certain, that as soon as the step taken by us shall be known by the English, and that they shall have the least hope of preventing us, they will not fail, as soon as possible, to acknowledge American Independence. Supported by all these reasons, the petitioners address themselves to your High Mightinesses, humbly requesting that it may please your High Mightinesses, after the occurrences and affairs abovementioned, to take for the greatest advantage of this country, as soon as possible, such resolution as your High Mightinesses shall judge most convenient."

PETITION TO THE BURGOMASTERS AND REGENTS OF AMSTERDAM.

"The subscribers, all merchants and manufacturers of this city, with all due respect, give to understand, that the difference arisen between the kingdom of Great Britain and the United States of America, has not only given occasion for a long and violent war, but that the arms of America have covered themselves with a success so happy, that the Congress, assisted by the Courts of France and Spain, have so well established their liberty and independence, and reduced Great Britain to extremities so critical, that the House of Commons in England, notwithstanding all the opposition of the British Ministry, have lately formed the important resolution to turn the King from an offensive war against America, with no other design than to accelerate, if it is possible, a reconciliation with America.

"That, to this happy revolution in the dispositions of the English in favor of the liberty and independence of America, according to all appearances, the resolution taken by Congress towards the end of the last year, to wit, to forbid in all America the importation of British manufactures and

productions, has greatly contributed; a resolution, of which they perceive in England, too visibly, the consequences ruinous to their manufactures, trades, commerce, and navigation, to be able to remain indifferent in this regard; for all other commercial nations, who take to heart ever so little of their own prosperity, will apply themselves ardently to collect from it all the fruit possible. To this effect, it would be unpardonable for the business and commerce of this Republic in general, and for those of this city in particular, to suffer to escape this occasion, so favorable for the encouragement of our manufactures, so declined and languishing in the interior cities, as well as that of the commerce and of navigation in the maritime cities; or to suffer that other commercial nations, even with a total exclusion of the mercantile interests of this Republic, should profit of it, and this upon an occasion, when by reason of the war equally unjust and ruinous, in which the kingdom of Great Britain has involved this Republic, we cannot and ought not to have the least regard or condescension for that jealous State, being able to oblige this arrogant neighbor in the just fear of the consequences, which a more intimate connexion between this Republic and North America would undoubtedly have, to lay down the sooner her arms, and restore tranquillity to all Europe.

"That the petitioners, notwithstanding the inclination they have for it, ought not, nevertheless, to explain themselves further upon this object, nor make a demonstration in detail of the important advantages, which this Republic may procure itself by a connexion and a relation more intimate with North America, both because no well informed man can easily call the thing in question, but also because the States of Friesland themselves have very lately explained themselves in a manner so remarkable in this respect; and which is still more remarkable, because in very different circumstances, with a foresight, which posterity will celebrate by so much the more, as it is attacked in our time by ill designing citizens, the gentlemen, your predecessors, thought four years ago upon the means of hindering this Republic from being excluded from the business of the new world, and falling into the disagreeable situation in which the kingdom of Portugal is at present; considering, that, according to the information of your petitioners, the Congress has excluded that kingdom from all commerce and business with North America, solely because it had perceived that it suffered itself to be too strongly directed by the influence of the British Court. But this

example makes us fear with reason, that if the propositions made in the name of America by Mr Adams to this Republic, should remain as they still are, without an answer, or if, contrary to all expectation, they should be rejected, in that case, the Republic ought not to expect a better treatment.

"That, for these reasons and many others, the petitioners had flattered themselves, that we should long ago have opened negotiations, and a closer correspondence with the United States of America; but that this important work appeared to meet with difficulties with some, as incompatible with the accession of this Republic to the armed neutrality, and in course with the accepted mediation; whilst others cannot be persuaded to make this, so necessary step, in the opinion that we cannot draw any advantage, or, at least, of much importance, from a more strict connexion with America; reasons, according to the petitioners, the frivolty of which is apparent to every one, who is not filled with prejudice, without having occasion to employ many words to point it out; for as to the first point, supposing for a moment that it might be made a question, whether the Republic, after her accession to the armed neutrality before the war with England, could take a step of this nature without renouncing at the same time, the advantages of the armed neutrality, which it had embraced, it is, at least, very certain that every difficulty concerning the competency of the Republic to take a similar step, vanishes and disappears of itself at present, when it finds itself involved in a war with Great Britain, since from that moment she could not only demand the assistance and succor of all the confederates in the armed neutrality, but that thereby she finds herself authorised, for her own defence, to employ all sorts of means, violent and others, which she could not before adopt and put in use, while she was in the position of a neutral power, which would profit of the advantages of the armed neutrality.

"This reasoning, then, proves evidently that in the present situation of affairs, the Republic might acknowledge the independence of North America, and notwithstanding this, claim of full right the assistance of her neutral allies, at least, if we would not maintain one of the following absurdities; that, notwithstanding the violent aggression of England, in resentment of our accession to the armed neutrality, we dare not defend ourselves, until our confederates should think proper to come to our assistance; or, otherwise, that being attacked by the English, it should be

permitted us, conformably to the rights of the armed neutrality, to resist them in arms, either on the Doggerbank or elsewhere, but not by contracting alliances; which certainly do no injury or harm to the convention of the armed neutrality, notwithstanding even the small hope we have of being succored by the allies of the armed confederation.

"The argument of the mediation is still more contrary to common sense in this, that it supposes the Republic, by accepting the mediation, to have also renounced the employment of all the means, by way of arms, of alliances, or otherwise, which it must judge useful or necessary to annoy her enemy; a supposition, which certainly is destitute of all foundation, and which would reduce itself simply to a real suspension of hostilities on the part of the Republic only; to which the Republic can never have consented, neither directly, nor indirectly. Besides this last argument, the petitioners must still observe, in the first place, that by means of a good harmony and friendship with the United States of America, there will spring up, not only different sources of business for this Republic, founded solely on commerce and navigation, but, in particular, the manufactures and trade will assume a new activity in the interior cities, for they may consume the amount of millions of our manufactures, in that new country of so vast extent. In the second place, abstracted from all interests of commerce, the friendship or the enmity of a nation, which, after having made prisoners of two English armies, has known how to render herself respectable and formidable, if it were only in relation to the western possessions of this State, is not, and cannot be, in any manner indifferent for our Republic.

"In the last place, it is necessary, that the petitioners remark further in this respect, that several inhabitants of this Republic, in the present situation of affairs, suffer very considerable losses and damages, which might be wholly prevented, or in part, at least, hereafter, in case we should make with the United States of America, in relation to vessels and effects recaptured, a convention similar to that, which has been made with the Crown of France the last year; for, Venerable Regents, if a convention of this nature had been contracted in the beginning of this war, the inhabitants of the Republic would have already derived important advantages from it, considering, that several ships and cargoes, taken by the English from the inhabitants of this State, have fallen into the hands of the Americans, among others, two

vessels from the West Indies, richly loaded, and making sail for the ports of the Republic, and both estimated at more than a million of florins of Holland; which, captured by the English at the commencement of the year past, were carried into North America, where, after the capitulation of General Cornwallis, they passed from the hands of the English into others. That, although the petitioners are fully convinced, that the interests of the commerce of this common country, and of this city, have constantly, but especially in these last years, attracted, and still attract every day, a great part of the cares of the Venerable Regency; nevertheless, having regard to the importance of the affair, the petitioners have thought, that they could, and that they ought to take the liberty to address themselves with this petition to you, Venerable Regents, and to inform you, according to truth, that the moments are precious; that we cannot lose any time, how little soever it may be, without running the greatest risk of losing all; since, by hesitating longer, the Republic, according to all appearances, would not derive any advantage, not even more than it has derived from its accession to the armed neutrality, because in the fear of British menaces, we did not determine to accede to it, until the opportunity of improving the advantage of it was passed.

"For these causes, the petitioners address themselves to you, Venerable Regents, respectfully soliciting, that your efficacious influence may condescend, at the Assembly of their Noble and Grand Mightinesses, the States of this Province, to direct affairs in such a manner, that upon this important object there may be taken, as soon as possible, and, if possible, even during the continuance of this Assembly, a final and decisive resolution, such as you, Venerable Regents, and their Noble and Grand Mightinesses, according to their high wisdom shall judge the most convenient; and if, contrary to all expectation, this important operation may meet with any obstacle on the part of one or more of the confederates, that, in that case, you, Venerable Regents, in concert with the Province of Friesland, and those of the other Provinces, who make no difficulty to open a negotiation with America, will condescend to consider the means, which shall be found proper and convenient, to effectuate, that the commerce of this Province, as well as that of Friesland, and the other members adopting the same opinion, may not be prejudiced by any dilatory deliberations, nor

too late resolved for the conclusion of a measure, as important as necessary."

ROTTERDAM.

"The petition of the merchants, ensurers, and freighters of Rotterdam to the Regency of that city, gives to understand, in the most respectful manner; that it is sufficiently notorious, that the inhabitants of this Republic have, as well as any other nation, an interest, that they give us an opportunity to open a free correspondence with the inhabitants of America, by making a Treaty of Commerce, as Mr Adams has represented in his Memorial; to which they add, that the advantages, which must result from it, are absolutely the only means of reviving the fallen commerce of this country, for re-establishing the navigation, and for repairing the great damages, which the perfidious proceedings of the English have, for so many years, caused to the commercial part of this country.

"That, with all due respect, they represent to the Venerable Regency the danger we run in prolonging further the deliberations concerning the article of an alliance of commerce with North America; being, moreover, certain, that the interposition of this State cannot add anything more to the solidity of its independence; and that the English Ministry have even made to the Deputies of the American Congress propositions to what point they would establish a correspondence there to our prejudice, and thereby deprive the inhabitants of this country of the certain advantages, which might result from this reciprocal commerce; and that thus we ought not to delay one day, nor even one hour, to try all efforts, that we may pursue the negotiation offered by Mr Adams, and that we may decide finally upon it.

"Whereupon, the petitioners represent, with all the respect possible, but at the same time with the strongest confidence, to the venerable Regency of this city, that they would authorise and qualify the gentlemen, their Deputies at the Assembly of their Noble and Great Mightinesses, to the end, that in the name of this city they insist, in a manner the most energetic, at the Assembly of their Noble and Great Mightinesses, that the resolution demanded may be taken without the least delay, to the end, that on the part of this Province, it be effected at the Assembly of the States-General, that

the American Minister, Mr Adams, be, as soon as possible, admitted to the audience, which he has demanded, and that they take, with him, the determinations necessary to render free and open to the reciprocal inhabitants, the correspondence demanded."

The petitions of the merchants and manufacturers of Haerlem, Leyden and Amsterdam, which have been presented, on the 20th of March, to their High Mightinesses, were accompanied by another for the States of Holland and West Friesland, conceived in these terms;

"The subscribers, inhabitants of this country, merchants, manufacturers, and others, living by commerce, give, with all respect, to understand, that they, the petitioners, have the honor to annex hereto a copy of a petition presented by them to their High Mightinesses, the States-General of the United Low Countries. The importance of the thing which it contains, the considerable commerce, which these countries might establish in North America; the profits, which we might draw from it, and the importance of industry and manufactures, in the relation which they have with commerce in general, as well as the commerce of that extensive country; all these objects have made them take the liberty to represent, in the most respectful manner, this great affair for them, and for the connexions, which the petitioners may have in quality of manufacturers with the merchants; most humbly praying your Noble and Grand Mightinesses, for the acquisition of those important branches of commerce, and for the advantage of all the manufactures and other works of labor and traffic, to be so good as to take this petition, and the reasons which it contains, into your high consideration, and to favor it with your powerful support and protection, and by a favorable resolution, which may be taken at the Assembly of their High Mightinesses, to direct, on the part of this Province, things in such a manner, that, for obtaining this commerce, so desired and so necessary for this Republic, there be concerted such efficacious measures, as the high wisdom and patriotic sentiments of your Noble and Grand Mightinesses may find convenient for the well-being of so great a number of inhabitants, and for the prejudice of their enemies."

DORT.

At Dort, there has not been presented any petition; but in a letter written from that city, on the 20th of March, it is observed, "that the merchants, convinced by redoubled proofs of the zeal and of the efforts of their Regency for the true interests of commerce, had judged it necessary to present a petition, after the example of the merchants of other cities; that they had contented themselves with testifying verbally their desire, that there might be contracted connexions of commerce with the United States of America; that this step had been crowned with such happy success, that the same day, the 20th of March, it was resolved by the ancient council, to authorise their Deputies at the Assembly of Holland, to concur in every manner possible, that without delay, Mr Adams be acknowledged in his quality of Minister Plenipotentiary; that his letters of credence be accepted, and conferences opened upon this object."

Resolution of their Noble and Grand Mightinesses, the Lords the States of Holland and West Friesland, March 29th, 1782.

"It has been judged fit and resolved, that the affair be directed, on the part of their Noble and Grand Mightinesses at the Generality, to such an end, and that they there insist in the strongest manner, that Mr Adams be admitted and acknowledged, as soon as possible, by their High Mightinesses, as the Ambassador of the United States of America; and the Counsellor Pensionary is charged to give knowledge, under hand, to the said Mr Adams, of this resolution of their Noble and Grand Mightinesses."

ZWOLL, IN OVERYSSEL.

"The subscribers, all merchants, manufacturers, and factors of the city of Zwoll, give respectfully to understand; that every one of them in his private concerns, finds by experience, as well as the inhabitants of the Republic in general, the grievous effects of the decay into which the commerce and the manufactures of this country are fallen by little and little, and, above all, since the hostile attack of the kingdom of England against this State; that it being their duty to their country, as well as to themselves, to make use of all the circumstances, which might contribute to their re-establishment, the requisition made not long since, by Mr Adams to the Republic, to wit, to conclude a Treaty of Commerce with the United States of North America,

could not escape their attention; an affair, whose utility, advantage, and necessity, for these Provinces are so evident, and so often proved in an incontestible manner, that the petitioners will not fatigue your Noble Lordships, by placing them before you, nor the general interests of this city, nor the particular relations of the petitioners, considering that they are convinced in the first place, that England, making against the Republic the most ruinous war, and having broken every treaty with her, all kind of complaisance for that kingdom is unreasonable.

"In the second place, that America, which ought to be considered as become free at the point of the sword, being willing, by the prohibition of all the productions and manufactures of England, to break absolutely with that kingdom; it is precisely the time, and perhaps the only time, in which we may have a favorable opportunity to enter into connexion with this new and powerful Republic; a time which we cannot neglect, without running the greatest risk of being irrevocably prevented by the other powers, and even by England. Thus we take the liberty respectfully to supplicate your Noble Lordships, that having shown, for a long time, that you set a value upon the formation of alliances with powerful States, you may have the goodness, at the approaching Assembly of the Nobility, and of the cities forming the States of this Province, to redouble your efforts; to the end, that in the name of this country, it may be decided at the Generality, that Mr Adams be acknowledged, and the proposed negotiations opened as soon as possible."

AMSTERDAM.

Request of the Merchants, &c. to their Regency.

"Noble, Great, and Venerable Lords,

"It is for us a particular satisfaction to be able to offer to your Noble and Great Lordships, as heads of the Regency of this city, this well-intentioned request, that a multitude of our most respectable fellow-citizens have signed. It was already ready and signed by many, when we learnt, as well by the public papers, as otherwise, the propositions of a particular peace, with an offer of an immediate suspension of hostilities on the part of Great Britain, made to this State by the mediation of the Russian Ambassador.

This is the only reason why no immediate mention was made of it in the address itself; it is by no means the idea, that these offers would have made any impression upon the merchants, since we can, on the contrary, in truth, assure your Noble and Great Lordships, that the unanimous sentiment, nearly, of the exchange of Amsterdam, at least, as much as that interests it, is entirely conformable to that, which the merchants of Rotterdam have made known in so energetic a manner. That we have, consequently, the greatest aversion to like offers, as artful as dangerous, which being adopted, would very probably throw this Republic into other situations very embarrassing, the immediate consequences of which would be to ruin it utterly; whereas, on the other hand, these offers show, that we have only to deal with an enemy exhausted, that we could force to a general and durable peace in the end, by following only the example of France, Spain, and North America, and by using the means, which are in our own hands.

"It is improper for us, however, to enlarge further upon this project, important as it may be, being well assured, that your Noble and Grand Lordships see those grievous consequences more clearly than we can trace them.

"The merchants continue to recommend the commerce and the navigation to the constant care and protection of your Noble and Great Lordships, and to insist only, that in case, that these offers of the Court of England should be at any time the cause, that the affair of the admission of Mr Adams, in quality of Minister Plenipotentiary of the United States of North America, met with any difficulty or delay, on the part of the other confederates, that your Noble and Great Lordships, according to the second article of our requisition inserted in this request, would have the goodness to think upon measures, which would warrant this Province from the ruinous consequences of such a proceeding."

To this request was joined the address presented to the Burgomasters, and to the Council, which is of the following tenor.

"Noble, Great, Venerable, and Noble and Venerable Lords,

"The undersigned, merchants, citizens, and inhabitants of the city of Amsterdam, have learnt, with an inexpressible joy, the news of the

resolution taken the 28th of March last, by their Noble and Grand Mightinesses, the Lords, the States of Holland and West Friesland. Their Noble and Grand Mightinesses have, thereby, not only satisfied the general wishes of the greatest and best part of the inhabitants of this Province, but they have laid the foundations of ulterior alliances and correspondences of friendship and of good understanding with the United States of North America, which promise new life to the languishing state of our commerce, of our navigation, and of our manufactures.

"The unanimity, with which the resolution was decided in the Assembly of Holland, gives us a well founded hope, that the States of the other Provinces will not delay to take a similar resolution; whilst that the same unanimity fills with the most lively satisfaction the well-intentioned inhabitants of this city, and, without doubt, those of the whole country, in convincing them fully, that the union among the sage and venerable fathers of the country increases more and more; whilst that the promptness and activity, with which it has been concluded, make us hope, with reason, that we shall reap in time, from a step so important and so necessary for this Republic, the desired fruits. Who then can call in question or disavow, that the moment seems to approach nearer and nearer, when this Republic shall enter into new relations with a people, which finds itself in circumstances, which differ but little from those in which our ancestors found themselves two centuries ago, with a people, which conciliates, more and more, general affection and esteem?

"The conformity of religion and government, which is found between us and America, joined to the indubitable marks, that she has already long since given, of the preference, that she feels for our friendship, makes the undersigned not only suppose, but inspires them with a confidence even, that our connexions with her will be as solid as advantageous, and salutary to the interests of the two nations. The well-being and the prosperity, which will very probably result from them, the part which you, Noble, Great, Venerable, and Noble and Venerable Lords, have had in the conclusion of a resolution so remarkable; the conviction, that the Venerable Council of this city already had of it, upon the proposition of the Noble, Great, and Venerable Lords, almost consented to, before the request relative to this project, presented not long since to you, Noble, Great, and Venerable Lords,

had come to the knowledge of the Council; finally, the remembrance of that, which was done upon this matter in the year 1778, with the best intentions and most laudable views, finding itself at present crowned with an approbation as public as general, indispensably oblige the undersigned to approach you, Noble, Great, Venerable, and Noble and Venerable Lords, with this address, not only to congratulate them upon so remarkable an event, but to thank them at the same time, with as much zeal as solemnity, for all those well intentioned cares, and those well concerted measures, for that inflexible attachment, and that faithful adherence to the true interests of the country in general, and of this city in particular, which manifest themselves in so striking a manner in all the proceedings and resolutions of your Noble, Great, and Venerable Lordships, and of the Venerable Council of this city, and which certainly will attract the esteem and veneration of the latest posterity, when, comparing the annals and events of the present, with those of former times, it shall discover, that Amsterdam might still boast itself of possessing patriots, who dare sacrifice generously all views of private interest, of grandeur, and of consideration, to the sacred obligations, that their country requires of them.

"We flatter ourselves, Noble, Great, and Venerable, Noble and Venerable Lords, that the present public demonstration of our esteem and attachment will be so much the more agreeable, as it is more rare in our Republic, and perhaps even it is without example, and as it is more proper to efface all the odious impressions that the calumny and malignity of the English Ministry, not long ago so servilely adored by many, but whose downfall is at present consummated, had endeavored to spread, particularly a little before, and at the beginning of this war, insinuations, which have since found partizans in the United Provinces, among those who have not been ashamed to paint the Exchange of Amsterdam, (that is to say, the most respectable and the most useful part of the citizens of this city, and at the same time the principal support of the well-being of the United Provinces,) as if it consisted, in a great part, of a contemptible herd of vile interested souls, having no other object than to give loose to their avidity and to their desire of amassing treasures, in defrauding the public revenues, and in transporting contraband articles against the faith of treaties; calumniators, who have had at the same time, and have still, the audacity to affront the most upright Regency of the most, considerable city of the Republic, and to expose it to public contempt,

as if it participated by connivance and other ways, in so shameful a commerce; insinuations and accusations, which have been spread with as much falsehood as wickedness, and which ought to excite so much the more the indignation of every sensible heart, when one considers with all this, that not only the merchants of this city, but also those of the whole Republic, have so inviolably respected the faith of treaties, that, to the astonishment of every impartial man, one cannot produce any proofs, at least no sufficient proofs, that there has ever been transported from this country contraband merchandises; whilst that the conjuncture, in which imputations of this kind have been spread, rendered a like proceeding still more odious, seeing that one has done it at an epoch, when the commerce and navigation of Amsterdam, and of the whole Republic, would have experienced the first and almost the only attack of an unjust and perfidious ally, for want of necessary protection, upon which you, Noble, Great, Venerable, and Noble and Venerable Lords, have so often and so seriously insisted, even before the commencement of the troubles between Great Britain and the United States of North America; at an epoch, when the merchant, formed for enterprises, was obliged to see the fruit of his labor and of his cares, the recompense of his indefatigable industry, and the patrimony destined to his posterity, ravished from his hands by foreign violence, and unbounded rapacity; at an epoch, finally, when the wise and prudent politicians, who had exhausted themselves, and spared no pains for the public good, saw their patriotic views dissipate, and their projects vanish.

"Receive, then, Noble, Great, and Venerable, Noble and Venerable Lords, this solemn testimony of our lively gratitude, as graciously as it is sincere on our part; receive it as a proof of our attachment to your persons; an attachment which is not founded upon fear, nor an exterior representation of authority and grandeur, but which is founded upon more noble and immovable principles, those of esteem and respect, arising from a sentiment of true greatness and of generosity. Be assured, that when contemptible discord, with its odious attendants, artifice and imposture, could effectuate nothing, absolutely nothing, at the moment when the present war broke out, to prejudice in the least the fidelity of the citizens of the Amstel, or to shake them in the observation of their duties, the inconveniences and the evils that a war naturally and necessarily draws after it, will not produce the effect

neither; yes, we will submit more willingly to them, according as we shall perceive, that the means that God and nature have put into our hands, are more and more employed to reduce and humble a haughty enemy. Continue, then, Noble, Great, and Venerable, Noble and Venerable Lords, to proceed with safety in the road you follow, the only one, which in our opinion, can, under divine benediction, tend to save the country from its present situation. Let nothing divert or intimidate you from it; you have already surmounted the greatest difficulties and most poignant cares. A more pleasing perspective already opens.

"Great Britain, not long since so proud of its forces, that she feared not to declare war against an ancient and faithful ally, already repents of that unjust and rash proceeding; and succumbing under the weight of a war, which becomes more and more burdensome, she sighs after peace, whilst the harmony among the members of the supreme government of this country increases with our arms, according as your political system, whose necessity and salutary influence were heretofore less acknowledged, gains every day more numerous imitators. The resolution lately taken by the States of Friesland, and so unanimously adopted by our Province, furnishes, among many others, one incontestable proof of it, whilst that the naval combat, delivered last year on the Doggerbank, has shown to astonished Europe that so long a peace has not made the Republic forget the management of arms, but that on the contrary, it nourishes in its bosom warriors, who tread in the footsteps of the Tromps and Ruiters, from whose prudence and intrepidity, after a beginning so glorious, we may promise ourselves the most heroic actions; that their invincible courage, little affected with an evident superiority, will procure one day to our country an honorable and permanent peace, which, in eternizing their military glory, will cause the wise policy of your Noble, Great, and Venerable, Noble and Venerable Lordships to be blessed by the latest posterity."

LEYDEN.

"To the Noble, Great and Venerable Lords, the Great Council of the city of Leyden.

"The undersigned, manufacturers, merchants, and other traders, interested in the manufactures and fabrics of this city, give respectfully to understand; that a number of the undersigned, having taken on the 18th of March, the liberty to present to your Noble and Great Lordships a respectful request, 'to obtain the conclusion of connexions of commerce with United America,' the petitioners judge, that they ought to hold it for a duty, as agreeable as indispensable, to testify their sincere gratitude, not only for the gracious manner in which your Noble and Great Lordships have been pleased to accept that request, but also for the patriotic resolution, that your Noble and Great Lordships have taken upon its object; a resolution in virtue of which the city of Leyden (as the petitioners have the best reasons to suppose) has been one of the first cities of this province, from whose unanimous co-operation has originated the resolution of their Noble and Grand Mightinesses, of the date of the 28th of March last, 'to direct things on the part of their Noble and Grand Mightinesses in the Assembly of the States-General, and to make there the strongest instances, to the end that Mr Adams may be admitted and acknowledged, as soon as possible, by their High Mightinesses, as Minister of the United States of America.'

"That the petitioners regard, with all honest hearted citizens, the present epoch as one of the most glorious in the annals of our dear country, seeing that there has been manifested in a most signal manner, on one hand, a confidence the most cordial of the good citizens towards their Regents; on the other, a paternal attention and deference of the Regents to the respectful, but well founded prayers of their faithful citizens, and, in general, the most exemplary unanimity throughout the whole nation, to the confusion of those, who, having endeavored to sow the seeds of discord, would have rejoiced if they could say with truth, that a dissension so fatal had rooted itself to the ruin of the country and of the people.

"That the petitioners, feeling themselves penetrated with the most pleasing emotions by a harmony so universal, cannot pass over in silence the reflection, that your Noble and Great Lordships, taking a resolution the most favorable upon the said request, have discovered thereby, that they would not abandon the footsteps of their ancestors, who found in the united sentiments of magistrates and citizens, the resources necessary to resist a powerful oppressor, who even would not have undertaken that difficult, but

glorious task, if they had not been supported by the voice of the most respectable part of the nation.

"That, encouraged by this reflection, the petitioners assure themselves, that your Noble and Great Lordships will honor with the same approbation the step, which they take to day, to recommend to your Noble and Great Lordships, in a manner the most respectful, but at the same time the most pressing, the prompt and efficacious execution of the aforesaid resolution of their Noble and Grand Mightinesses, of the 28th of March last, with everything which depends thereon, a proceeding, which does not spring from a desire, on the part of the petitioners, to raise themselves above the sphere of their duties and vocations, or to interfere indiscreetly in the affairs of government; but only from a conviction, that it cannot but be agreeable to well-intentioned Regents (such as your Noble and Grand Lordships have shown yourselves by deeds to the good citizens) to see themselves applauded in their salutary efforts and patriotic designs, and supported against the perverse views and secret machinations of the ill disposed, who, however small their number, are always found in a nation.

"That, although the petitioners may be convinced, that their Noble and Grand Mightinesses, having taken a resolution so agreeable to all true patriots, will not neglect to employ means to carry it to an efficacious conclusion among the other confederates, and to procure to the good citizens the real enjoyment of the commerce with United America, they cannot, nevertheless, dissemble, that lately some new reasons have arisen, which make them conceive some fears respecting the prompt consummation of this desirable affair.

"That the probability of an offer of peace, on the part of Great Britain, to United America, whereof the petitioners made mention in their former request, having at present become a full certainty, by the revolution arrived since in the British Ministry, they have not learnt without uneasiness, the attempt made at the same time by the new Ministers of the Court of London, to involve this State in a negotiation for a separate peace, the immediate consequence of which would be (as the petitioners fear) a cessation of all connexions with the American Republic; whilst, that in the meantime, our Republic, deprived on the one hand of the advantages, which

it reasonably promises itself from those connexions, might, on the other, be detained by negotiations, spun out to a great length, and not effect till late, perhaps after the other belligerent powers, a separate peace with England.

"That, in effect, the difficulties which oppose themselves to a like partial pacification, are too multiplied for one to promise himself to see them suddenly removed; such as the restitution of the possessions taken from the State, and retaken from the English by France, a restitution, which thereby is become impracticable; the indemnification of the immense losses, that the unexpected and perfidious attack of England has caused to the Dutch nation in general, to the petitioners in particular; the assurance of a free navigation for the future, upon the principles of the armed neutrality, and conformably to the law of nations, the dissolution of the bonds, which, without being productive of any utility to the two nations, have been a source of contestations always springing up, and which in every war between Great Britain and any other power, have threatened to involve our Republic in it, or have, in effect, done it; the annihilation (if possible) of the act of navigation, an act, which carries too evident marks of the supremacy affected by England over all other maritime people, not to attract attention at the approaching negotiation of peace; finally, the necessity of breaking the yoke, that Great Britain would impose upon our flag, to make hers respected in the Northern Ocean, as the seat of her maritime empire; and other objects of this nature, which, as the petulant proceedings of the Court of London even have given rise to them, with certainty furnish matter for claims and negotiations.

"That, as by these considerations, even a speedy consummation of a separate peace with England is out of all probability, especially when one compares with them the dubious and limited manner in which it is offered; on the other hand, a general peace appears not to be so far distant, as that to obtain a more prompt reconciliation with England, the Republic has occasion to abandon its interests relative to North America, seeing that the British government has resolved, upon the request of the National Assembly, even to discontinue offensive hostilities against the new Republic, and that even under the present administration of the Ministers, it appears ready to acknowledge positively its independence; an acknowledgment, which, in removing the principal stumbling block of a

negotiation of a general peace, will pave the way to a prompt explication of all the difficulties between the belligerent powers.

"That the petitioners should exceed much the bounds of their plan, if they entered into a more ample detail of the reasons, which might be alleged upon this subject, and which certainly will not escape the political penetration of your Noble and Great Lordships; among others, the engagements recently entered into with the Court of France, and which will not be violated by our Republic, which acknowledges the sanctity of its engagements and respects them, but which will serve much rather to convince the Empress of Russia of the impossibility of entering, in the present juncture of affairs, into such a negotiation as the Court of London proposes, when it will not be permitted to presume, but that sovereign will feel herself the change of circumstances, which have happened with regard to America, since the offer of her mediation, by the revolution of the British Ministry; and that she ought even to regard a separate peace between our States and England, as the most proper mean to retard the general tranquillity, that she has endeavored to procure to all the commercial nations now at war.

"That, from these motives, the petitioners respectfully hope, that the aforesaid offer of England will occasion no obstacle, which may prevent, that the resolution of their Noble and Grand Mightinesses, to acknowledge the independence of North America, and to conclude with that power a treaty of commerce, may not have a prompt execution, nor that even one only of the other confederates will suffer itself to be diverted thereby, from the design of opening unanimously with this Province and the others, which have declared themselves conformably to Holland, negotiations with the United States, and of terminating them as soon as may be.

"That the favorable resolutions already taken for this effect in Zealand, Utrecht, Overysse, and at present (as the petitioners learn) in the Province of Groningen, after the example of Holland and Friesland, confirm them in that hope, and seem to render entirely superfluous a request, that in every other case the petitioners would have found themselves obliged to make with the commercial citizens of the other cities, to the end, that by the resistance of one Province, not immediately interested in commerce and

navigation, they might not be deprived of the advantages and of the protection, that the Sovereign Assembly of their proper Province had been disposed to procure them without that; but that to the end to provide for it, their Noble and Grand Mightinesses, and the States of the other Provinces, in this respect unanimous with them, should make use of the power, which belongs to each free State of our Federative Republic, at least in regard to treaties of commerce, of which there exists an example in 1649, not only in a treaty of redemption of the toll of the Sound, but also in a defensive treaty, concluded with the Crown of Denmark by the three Provinces of Guelderland, Holland, and Friesland.

"But as every apprehension of a similar dissension among the members of the confederation appears at present absolutely unseasonable, the petitioners will confine themselves rather to another request, to wit, that after the formation of connexions of commerce with North America, the effectual enjoyment of it may be assured to the commercial citizens of this country by a sufficient protection of the navigation, seeing, that without the protection of the navigation, the conclusion even of such a treaty of commerce would be absolutely illusory; that since a long time, especially last year, the petitioners have tasted the bitter fruits of the defenceless state in which the Dutch flag has been incessantly found, as they have already said, conformably to the truth, in their first request, 'that by the total stagnation of the navigation and of expeditions, they have felt in the most painful manner the effects of the hostile and unforeseen attack of Great Britain, and that they feel them still every day;' that in the meantime this stagnation of commerce, absolutely abandoned to the rapacity of an enemy, greedy of pillage, and destitute of all protection whatsoever, has appeared to the petitioners, as well as to all the other commercial inhabitants, yes, even to all true citizens, so much the more hard and afflicting, as they not only have constantly contributed with a good heart all the public imposts, but that, at the time even that commerce was absolutely abandoned to itself, and deprived of all safeguard, it supported a double charge to obtain that protection, which it has never enjoyed, seeing that the hope of such a protection, (the Republic not being entirely without maritime force) has appeared indeed more than once, but has always vanished in the most unexpected manner, by accidents and impediments, which if they have given rise, perhaps wrongfully, to discontent and to distrust among the good

citizens, will not, nevertheless, be read and meditated by posterity, without surprise.

"That, without intention to legitimate in any fashion the suspicions arising from this failure of protection, the petitioners believe themselves, nevertheless, with all proper respect, warranted in addressing their complaints on this head to the bosoms of your Great and Noble Lordships, and (seeing the commerce with North America cannot subsist without navigation, no more than navigation without a safeguard) of reckoning upon the active direction, the useful employment, and prompt augmentation of our naval forces, in proportion to the means, which shall be the most proper effectually to secure, to the commerce of this Republic, the fruits of its connexions with United North America.

"For which reasons, the petitioners, returning to your Noble and Great Lordships their solemn thanks for the favorable resolution taken upon their request, the 18th of March last, address themselves anew to them on this occasion, with the respectful prayer, that it may graciously please your Noble and Great Lordships to be willing to effectuate, by your powerful influence, whether in the illustrious Assembly of their Noble and Grand Mightinesses, whether among the other confederates, or elsewhere, there, and in such manner as your Noble and Great Lordships shall judge the most proper, that the resolution of their Noble and Grand Mightinesses, of the date of the 28th of March last, for the admission of Mr Adams in quality of Minister of the United States of America, be promptly executed, and that the petitioners, with the other commercial citizens, obtain the effectual enjoyment of a treaty of commerce with the said Republic, as well by the activity of the marine of the State, and the protection of the commerce and of the navigation, as well as by all other measures, that your Noble and Great Lordships, with the other members of the sovereign government of the Republic, shall judge to tend to the public good, and to serve to the prosperity of the dear country, as well as to the maintenance of its precious liberty."

UTRECHT, APRIL 28TH, 1782.

Wednesday last, was presented to their Noble Mightinesses, the Lords the States of this Province, the following address of thanks, signed by a considerable number of merchants, &c. of this city.

"To their Noble Mightinesses, the Lords the States of the country of Utrecht.

"The undersigned, manufacturers, merchants, and other traders of this city give, with due respect, to understand, that the petitioners, placing their confidence in the interest that your Noble Mightinesses have always appeared to take in the advancement of manufactures and commerce, have not been at all scrupulous to recommend to the vigilant attention of your Noble Mightinesses, the favorable occasion that offers itself in this moment, to revive the manufactures, the commerce, and the trade, fallen into decay in this city and Province, in case that your Noble Mightinesses acknowledged, in the name of this city, Mr Adams as Minister Plenipotentiary of the United States of North America, to the end that there might be formed with them a treaty of commerce for this Republic. As the petitioners founded themselves thus upon the intimate sentiment of the execution of that, which your Noble Mightinesses judged proper to the advancement of the well-being of the petitioners and of their interests, the petitioners have further the satisfaction of feeling the most agreeable proofs of it, when your Noble Mightinesses, in your last Assembly, resolved unanimously to consent, not only to the admission of the said Mr Adams, in quality of Minister of the Congress of North America, but to authorise the gentlemen, the Deputies of this Province at the Generality, to conform themselves, in the name of this Province, to the resolutions of the Lords, the States of Holland and West Friesland, and of Friesland, and doing this, to consent to the acknowledgment and admission of Mr Adams as Minister of the United States of North America; or, as that resolution furnishes the proofs the best intentioned, the most patriotic for the advancement of that, which may serve to the well-being, to the encouragement of manufactures, of commerce, and of decayed trades, as well in general, as of this city and Province in particular, and which had been so ardently desired; the petitioners think themselves indispensably obliged to testify, in the most respectful manner, their gratitude for it, to your Noble Mightinesses.

"The petitioners find themselves absolutely unable to express in words, the general satisfaction that this event has caused, not only to them, but also to the great and small of this Province; joined to the confirmation of the perfect conviction, in which they repose themselves also for the future upon the paternal care of your Noble Mightinesses, that the consummation of the desired treaty of commerce with the Americans may be soon effected. The petitioners attest by the present before your Noble Mightinesses, their solemn and well meant gratitude, that they address also at the same time to your Noble Mightinesses, as the most sincere marks of veneration and respect for the persons and the direction of public affairs of your Noble Mightinesses; wishing that Almighty God may deign to bless the efforts and the councils of your Noble Mightinesses, as well as those of the other confederates; that, moreover, this Province, and our dear country, by the propositions of an armistice and that which depends upon it, should not be involved in any negotiations for a particular peace with our perfidious enemy, but that we obtain no other peace than a general peace, which (as your Noble Mightinesses express yourselves in your resolution) may be compatible with our honor and dignity; and serve, not only for this generation, but also for the latest posterity, as a monument of glory, of eternal gratitude to, and esteem for, the persons and public administration of the present time."

I have the honor to be, &c.

JOHN ADAMS.

**TO PETER VAN BLEISWICK, GRAND PENSIONARY OF
HOLLAND.**

Amsterdam, March 31st, 1782.

Sir,

I have received the letter, which you did me the honor to write me on the 30th, enclosing the resolution of the States of Holland and West Friesland, taken on the 28th of this month, upon the subject of my admission to the audience demanded on the 4th of May, and 9th of January last.

I am very sensible of the honor that is done me, by this instance of personal attention to me in their Noble and Grand Mightinesses, and I beg of you, Sir, to accept of my acknowledgments for the obliging manner, in which you have communicated to me their resolution.

But my sensibility is above all affected by those unequivocal demonstrations, which appear everywhere, of national harmony and unanimity in this important measure; which cannot fail to have the happiest effects in America, and in all Europe; even in England itself, as well as in this Republic, and which there is great reason to hope, will forcibly operate towards the accomplishment of a general peace.

In the pleasing hope, that all the other Provinces will soon follow the examples of Holland and Friesland, I have the honor to be, &c.

JOHN ADAMS.

TO THE DUC DE LA VAUGUYON.

Amsterdam, April 10th, 1782.

Sir,

I have this moment received the letter, which you did me the honor to write me yesterday, with a letter enclosed from Dr Franklin.

The approbation of the Count de Vergennes is a great satisfaction to me, and I shall be very happy to learn from you, Sir, at Amsterdam, the details you allude to.

I have a letter from Digges, at London, 2d of April, informing me, that he had communicated what had passed between him and me, to the Earl of Shelburne, who did not like the circumstance, that everything must be communicated to our allies. He says, that Lord Carmaerthen is to be sent to the Hague, to negotiate a separate peace with Holland. But, according to all appearances, Holland, as well as America, will have too much discretion to enter into any separate negotiations.

I have the pleasure to inform you, that Gillon has arrived at the Havana, with five rich Jamaica ships as prizes. M. Le Roy writes, that the English have evacuated Charleston.

The enclosed fresh *requête* of Amsterdam will show your Excellency, that there is little probability of the Dutchmen being deceived into separate conferences.

With the most profound respect and esteem, I have the honor to be, Sir, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Amsterdam. April 19th, 1782.

Sir,

I have the honor to transmit you the following Resolutions of the respective Provinces, relative to my admission in quality of Minister Plenipotentiary, together with two Resolutions of their High Mightinesses, upon the same subject, all in the order in which they were taken.

FRIESLAND.

Extract from the Register Book of the Lords, the States of Friesland.

"The requisition of Mr Adams, for presenting his letter of credence from the United States of North America to their High Mightinesses, having been brought into the assembly and put into deliberation, as also the ulterior address to the same purpose, with a demand of a categorical answer, made by him, as is more amply mentioned in the minutes of their High Mightinesses, of the 4th of May, 1781, and the 9th of January, 1782, whereupon, it having been taken into consideration, that the said Mr Adams would have, probably, some propositions to make to their High Mightinesses, and to present to them the principal articles and foundations, upon which the Congress, on their part, would enter into a treaty of commerce and friendship, or other affairs to propose, in regard to which, despatch would be requisite,

"It has been thought fit and resolved, to authorise the gentlemen, the Deputies of this Province at the Generality, and to instruct them to direct things, at the table of their High Mightinesses, in such a manner that the said Mr Adams be admitted forthwith, as Minister of the Congress of North America, with further order to the said Deputies, that if there should be made, moreover, any similar propositions by the same, to inform immediately their Noble Mightinesses of them. And an extract of the present Resolution shall be sent them for their information, that they may conduct themselves conformably.

"Thus resolved, at the Province House, the 26th of February, 1782.

"Compared with the aforesaid book, to my knowledge.

A. J. V. SMINIA."

HOLLAND AND WEST FRIESLAND.

Extract of the Resolutions of the Lords, the States of Holland and West Friesland, taken in the assembly of their Noble and Grand Mightinesses. Thursday, March 28th, 1782.

"Deliberated by resumption upon the address and the ulterior address of Mr Adams, made the 4th of May, 1781, and the 9th of January, 1782, to the President of the States-General, communicated to the assembly, the 9th of May, 1781, and the 22d of last month, to present his letters of credence, in the name of the United States of America, to their High Mightinesses, by which ulterior address the said Mr Adams has demanded a categorical answer, that he may acquaint his constituents thereof; deliberated also upon the petitions of a great number of merchants, manufacturers, and others, inhabitants of this Province interested in commerce, to support their request presented to the States-General the 20th current, to the end that efficacious measures might be taken to establish a commerce between this country and North America, copies of which petitions have been given to the members the 21st; it has been thought fit, and resolved, that the affairs shall be directed, on the part of their Noble and Grand Mightinesses, at the Assembly of the States-General, and that there shall be there made the strongest instances that Mr Adams be admitted and acknowledged, as soon as possible, by their High Mightinesses, in quality of Envoy of the United States of America. And the Counsellor Pensionary has been charged to inform under his hand the said Mr Adams of this Resolution of their Noble and Grand Mightinesses."

ZEALAND.

Extract of the Resolutions of their High Mightinesses the States-General of the United Provinces. Monday, April 8th, 1782.

"The Deputies of the Province of Zealand have brought to the Assembly and caused to be read there the Resolution of the States of the said Province, their principals, to cause to be admitted as soon as possible, Mr Adams, in quality of Envoy of the Congress of North America in the following terms.

"Extract from the Register of the Resolutions of the Lords the States of Zealand. April 4th, 1782.

"It has been thought fit and ordered, that the gentlemen, the ordinary Deputies of this Province at the Generality, shall be convoked and authorised, as it is done by the present, to assist in the direction of affairs at the Assembly of their High Mightinesses, in such a manner, that Mr Adams may be acknowledged as soon as possible, as Envoy of the Congress of North America; that his letters of credence be accepted, and that he be admitted in that quality according to the ordinary form, enjoining further upon the said Lords, the ordinary Deputies, to take such propositions as should be made to this Republic, by the said Mr Adams, for the information and the deliberation of their High Mightinesses, to the end to transmit them here as soon as possible. And an extract of this Resolution of their Noble Mightinesses shall be sent to the gentlemen, their ordinary Deputies, to serve them as an instruction.

J. M. CHALMERS."

"Upon which, having deliberated, it has been thought fit and resolved to pray, by the present, the gentlemen, the Deputies of the Provinces of Guelderland, Utrecht, and Groningen, and Ommelanden, who have not as yet explained themselves upon this subject, to be pleased to do it, as soon as possible."

OVERYSSEL.

Extract from the Register of the Resolutions of the Equestrian order, and of the cities composing the States of Overijssel. Zwoll, 5th of April, 1782.

"The Grand Bailiff de Sallande, and the other commissions of their Noble Mightinesses for the affairs of finance, having examined, conformably to their commissorial resolution of the 3d of this month, the addresses of Mr Adams, communicated to the Assembly the 4th of May, 1781, and the 22d of February, 1782, to present his letters of credence to their High Mightinesses, in the name of the United States of North America; as well as the resolution of the Lords, the States of Holland and West Friesland, dated

the 28th of March, 1782, carried the 29th of the same month, to the Assembly of their High Mightinesses, for the admission and acknowledgment of Mr Adams, have reported to the Assembly, that they should be of opinion, that the gentlemen, the Deputies of this Province in the States-General, ought to be authorised and charged to declare in the Assembly of their High Mightinesses, that the Equestrian Order and the cities judge, that it is proper to acknowledge, as soon as possible, Mr Adams, in quality of Minister of the United States of North America, to their High Mightinesses. Upon which, having deliberated, the Equestrian Order and the cities have conformed themselves to the said report.

"Compared with the aforesaid Register.

DERK DUMBAR."

GRONINGEN.

Extract from the Register of the Resolutions of their Noble Mightinesses, the States of Groningen and Ommelanden. Tuesday, 9th of April, 1782.

"The Lords, the States of Groningen and Ommelanden, having heard the report of the Gentlemen, the Commissioners for the Petitions of the Council of State, and the Finances of the Province, and having carefully examined the demand of Mr Adams, to present his letters of credence from the United States of North America, to their High Mightinesses, have, after deliberation upon the subject, declared themselves of opinion, that in the critical circumstances, in which the Republic finds itself at present, it is proper to take, without loss of time, such efficacious measures as may not only repair the losses and damages, that the kingdom of Great Britain has caused, in a manner, so unjust, and against every shadow of right, to the commerce of the Republic, as well before as after the war, but particularly such as may establish the free navigation and the commerce of the Republic, for the future, upon the most solid foundations, as may confirm and re-assure it by the strongest bonds of reciprocal interest, and that, in consequence, the Gentlemen, the Deputies at the Assembly of their High Mightinesses, ought to be authorised on the part of the Province, as they are by the present, to admit Mr Adams to present his letters of credence from

the United States of North America, and to receive the propositions, which he shall make, to make report of them to the Lords, the States of this Province.

E. LEWE, *Secretary*."

The States-General, having deliberated the same day upon this Resolution, have resolved, "that the Deputies of the Province of Guelderland, which has not yet declared itself upon the same subject, should be requested to be pleased to do it as soon as possible."

UTRECHT.

Extract of the Resolutions of their Noble Mightinesses the States of the Province of Utrecht. 10th of April, 1782.

"Heard the report of M. de Westerveld, and other Deputies of their Noble Mightinesses for the Department of War, who, in virtue of the commissorial resolutions, of the 9th of May, 1781, the 16th of January, and the 20th of March, of the present year, 1782, have examined the resolution of their High Mightinesses of the 4th of May, 1781, containing an overture, that the President of the Assembly of their High Mightinesses had made, 'that a person, styling himself J. Adams, had been with him, and had given him to understand, that he had received letters of credence for their High Mightinesses from the United States of North America, with a request, that he would be pleased to communicate them to their High Mightinesses,' as well as the resolution of their High Mightinesses, of the 9th of January, containing an ulterior overture of the President, 'that the said Mr Adams had been with him, and had insisted upon a categorical answer, whether his said letters of credence would be accepted, or not;' finally, the resolution of their High Mightinesses, of the 5th of March last, with the insertion of the resolution of Friesland, containing a proposition 'to admit Mr Adams in quality of Minister of the Congress of North America.'

"Upon which, having deliberated, and remarked, that the Lords, the States of Holland and West Friesland, by their resolution, carried the 29th of March to the States-General, have also consented to the admission of the

said Mr Adams, in quality of Minister of the Congress of North America, it has been thought fit, and resolved, that the Gentlemen, the Deputies of this Province in the States-General, should be authorised, as their Noble Highnesses authorise them by the present, to conform themselves, in the name of this Province, to the resolution of the Lords, the States of Holland and West Friesland, and of Friesland, and to consent, by consequence, that Mr Adams be acknowledged and admitted as Minister of the United States of North America, their Noble Mightinesses being at the same time of opinion, that it would be necessary to acquaint her Majesty, the Empress of Russia, and the other neutral powers, with the resolution to be taken by their High Mightinesses, upon this subject, in communicating to them (as much as shall be necessary) the reasons, which have induced their High Mightinesses to it, and in giving them the strongest assurances, that the intention of their High Mightinesses is by no means to prolong thereby the war, which they would have willingly prevented and terminated long since; but that, on the contrary, their High Mightinesses wish nothing with more ardor, than a prompt re-establishment of peace, and that they shall be always ready, on their part, to co-operate in it, in all possible ways, and with a suitable readiness, so far as that shall be any way compatible with their honor and their dignity. And to this end, an extract of this shall be carried by missive to the Gentlemen, the Deputies at the Generality."

GUELDERLAND.

Extract from the *Précis* of the ordinary Diet, held in the city of Nimeguen in the month of April, 1782. Wednesday, 17th of April, 1782.

"The requisition of Mr Adams to present his letters of credence to their High Mightinesses, in the name of the United States of North America having been brought to the Assembly and read, as well as an ulterior address made upon this subject, with the demand of a categorical answer by the said Mr Adams, more amply mentioned in the registers of their High Mightinesses, of the date of the 4th of May, 1781, and the 9th of January, 1782, moreover, the resolutions of the Lords, the States of the six other Provinces, carried successively to the Assembly of their High Mightinesses, and all tending to admit Mr Adams, in quality of Envoy of the United States of North America, to this Republic; upon which their Noble Mightinesses,

after deliberation, have resolved to authorise the Deputies of this Province, as they authorise them by the present, to conform themselves in the name of this Province, to the resolution of the Lords, the States of Holland and West Friesland, and to consent, by consequence, that Mr Adams may be acknowledged and admitted, in quality of Envoy of the United States of North America, to this Republic. In consequence, an extract of the present shall be sent to the said Deputies, to make, as soon as possible, the requisite overture of it to the Assembly of their High Mightinesses.

J. INDE BETOUW."

This resolution of Guelderland was no sooner remitted, on the 19th, to their High Mightinesses, than they took immediately a resolution conformable to the unanimous wish of the Seven Provinces, conceived in the following terms;

"Extract from the register of the resolutions of their High Mightinesses, the States-General of the United Provinces. Friday, April 19th, 1782.

"Deliberated by resumption upon the address and the ulterior address, made by Mr Adams, the 4th of May, 1781, and the 9th of January of the current year, to the President of the Assembly of their High Mightinesses, to present to their High Mightinesses his letters of credence, in the name of the United States of North America, and by which ulterior address the said Mr Adams has demanded a categorical answer, to the end to be able to acquaint his constituents thereof; it has been thought fit and resolved, that Mr Adams shall be admitted and acknowledged in quality of Envoy of the United States of North America to their High Mightinesses, as he is admitted and acknowledged by the present."

W. BOREEL.

"Compared with the aforesaid register.

H. FAGEL."

THE FORMAL RESOLUTION OF THEIR HIGH MIGHTINESSES.

Extract from the register of the resolutions of their High Mightinesses, the States-General of the United Provinces. Monday, April 22d, 1782.

"M. Boreel, who presided in the Assembly the last week, has reported to their High Mightinesses and notified them, that Mr John Adams, Envoy of the United States of America, had been with him last Saturday, and had presented to him a letter from the Assembly of Congress, written at Philadelphia, the 1st of January, 1781, containing a credence for the said Mr Adams, to the end to reside in quality of its Minister Plenipotentiary near their High Mightinesses. Upon which having deliberated, it has been thought fit and resolved, to declare by the present, that the said Mr Adams is agreeable to their High Mightinesses; that he shall be acknowledged in quality of Minister Plenipotentiary, and that there shall be granted to him an audience, or assigned Commissioners, when he shall demand it. Information of the above shall be given to the said Mr Adams by the agent, Van der Burch de Spieringshoek.

W. VAN CITTERS.

"Compared with the aforesaid register.

H. FAGEL."

TO ROBERT R. LIVINGSTON.

The Hague, April 22d, 1782.

Sir,

On the 22d day of April I was introduced, by the Chamberlain, to His Most Serene Highness, the Prince of Orange.

Knowing that his Highness spoke English, I asked his permission to speak to him in that language, to which he answered, smiling, "if you please, Sir."

Although French is the language of the Court, he seemed to be pleased, and to receive as a compliment my request to speak to him in English.

I told him I was happy to have the honor of presenting the respects of the United States of America, and a letter of credence from them to his Most Serene Highness, and to assure him of the profound veneration in which the House of Orange had been held in America, even from its first settlement, and that I should be happier still to be the instrument of further cementing the new connexions between two nations, professing the same religion, animated by the same spirit of liberty, and having reciprocal interests both political and commercial, so extensive and important; and that in the faithful and diligent discharge of the duties of my mission, I flattered myself with hopes of the approbation of His Most Serene Highness.

His Highness received the letter of credence, which he opened and read. The answer that he made to me was in a voice so low and so indistinctly pronounced, that I comprehended only the conclusion of it, which was, that "he had made no difficulty against my reception." He then fell into familiar conversation with me, and asked me many questions about indifferent things, as is the custom of Princes and Princesses upon such occasions. How long I had been in Europe? How long I had been in this country? Whether I had purchased a house at the Hague? Whether I had not lived some time at Leyden? How long I had lived at Amsterdam? How I liked this country? &c.

This conference passed in the Prince's chamber of audience with his Highness alone. I had waited some time in the antichamber, as the Duc de la Vauguyon was in conference with the Prince. The Duke, on his return through the antichamber, meeting me unexpectedly, presented me his hand with an air of cordiality, which was remarked by every courtier, and had a very good effect.

The Prince has since said to the Duc de la Vauguyon, that he was obliged to me for not having pressed him upon the affair of my reception in the beginning. He had reason; for if I had, and he had said or done anything offensive to the United States or disagreeable to me, it would now be remembered much to the disadvantage of the Court.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, April 23d, 1782.

Sir,

On the 23d of April I had the honor of a conference with M. Van Citters, President of their High Mightinesses, to whom I presented the following Memorial.

"High and Mighty Lords;—The underwritten, Minister Plenipotentiary of the United States of America, has the honor to inform your High Mightinesses, that he is charged by the instructions of his sovereign to propose to the States-General of the United Provinces of the Netherlands, a treaty of amity and commerce between the two Republics, founded upon the principle of equal and reciprocal advantage, and compatible with the engagements already entered into by the United States with their allies, as also with such other treaties, which they design to form with other powers. The undersigned has therefore the honor to propose, that your High Mightinesses would nominate some person or persons with full power, to confer and treat with him on this important subject.

JOHN ADAMS."

Their High Mightinesses, on the same day, appointed a grand committee to treat, to whom I was introduced with great formality by two noblemen, and before whom I laid a project of a treaty,^[7] which I had drawn up conformable to the instructions of Congress. I prayed the gentlemen to examine it, and propose to me their objections, if they should have any, and to propose any further articles, which they should think proper. It has been examined, translated, printed, and sent to the members of the sovereignty.

The greatest part of my time, for several days, has been taken up in receiving and paying of visits, from all the members and officers of government, and of the Court, to the amount of one hundred and fifty or more.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, April 23d, 1782.

Sir,

I ought not to omit to inform Congress, that on the 23d of April, the French Ambassador made an entertainment for the whole Corps Diplomatique, in honor of the United States, at which he introduced their Minister to all the foreign Ministers at this Court.

There is nothing, I suppose, in the whole voluminous ceremonial, nor in all the idle farce of etiquette, which should hinder a Minister from making a good dinner in good company, and therefore I believe they were all present, and I assure you I was myself as happy as I should have been, if I had been publicly acknowledged a Minister by every one of them; and the Duc de la Vauguyon more than compensated for all the stiffness of some others, by paying more attention to the new brother than to all the old fraternity.

Etiquette, when it becomes too glaring by affectation, imposes no longer either upon the populace or upon the courtiers, but becomes ridiculous to all. This will soon be the case everywhere with respect to American Ministers. To see a Minister of such a State as —— and —— assume a distant mysterious air towards a Minister of the United States, because his Court has not yet acknowledged their independence, when his nation is not

half equal to America in any one attribute of sovereignty, is a spectacle of ridicule to any man who sees it.

I have had the honor of making and receiving visits in a private character from the Spanish Minister here, whose behavior has been polite enough. He was pleased to make me some very high compliments upon our success here, which he considers as the most important and decisive stroke which could have been struck in Europe.

I have the honor to be, &c.

JOHN ADAMS.

TO B. FRANKLIN

Amsterdam, May 2d, 1782.

Sir,

I am honored with your favor of the 20th of April, and Mr Laurens's son proposes to carry the letter to his father forthwith. The instructions by the courier from Versailles came safe, as all other despatches by that channel no doubt will do. The correspondence by Mr Hartley I received by Captain Smedley, and will take the first good opportunity by a private hand to return it, as well as that with the Earl of Shelburne.

Mr Laurens and Mr Jay will, I hope, be able to meet at Paris, but when it will be in my power to go, I know not. Your present negotiation about peace falls in very well to aid a proposition, which I am instructed to make, as soon as the Court of Versailles shall judge proper, of a triple or quadruple alliance. This matter, the treaty of commerce, which is now under deliberation, and the loan, will render it improper for me to quit this station, unless in case of necessity. If there is a real disposition to permit Canada to accede to the American association, I should think there could be no great difficulty in adjusting all things between England and America, provided

our allies also are contented. In a former letter, I hinted that I thought an express acknowledgment of our independence might now be insisted on; but I did not mean, that we should insist upon such an article in the treaty. If they make a treaty of peace with the United States of America, this is acknowledgment enough for me.

The affair of a loan gives me much anxiety and fatigue. It is true, I may open a loan for five millions, but I confess I have no hopes of obtaining so much. The money is not to be had. Cash is not infinite in this country. Their profits by trade have been ruined for two or three years; and there are loans open for France, Spain, England, Russia, Sweden, Denmark, and several other powers as well as their own national, provincial, and collegiate loans. The undertakers are already loaded with burthens greater than they can bear, and all the brokers in the Republic are so engaged, that there is scarcely a ducat to be lent, but what is promised. This is the true cause why we shall not succeed; yet they will seek a hundred other pretences. It is considered such an honor and such an introduction to American trade to be the house, that the eagerness to obtain the title of American banker, is prodigious. Various houses have pretensions, which they set up very high; and let me choose which I will, I am sure of a cry and clamor. I have taken some measures to endeavor to calm the heat, and give general satisfaction, but have as yet small hopes of success. I would strike with any house that would ensure the money, but none will undertake it, now it is offered, although several were very ready to affirm that they could, when it began to be talked of. Upon inquiry, they do not find the money easy to obtain, which I could have told them before. It is to me, personally, indifferent which is the house, and the only question is, which will be able to do best for the interests of the United States. This question, however simple, is not easy to answer. But I think it clear, after very painful and laborious inquiries for a year and a half, that no house whatever will be able to do much. Enthusiasm, at some time and in some countries, may do a great deal; but there has as yet been no enthusiasm in this country for America, strong enough to untie many purses. Another year if the war should continue, perhaps we may do better.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, May 16th, 1782.

Sir,

On the 12th of this month, I removed into the *Hôtel des Etats-Unis de l'Amérique*, situated upon the canal, called the Fleweele Burgwal, at the Hague, where I hope the air will relieve my health in some degree from that weak state, to which the tainted atmosphere of Amsterdam has reduced it.

The American cause has gained a signal triumph in this country. It has not persuaded an ancient rival and an avowed natural hereditary enemy to take a part against Great Britain; but it has torn from her bosom an intimate affectionate friend, and a faithful ally, of a hundred years continuance. It has not persuaded an absolute monarchy to follow the dictates of its own glory and interest, and the unanimous wish of the people, by favoring it; but, availing itself only of the still small voice of reason, urging general motives and national interests, without money, without intrigue, without imposing pomp, or more imposing fame, it has prevailed against the utmost efforts of intrigue and corruption, against the almost universal inclination of persons in government, against a formidable band of capitalists and the most powerful mercantile houses in the Republic, interested in English funds, and too deeply leagued in English affairs.

Although these obstacles are overcome so far, as to have obtained an acknowledgment of our independence, yet it is easy to see, that they are not annihilated, and, therefore, we cannot expect to receive such cordial and zealous assistance, as we might receive, if the government and the people had but one heart.

I wish it were in my power to give Congress, upon this occasion, assurances of a loan of money, but I cannot. I have taken every measure in my power

to accomplish it, but I have met with so many difficulties, that I almost despair of obtaining anything. I have found the avidity of friends as great an obstacle as the ill will of enemies, I can represent my situation in this affair of a loan, by no other figure than that of a man in the midst of the ocean negotiating for his life among a shoal of sharks. I am sorry to use expressions, which must appear severe to you; but the truth demands them.

The title of American banker, for the sake of the distinction of it, the profit of it, and the introduction to American trade, is solicited with an eagerness beyond description. In order to obtain it, a house will give out great words, and boast of what it can do; but not one will contract to furnish any considerable sum of money; and I certainly know, let them deceive themselves as they will, and deceive as many others as they may by their confident affirmations, that none of them can obtain any considerable sum. The factions that are raised here about it between the French interest, the Republican interest, the Stadtholderian interests, and the Anglomane interest, have been conducted with an indecent ardor, thwarting, contradicting, calumniating each other, until it is easy to foresee the effect will be to prevent us from obtaining even the small sums, that otherwise might have been found. But the true and decisive secret is, there is very little money to be had. The profits of their trade have been annihilated by the English for several years. There is, therefore, no money but the interest of their capitalists, and all this is promised for months and years beforehand, to book-keepers, brokers, and undertakers, who have in hand loans open for France, Spain, England, Russia, Sweden, Denmark, for the States-General, the States of Holland, the States of Friesland, the East and West India Companies, &c. &c. &c.

But the circumstance, which will be fatal to my hopes at this time, is this; there is just now unexpectedly opened a loan of nine millions for the India Company, under the warranty of the States, in which they have raised the interest one per cent above the ordinary rate. I had obtained an agreement of the undertakers for two millions; but before it was completed, this loan appeared, which frightened the undertakers, so as to induce them to fly off. I must, therefore, entreat Congress to make no dependence upon me for money.

There is one subject more, upon which I beg leave to submit a few hints to Congress. It is that of M. Dumas, whose character is so well known to Congress, that I need say nothing of it. He is a man of letters, and of good character; but he is not rich, and his allowance is too small at present for him to live with decency. He has been so long known here to have been in American affairs, although in no public character, that I know of, but that of an agent or correspondent appointed by Dr Franklin, or perhaps by a committee of Congress, that, now our character is acknowledged, it will have an ill effect, if M. Dumas remains in the situation he has been in. To prevent it, in some measure, I have taken him and his family into this house; but I think it is the interest and duty of America, to send him a commission as Secretary to this Legation, and Chargé des Affaires, with a salary of five hundred a year sterling, while a Minister is here, and at the rate of a thousand a year, while there is none.

There is another gentleman, whose indefatigable application to the affairs of the United States, and whose faithful friendship for me in sickness and in health, demand of me, by the strongest claims of justice and of gratitude, that I should mention him to Congress, and recommend him to their favor. This gentleman is Mr Thaxter, whose merit, in my opinion, is greater than I dare express.

Edmund Jennings, of Brussels, has honored me with his correspondence, and been often serviceable to the United States, as well as friendly to me. His manners and disposition are very amiable, and his talents equal to any service, and I cannot but wish that it might be agreeable to the views of Congress to give him some mark of their esteem.

How shall I mention another gentleman, whose name, perhaps, Congress never heard, but who, in my opinion, has done more decided and essential service to the American cause and reputation within these last eighteen months, than any other man in Europe.

It is M. A. M. Cerisier, beyond all contradiction one of the greatest historians and political characters in Europe, author of the *Tableau de l'Histoire des Provinces Unies des Pays Bas*, of the *Politique Hollandois*, and many other writings in high esteem. By birth a Frenchman, educated in the University of Paris, but possessed of the most genuine principles and

sentiments of liberty, and exceedingly devoted by principle and affection to the American cause. Having read some of his writings, and heard much of his fame, I sought and obtained an acquaintance with him, and have furnished him with intelligence and information in American affairs, and have introduced him to the acquaintance of all the Americans who have come to this country, from whom he has picked up a great deal of true information about our affairs, and, perhaps, some mistakes. His pen has erected a monument to the American cause, more glorious and more durable than brass or marble. His writings have been read like oracles, and his sentiments weekly echoed and re-echoed in gazettes and pamphlets, both in French and Dutch, for fifteen months. The greatest fault I know in him, is his too zealous friendship for me, which has led him to flatter me with expressions which will do him no honor, however sincerely and disinterestedly they might flow from his heart.

Congress must be very sensible, that I have had no money to lay out in secret services, to pay pensions, to put into the hands of Continental agents, or in any other way, to make friends. I have had no money but my salary, and that has never been paid me without grudging. If I have friends in Europe, they have not most certainly been made by power, nor money, nor any species of corruption, nor have they been made by making promises, or holding out alluring hopes. I have made no promises, nor am under any obligation, but that of private friendship and simple civility to any man, having mentioned such as have been my friends, because they have been friends to the United States, and I have no other in Europe at least, and recommended them to the attention of Congress, as having rendered important services to our country, and able to render still greater. I have done my duty, whatever effect it may have. If some small part of those many millions, which have been wasted by the most worthless of men, could have been applied to the support and encouragement of men of such great value, it would have been much better. It is high time; it is more than time, that a proper discernment of spirits and distinction of characters were made; that virtue should be more clearly distinguished from vice, wisdom from folly, ability from imbecility, and real merit from proud imposing impudence, which, while it pretends to do everything, does nothing but mischief.

The treaty of commerce is under consideration, and will not, that I foresee, meet with any obstacle.

I have the honor to be, &c.

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, May 22d, 1782.

Dear Sir,

It is so important to let you know that the late change in the British Ministry, and the conciliatory measures they propose, have occasioned no alteration in the sentiments of the people here; that though I am too much hurried (this conveyance going sooner than was intended) to take particular notice of the letters we have received from you, and which remain unanswered, yet I cannot but avail myself of it to inform you, that it will not have the least effect upon the sentiments or wishes of our people, who remain invariably attached to their independence, and to the alliance, as the best means to obtain it.

Sir Guy Carleton has written to General Washington a very polite letter, complaining of the manner in which the war has been carried on, proposing to conduct it in future upon more liberal principles, and observing, that "they were both equally concerned to preserve the character of Englishmen;" and concluding with the request of a passport for Mr Morgan, his Secretary, to carry a similar letter of compliment to Congress. Congress have directed that no such passport be given. The State of Maryland, whose legislature happened to be sitting, have come to resolutions, which show their determination not to permit any negotiation except through Congress; and their sense of the importance of the alliance.

No military operations are carrying on at present. The enemy, having received no reinforcements, and growing weaker every day, of course afford us a fine opportunity of striking to advantage, if we are not disappointed in our expectations of a naval armament, or even without such armament, if we have sufficient vigor of mind to rely on our own strength.

I commit the enclosed for Mr Dana to your care; I wish it could get to him, if possible, without inspection.

Congress have determined in future to pay your salaries here quarterly. I shall consider myself as your agent, unless you should choose to appoint some other, and make out your account quarterly, and vest the money in bills upon Dr Franklin, to whom I will remit them, giving you advice thereof, so that you may draw on him. By the next vessel I shall send bills for one quarter, commencing the 1st of January last. I wish to have a statement of your account previous to that, so that I may get it settled, and remit the balance.

I have the honor to be, &c.

ROBERT R. LIVINGSTON

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, May 29th, 1782.

Dear Sir,

It is with equal surprise and concern that I find not the least attention paid to the several letters I have written you, since I have had the honor to be in office. I attribute this to their not having reached you, till I saw an extract of a letter written to M. Dumas, that went by the same conveyance with one to you, published in the *Courier de l'Europe*, from which circumstance I conclude it must have been received. It would give me pleasure to learn that I had been deceived in this particular, because the punctuality, with which

your correspondence with Congress had hitherto been maintained, would otherwise lead me to conclude, that you were not satisfied with the present arrangement of the Department of Foreign Affairs, a reflection which would be painful to me in proportion to the value I put upon your esteem.

I have seen your letter of the 26th of March to Dr Franklin, in which you speak of the application you have had on the score of your power to treat of a truce; this, together with similar applications to Dr Franklin, and the proposals made at the Court of Versailles, convinces me that it is their wish to endeavor to detach us from each other. What an insult it is to our intellect to suppose, that we can be caught by this cabinet system of politics. I entertain hopes that your answer, together with that of the Count de Vergennes, will teach them to think more honorably of us. Our expectations with respect to the success of your mission are considerably raised, as well by your letter as by other circumstances, that we have learned through different channels; by this time I hope you are in full possession of your diplomatic rights.

I wrote to you three days ago; since which we have nothing that deserves your attention, except what you will learn by reading the enclosed to Mr Dana, sent you under a flying seal. It may be well to take notice of this affair in the Leyden Gazette, as I doubt not if Asgill is executed, that it will make some noise in Europe. We are distracted here by various relations of a battle fought between the fleets in the West Indies, on the 12th of April. The Antigua and New York account is, that the British have been victorious, that the Ville de Paris, and six other ships, were taken or destroyed; the French account is, that Rodney was defeated, and that Count de Grasse had gone to leeward with his transports. Though it is six weeks since the action, we have nothing that can be depended upon.

I am, Sir, with great respect, &c.

ROBERT R. LIVINGSTON

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, May 30th, 1782.

Sir,

After I had written the letter of yesterday, and sent it off, I received your favors of the 4th, 21st, and 27th of February; and the 10th and 11th of March. The three last I laid before Congress this morning, that of the 21st I have kept by me, for further consideration; though I think, upon the whole, as you have submitted this to my discretion, that I shall lay it also before Congress.

I know they have been solicitous to have some explanations of the reasons, which induced you to take the step you did. Those you assign in your letter are very full, and I see nothing in it, which it will not be proper for you to state to them; and it may remove some objections, that have been raised to the measure.

I frankly confess to you, that the style of that letter pleases me better than any other you have written, so far as it goes into minutiae, which we ought to exact from all our Ministers, since nothing short of this can give us a just idea of our foreign politics. As for a general state of them, it may be got through various channels. But every word or look of a foreign Minister, or popular leader, may serve to explain matters, which are otherwise inexplicable.

I am sorry for the difficulty the cypher occasions you. It was one found in the office, and is very incomplete. I enclose one, that you will find easy in the practice, and will therefore write with freedom, directing that your letter be *not* sunk in case of danger, as many are lost by that means. Want of time induces me to send you a set of blanks for Mr Dana, which you will oblige me by having filled up from yours with some cyphers, and transmitted by a careful hand to him. This will make one cypher common to all three, which I think will, on many occasions, be of use to you and Mr Dana.

I am very glad to hear of your proposed removal to the Hague, as it is the proper stage on which to display your abilities and address. I cannot hope to get any determination of Congress on the subject of your purchase, in time to be transmitted by this conveyance. When another offers, you shall hear

from me. Can nothing be done towards procuring a loan from Holland on account of the public. Ten millions of livres would set our affairs here on the most respectable footing.

We have received an account from Charleston, of the victory obtained by Rodney. This is a severe blow, but I hope will come too late to affect the politics of the United Provinces.

In the United States, it will, I hope, have no other effect than to urge us to greater exertions, and a reliance upon our own strength, rather than on foreign aid. You will be pleased to furnish me with the most minute details of every step, that Britain may take towards a negotiation for a general or partial peace.

I am, Sir, with great respect,

ROBERT R. LIVINGSTON

TO ROBERT R. LIVINGSTON.

Amsterdam, June 9th, 1782.

Sir,

The Admiralty have reported to their High Mightinesses their remarks upon the plan of a treaty of commerce, which I had the honor to lay before them, together with such additions and alterations as they propose. This report has been taken *ad referendum* by all the Provinces, except Overijssel, which has determined to vote as Holland shall vote, this being the principal maritime Province, and the other inland.

The forms of proceeding according to this constitution, are so circuitous, that I do not expect this treaty will be finished and signed in less than three months, though some of the most active members of the government tell me, they think it may be signed in six weeks. I have not yet proposed the

Treaty of Alliance, because I wait for the advice of the Duc de la Vauguyon. His advice will not be wanting in the season for it, for his Excellency is extremely well disposed.

I have, after innumerable vexations, agreed with three houses, which are well esteemed here, to open a loan. The extreme scarcity of money will render it impossible to succeed to any large amount. I dare not promise anything, and cannot advise Congress to draw. I shall transmit the contract, for the ratification of Congress, as soon as it is finished, and then I hope to be able to say at what time, and for how much Congress may draw.

The nation is now very well fixed in its system, and will not make a separate peace. England is so giddy with Rodney's late success in the West Indies, that I think she will renounce the idea of peace for the present. The conduct of Spain is not at all changed. This is much to be lamented on public account, and indeed on account of the feelings of my friend, Mr Jay; for I perfectly well know the cruel torment of such a situation, by experience, and I know too, that he has done as much, and as well as any man could have done in that situation.

The late President Laurens made me a visit at the Hague last week, in his way to his family in France. He informed me, that he had written from Ostend to Dr Franklin, declining to serve in the commission for peace. I had great pleasure in seeing my old friend perfectly at liberty, and perfectly just in his political opinions. Neither the air of England, nor the seducing address of her inhabitants, nor the terrors of the Tower, have made any change in him.

I have the honor to be, &c.

JOHN ADAMS.

P. S. I hope Congress will receive a collection of all the resolutions of the Provinces, and the petitions of the merchants, manufacturers, &c. respecting the acknowledgment of American independence, and my reception as Minister Plenipotentiary of the United States, by their High Mightinesses. I shall transmit duplicates and triplicates of them as soon as health will permit. But Mr Thaxter has been ill of a fever, and myself with the

influenza, ever since our removal from Amsterdam to the Hague. This collection of resolutions and petitions, is well worth printing together in America. It is a complete refutation of all the speculations of the small half-toryfied politicians among the Americans, &c. of the malevolent insinuations of Anglomane through the world, against the American cause. The partisans of England, sensible of this, have taken great pains to prevent an extensive circulation of them.

J. A.

TO ROBERT R. LIVINGSTON.

The Hague, June 14th, 1782.

Sir,

The Court of Petersburg, is very industrious in its endeavors to accomplish a separate peace between England and Holland. Her Minister at Versailles has made an insinuation to the French Court, that her Majesty would be much obliged to the King, if he would not make any further opposition to such a separate peace. To this insinuation, the following wise and firm answer has been given by the Court of France.

"The King is sensibly impressed with the fresh proof of confidence, which the Empress has given in communicating to him her measures and ideas respecting a separate peace between England and the States-General. His Majesty perceives therein the sentiments of humanity, which actuate her Imperial Majesty, and he takes the earliest opportunity to answer, with the same degree of freedom, what particularly concerns him in the verbal insinuations communicated by Prince Baratinski.

"Faithful to the rule he has established, of never controlling the conduct of any power, the King has not sought to direct the deliberations of the States-General, either to incline them to war, or to prevent them from making a separate peace; England having unexpectedly attacked the Provinces of the

United Netherlands, his Majesty hastened to prevent the ill consequences by every means in his power; his services have been gratuitous, his Majesty has never exacted any acknowledgment on their part. Should the States-General think that the obligations they owe to his Majesty, as well as the interest of the Republic, impose it on them as a duty, not to separate their cause from the King's and his allies, the Empress of Russia is too wise and too just not to acknowledge, that it is not for his Majesty to divert them from such a resolution, and that all that he can do, is to refer to their wisdom, to conclude on what best suits with their situation.

"The Empress is not ignorant, that circumstances have induced the States-General to concert operations with the King. His Majesty flatters himself, that this Princess has no views of prevailing on them to desist from this arrangement, which necessarily results from the position of the two powers with respect to England, and which must naturally contribute to the re-establishment of the general tranquillity, the object both of her Imperial Majesty's and the King's wishes."

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, June 15th, 1782.

Sir,

This morning I made a visit to the Grand Pensionary, M. Van Bleiswick, and had a long conference with him concerning the plan of a treaty of commerce, which is now under consideration, and endeavored to remove some of his objections, and to explain to him the grounds and reasons of certain articles, which have been objected to by others; particularly the article which respects France, and that which respects Spain. He made light of most of the objections, which had been started to the plan, and thought it

would be easy to agree upon it; but there must be time for the cities to deliberate.

I asked him, if they did not intend to do us the honor soon, of sending an Ambassador to Congress, and consuls, at least, to Boston and Philadelphia? He thought it would be very proper, but said they had some difficulty in finding a man who was suitable, and, at the same time, willing to undertake so long a voyage. I asked him, if it would not be convenient to send a frigate to America to carry the treaty, their Ambassador, and consuls, all together, when all should be ready? He said, he could not say whether a frigate could be spared.

"Very well," said I, smiling, and pointing to the Prince's picture, "I will go and make my Court to his Highness, and pray him to send a frigate to Philadelphia, with a treaty, an Ambassador, and two consuls, and to take under her convoy all merchant vessels ready to go." "Excellent," said he, smiling, "I wish you good luck."

We had a great deal of conversation, too, concerning peace, but as I regard all this as idle, it is not worth while to repeat it. When a Minister shall appear at Paris, or elsewhere, with full powers from the King of England, to treat with the United States of America, I shall think there is something more than artifice to raise the stocks, and lay snares for sailors to be caught by press gangs.

I have the honor to be, &c.

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, July 4th, 1782.

Dear Sir,

By every late advice from Holland, we learn their disposition to enter into a treaty with us; and though we have no intelligence from you since the 11th of March, we still presume, that you have, ere this been received in your public character. No wise government, constituted as that of the United Provinces is, will venture long to oppose the wishes of the people. I am very solicitous to know how you have availed yourself of the opening this has afforded.

If you have been unconditionally received, it will give you more leisure, to mature the plan of a subsequent treaty, which is too important in all its consequences to be hurried. If possible, it were to be wished, that the heads of it, as proposed on either side, could be sent here and submitted to the judgment of Congress, before anything was absolutely agreed. The independency, to which each of the States is entitled, renders great caution in all commercial engagements, not provided for particularly by the confederation, absolutely necessary, for which reason, I should prefer definite articles, to loose expressions of standing on the same ground with the most favored nations.

Our connexion with the West Indies, renders it proper to lay that trade as open to us as possible. Great benefit would result both to us and the Dutch from giving us one or two free ports in such of their Colonies as raise sugars, where we could exchange the produce of both countries, and check that monopoly, which other nations will endeavor to create at our expense. Nothing will encourage the growth of such colony, or enable it to raise sugars to more advantage than the cheap and easy rates, at which they would thereby receive the produce of this country.

I need not urge the propriety of availing yourself of your present situation to procure a loan. You may easily convince the government of the validity of the security, which it is in the power of a growing country, as yet very little incumbered with debt to give. That security will derive new force from our being a commercial people, with whom public credit is almost invariably preserved with the most scrupulous attention. And such is our present situation, that a twentieth part of what Great Britain expends annually in her attempt to enslave us, would be more than sufficient to enable us to defeat all her attempts, and to place our affairs on the most respectable footing.

I see the people of the United Provinces are struck with the importance of forming a commercial connexion with us, when ours with Great Britain is dissolved. Not only Congress, as appears by their public acts, but the whole body of the people, are strongly opposed to the least intercourse with Britain. This opposition would effectually prevent it, if in addition thereto three or four large frigates, or two fifties, could be stationed in the Delaware, or Chesapeake, so as to protect our commerce against the British frigates from New York. In such a case, a voyage to this country, and from thence to the Islands, where our flour and lumber command the highest price, either in money or produce, affords the fairest prospect to the European merchants of the most profitable returns. Tobacco and bills offer a more direct return to those, whose capitals will not permit them to engage in the circuitous commerce I have mentioned.

This letter is hastily written, as the express that carries it is to go off this evening, and I have several others to write. I mention this, that you may not consider anything it contains as an instruction from Congress, to whom it has not been submitted.

I have the honor to be, &c.

ROBERT R. LIVINGSTON

TO ROBERT R. LIVINGSTON.

The Hague, July 5th, 1782.

Sir,

I have the honor to enclose copies in Dutch and English of the negotiation, which I have entered into for a loan of money. My commission for borrowing money, promises to ratify what I should do; and the money lenders require such a ratification, which Messrs Willinks, Van Staphorsts and De la Lande and Fynjè, have engaged shall be transmitted. Authentic copies of the original contracts, in Dutch and English, are enclosed for the

ratification of Congress, which I must entreat them to transmit forthwith by various opportunities, that we may be sure of receiving it in time, for I suppose the gentlemen will not think it safe for them to pay out any considerable sum of the money, until it arrives.

Although I was obliged to engage with them to open the loan for five millions of guilders, I do not expect we shall obtain that sum for a long time. If we get a million and a half by Christmas, it will be more than I expect. I shall not venture to dispose of any of this money, except for relief of escaped prisoners, the payment of the bills heretofore drawn on Mr Laurens, which are every day arriving, and a few other small and unavoidable demands, but leave it entire to the disposition of Congress, whom I must entreat not to draw, until they receive information from the directors of the loan, how much money they are sure of; and then to draw immediately upon them. These directors, are three houses, well esteemed in this Republic, Messrs Wilhem and Jan Willink, Nicholas and Jacob Van Staphorsts, and De la Lande and Fynjè.

I have made the contract, upon as good terms as I could obtain. Five per cent interest. Two per cent to the House, or rather to the Society of Houses. Two per cent to the undertakers; and half per cent for brokerage and other charges. This four and a half per cent, together with one per cent for receiving and paying off the annual interest, is to include all the expenses of the loan of every sort. These are as moderate terms as any loan is done for. France gives at least as much, and other powers much more.

I must beg that the ratifications of the obligations may be transmitted immediately by the way of France, as well as Holland, by several opportunities. The form of ratification must be submitted to Congress; but would it not be sufficient to certify by the Secretary in Congress, upon each of the copies enclosed in English and Dutch, that they had been received and read in Congress, and thereupon resolved that the original instruments, executed by me before the said notary, be and hereby are ratified and confirmed?

The form of the obligation is such as was advised by the ablest lawyers and most experienced notaries, and is conformable to the usage when loans are made here, for the Seven Provinces. It is adapted to the taste of this country,

and therefore lengthy and formal, but it signifies no more in substance, than, "that the money being borrowed must be paid."

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, July 5th, 1782.

Sir,

Soon after my public reception by their High Mightinesses, the body of merchants of the city of Schiedam, were pleased to send a very respectable deputation from among their members, to the Hague, to pay their respects to Congress, and to me, as their representative, with a very polite invitation to a public entertainment in their city, to be made upon the occasion. As I had several other invitations from various places and Provinces about the same time, and had too many affairs upon my hands to be able to accept of them, I prevailed upon all to excuse me, for such reasons as ought to be, and, I suppose, were satisfactory.

The Deputies from Schiedam requested me to transmit from them to Congress, the enclosed compliment, which, with many other things of a similar kind, convinced me that there is in this nation a strong affection for America, and a kind of religious veneration for her just cause.

I have the honor to be, &c.

JOHN ADAMS.

ADDRESS,

Of the merchants of the town of Schiedam in Holland, to his Excellency John Adams, after their High Mightinesses the Lords, the States-General of the United Provinces of the Netherlands, had acknowledged the freedom and Independency of the United States of North America, and admitted the said John Adams, as Minister Plenipotentiary and Envoy of the Congress of the said United States.

"If ever any circumstances were capable of recalling to the minds of the people of these Provinces, the most lively remembrance of the cruel situation to which their forefathers found themselves once reduced, under the oppressive yoke of Spanish tyranny, it was, no doubt, that terrible and critical moment, when the Colonies of North America, groaning under the intolerable weight of the chains, with which the boundless ambition of Great Britain had loaded them, were forced into a just and lawful war, to recover the use and enjoyment of that liberty, to which they were entitled by the sacred and unalienable laws of nature.

"If ever the citizens of this Republic have had an occasion to remember, with sentiments of the liveliest gratitude, the visible assistance and protection of a Being, who, after having constantly supported them during the course of a long, bloody war, which cost their ancestors eighty years' hard struggles and painful labors, deigned by the strength of his powerful arm to break the odious fetters under which we had so long groaned, and who, from that happy era to the present time, has constantly maintained us in the possession of our precious liberties; if ever the citizens of these Provinces have been bound to remember those unspeakable favors of the Almighty, it was no doubt at that moment when haughty Britain began to feel the effects of divine indignation, and when the vengeance of heaven defeated her sanguinary schemes; it was, when, treading under foot the sacred ties of blood and nature, and meditating the destruction of her own offspring, her arms were everywhere baffled in the most terrible and exemplary manner, her troops defeated, and her armies led into captivity, and at last, that haughty power, humbled by that heaven, which she had provoked, saw the sceptre, which she had usurped, fall from her enfeebled hands; and America, shaking off the cruel yoke, which an unnatural stepmother had endeavored to impose forever upon her, thanked bounteous heaven for her happy deliverance.

"If ever the inhabitants of this country, and those of this city in particular, have had a just cause for joy, and good grounds to conceive the highest hopes of prosperity and happiness, it was undoubtedly at that so much wished-for moment, when, with a unanimous voice, the fathers of the country declared the United States of America to be free and independent, and acknowledged your Excellency as Minister Plenipotentiary and Envoy of the illustrious Congress.

"Impressed with the various sentiments of respect, joy, and gratitude, with which the unspeakable favors of the Almighty towards both countries must inspire every feeling and sensible mind; encouraged besides, by so many happy omens, the subscribers, in behalf of the merchants and inhabitants of this city, have the honor to congratulate your Excellency as the Representative of the illustrious American Congress, and to assure you in the strongest terms, that if any event, recorded in the annals of our country, is capable of impressing us with the liveliest joy, and of opening to our minds the happiest prospect, it is that glorious and ever memorable day, when our august sovereigns, the Lords States-General of the United Provinces of the Netherlands, solemnly acknowledged the independence of the United States of America; a step which, under the pleasure of God, must become the foundation of an unalterable friendship, and the source of mutual prosperity to the two Republics, whose union being cemented by interests henceforth common and inseparable, must forever subsist, and be constantly and religiously preserved by our latest posterity.

"Allow us then, ye deliverers of America, ye generous defenders of her infant liberties, to congratulate your illustrious Envoy, and to express to him the liveliest satisfaction that we feel for an event, which crowns the wishes of the nation. Accept also of the fervent prayers, which we address to heaven, beseeching the Almighty to shower down his blessings on your Republic and her allies.

"Permit us also to recommend to you, in the strongest manner, the interests of our country, and of this city in particular. Let those of our citizens who have been the most zealous in promoting the acknowledgment of your independence, enjoy always a particular share of your affection.

"That among those who may follow our example, no one may ever succeed in detracting from the good faith and integrity of Holland, or causing the sincerity of our efforts to advance our mutual interests to be suspected, which are founded on the unalterable principles of pure virtue, and a religion common to both of us.

"Permit us, in fine, that faithful to ourselves, and attentive to whatever can interest our commerce, the only source of our prosperity, we may flatter ourselves, that the produce of this flourishing city, our distilled liquors and other merchandise, may be freely imported to your States without any hinderance, or without being subjected to heavy duties; and may the protection, with which you shall honor us and the privileges that you shall grant us, rivet the bonds of our mutual friendship, and be to both nations the source of an unceasing prosperity."

TO JOHN JAY.

The Hague, August 10th, 1782.

Sir,

It was with very great pleasure that I received, this morning, your kind favor of the 2d. I am surprised to learn, that yours and Mr Jay's health have been disordered in France, where the air is so fine.

That your anxieties have been very great, I doubt not. That most of them were such as you ought not to have met with, I can easily conceive. I can sincerely say, that all mine, but my fever, were such as I ought not to have had. Thank God they are passed, and never shall return, for nothing that can happen shall ever make me so anxious again. I have assumed the *felicis animi immota tranquillitas*.

Nothing would give me more satisfaction, than a free conversation between you and me upon the subjects you mention, and all others directly or indirectly connected with it, or with any of our affairs; but I do not see a

possibility of taking such a journey. The march of this people is so slow, that it will be some time before the treaty of commerce can be finished, and after that I have other orders to execute, and must be here in person to attend every step. But besides this, I think I ought not to go to Paris, while there is any messenger there from England, unless he has full powers to treat with the Ministers of the United States of America. If the three American Ministers should appear at Paris, at the same time, with a real or pretended Minister from London, all the world would instantly conclude a peace certain, and would fill at once another year's loan for the English. In Lord Shelburne's sincerity, I have not the smallest confidence, and I think that we ought to take up Fox's idea, and insist upon full powers to treat with us in character, before we have a word more to say upon the subject. They are only amusing us. I would rather invite you to come here. This country is worth seeing, and you would lay me under great obligations to take your residence, during your stay, in the *Hôtel des Etats-Unis*. Many people would be glad to see you. I should be very glad, however, to be informed, from step to step, how things proceed.

As you justly observe, further accessions of power to the House of Bourbon may excite jealousies in some powers of Europe, but who is to blame but themselves? Why are they so short sighted or so indolent, as to neglect to acknowledge the United States, and make treaties with them? Why do they leave the House of Bourbon to content so long and spend so much? Why do they leave America and Holland under so great obligations? France has, and ought to have, a great weight with America and Holland, but other powers might have proportionable weight if they would have proportional merit.

If the powers of the neutral maritime confederation, would admit the United States to accede to that treaty, and declare America independent, they would contribute to prevent America at least from being too much under the direction of France. But if any powers should take the part of England, they will compel America and Holland too, to unite themselves ten times more firmly than ever to the House of Bourbon.

I do not know, however, that America and Holland are too much under the direction of France, and I do not believe they will be, but they must be dead

to every generous feeling as men, and to every wise view as statesmen, if they were not much attached to France, in the circumstances of the times.

I received two letters from you in the spring, one I answered, but have not the dates at present; the other kindly informed me of the arrival of my son in America, for which I thank you.

With great regard and esteem, I am, dear Sir, your most obedient, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, August 18th, 1782.

Sir,

I have the honor to enclose, for the information of Congress, a copy of Mr Fitzherbert's commission.

The States-General have appointed M. Brantzen their Minister Plenipotentiary to treat concerning peace, and he will set off for Paris in about three weeks. His instructions are such as we should wish. The States of Holland and West Friesland have determined the last week upon our project of a treaty of commerce, and I expect to enter into conferences with the States-General this week, in order to bring it to a conclusion. I hope for the ratification of the contract for a loan, which has been sent five different ways. Upon the receipt of this ratification, there will be thirteen or fourteen hundred thousand guilders ready to be paid to the orders of Congress by Messrs Wilhem and Jean Willink, Nicholas and Jacob Van Staphorst, and De la Lande and Fynjè.

The States and the Regencies are taking such measures with the Stadtholder, by demanding his orders and correspondence about naval affairs, and by re-assuming their own constitutional rights in the

appointment of officers, &c. as will bring all things right in this Republic, which we shall find an affectionate and a useful friend. The communication of the following instructions to me is such a piece of friendship and such a mark of confidence, as makes it my duty to request of Congress that it may be kept secret.

INSTRUCTIONS,

*Projected and passed for the Ambassador Lestevenon de Berkenrode, and
M. de Brantzen.*

"1. His Most Christian Majesty, having manifested in the most obliging manner by his Ambassador Extraordinary, the Duc de la Vauguyon, who resides here, his favorable intention to have an eye to the interests of the Republic in the negotiation for a general peace, the aforesaid Ministers will neglect nothing, but, on the contrary, will employ all their diligence and all their zeal to preserve and fortify more and more this favorable disposition of his Majesty towards this State.

"2. To this end those gentlemen, in all which concerns the objects of their commission, or which may have any relation to them, will act in a communicative manner, and in concert with the Ministry of his said Majesty, and will make confidential communications of all things with them.

"3. They will not enter into any negotiation of peace between the British Court and the Republic, nor have any conferences thereupon with the Ministers of the said Court, before they are assured beforehand, in the clearest manner, and without any equivocation, that his British Majesty has in fact, and continues to have, a real intention to acquiesce, without reserve, that the Republic be in full possession and indisputable, enjoyment of the rights of the neutral flag, and of a free navigation, in conformity to, and according to the tenor of, the points enumerated in the declaration of her Imperial Majesty of Russia, dated the 28th of February, 1780.

"4. When these gentlemen shall be certain of this, and shall have received the requisite assurances of it, they shall conduct in such a manner in the

conferences, which shall then be held thereupon with the Ministers of his Britannic Majesty, as to direct things to such an end, that, in projecting the treaty of peace and friendship between his said Majesty and the Republic, all the points concerning the free navigation be adopted word for word, and literally from the said declaration of her Imperial Majesty, and inserted in the said treaty; and, moreover, in regard to contraband, (upon the subject of which the said declaration refers to the treaties of commerce then subsisting between the respective powers) that they establish henceforward a limitation, so precise and so distinct, that it may appear most clearly in future, that all naval stores, (*les munitions ou matières navales*) be held free merchandises, and may not by any means be comprehended under the denomination of contraband; as also, that with regard to the visitation of merchant vessels, they establish the two following rules as perpetual and immutable, viz; first, that the masters (*patrons*) of merchant ships shall be discharged upon exhibiting their documents, from whence their cargoes may be known, and to which faith ought to be given, without pretending to molest them by any visitation; secondly, that when merchant ships shall be convoyed by vessels of war, all faith shall be yielded to the commanding officers, who shall escort the convoy, when they shall declare and affirm, upon their word of honor, the nature of their cargoes, without being able to require of vessels convoyed, any exhibition of papers, and still less to visit them.

"5. These gentlemen shall insist also, in the strongest manner, and as upon a condition *sine qua non*, upon this, that all the possessions conquered from the Republic by the ships of war or privateers of his British Majesty, or by the arms of the English East India Company during the course of this war, or which may be further conquered from it before the conclusion of the peace, be restored to it, under the eventual obligation of reciprocity; and this, as far as possible, in the same state in which they were at the time of the invasion. And, whereas the greatest part of these possessions have been retaken from the common enemy, by the arms of His Most Christian Majesty, these gentlemen will insist in the strongest manner, with his Majesty and his Ministry, that, by the promise of restitution of these possessions to the State, immediately after the conclusion of the peace, the Republic may receive real proofs of the benevolence and of the affection, which his Majesty has so often testified for it.

"6. These gentlemen will insist also, in the strongest manner, upon the just indemnification for all the losses unjustly caused by Great Britain, to the State and to its inhabitants, both in Europe and elsewhere.

"7. In the affairs concerning the interest of the Company of the East Indies of this country, these gentlemen ought to demand and receive the considerations of the commissaries, who are now at Paris on the part of the Company, and act in concert with them in relation to these affairs.

"8. In all respects, these gentlemen will hold a good correspondence with the Ministers of the other belligerent powers; and it is very specially enjoined upon them, and recommended, to direct things to this, that in the said negotiations, there be given no room to be able to conclude or resolve either treaty or cessation of hostilities, if it be not with the common and simultaneous concurrence of all the belligerent powers.

"9. Finally, and in general, these gentlemen, during the course of all this negotiation, will have always before their eyes, that the conferences at Paris, at least for the present, ought to be looked upon but as preparatory and preliminary; and that the decision of points, which may remain in litigation, ought to be reserved to a general Congress, together with the final adjustment of the definitive treaty of peace; the whole, at least, until their High Mightinesses, further informed of the success of these negotiations, and of the inclination of the belligerent powers, shall find good to qualify these gentlemen for the final and peremptory conclusion of a treaty."

These instructions will show Congress, in a clear light, the disposition of this Republic to be as favorable for us and our allies as we could wish it.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, August 22d, 1782.

Sir,

Their High Mightinesses have at length received their instructions from all the Provinces, and I have this day been in conference with the Grand Committee, who communicated to me the remarks and propositions on their part. To this, I shall very soon give my replication, and I hope the affair will be soon ended.

I was received in State by two of the Lords at the head of the stairs, and by them conducted into the committee room, where the business is transacted. The committee consisted of one or more Deputies from each Province, together with the Grand Pensionary, Bleiswick, and the Secretary Fagel.

I have the honor to be, &c.

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, August 29th, 1782.

Dear Sir,

Near five months have elapsed, since I have been favored with a line from you. Your letter of the 4th of March, is the last that has as yet found its way to America.

Let me entreat you, Sir, to reflect on the disgrace and discredit it brings upon this department, to be kept thus in the dark relative to matters of the utmost moment, and how impossible it is, without better information, to declare the designs or wishes of Congress, since they must be in some measure directed by the state of their affairs in Europe; and, yet, Sir, they have hitherto been left, in a great measure, to collect that state from private

letters, common newspapers, or the communications of the Minister of France.

There is another circumstance, in which the reputation of our Ministers themselves, is materially concerned. Letters, announcing a fact, that is well known before their arrival, lose half their force and beauty. They cease to be interesting, and are read with indifference. You have done yourself great injustice frequently in this way, for though your letters have generally been particular, yet, from not being sufficiently attentive to the means of conveyance, we frequently have had the facts they related, published in the newspapers a month before their arrival. As one instance out of many, we received with your letter of the 11th of March, Amsterdam papers of the 30th, which informed us of the determination of Holland relative to your reception. We are told that you were received in your public character the 19th of April, and yet, Sir, we have not to this hour had any official information on that head. I am ready to make every allowance for the miscarriage of letters; but this should only urge our Ministers to multiply the number of their copies, particularly where the subject of them is important. I feel myself so hurt at this neglect, Congress are so justly dissatisfied at seeing vessels arrive every day from France without public letters at this very critical period, from any of our Ministers, that I fear I have pressed the subject further than I ought to have done. If so, be pleased to pardon my earnestness, and to impute it to my wish, as well to render this office more useful to the public, as to enable you to give Congress more ample satisfaction.

The advantages, which will be derived to these States from the acknowledgment of their political existence, as an independent nation, are too many and too obvious, not to be immediately and sensibly felt by them. I sincerely congratulate you on having been the happy means of effecting this beneficial connexion. We may reasonably hope, that your official letters will detail the progress of so interesting an event, and thereby enable us to form some judgment of the nature and principles of the government of the United Provinces. From the zeal they manifest to us, I should hope, that you would find no great difficulty in the accomplishing of one great object of your mission, the procuring a loan, which neither the probability or the conclusion of a peace will render unnecessary. On the contrary, I am

inclined to believe, that our wants will be more pressing at the close of the war, when our troops are to be paid and disbanded, than at any other period; and as it seems to have been your sentiment hitherto, that money could be procured when our political character was fully known, I venture to hope, that you have availed yourself of your present situation to obtain it.

General Carleton and Admiral Digby, presuming, I suppose, that our Ministers were not the most punctual correspondents, have been pleased to inform us, through the commander-in-chief, that negotiations for a general peace are on foot. If so, I presume this will find you in France. In addition to the great objects, which will become the subjects of discussion, and on which you are fully instructed, I could wish again to repeat one, that I have mentioned in my last to you, which materially interests us. I mean the procuring a market for lumber and provisions of every kind in the West Indies. Should France pursue her usual system with respect to her Colonies, and England follow her example, the shock will be severely felt here, particularly in the States, whose staples are flour, beef and pork. But should either of them be so fully apprised of their true interest as to set open this market, at least for these articles, the advantage, they will derive from it must compel the others to adopt the same system.

I need only mention this matter to you. The arguments to show the mutual advantage of this commerce to this country, the Colonies and the parent States will suggest themselves readily to you, and be suggested by you to those we are interested in convincing. The turtle and fruit of the Bahama Islands have formed powerful connexions among the good eaters and drinkers of this country. I recommend their interests to your care. They flatter themselves their friends, the Spaniards, will not interrupt their ancient alliance, if these islands should remain in their hands.

I have already transmitted you an account of the evacuation of Savannah. The enclosed papers contain a proclamation of General Scott, announcing that of Charleston, and generously offering to provide for the transportation of the royalists to East Florida, where the climate will doubtless aid administration, in the proposed reduction of the list of pensioners. The fleet under the Marquis de Vaudreuil has unfortunately lost a seventy four, by striking a rock in the harbor of Boston. Congress have endeavored to

compensate this loss, by presenting His Most Christian Majesty with the America.

I have caused two quarters' salary to be remitted to Dr Franklin on your account, for which you will be so obliging as to send me your receipt. I must again press you to appoint an agent to receive your money here, as I act without any authority at present, which I must decline the hazard of doing in future.

I have the honor to be, &c.

ROBERT R. LIVINGSTON

TO ROBERT R. LIVINGSTON.

The Hague, September 4th, 1782.

Sir,

Your triplicate of the 5th of March, No 5, triplicate of the 22d of May, No. 6, duplicate of the 29th of May, No. 7, and duplicate of May the 30th, No. 8, together with the despatches for Mr Dana, came to hand yesterday.

The judicious inquiries in that of the 5th of March, are chiefly answered by the enclosed pamphlet, which I have caused to be printed, in order to be sent into England, Scotland, and Ireland, as well as America. You will find most of your questions answered by great bodies of merchants, manufacturers, and others, in the first instance, and by the States of the several separate Provinces in the next place, and lastly by their High Mightinesses.

I wish the truth would warrant a more satisfactory account of the ships prepared, and preparing for sea. Those prepared are employed by concert with France, in the North Sea, where they make a useful diversion, having lately obliged Lord Howe to detach a considerable number of ships, and the

last accounts say, to go himself with fourteen ships of the line, in order to protect their trade from the Baltic, which has certainly retarded, possibly wholly prevented, the relief of Gibraltar. This, however, is not certain. I cannot assure Congress of more than twelve Dutch ships of the line, ready for sea. Some of that number are not in a good condition; not more than two or three can be depended on to be added, in the course of this season.

As to the leading members of the Great Council, we must distinguish between the Assembly of the Deputies of the States-General, and the Assembly of the Deputies of Holland and West Friesland. The Grand Pensionary of Holland, who is always a member of the Assembly of their High Mightinesses, is constitutionally the most leading member. M. Van Bleiswick is the present Grand Pensionary. With him I have frequent conferences, and they have always been agreeable; but the situation of this Minister is at present extremely critical and embarrassing. In former times, when there was no Stadtholder, or at least when his authority was less extensive, the Grand Pensionaries of Holland have been in effect Stadtholders. They have been a centre of union for all the Provinces; but being more immediately connected with, and dependent on, the Province of Holland, they have been suspected by the other Provinces to give too much weight to that, which has caused them to attach themselves to the Stadtholders, as a more impartial support to the whole States.

To speak candidly, a competition between these two great interests and these two high offices, seems to have been the cause of the violent storms in this country; but as the Stadtholders have had the military power by sea and land at their disposal, and by the pomp and splendor of a Court, have had the means of imposing more upon the nation, they have by decrees prevailed. At critical, dangerous times, tragical scenes have been exhibited, and Barnevelt's head was struck off at one time, Grotius escaped by a kind of miracle, and the De Witts were torn in pieces, it is scarcely too bold to say by the open or secret commands, or connivance of the Stadtholders. The Stadtholder's power, since 1758, until this year, has been so augmented, and the Grand Pensionary's so diminished, that M. Van Bleiswick is to be pitied. More is expected of him than he can perform. He is between two fires. The Stadtholderian party on the one side, and the Republican on the other. The consequence is, that he manages both as well as he can; is extremely

cautious and reserved, never explains himself, but in cases of absolute necessity, and never attempts to assume the lead. If he were to attempt to act the part of some former Grand Pensionaries, the consequence would be, either he would not be supported, and would perish like Barnevelt, or De Witt, or being supported, the Stadtholdership must give way, and the Prince fly to his estates, in Germany. M. Van Bleiswick is a great scholar, linguist, natural philosopher, mathematician, and even physician; has great experience in public affairs, and is able and adroit enough in the conduct of them; but not having a temper bold and firm enough, or perhaps loving his ease too much, or not having ambition, or patriotism, or zeal, or health enough, to assume a great and decided conduct, he is fallen in his reputation. They suspect him of duplicity, and in short, measures are prepared and brought into the States of Holland without his consent, or previous knowledge, and there carried; a thing unknown until these days.

Another great officer of state, who constitutionally has influence in the Assembly of their High Mightinesses, is the Secretary M. Fagel. This gentleman is of a family, which has ever been zealously attached to the Stadtholder, and consequently to England, and strongly prejudiced against France. His ancestor was made Grand Pensionary, in place of the murdered and immortal De Witt; and from that time to this, the family have been invariably friends to the Princes of Orange, and to England, and enemies to France. The present Secretary does not belie his lineage. He is supposed to be the least satisfied with the new conventions with us and with France, of any man. I have had several conferences with him. He is a venerable man of seventy, is polite, and has always been complaisant enough to me; but Congress will easily see, from this sketch of his character, that he is not the man for me to be intimate with. There is a new President of their High Mightinesses every week. I have had conferences with several, M. Ijassens, M. Van Citters, M. Boreel, M. Van den Sandheuvel, and the Baron Lynden de Hemmen; but this continual variation prevents any one from acquiring esteem and weight from the office; so that they are to be considered only as common members of the Assembly.

There is a nobleman, the Baron de Lynden, who belongs to the Province of Zealand, and who was formerly Ambassador in Sweden, and afterwards appointed to Vienna, but refused to go. I have had the pleasure of a great

deal of conversation with him, and his advice has been useful to me. He is a sensible and worthy man, and his sentiments are very just. He has been now for some months in Zealand, and the world has seen several striking effects of his presence in that Province. He is much in opposition to the Duke of Brunswick, and consequently to the Court, to whose cause this nobleman's rank, former offices, and connexions, have done much damage. There are several other members of the Assembly of their High Mightinesses, that I have some acquaintance with, the Baron Van Schwartenbourg, M. Kuffeler of Friesland, M. Brantzen of Guelderland, and others, whom it is not necessary to name at present. But Holland, being full half the nation, the Assembly of that Province gives always, sooner or later, the tone to the whole. The Pensionaries of the cities are the principal speakers, and most active members of this Assembly, for which reason I have cultivated the acquaintance of these gentlemen, and will continue to do so more and more. There are three among them, with whom I have been the most conversant, M. Gyzelaer of Dort, M. Visscher of Amsterdam, and M. Van Zeeberg, of Haerlem.

M. Gyzelaer is a young gentleman of about thirty; but of a genius and activity, a candor and prudence, which, if his health is not too delicate, must make him the man of the first consideration in this Republic. I am happy in a friendly and familiar acquaintance with him, and shall certainly continue it, because his abilities and integrity, his industry, his great and growing popularity, and his influence in the Assembly of the States of Holland, as well as in all the provinces and cities, will render him an important man, in spite of all the opposition of the Court.

Nevertheless, although I cultivate the friendship of the patriots, I shall not give offence to the Court. The friendship of this Court we never had, and never shall have, until we have that of England. This gentleman's friendship has already been of vast service to the cause of Congress as well as to me, and will continue to be so. There is no intelligence in a political line, which I ought to know, but what I can easily obtain in this way. To detail the conversations, would be to relate all the measures taken or proposed, relative to the negotiations for a separate peace, to the concert with France, the general peace, &c. as well as from step to step, the advancement to the acknowledgment of our independence. There are some of these

conversations, which ought never to be put on paper, until the measures and events, which are the fruit of them, have taken place.

M. Visscher is a respectable character, an amiable man, and steady in the good system. With him also, I have been invariably upon good terms; but I cannot but lament the absence of M. Van Berckel, an excellent character, of solid judgment, sound learning, great experience, delicate honor, untainted virtue, and steady firmness, sacrificed to the most frivolous whimsies, and miserable intrigues of private pique, the jealousy and envy of weak, I cannot here add wicked old age, and individual ambition. Van Berckel and Visscher together would be noble Ministers for Amsterdam; but the elder of the "*Par nobile fratrum*" is wanting.

M. Van Zeeberg is another excellent character; of great reputation as a lawyer, a man of integrity, and a patriot, with whom I have been, and am, upon the best terms. It is odd enough, that most of these Pensionaries have been deacons of the English church in this place, Dr Mc Lane's. *En passant*, young lawyers seek an election to be deacons in the churches, as a first step to advancement in their profession, as well as in the State. M. Van Berckel, M. Van Zeeberg and others, have been deacons of this church, yet neither speaks English; nor is any of them less an enemy to England for having passed through this stage in their career of life, and I shall be the more so, for hearing once a week, an admirable *moral* lecture in the English language, from one of the best preachers in Europe.

I hope this will be sufficient at present as a sample of sketches of characters that you demand of me, among the leading members of the Assembly. I might mention several Burgomasters, as M. Hooft, of Amsterdam, Van Berckel, of Rotterdam, &c. &c. &c.; but I must not give too much at once.

You inquire whether there is no intercourse between the French Ambassador and me? I answer, there is a constant, uninterrupted harmony and familiarity between the Duc de la Vauguyon and his family, and me. I visit him, and he visits me. I dine with him, and he and his family dine with me as often as you can wish; and he is ever ready to enter into conversation and consultation with me upon public affairs. He is an amiable man, whom I esteem very much. He is able, attentive, and vigilant, as a Minister; but he has been under infinite obligations to the United States of America and her

Minister, for the success he has had in this country. Nothing on this earth but the American cause, could ever have prevented this Republic from joining England in the war, and nothing but the memorial of the 19th of April, 1781, and the other innumerable measures taken in consequence of it by the same hand, could ever have prevented this Republic from making a separate peace with England. The American cause and Minister have done more to introduce a familiarity between the French Ambassador and some leading men here, than any other thing could; and if anybody denies it, it must be owing to ignorance or ingratitude. It is at the same time true, and I acknowledge it with pleasure and gratitude, that our cause could not have succeeded here without the aid of France. Her aid in the East Indies, West Indies, and upon the barrier frontiers, her general benevolence, and concert of operations, as well as the favorable and friendly exertions of her Ambassador, after the decisive steps taken by me, contributed essentially to the accomplishment of the work. I have an opportunity of meeting at his house, too, almost as often as I desire, the other foreign Ministers; but of this more hereafter.

You desire also to know the popular leaders I have formed acquaintance with. The two noblemen, the Baron Van der Capellan de Pall, of Overysse, and the Baron Van der Capellan de Marsch, of Guelderland, I have formed an acquaintance with; the former, very early after my first arrival. I have had frequent and intimate conversations with him, and he has been of the utmost service to our cause. His unhappy situation, and unjust expulsion from his seat in government, the opposition of the Court, and of his colleagues in the Regency, make it delicate to write freely concerning this nobleman. He has an independent fortune, though not called rich in this country. His parts and learning are equal to any, his zeal and activity superior. I dare not say in what a multitude of ways he has served us; posterity will, perhaps, know them all.

Two years ago, upon my first arrival at Amsterdam, I fell acquainted, at M. Van Staphorst's, with M. Calkoen, the first gentleman of the bar, at Amsterdam; a man of letters, well read in law and history, and an elegant writer. He desired to be informed of American affairs. I gave him a collection of our constitutions, and a number of pamphlets and papers, and desired him to commit to writing his questions. In a few days, he sent me

thirty questions in Dutch, which show him to be a man of profound reflection and sagacity. I got them translated, and determined to seize the opportunity to turn his attention to our affairs, and gain his confidence. I wrote him a distinct letter upon each question, and endeavored to give him as comprehensive an insight into our affairs as I could.^[8] He was much pleased with the answers, and composed out of them a comparison between the American and Batavian Revolutions, which he read with applause to a society of forty gentlemen of letters, who meet in a club at Amsterdam. I lent him Burgoyne's and Howe's pamphlets in vindication of themselves, which he communicated also. By this means, this society, whose influence must be very extensive, were made hearty converts to the opinion of the impracticability of a British conquest, and the certainty of American success; points very dubious in the minds of this nation in general, when I first came here, as I can easily prove. With this gentleman, I have ever preserved an agreeable acquaintance. It was he who drew up the petition of the merchants of Amsterdam in favor of American independence.

About the time of presenting my memorial, I became acquainted with another lawyer at the Hague, M. Van Zoon, who has been also from time to time active in our favor, and drew up the petitions of Rotterdam.

The gazetteers of this country are not mere printers, they are men of letters; and as these vehicles have a vast influence in forming the public opinion, they were not to be neglected by me, whose only hopes lay in the public opinion, to resist the torrent of a court and government. I therefore became naturally acquainted with the family of the Luzacs, in Leyden, whose gazette has been very useful to our cause, and who are excellent people. M. John Luzac, drew up the two petitions of Leyden to their Regency.

At Amsterdam, my acquaintance with M. Cerisier enabled me to render the *Politique Hollandais*, and the French Gazette of Amsterdam, useful on many occasions; and by means of one friend and another, particularly M. Dumas, I have been able to communicate anything that was proper to the public, by means of the Dutch gazettes of Amsterdam, Haerlem, and Delft. By means of these secret connexions with printers and writers, I have had an opportunity to cause to be translated and printed, many English pamphlets tending to elucidate our affairs, particularly those valuable

documents of Howe and Burgoyne, than which nothing has contributed more to fortify our cause. They are considered as the decisive testimonies of unwilling witnesses and cruel enemies. With these persons, and others whom I could not have conversations with, I have had correspondence as frequent as my time would allow.

At Amsterdam, I was acquainted with several mercantile houses, M. de Neufville & Son, M. Crommelin & Sons, Messieurs Van Staphorsts, De la Lande & Fynjè, Madame Chabanel & Son & Nephew, M. Hodshon, M. Van Arp, M. Teagler, and several others, who, in their several ways, were useful to our affairs.

I come now to the most difficult task of all, the description of the foreign Ministers. The Minister of the Emperor is ninety years of age, and never appears at Court, or anywhere else. I have never seen him or his secretary. The Ministers from Russia, Sweden, Denmark, Portugal, Sardinia, and Liege, I see every week at Court, where I sup regularly when the others do, though it is very visible that I am not the guest the most favored by the Prince. I dine with them all, sometimes at the French Ambassador's and Spanish Minister's, but have not dined at any of their houses, nor they at mine. Not one of them would dare to give or receive an invitation, except France, Spain, and Liege. The Minister from Sweden, the Baron d'Ehrensverd, is lately removed to Berlin, to my great regret, as he appeared to me a very good character, and behaved very civilly to me several times when I met him at Court and at the French Ambassador's. The Secretary of Legation does the business, now M. Van Arp, who appears to be a worthy man, and is not afraid to converse with me. The Minister from Prussia, M. de Thulemeyer, is very civil, attacks me, (as he expresses it) in English, and wishes to meet me on horseback, being both great riders; will converse freely with me upon astronomy, or natural history, or any mere common affairs; will talk of news, battles, sieges, &c.; but these personages are very reserved in politics and negotiations. They must wait for instructions.

M. de St Saphorin, the Envoy from Denmark, is a personage of very odd behavior; a Swiss by birth, but an open and not very discreet advocate for England. It should be observed, that the Queen Dowager of Denmark, is

sister to the Duc Louis de Brunswick; and as the King is not a distinguished character among crowned heads, she is supposed to have much influence at Court, and the Minister here may be complaisant to her. But neither that power nor its Minister is able to do more than influence a gazette or two, to publish some very injudicious speculations. I am not the only foreign Minister that converses or corresponds with gazetteers; though it at least is certain, that I never give them money. I hope I am not singular in this. This gentleman has been much with another since his arrival, M. Markow, the adjoint Minister from Russia, another advocate for the English, without being able to do them any service. He was never more than a Secretary of Legation before. He has been here formerly in that character, and in the partition of Poland. He was preceded here, by reports of his great talents at negotiations and intrigue, and it was said, that he had never failed of success; but his residence here has made no sensation or impression at all. He talks in some companies indiscreetly in favor of England, but is not much attended to. His behavior to me, is a distant bow, an affected smile sometimes, and now and then, a "*Comment vous portez-vous?*" One evening at Court, when the Northern Epidemy was here, he put me this question after supper, in great apparent good humor; "*terriblement affligé de l'influença,*" said I; "*C'est en Angleterre.*" says he, laughing, "*qu'on a donné ce nom, et il ne feroit point du mal, si vous voudriez vous laisser gagner un peu par l'influence de l'Angleterre.*" I had at my tongue's end to answer, "*C'est assez d'être tourmenté de l'influence qui vient de Russie!!*" but I reflected very suddenly, if he is indiscreet, I will not be; so I contented myself to answer, very gravely, "*jamais, Monsieur, jamais.*"

The Prince de Gallitzin, his colleague, is of a different character; a good man, and thinks justly; but his place is too important to his family to be hazarded; so he keeps a great reserve, and behaves with great prudence. Knowing his situation, I have avoided all advances to him, lest I should embarrass him. The Sardinian Minister is very ready to enter into conversation at all times; but his Court and system are wholly out of the present question. The Portuguese Envoy Extraordinary, D. Joas Theolonico d'Almeida, is a young nobleman glittering with stars, and, as they say, very rich. He has twice, once at Court, and once at the Spanish Minister's, entered familiarly into conversation with me, upon the climates of America and Portugal, and the commerce that has been, and will be between our

countries, and upon indifferent subjects; but there is no appearance that he is profoundly versed in political subjects, nor any probability that he could explain himself, until all the neutral powers do, of whom Portugal is one.

The Spanish Minister, D. Llano, Count de Sanafée, has at last got over all his punctilios, and I had the honor to dine with him, in company with all the foreign Ministers and four or five officers of rank in the Russian service, on Tuesday last. He and his Secretary had dined with me some time ago. I shall, therefore, be upon a more free, if not familiar, footing with him in future. He has indeed been always very complaisant and friendly, though embarrassed with his punctilios of etiquette. There is one anecdote, that in justice to myself and my country I ought not to omit. The first time I ever saw him was at his house, a day or two after my reception by the States. He sent for me. I went, and had an hour's conversation with him. He said to me, "Sir, you have struck the greatest blow of all Europe. It is the greatest blow that has been struck in the American Cause, and the most decisive. It is you who have filled this nation with enthusiasm; it is you who have turned all their heads." Next morning he returned my visit at my lodgings, for it was before my removal to this house. In the course of conversation upon the subject of my success here, he turned to a gentlemen in company, and said to him, "this event is infinitely honorable to Mr. Adams. It is the greatest blow (*le plus grand coup*) which could have been struck in all Europe. It is he, who has filled this nation with enthusiasm; it is he, who has disconcerted the admirers of England (*Anglomanes*); it is he, who has turned the heads of the Hollanders. It is not for a compliment to Mr Adams that I say this, but because I believe it to be his due."

I wish for some other historiographer, but I will not, for fear of the charge of vanity, omit to record things, which were certainly said with deliberation, and which prove the sense, which the Ministers of the House of Bourbon had of the stream of prejudice here against them, and of the influence of America and her Minister, in turning the tide.

I hope, Sir, that these sketches will satisfy you for the present; if not, another time I will give you portraits at full length. In the meantime, I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, September 6th, 1782.

Sir,

In your letter of the 5th of March, you ask "whether this power has entered into any treaty with France since the war, and whether any such thing is in contemplation?"

They have made no treaty, but a convention concerning recaptures, which you must have seen in the papers. The East India Company have concerted operations with France in the East Indies, and the Prince, by the resolution of the States, has concerted operations in these European seas for this campaign, and the city of Amsterdam has lately proposed in the States of Holland, to renew the concert for next year, and to revive an old treaty of commerce with France. In my letter of the 18th of August, I have sent you a copy of the instructions to their Ministers for peace, "not to make peace, truce, or armistice, but with the simultaneous concurrence of all the belligerent powers," among whom the United States of America are certainly one in the sense and meaning of their High Mightinesses.

You observe, Sir, "that France is interested with us, in procuring a public acknowledgment of our independence." You desire me to write freely, and my own disposition inclines me to do so. This is a delicate subject, and requires to be cautiously handled. Political jealousy is very different from a suspicious temper. We should contemplate the vices naturally allied to the greatest virtues. We should consider the fevers that lie near a high state of health. We should consider the maxim that is laid down by all the political writers in the world, and the fact that is found in all histories, "that in cases of alliance between unequal powers, almost all the advantages ever did and ever will accrue to the greatest." We should observe in the Abbé Raynal's history of this revolution, that there is a party in France that blames the Ministry for putting themselves into the chains (*fers*) of Congress, and for not keeping us dependent enough upon them. Is it not natural for them to wish to keep us dependent upon them, that we might be obliged to accept

such terms of peace as they should think would do for us? If the House of Bourbon should be suspected by any neutral power to grow too fast in wealth and force, and be disposed to form a league against it, is it not natural for it to wish that we may be kept from any connexions with such powers, and wholly connected with it, so as to be obliged to engage with it in all its wars.

It is impossible for me to prove, that the delay of Spain to acknowledge our independence, has been concerted between the French and Spanish Ministry; but I candidly ask any man, who has attended to the circumstances of this war, if he has not seen cause to suspect it! For my own part, I have no doubt of it, and I do not know that we can justly censure it. I have ten thousand reasons, which convince me that one Minister at least has not wished that we should form connexions with Holland, even so soon as we did, or with any power; although he had no right, and therefore would not appear openly to oppose it. When I took leave of that Minister to return to America, in the spring of 1779, he desired me expressly to advise Congress to attend to the affairs of the war, and leave the politics of Europe to them, (*et laisser la politique à nous*). In 1778 or 1779, when Mr Lee and I proposed to Dr Franklin to go to Holland, or to consent that one of us should go, the Doctor would not, but wrote to that Minister upon it, and received an answer, which he showed me, advising against it; and when I received my letter of credence here, the Minister here, who follows the instructions communicated by that Minister, took all possible pains to persuade me against communicating it; and Dr Franklin, without reserve in word or writing, has constantly declared, that Congress were wrong in sending a Minister to Berlin, Vienna, Tuscany, Spain, Holland, and Petersburg, and Dr Franklin is as good an index of that Minister's sentiments as I know.

Now I avow myself of a totally opposite system, and think it our indispensable duty, as it is our undoubted right, to send Ministers to other Courts, and endeavor to extend our acquaintance, commerce, and political connexions with all the world, and have pursued this system, which I took to be also the wish of Congress and the sense of America, with patience and perseverance against all dangers, reproaches, misrepresentations, and

oppositions, until, I thank God, he has enabled me to plant the standard of the United States at the Hague, where it will wave forever.

I am now satisfied, and dread nothing. The connexion with Holland is a sure stay. Connected with Holland and the House of Bourbon, we have nothing to fear.

I have entered into this detail, in answer to your inquiry, and the only use of it I would wish to make is this, to insist upon seeing with our own eyes, using our own judgment, and acting an independent part; and it is of the last importance we should do it now thus early, otherwise we should find it very difficult to do it hereafter. I hope I have given you my sentiments, as you desired, with freedom, and that freedom, I hope, will give no offence, either in America or France, for certainly none is intended.

In your favor of the 22d of May, you direct me to draw upon Dr Franklin for my salary, and to send my accounts to you. My accounts, Sir, are very short, and shall be sent as soon as the perplexity of the treaty is over. As to drawing on Dr Franklin, I presume this was upon supposition, that we had no money here. There is now near a million and a half of florins, so that I beg I may be permitted to receive my salary here.

I have transmitted to Mr Dana your despatches, as desired in yours of the 29th of May, reserving an extract for publication in the gazettes, which the French Ambassador is of opinion, as well as others, will have a great effect in Europe. Your letter is extremely well written, and M. Dumas has well translated it, so that it will appear to advantage. Yours of the 30th of May affords me the pleasure of knowing, that you have received some letters from me this year, and I am glad you are inclined to lay that of the 21st of February before Congress. By this time I hope that all objections are removed to the memorial; but in order to judge of the full effect of that memorial, three volumes of the *Politique Hollandais*, several volumes of *De Post Van Neder Rhin*, all the Dutch gazettes for a whole year, and the petitions of all the cities should be read, for there is not one of them but what clearly shows the propriety of presenting that memorial, whose influence and effect, though not sudden, has been amazingly extensive. Indeed the French Ambassador has often signified to me lately, and more

than once in express words, *Monsieur votre fermeté a fait un très bon effet ici.*

The cypher was not put up in this duplicate, and I suppose the original is gone on to Mr Dana in a letter I transmitted him from you sometime ago, so that I should be obliged to you for another of the same part.

Rodney's victory came, as you hoped it would, too late to obstruct me. I was well settled at the Hague, and publicly received by the States and Prince before we received that melancholy news. If it had arrived sooner, it might have deranged all our systems, and this nation possibly might have been now separately at peace, which shows the importance of watching the time and tide, which there is in the affairs of men.

You require, Sir, to be furnished with the most minute detail of every step, that Britain may take towards a negotiation for a general or partial peace. All the details towards a partial peace, are already public in the newspapers, and have all been ineffectual. The States-General are firm against it, as appears by their instructions to their Ministers. Since the conversations between me and Digges first, and Mr Laurens afterwards, there has never been any message, directly or indirectly, by word or writing, from the British Ministry to me. It was my decided advice, and earnest request by both, that all messages might be sent to Paris to Dr Franklin and the Count de Vergennes, and this has been done. Dr Franklin wrote me, that he should keep me informed of everything that passed by expresses; but I have had no advice from him since the 2d of June. Your despatches have all gone the same way, and I have never had a hint of any of them. I hope that Dr Franklin and Mr Jay have had positive instructions to consent to no truce or armistice, and to enter into no conferences with any British Minister, who is not authorised to treat with the United States of America.

Some weeks ago I agreed with the Duc de la Vauguyon to draw up a project of a memorial to their High Mightinesses, proposing a triple or quadruple alliance, according to my instructions to that purpose. The Duke, in his private capacity, has declared to me often that he is of opinion, that it would be advisable to make this proposition as soon as the treaty of commerce is signed; but could not give me any ministerial advice without consulting the Count de Vergennes. We agreed that he should transmit the project to the

Count. Two days ago, the Duke called upon me, and informed me, that he had the Count's answer, which was, that he did not think this the time, because it would tend to throw obscurity upon the instructions lately given by the States-General to M. Brantzen, not to make any treaty or armistice, but simultaneously with all the belligerent powers.

By the tenth article of the Treaty of Alliance, the invitation or admission is to be made by concert. From my instructions, I supposed, and suppose still, that the concert was made at Philadelphia, between Congress and the Chevalier de la Luzerne, by the order of the King, his master; and my instructions being positive and unconditional to make the proposition, I shall be somewhat embarrassed. On the one hand, I would preserve not only a real harmony, but the appearance of it, between all steps of mine, and the Councils of the French Ministers. On the other, I would obey my instructions, especially when they are so fully agreeable to me, at all events. The proposition would have a good effect in England, in Holland, in France, America, and in all the neutral countries, as I think, and it could do no harm, that I can foresee. Nay, further, I am persuaded, that the French Ministry themselves, if they were to give me their private opinions, as the Duc de la Vauguyon does, would be glad if I should make the proposition against their advice.

It is possible, however, that they may secretly choose (notwithstanding the offer made at Philadelphia) not to be bound in an alliance with America and Holland. They may think they shall have more influence with their hands unbound, even to a system that they approve and mean to pursue. It is amidst all these doublings and windings of European politics, that American Ministers have to decide and act. The result is clear in my mind, that although it is proper to be upon good terms, and be communicative and confidential with the French Ministers, yet we ought to have opinions, principles, and systems of our own, and that our Ministers should not be bound to follow their advice, but when it is consonant to our own; and that Congress should firmly support their own Ministers against all secret insinuations. They must see, that a Minister of theirs, who is determined, as he is bound in honor, to be free and independent, is not in a very delectable or enviable situation in Europe, as yet.

There is but one alternative. Either Congress should recall all their Ministers from Europe, and leave all negotiations to the French Ministry, or they must support their Ministers against all insinuations. If Congress will see with their own eyes, I can assure them, without fear of being contradicted, that neither the color, figure, nor magnitude of objects will always appear to them exactly as they do to their allies. To send Ministers to Europe, who are supposed by the people of America to see for themselves, while in effect they see, or pretend to see nothing, but what appears through the glass of a French Minister, is to betray the just expectations of that people.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, September 7th, 1782.

Sir,

In answer to your letters, demanding my accounts, I have the honor to enclose the three numbers, 1, 2, 3.

No 1, is the account of my salary for two years and a half, and the payment of it by Dr Franklin, in obedience to the orders of Congress, the whole amounting to £6,250 sterling.^[9]

No 2, is the account for the purchase of the *Hôtel des Etats-Unis de l'Amérique*, which amounts to fifteen thousand two hundred and seven florins, seven stivers, and eight duits. Over against it I have given credit for the cash I received of Messrs de Neufvilles' loan, six thousand six hundred and fifty florins. I have also given credit for twelve thousand four hundred and twentyeight French livres and five sols, which I received of M. Lagoanère in Spain. I have been informed, it was the intention of Congress,

that the expenses of their Ministers to the places of their destination should be borne in addition to their salaries. The expenses, made by the Continental Navy Board, for the accommodations of the voyage, were, no doubt, intended to be so, for which reason I have taken no notice of them in my accounts, either of the first or second voyage. But whether the expenses of our horrid journey through Spain come within the intention of Congress or not, I cannot tell. It was our misfortune to be cast, in a leaky ship, on the Spanish coast, and to make a very distressing, and very expensive journey by land to Paris; but whether it is the design of Congress to allow us this expense or not, I know not, and very cheerfully submit to their decision. If they should allow it, they will erase it from this account, No. 2. But in that case they should erase another article from No. 3.

No. 3. That article is the first; four hundred dollars stolen out of my chest at Dr Franklin's. After I received my commission from Congress to borrow money in Holland, Mr Thaxter was obliged to come to assist me; but as it was not certain I should stay in Holland, it was not proper to remove my baggage from Paris. Accordingly, I wrote to Dr Franklin, requesting him to give house-room to my chests, which he was kind enough to agree to. They were all accordingly carried there; but while there, some thief broke out the bottom of one of my chests and carried off four hundred dollars, which I could never hear of. Mr Dana and Mr Thaxter knew, that the money was there, and Dr Franklin knows it was stolen; and as this misfortune has happened from my having two commissions, that called my attention different ways, and from no fault of mine, I think it is but reasonable I should be allowed it, provided Congress shall charge me with the whole sum of money received of M. Lagoanère. If they allow me that sum, I do not desire to be allowed this four hundred dollars.

The second article in No. 3, is my journey to Paris. As this was an additional and double expense, arising necessarily from my having two departments, one for peace, and one for Holland; and as it was a heavy expense, I submit to Congress the propriety of allowing it.

The other articles in No. 3, are deductions from my salary, which Dr Franklin wrote me ought to be allowed me by Congress, but he did not think himself authorised to pay any more than my net salary; so that all

charges must fall upon me; whereas I apprehended the intention of Congress was, that the net salary should be paid me, and all necessary charges attending the payment of it, to be borne by the public. I submit it, however, to their decision.

The other articles, of house rent, stationary, salaries of clerks, postage of letters, and extra entertainments, are articles, which Dr Franklin wrote me he had charged to Congress, and since told me, that Mr Jay was of the same opinion with him and me, that they ought to be. I have not sent any particular account of these things, and shall not, until I know the determination of Congress; because it is extremely difficult for me to make out an account of them. My life has been such a wandering pilgrimage, that I have not been able to keep any distinct account of them. They are scattered about in thousands of receipts, with other things, which will require more time to bring together than I will spend upon it, until I know the pleasure of Congress. My house rent has, on an average, cost me more than one hundred and fifty pounds sterling a year, although mostly I have lived in furnished lodgings. I have had but one clerk, Mr Thaxter, to whom I hope Congress will make some compensation for his faithful and industrious services, in addition to what I have paid him, which has been only one hundred pounds sterling a year. If Congress will allow this to me, it may be easily added by them to the account.

The purchase of the house is a very good bargain. If Congress should pay the house rent of their Ministers, it will be cheaper here than anywhere, by reason of this purchase; if not, their Minister here may pay interest of the purchase money for rent, to Congress, as well as another. But in that case he will live at a cheaper rate than any other Minister. I have been at a small additional expense for repairs, which has put the house in order; but as the accounts are not yet brought in, I cannot exactly tell the sum. When they come in, I shall draw on the Messrs. Willinks, Van Staphorsts, and de la Lande and Fynjè, for the money, unless I shall have contrary orders from Congress.

I have ever made a large expense for newspapers, for the sake of public intelligence, and have sent them as often as I could, and in great numbers,

to America. As I ever have, I ever shall send them all there, and if Congress shall think this a proper charge to the public, it may be added hereafter.

I have the honor to be, &c.,

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, September 15th, 1782.

Dear Sir,

I have been favored with your letters from the 19th of April to the 5th of July, by the *Heer Adams*. How impatiently they have been expected, you will be able to judge, by mine of the 29th ult. which you will receive with this. The events they announce, are considered of the utmost importance here, and have been directed to be officially communicated to the different States.

Your loan is approved, and the ratification herewith transmitted. The resolution, which will accompany this, will be a sufficient spur to induce you to extend every nerve to get it filled; for if the war continues, it will be essential to our exertions; if it should terminate, it will not be less necessary to enable us to discharge our army; in every view it is necessary. In the present situation of the States, money can be raised but slowly by taxation. New systems must be introduced, which cannot without difficulty be adopted in the hurry, confusion, and distress of a war. They will, however, be adopted. Congress are constantly employed in discussing the means for a regular payment of the interest, and the gradual discharge of the principal of their debt.

The other resolution arises from the difficulty of ascertaining what are really the funds of the United States in Europe, when more than one person can dispose of them. I am satisfied this resolution will meet your

approbation, from the rule which you say you have prescribed to yourself. It will, I dare say, be equally agreeable to our Ministers to be released from the troublesome task of bankers to the United States.

You mention the negotiations on the tapis in Paris, but so slightly, as to leave us in the dark concerning their progress, presuming, (as, indeed, you might have done, on probable grounds) that we should receive information on that subject from Dr Franklin, but, unfortunately, we have learnt nothing from him. I must beg, therefore, in order to open as many channels of information as possible, that you would give me, not only the state of your own affairs, but every other information, which you may receive from our other Ministers, or through any other authentic channel.

I observe your last memorial, or note, is in French. Would it not be expedient, and more for our honor, if all our Ministers at every Court were to speak the language of our own country, which would at least preserve them from errors, which an equivocal term might lead them into. I mention this, merely as a hint, which is submitted to your judgment.

We are informed that the *Aigle* and *Gloire*, two frigates from France, have just entered the Capes, closely pursued by a British ship of the line, and three frigates. It is strongly apprehended from the situation in which they were left, that they must either be destroyed, or fall into the enemy's hands.

Pigot is arrived at New York, with twentysix sail of the line. The late changes in administration seem to have made such a change here, that I much doubt whether they will quit us this fall, at least, till they hear again from England, though they certainly were making every disposition for it before. I will keep this letter open till I hear the fate of the frigates, and know whether our despatches by them can be preserved.

M. Dumas's application is before Congress. They may possibly appoint him Secretary to the Legation, which I heartily wish they may, as he certainly has been an assiduous and faithful servant. But there is no probability of their going further, as they would not choose to appoint any but an American to so important an office, as that of *Chargé des Affaires*. Nor will their present system of economy permit them to make so great an addition

to his salary as you mention, which is much greater than is usually allowed to secretaries, as their circumstances require it to be less.

September 18th. The Aigle, Captain La Fouche, has been driven on shore, and is lost within the Capes; her despatches, money, and passengers, have, however, happily been saved. The Gloire, the other frigate, has arrived at Chester. I find no despatches from you among the letters that have come to hand; nor anything from Holland, but duplicates of letters from M. Dumas. Congress yesterday passed the annexed resolution, which needs no comment.

I am, Sir, &c.

ROBERT R. LIVINGSTON

TO ROBERT R. LIVINGSTON.

The Hague, September 17th, 1782.

Sir,

This morning, I was in conference with M. Fagel, in order to make the last corrections in the language of the treaty, which is to be executed in English and Dutch, as that with the Crown of France, was in English and French. We have now, I hope, agreed upon every word, if not every point, and nothing remains, but to make five fair copies of it for signature, which, however, is no little labor. The Secretary thinks he shall accomplish them in the course of this week, and part of the next, so that they may be signed by the latter end of next week, or perhaps the middle. The Secretary, who has always been complaisant, was more so than ever today. He congratulated me, upon the prospect of a speedy conclusion of this matter; hoped it would be highly beneficial to both nations; and that our posterity might have cause to rejoice in it even more than we. He says the usage is, for two Deputies to sign it, on the part of Holland, and one on the part of each other Province, so that there will be eight signers in behalf of the Republic.

It is now nearly five months since I was publicly received, and proposed a project of a treaty. All this time it has taken the several Provinces and cities to examine, make their remarks, and fresh propositions, and bring the matter to a conclusion. It would not have been so long, however, if the Court had been delighted with the business. But, in a case where unanimity was requisite, and the Court not pleased, it was necessary to proceed with all the softness, caution, and prudence, possible, that no ill humors might be stirred. Yet, in a case, where the nation's heart is so engaged, in which its commerce and love of money is so interested, what wretched policy is it in this Court, to show even a lukewarmness, much more an aversion. Yet, such is the policy, and such it will be. The Prince of Orange is, to all appearance, as incurable as George the Third, his cousin.

I was afterwards an hour with the French Ambassador, at his house. He tells me, his last letters from the Count de Vergennes say, that he has yet seen no appearance of sincerity on the part of the British Ministry, in the negotiations for peace. Of this, Congress will be easily convinced by the copies I have transmitted of the commissions of Mr Fitzherbert and Oswald.

The subject of our conversation was the means of getting out the Dutch fleet, which is now in the Texel, although the British fleet, under Milbank, is returned to Portsmouth, and probably sailed with Lord Howe for Gibraltar. I asked the Duke, where was the combined fleet? His last accounts were, that they were off Cape Ortegal, endeavoring to get round Cape Finisterre to Cadiz. He speaks of it, as doubtful, whether they will give battle to Lord Howe, because the Spanish ships, with an equal number of guns, are of a smaller caliber than the English; but hopes that the blow will be struck before Howe arrives. The means of getting the fleet out of the Texel to intercept a fleet of English ships from the Baltic, came next under consideration. But the wind is not fair. It might have gone out, but they had not intelligence.

I asked, who it was that governed naval matters? He answered, the Prince. But surely the Prince must have some assistance, some confidential minister, officer, clerk, secretary, or servant. If he were a Solomon, he could not manage the fleet, and the whole system of intelligence, and orders concerning it, without aid. He said, it is the College of the Admiralty, and sometimes M. Bisdom, who is a good man, and sometimes M. Van der Hope, who may be a good man, he has sense and art, but is suspected. Very well, said I, M. Bisdom and M. Van der Hope ought to be held responsible, and the eyes of the public ought to be turned towards them, and they ought to satisfy the public. The Duke said the Prince is afraid of the consequences. He knows that the sensations of the people are very lively at present, and nobody knows what may be the consequence of their getting an opinion, that there has been negligence, or anything worse, which may have prevented them from striking a blow. I asked, if they had any plan for obtaining intelligence, the soul of war, from England? And he said the Grand Pensionary told him, he paid very dear for intelligence.

However, I cannot learn, and do not believe that they have any rational plan for obtaining intelligence necessary from every quarter, as they ought. They should have intelligence from every seaport in France, England, Scotland, Germany, and all round the Baltic, and they should have light frigates and small vessels out. But when war is unwillingly made, everything is not done. The next subject was the proposition from Amsterdam, for renewing the concert of operations for the next campaign.

Congress may hear of some further plans for a separate peace between Holland and England, but they will not succeed. The Republic will stand firm, though it will not be so active as we could wish, and the concert of operations will be renewed.

I have the honor to be, &c.

JOHN ADAMS.

***Extract from the Records of the Resolutions of their High
Mightinesses the States-General of the United Netherlands.***

Tuesday, September 17th, 1782. "The Lord Van Randwyk and others, Deputies of their High Mightinesses for the Department of Foreign Affairs, in obedience to, and in compliance with their resolution of the 23d of April of the present year, having conferred with Mr Adams, Minister Plenipotentiary from the United States of America, respecting the entering into a treaty of amity and commerce with the said States, reported to this Assembly, that the said Mr Adams, on the 26th of April thereafter, did deliver to them a plan of such a treaty, requesting the same might be examined, and that such articles might be added, as might be deemed most serviceable. That the said gentlemen, Deputies, after having consulted and advised with the committees of the respective colleges of the Admiralty upon the said plan or sketch of a treaty, made sundry observations thereon, and also sundry separate propositions, all which on the 26th of August last they communicated to the said Mr Adams, who, on the 27th following, returned his answer thereto; which having compared with the said

propositions, and finding the same in substance conformable thereto, and all difficulties that had occurred entirely removed, they drew up a new treaty, and also a new convention on the subject of retaken prizes, in conformity to the determination that has been previously adopted and resolved on, and the treaties so prepared, they handed to Mr Adams, on the 6th of this current month, who, since, has declared himself perfectly satisfied therewith.

"Wherefore, the said gentlemen, Deputies for Foreign Affairs, submit it to the consideration of their High Mightinesses to determine, whether it would not be proper and necessary to authorise them to conclude and sign with Mr Adams, the treaty and convention aforesaid.

"Whereupon having deliberated, it is found and judged right, that the said treaty and convention be drawn out afresh, and fair copies thereof made, in order that the finishing hand may be put thereto; and the said Lord Van Randwyk, and others, their High Mightinesses' Deputies for Foreign Affairs, are hereby requested and authorised to conclude and sign the said treaty and convention with the aforesaid Mr Adams.

W. Z. VAN BORSSELE.

Compared with the record.

H. FAGEL."

TO ROBERT R. LIVINGSTON.

The Hague, September 17th, 1782.

Sir,

You will naturally inquire, whether the neutral powers will continue their neutrality, or whether the neutral confederacy will be broken?

No certain answer can be given to these questions. We must content ourselves with probabilities, which are strong for the continuance of the neutrality. Who indeed should break it? The Emperor was thought to be the most unlikely potentate to accede to it; but he has acceded and has taken several steps, which prove that he will not break it, at least by leaning towards England. Sweden is the steady friend to France. The King of Prussia, whose affections and inclinations are certainly towards France and Holland, and alienated from England, would certainly at this age of life be too cautious a politician to wage war for England, against the Houses of Bourbon and Austria, Holland and America.

There remains only Russia and Denmark. What can Russia do? This is a maritime war. She cannot assist the English with land forces; a hundred thousand men would do no good to England, on land. Her boasted fleet, added to that of England, would only weaken it for several reasons. Among the rest, because England must maintain it with money, if not with officers and men, for cash is wanting in Russia. Denmark remains, but what can she do? Her Islands in the West Indies, and her trade are at our mercy, and she would not have force enough to defend her own, much less to assist England, if she should declare war.

A doctrine prevails that the acknowledgment of the independence of America, is a hostility against England, and consequently a breach of the neutrality. Our friends have sometimes favored this idea. The Duc de la Vauguyon has often expressed this sentiment to me; and if I am not mistaken, the Marquis de Verac has said the same to Mr Dana. If this opinion is not clear, it is very impolitic to favor it. The Court of France, in their public memorials, have denied it, and it would be difficult to prove it, either by the law or practice of nations. Sending or receiving Ambassadors, entering into peaceful commercial treaties, or at least negotiating at Philadelphia, the rights of neutral nations, is not taking arms against Great Britain.

But if an acknowledgment of our independence is a hostility, a denial of it is so too, and if the maritime confederation forbids the one, it forbids both. None of the neutral nations can take the part of Great Britain, therefore,

without breaking to pieces that great system, which has cost so much negotiation, and embraces so great a part of mankind.

The neutral powers set so high a value upon it, and indeed make so great profit by it, that I think none of them will take the part of Great Britain. The connexions of the Duke Louis of Brunswick in Denmark and Russia, have set some little machines in motion, partly to favor him, and partly to hold out an appearance of something fermenting for the benefit of Great Britain. But these will never succeed so far as to draw any nation into the war, or to incline this Republic to make a separate peace.

It is to this source that I attribute certain observations that are circulated in pamphlets and in conversation, "that there is at present an incoherence in the general system of Europe. That the Emperor has deranged the whole system of the equilibrium of Europe, so that if ever the Northern Powers should think of stopping by a confederation the preponderance of the Southern Powers, Holland will be unable, on account of the demolition of the barriers, to accede to that confederation."

M. Magis, who has been eight and twenty years Envoy at the Hague from the Bishop of Liege, and who converses more with all the foreign Ministers here, than any other, has said to me, not long since, "Sir, the wheel rolls on too long and too rapidly one way; it must roll back again, somewhat, to come to its proper centre. The power of the House of Bourbon rises, and that of Great Britain sinks too fast, and I believe, the Emperor, although he seems perfectly still at present, will come out at length, and take the greatest part of any power in the final adjustment of affairs."

The Count de Mirabel, the Sardinian Minister, said to me, upon another occasion, "your country, Sir, will be obliged in the vicissitudes of things, to wheel round, and take part with England, and such allies, as she may obtain, in order to form a proper balance in the world." My answer to both was, "these sentiments betray a jealousy of a too sudden growth of the power of the House of Bourbon; but whose fault is it, if it is a fact, (which it does not appear to be as yet) and whose fault will it be, if it should hereafter become a fact? Why do the neutral powers stand still and see it, or imagine they see it, when it is so easy to put a stop to it? They have only to acknowledge American independence, and then, neither the House of Bourbon nor

England will have a colorable pretence for continuing the war, from which alone the jealousy can arise."

The Prince de Gallitzin said, not long since, that the conduct of this Republic, in refusing a separate peace, &c. he feared would throw all Europe into a war, there were so many pretensions against England. I quote these sayings of foreign Ministers, because you express a desire to hear them, and because they show all the color of argument in favor of England that anybody has advanced. All these Ministers allow that American independence is decided, even the Ministers from Portugal, within a few days said it to me expressly. It is therefore very unreasonable in them to grumble at what happens, merely in consequence of their neutrality.

It is the miserable policy of the Prince of Orange's counsellors, as I suppose, which has set a few springs in motion here. M. Markow, one of the Ministers of Russia, and M. St Saphorin, the Minister from Denmark, are the most openly and busily in favor of England. But if, instead of endeavoring to excite jealousies and foment prejudices against the House of Bourbon, or compassion towards England, they would endeavor to convince her of the necessity of acknowledging American independence, or to persuade the neutral powers to decide the point, by setting the example, they would really serve England, and the general cause of mankind. As it goes at present, their negotiations serve no cause whatever, that I can conceive of, unless it be that of the Duke of Brunswick, and, in the end, it will appear that even he is not served by it.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, September 23d, 1782.

Sir,

As this is a moment of great expectation, news of the greatest importance from the East Indies, from the West Indies and North America, from Gibraltar, from Lord Howe's fleet, and the combined fleet, being hourly looked for, I took this opportunity to return to the Spanish Minister a visit, which I owed him.

He told me, that he trembled for the news we should have from Gibraltar. I asked him if he thought there would be a battle at sea. He answered, yes. He believed the combined fleet would meet Lord Howe, and give him battle. I said, in this case it will probably be but a running fight. His Lordship's object was to protect his convoy and get into the port, and he would not stop to fight more than should be unavoidable. D. Llano, however, said, that he believed the fate of Gibraltar would be decided before Howe could arrive, either the place taken, or the assault given over. By his advices, the attack was to begin the 4th or 5th of September. Howe sailed the 12th, and would be probably twenty days at least on his way, which would leave a space of twentyseven or twentyeight days for the attack, which would decide it one way or the other.

I did not think proper to tell him my own apprehensions, and I wish I may be mistaken, but I have no expectation at all, in my own mind, that the combined fleet will meet Howe; that there will be any naval engagement; or that Gibraltar will surrender. They will make a horrid noise with their artillery against the place; but this noise will not terrify Elliot, and Gibraltar will remain to the English another year, and Lord Howe return to England, and all Europe will laugh. England, however, if she were wise, would say, what is sport to you, is death to us, who are ruined by these expenses. The earnest zeal of Spain to obtain that impenetrable rock, what has it not cost the House of Bourbon this war? And what is the importance of it? A mere point of honor! a trophy of insolence to England, and of humiliation to Spain! It is of no utility, unless as an asylum for privateers in time of war; for it is not to be supposed, that the powers of Europe, now that the freedom of commerce is so much esteemed, will permit either England or Spain to make use of this fortress and asylum as an instrument to exclude any nation from the navigation of the Mediterranean.

From the *Hôtel d'Espagne*, I went to that of France, and the Duc de la Vauguyon informed me that he had a letter from the Count de Vergennes, informing him that he had received, in an indirect manner, a set of preliminary propositions, as from the British Ministry, which they were said to be ready to sign, that he had sent M. de Rayneval to London, to know with certainty whether those preliminaries came from proper authority or not.

Thus we see, that two Ministers from England, and another from Holland, are at Paris to make peace. The Count d'Aranda is said to have powers to treat on the part of Spain. Mr Franklin and Mr Jay are present on the part of the United States, and M. Gerard de Rayneval is at London. Yet, with all this, the British Ministry have never yet given any proof of their sincerity, nor any authority to any one to treat with the United States. I believe the British Ministry, even my Lord Shelburne would give such powers if he dared. But they dare not. They are afraid of the King, of the old Ministry, and a great party in the nation, irritated every moment by the refugees, who spare no pains, and hesitate at no impostures, to revive offensive hostilities in America. If Gibraltar should be relieved, and their fleets should arrive from the West Indies and the Baltic, and they should not have any very bad news from the East Indies, the nation will recover from its fright, occasioned by the loss of Cornwallis, Minorca, and St Kitts, and the Ministry will not yet dare to acknowledge American independence. In this case, Mr Fox and Mr Burke will lay their foundation of opposition, and the state of the finances will give them great weight. But the Ministry will find means to provide for another campaign.

But to return to the Duc de la Vauguyon, who informed me further, that he had received instructions to propose to the Prince of Orange a new plan of concert of operations, viz; that the Dutch fleet, or at least a detachment of it, should now, in the absence of Lord Howe, sail from the Texel to Brest, and join the French ships there, in a cruise to intercept the British West India fleet. The Prince does not appear pleased with the plan. He has not yet accepted it. The Grand Pensionary appears to approve it, and support it with warmth. There is now a fine opportunity for the Dutch fleet to strike a blow, either alone, upon the Baltic fleet, or in conjunction with the French, or even alone upon the West India fleet. But the main spring of the machine is

broken or unbent. There is neither capacity nor good will among those that direct the navy.

At dinner, in the course of the day, with M. Gyzelaar, M. Visscher, and a number of the co-patriots, at the *Hôtel de Dort*, they lamented this incurable misfortune. Some of them told me, that the sums of money, granted and expended upon their marine, ought to have produced them a hundred and twenty vessels of war of all sizes; whereas they have not one quarter of the number. They have no more than twelve of the line in the Texel, reckoning in the number two fifties; and they have not more than six or seven in all the docks of Amsterdam, Zealand, the Meuse and Friesland, which can be ready next year.

I have the honor to be, &c.

JOHN ADAMS.

A MEMORIAL CONCERNING THE BANK OF AMSTERDAM. [\[10\]](#)

The Bank of Amsterdam is much more simple than the denomination implies, in general, in the ideas of foreigners.

It differs widely from those of Venice, London, and others, which have a capital, formed by proprietors (actionaries) to whose profit these banks operate. That of Amsterdam makes neither commerce nor loan, but upon real specie, upon their intrinsic value, and upon matters in bars (ingots) of gold and silver.

This bank was erected in 1609. The magistrates of the city opened the project of the bank for the convenience of the merchants; but it is probable it was invented by the merchants themselves, as a remedy for the difficulty of payments, which became more and more considerable and embarrassing.

1. Because there was a great deal of foreign money in the city, with which they made payments reciprocally, amidst eternal disputes, concerning the value to be given or received.

2. Because, in the great number of coins struck by the States, diversely altered, and singularly divided, they had not all a constant circulation, notwithstanding the orders of the sovereign. Some were declined, even below the fixed value, and others were worth more.

3. The external cashiers, which the merchants employed in those times, as they do at present to receive the money, which is due to them in the city, and to pay in their turn what they owe, profited, of the two inconveniences beforementioned to make to themselves gain, which augmented the disorder and the vexation of payments, as well as in writings.

The merchants contrived then to make reciprocal payments, by a simple transposition of debit from one, to the credit of the other; but to this end, it was necessary to assure the validity of payments made in this manner, by a known and real value, and solidly placed under the authority and warranty of the city. The magistracy lent themselves to arrangements, which answered to all these conditions, so that a number of merchants and cashiers deposited at first at their pleasure, a sum in specie, more or less considerable, which was then designated by the commissaries of the bank, as ducats, or rix dollars and others, which money was placed in one of the vaults of the State-House, under the departments assigned for the carrying on of this bank. Those, who carried there their money, were credited for it, upon a leaf of the great book, which was shown to them, and from that time they might make reciprocal payments, as is practised at this day, without handling any cash, with this simple formula, viz.

"Gentlemen, the commissioners of the bank; please to pay N. N. five thousand florins.

P. G.

Amsterdam, this ——."

By means of which, the book-keepers had not, and have not still, anything to do, but to debit P. G. with five thousand florins, and credit N. N. for the same sum; so that, if they had deposited each one ten thousand florins in cash, there would remain of it, to the credit of P. G. only five thousand florins, and N. N. would have fifteen thousand florins to his, whereof he might dispose, in his turn, the next day, in favor of one or more others having accounts open in the bank. This manner of making payments was found so convenient, and they took such a confidence in it, that all the bankers and merchants, even down to the petty traders, made haste to open an account, and to carry there money, more or less, relatively to approaching payments, which they had to make in bank; so that there was soon a sufficiency of specie deposited for a foundation of all the payments, which were from that time designed to be made in bank, viz. all the bills of exchange of above three hundred florins, drawn by foreigners upon Amsterdam, and in Amsterdam upon foreigners, all the merchandises of the East Indies, the wools of Spain, and some other articles.

It happened then, that they ceased to carry thither the monies of Holland, because the merchants, having occasion alternately, some of the money in bank for current money, and others, of current money for money in bank, they found a great facility in selling one for the other. From thence arose a commerce of agiotage, (*pour l'agio*) which had been already prepared, because it had been resolved, for good reasons without doubt, as in case of a flood of specie, &c. that the bank would not receive the monies, which they would deposit, but at five per cent below the current value; so that to have one thousand florins in bank to one's credit, it was necessary to deposit one thousand and fifty florins in current cash. Behold thus this agio establishment, and the money of the bank, worth five per cent more than the current money. This value of five per cent soon varied, because some one, who found that he had too much money in bank, and was in want of current, sought to sell the first for the second, found a purchaser, who would not give him more than four seveneighths per cent; that is to say, one thousand and fortyeight florins and fifteen stivers, for one thousand in bank. Thus of the rest in such sort, that at all times, when one would buy or sell the money in bank, there is no question but to agree upon the price of the agio, which is subject to a perpetual variation, and which is more or less high, according to the wants of epochs; as for example, when the company makes its sales,

the merchants have greater want of money in bank to pay their purchases, which raises the agio, which falls again, when the company would sell that, which is come into them for current money, in which all payments are made for fitting out of vessels.

The payments of bills of exchange, being to be made, as it has been said, in bank money, the price of all exchanges of current money, which were heretofore fixed in bank money, for example, a crown tournois, of sixty sols, the intrinsic value of which, founded upon the price of the money mark, amounted to fiftyseven sols and threefourths, current money of Holland, was placed at fiftyfive sols of bank money; and thus of all the exchanges with all foreign countries; from whence it results, that having sold merchandises of a man of Bordeaux, the amount of which produces net one thousand and fifty florins current, or the credit of one thousand bank, the agio at one hundred and five, when they make him a remittance, or when he draws, they purchase so many crowns as are necessary for the one thousand florins bank, at fiftyfive sols fifteen deniers, which comes to the same thing as if they bought crowns for one thousand and fifty florins current, at fiftyseven and threefourths sols current. When any one would open himself an account in the bank, he goes there himself, and puts his signature upon a book to make it known, and they give him the page upon which his account shall be opened, which he ought always to place at the head of the billet, by which he pays.

They begin with debiting him with ten florins, once for all, after which he pays no more to the bank, but two sols for each bill that he writes, with which they debit him twice a year, when they make the balance of the books, viz. in January and July, at which epochs, each one is obliged to settle accounts with the bank, and to go and demand his pay, to see if they accord with the bank, under the penalty, after six weeks, if they fail or neglect, of paying a fine of twentyfive florins. The bank is shut at these epochs, and continues shut during fourteen or fifteen days, during which time, the bills of exchange sleep, and although they fall due the first day of the shutting, or any day following, they cannot be protested until the second or third day after the opening. There are other little shuttings of the bank, at the feasts, Christmas, Lent, Pentacost; and at the fair, which continue but a few days. One cannot dispose, till the next day, of the money, which enters

by the bank, except the second days of the openings, and that of Pentacost. They call these days, the "returns of bills" (*revirement de parties*) or the "recounting," because they pay with that which they receive. One ought to take care, not to dispose beyond one's credit, for not only all the drafts whereof one has disposed are that day stopped, that is to say they are invalid, but one is condemned and obliged to pay a fine of triple of the whole, which one has disposed of more than that which one has in bank.

The person who writes, ought himself to carry his draft to the bank, or at least his attorney, between eight and eleven o'clock in the morning; those who come after until three o'clock, pay six sols fine for each draft. The merchants ordinarily pass a procuration, which it is necessary to renew once a year, to one of their clerks to carry their drafts and demand their payments, which no other person can do.

They transfer every day in the week, except Sunday, and during the shuttings, which are announced some weeks beforehand.

For arranging the merchants, and also for maintaining and favoring the price of matters, and specie of gold and silver, both foreign and that of the country, which are in strictness only of mere commerce, as our ducats and rix dollars, the bank receives them at a value determined and relative to the weight and the title known by the pay-master of the bank, but the sum which they there receive ought not to be below two thousand five hundred florins. The bank gives receipts for the specie, &c. which they deposit there for six months, which are to the bearer; so that, within the time, if the specie or matters exceed, the proprietor may sell his receipt to another, who pays him the surplus of what they are worth of the price at which the bank has received them, and this receipt may thus pass through several hands, as often happens by the idea which they form of the excess or of the deficiency. He who is the bearer of this receipt, may go and take away these matters or specie when he will, in paying at the bank, the value which it has advanced to him who has deposited them, and, moreover, half of a florin for the keeping of them the six months, both upon gold and upon bars of silver, and quarter of a florin upon Mexican dollars, rix dollars, and some other species of money. When this term is expired, one may cause to be renewed the receipts, in paying at the bank the half or quarter florin due thus from

six months to six months; but if one let pass that time without taking away his deposit, or without renewing it, it is devolved to the bank, which keeps it to its profit.

The bank is governed under the inspection of the Burgomasters, by six commissaries, chosen and named by the Burgomasters from among the magistrates and principal merchants, under the care of whom is the deposited treasure. They furnish every year in the month of February, a balance of the bank to the Burgomasters, the youngest of whom goes down with them into the vaults, to verify and take account of the number of sacks, and of the specie contained in said balance, and forming the real and effective fund that each one has in the bank; and whatever may have been said or suspected upon this subject, it is very certain, that the fund rolling through the bank, is really there deposited in specie, ingots, and bars of gold and silver. This treasure is not, moreover, so immense as many people imagine. Some authors have written, (without doubt by estimation) that it went as far as three hundred millions of florins, which is not credible, when we consider the returns of the bills (*revirements de parties*) which are continually made, between those who have reciprocal payments to make among themselves. We know very nearly, that there are scarcely more than two thousand accounts open upon the books of this bank; so that in order to make three hundred millions of florins, it is necessary that these two thousand persons should have, one with another, one hundred and fifty thousand florins each in bank, which is beyond all probability, especially, if we consider that A and B having there each one, ten thousand florins, might reciprocally pay themselves sixty thousand florins per week, and thus make a circulation of transposition of one hundred and twenty thousand per week, with twenty thousand of *sign effective*. So that reducing the year to forty weeks of payment, with regard to the intervals which take place in the times of the shuttings, which is too large an allowance, it would result, that with fifty millions, there might be made twelve thousand millions of florins of payments per annum. According to this, and considering that the money in bank brings in no benefit, it is easy to imagine, that there is not much more than is necessary for the circulation of payments in bank, and that its treasure cannot be so considerable as many people imagine.

The bank never lends upon any species of merchandise, nor discounts any paper, nor makes any other profit than the half or quarter of a florin upon the gold and silver there deposited, and which, added to the ten florins for the opening of accounts, and two stivers for each draft of which I have spoken, serves to pay all the expenses of clerks and others, which is occasioned by the bank. The overplus, which is not very considerable, goes to the profit of the city.

No arrest or attachment can be made of any moneys which are in bank, under any pretext; the commissaries, book keepers, and others, who are in the service of the bank, are bound by oath to say nothing of what passes there. No man has a right to require of the bank, the reimbursement in specie of the sum with which he is credited; (a) each one having his account only in the receipts of the commissaries, which are in the term of six months. It is certain, that the primitive fund, the receipts for which they have suffered to be extinguished, is no longer demandable, and that one cannot force the commissioners to give specie, but it is not, therefore, the less true, that this fund exists really, and one ought not, and cannot doubt, that if the city was threatened with an inevitable invasion, and if the merchants should require their money, to place it elsewhere in safety, that the Burgomasters would cause it to be paid, by giving so many florins in current money, or value in bars or ingots, with which one should be credited.

(a) The author is here mistaken. All those who have an account in bank, may demand to be paid in ready money, but they cannot require the agio. By consequence, while the bank shall have credit, and there shall be commerce at Amsterdam, which cannot be carried on without the money of the bank, and while there shall be, consequently, an agio, no man will go and demand in ready money, a sum which is worth five per cent more. The author has not well distinguished between the sum of money, or rather the specie, which one may redemand in the term of six months, by means of a receipt, and the money for which one is credited in bank. Behold the difference.

When they have received at the bank a certain quality of gold or silver, whether in money or in bars, for the value of which the bank has credited upon its books the proprietor, (not according to the value which this money has in commerce, but according to its weight and denomination,) in this case, the depositor, or he who holds the receipt, has the right, by means of this receipt, and in restoring to the bank the sum for which the first depositor had been credited, to withdraw this gold or silver, paying one half per cent for the keeping. But, the six months elapsed, the receipt becomes useless, the gold or silver remains in propriety to the bank, and the depositor must content himself to have received in its place, the sum which this gold or silver has been valued at, by which sum he has been credited upon the books, and whereof he might have disposed as he saw good. It is this sum that he has the faculty of redemanding in ready money, when, and as often as he judges proper, and as he is acknowledged upon the books to be a creditor for that sum; but they are not bound to restore him more than the net sum without agio.

No man will be, by consequence, mad enough to cause himself to be paid four or five per cent less than the money of the bank is worth in commerce. But if the money of the bank should be so discredited, that there should be no longer an agio, in that case, all the world would have a right to come and demand at the bank, the amount of the sums for which they are credited; and the bank, whose credit would be ruined, would be obliged, without controversy to make this payment, or to commit bankruptcy. It can never acquire a right of propriety in the capitals for which it has credit upon its books; but in case of restitution, it is not obliged to restore the same matters, or the same money for which it originally gave these credits. Over these the right is lost, with the expiration of the time established for the duration of the receipts, but it is held to the restitution of the amounts of the credits, such as they appear upon the books.

September 26th, 1782.

For the use of Congress, from

JOHN ADAMS.

TO M. DE LAFAYETTE.

The Hague, September 29th, 1782.

My Dear General,

I should have written you since the 29th of May, when I wrote you a letter, that I hope you received, if it had not been reported sometimes that you were gone, and at other times, that you were upon the point of going to America.

This people must be indulged in their ordinary march, which you know is with the slow step. We have at length, however, the consent of all the cities and Provinces, and have adjusted and agreed upon every article, word, syllable, letter, and point, and clerks are employed in making out five fair copies for the signature, which will be done this week.

Amidst the innumerable crowd of loans, which are open in this country, many of which have little success, I was much afraid that ours would have failed. I have, however, the pleasure to inform you, that I am at least one million and a half in cash, about three millions of livres, which will be a considerable aid to the operations of our financier at Philadelphia, and I hope your Court, with their usual goodness, will make up the rest that may be wanting.

I am now as well situated as I ever can be in Europe. I have the honor to live upon agreeable terms of civility with the Ambassadors of France and Spain; and the Ministers of all the other powers of Europe, whom I meet at the houses of the French and Spanish Ministers, as well as at Court, are complaisant and sociable. Those from Russia and Denmark are the most reserved. Those from Sardinia and Portugal are very civil. The Ministers of all the neutral powers consider our independence as decided. One of those even from Russia, said so not long ago, and that from Portugal said it to me within a few days. You and I have known this point to have been decided a long time; but it is but lately, that the Ministers of neutral powers, however they might think, have frankly expressed their opinions; and it is now an indication, that it begins to be the sentiment of their Courts, for they do not

often advance faster than their masters, in expressing their sentiments upon political points of this magnitude.

Pray what are the sentiments of the *Corps Diplomatique*, at Versailles? What progress is made in the negotiation for peace? Can anything be done before the British Parliament, or at least the Court of St James, acknowledge the sovereignty of the United States, absolute and unlimited?

It would give me great pleasure to receive a line from you, as often as your leisure will admit.

With great esteem, I have the honor to be, Sir, your most obedient servant,

JOHN ADAMS.

TO JOHN JAY.

The Hague, October 7th, 1782.

Dear Sir,

Your favor of the 28th ultimo, was brought me last night. On Friday last I was notified, by the messenger of their High Mightinesses, that the treaties would be ready for signature on Monday, this day. I am, accordingly, at noon, to go to the Assembly, and finish the business. But when this is done, some time will be indispensable, to prepare my despatches for Congress, and look out for the most favorable conveyances for them. I must also sign another thousand of obligations at least, that the loan may not stand still. All this shall be despatched with all the diligence in my power, but it will necessarily take up some time, and my health is so far from being robust, that it will be impossible for me to ride with as much rapidity as I could formerly, although never remarkable for a quick traveller. If anything in the meantime should be in agitation, concerning peace, in which there should be any difference of opinion between you and your colleague, you have a right to insist upon informing me by express, or waiting till I come.

8th. The signature was put off yesterday until today, by the Prince being in conference with their High Mightinesses, and laying his orders to the navy before them.

With great regard, your humble servant,

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, October 8th, 1782.

Sir,

At twelve o'clock today I proceeded, according to appointment, to the State-House, where I was received with the usual formalities, at the head of the stairs, by M. Van Santheuvel, a Deputy from the Province of Holland, and M. Van Lynden, the first noble of Zealand, and a Deputy from that Province, and by them conducted into the Chamber of Business, (*chambre de besogne*) an apartment belonging to the Truce Chamber, (*chambre de trêve*) where were executed the Treaty of Commerce and the convention concerning recaptures, after an exchange of full powers.

The Treaty and Convention are both closed, or at least an authentic copy of each. If the copy should arrive before the original, which I shall reserve to be sent by the safest opportunity I can find, it will be a sufficient foundation for the ratification of Congress. I hope the treaty will be satisfactory to Congress. It has taken up much time to obtain the remarks and the consent of all the members of this complicated sovereignty. Very little of this time has been taken up by me, as Congress will see by the resolution of their High Mightinesses, containing the power to the Deputies to conclude the treaty; for although all communications were made to me in Dutch, a language in which I was not sufficiently skilled to depend upon my own knowledge, M. Dumas was ever at hand, and ever ready to interpret to me everything in French, by which means I was always able to give my

answers without loss of time. The papers, in which the whole progress of this negotiation is contained in Dutch, French, and English, make a large bundle, and after all, they contain nothing worth transmitting to Congress. To copy them would be an immense labor, to no purpose, and to send the originals, at once would expose them to loss.

Several propositions were made to me, which I could not agree to, and several were made on my part, which could not be admitted by the States. The final result contained in the treaty, is as near the spirit of my instructions as I could obtain, and I think it is nothing materially variant from them. The Lords, the Deputies, proposed to me to make the convention a part of the treaty. My answer was, that I thought the convention, which is nearly conformable with that lately made with France, would be advantageous on both sides; but as I had no special instructions concerning it, and as Congress might have objections, that I could not foresee, it would be more agreeable to have the convention separate; so that Congress, if they should find any difficulty, might ratify the treaty without it. This was accordingly agreed to. It seemed at first to be insisted on, that we should be confined to the Dutch ports in Europe, but my friend, M. Van Berckel, and the merchants of Amsterdam, came in aid of me, in convincing all, that it was their interest to treat us upon the footing *gentis-amicissimæ*, in all parts of the world.

Friesland proposed, that a right should be stipulated for the subjects of this Republic to purchase lands in any of our States; but such reasons were urged as convinced them, that this was too extensive an object for me to agree to; 1st. It was not even stipulated for France. 2dly. If it should be now introduced into this treaty, all other nations would expect the same, and although at present it might not be impolitic to admit of this, yet nobody would think it wise to bind ourselves to it forever. 3dly. What rendered all other considerations unnecessary, was, that Congress had not authority to do this, it being a matter of the interior policy of the separate States. This was given up. A more extensive liberty of engaging seamen in this country was a favorite object; but it could not be obtained. The *refraction*, as they call it, upon tobacco, in the weigh-houses, is a thing, that enters so deeply into their commercial policy, that I could not obtain anything, more particular or more explicit, than what is found in the treaty. Upon the whole,

I think the treaty is conformable to the principles of perfect reciprocity, and contains nothing, that can possibly be hurtful to America, or offensive to our allies, or to any other nation, except Great Britain, to whom it is indeed, without a speedy peace, a mortal blow.

The rights of France and Spain are sufficiently secured by the twentysecond article; although it is not in the very words of the project, transmitted me by Congress, it is the same in substance and effect. The Duc de la Vauguyon was very well contented with it, and the States were so jealous of unforeseen consequences from the words of the article as sent me by Congress, and as first proposed by me, that I saw it would delay the conclusion without end. After several conferences, and many proposals, we finally agreed upon the article as it stands, to the satisfaction of all parties.

The clause reserving to the Dutch their rights in the East and West Indies, is unnecessary, and I was averse to it, as implying a jealousy of us. But as it implies too a compliment to our power and importance, was much insisted on, and amounted to no more than we should have been bound to without it, I withdrew my objection.

The proviso of conforming to the laws of the country, respecting the external show of public worship, I wished to have excluded; because I am an enemy to every appearance of restraint in a matter so delicate and sacred as the liberty of conscience; but the laws here do not permit Roman Catholics to have steeples to their churches, and these laws could not be altered. I shall be impatient to receive the ratification of Congress, which I hope may be transmitted within the time limited. [\[11\]](#)

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

The Hague, October 12th, 1782.

Sir,

Yesterday afternoon M. Van der Burg Van Spieringshock, the Agent of their High Mightinesses, brought me the enclosed resolution, relative to a vessel of M. Dubbledemuts. I promised to enclose it to Congress. I would have it translated here, but I have not time. I presume Congress has, or will have, an interpreter for the Low Dutch.

It is much to be desired, that Congress would take some measures to inquire into this matter. The cause for my being so pressed for time, is, that I am preparing to set off for Paris, and have not only all my despatches to make up, to send the treaty, but have obligations to sign respecting the loan, that so essential a business may not stand still in my absence.

Mr Jay writes me, that Mr Oswald has received a commission to treat of peace with the Commissioners of the United States of America. I shall set off for Paris next week.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, October 31st, 1782.

Sir,

Having executed the treaty of commerce at the Hague, and despatched four copies of it, by four different vessels bound to America from the Texel, and having signed a sufficient number of obligations to leave in the hands of Messrs Willinks, Van Staphorsts, and de la Lande and Fynjè, and having received information from Mr Jay, that Mr Oswald had received a commission from the King his master, under the Great Seal of Great Britain, to treat with the Commissioners of the United States of America, I

set off for Paris, where I arrived on Saturday, the 26th of this month, after a tedious journey; the roads being, on account of long continued rains, in the worst condition I ever knew them.

I waited forthwith on Mr Jay, and from him learned the state of the conferences. It is not possible, at present, to enter into details. All I can say is in general, that I had the utmost satisfaction in finding, that he had been all along acting here upon the same principles upon which I had ventured to act in Holland, and that we were perfectly agreed in our sentiments and systems. I cannot express it better than in his own words; "to be honest and grateful to our allies, but to think for ourselves." I find a construction put upon one article of our instructions by some persons, which I confess I never put upon it myself. It is represented by some, as subjecting us to the French Ministry, as taking away from us all right of judging for ourselves, and obliging us to agree to whatever the French Ministers shall advise us to, and to do nothing without their consent. I never supposed this to be the intention of Congress; if I had, I never would have accepted the commission, and if I now thought it their intention, I could not continue in it. I cannot think it possible to be the design of Congress; if it is, I hereby resign my place in the commission, and request that another person may be immediately appointed in my stead.

Yesterday we met Mr Oswald at his lodgings; Mr Jay, Dr Franklin, and myself, on one side, and Mr Oswald, assisted by Mr Strachey, a gentleman whom I had the honor to meet in company with Lord Howe upon Staten Island in the year 1776, and assisted also by a Mr Roberts, a clerk in some of the public offices, with books, maps, and papers, relative to the boundaries.

I arrived in a lucky moment for the boundary of the Massachusetts, because I brought with me all the essential documents relative to that object, which are this day to be laid before my colleagues in conference at my house, and afterwards before Mr Oswald.

It is now apparent, at least to Mr Jay and myself, that, in order to obtain the western lands, the navigation of the Mississippi, and the fisheries, or any of them, we must act with firmness and independence, as well as prudence and delicacy. With these, there is little doubt we may obtain them all.

Yesterday I visited M. Brantzen, the Dutch Minister, and was by him very frankly and candidly informed of the whole progress of the negotiation on their part. It is very shortly told. They have exchanged full powers with Mr Fitzherbert, and communicated to him their preliminaries, according to their instructions, which I have heretofore transmitted to Congress. Mr Fitzherbert has sent them to London and received an answer, but has communicated to them no more of this answer than this, that those preliminaries are not relished at St James'. He excused his not having seen them for six or seven days, by pretence of indisposition, but they are informed that he has made frequent visits to Versailles during these days, and sent off and received several couriers.

How the negotiation advances between Mr Fitzherbert, and the Count de Vergennes, and the Count d'Aranda, we know not.

The object of M. de Rayneval's journey to London, is not yet discovered by any of us. It is given out, that he was sent to see whether the British Ministry were in earnest.^[12] But this is too general. It is suspected that he went to insinuate something relative to the fisheries and the boundaries, but it is probable he did not succeed respecting the former, and perhaps not entirely, with respect to the latter.

With great respect, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, November 6th, 1782.

Sir,

Two days ago arrived by Captain Barney, the letters you did me the honor to write me, the 22d, 29th, 30th, triplicate of May, 4th of July, 29th of August, and 15th of September.

I was unconditionally received in Holland, and promised upon record conferences and audiences, whenever I should demand them, before I entered into any treaty, and without this I should never have entered into any; and full powers were given to the Committee of Foreign Affairs, before I entered into any conferences with them. I have ventured upon the same principle in the affair of peace, and uniformly refused to come to Paris, until our independence was unconditionally acknowledged by the King of Great Britain. Mr Jay has acted on the same principle with Spain, and with Great Britain. The dignity of the United States, being thus supported, has prevailed in Holland and Great Britain; not indeed as yet in Spain, but we are in a better situation in relation to her, than we should have been if the principle had been departed from. The advice of the Count de Vergennes has been contrary; but however great a Minister he may be in his own department, his knowledge is insufficient and his judgment too often erroneous in our affairs, to be an American Minister.

Intelligence from Holland is impossible through France. Events in Holland can seldom be foreseen one day. When they happen, they are inserted in the gazettes, transferred to the *Courier de l'Europe*, the English and French gazettes, and get to America before it is possible for me to transmit them directly. Besides, Sir, I have sometimes thought, that my time was better employed in doing business, that might produce other events, than in multiplying copies and conveyances of despatches, which would contain nothing, but what I knew the newspapers would announce as soon; my reputation may not be so well husbanded by this method, but the cause of my country is served. I am not insensible to reputation; but I hope it has not been a principal object. Perhaps it has not been enough an object. I see so much of the omnipotence of reputation, that I begin to think so. I know very well, however, that if mine cannot be supported by facts, it will not be by trumpeters.

If it were in my power to do anything for the honor of the department or Minister of Foreign Affairs, I would cheerfully do it, because I am a friend to both; and to this end, you will, I am sure, not take it amiss if I say, that it is indispensably necessary for the service of Congress, and the honor of the office, that it be kept impenetrably secret from the French Minister in many things. The office will be an engine for the ruin of the reputation of your

Ministers abroad, and for injuring our cause in material points, the fishery, the western lands, and the Mississippi, &c. if it is not.

I thank you, Sir, for the hint about the English language. I think with you, that we ought to make a point of it, and after some time, I hope it will be an instruction from Congress to all their Ministers.

As to the negotiations for peace, we have been night and day employed in them ever since my arrival on the 26th of October. Doctor Franklin, without saying anything to me, obtained of Mr Jay a promise of his vote^[13] for Mr W. T. Franklin, to be Secretary to the commission for peace; and as the Doctor and his Secretary are in the same house, and there are other clerks enough, I suppose he will transmit to Congress details of the negotiations. I shall be ready to lend them any assistance in my power; and I will endeavor as soon as I can to transmit them myself; but after spending forenoon, afternoon, and evening, in discussions, it is impossible to transmit all the particulars. No man's constitution is equal to it.

The English have sent Mr Oswald, who is a wise and good man, and, if untrammelled, would soon settle all, and Mr Strachey, who is a keen and subtle one, although not deeply versed in such things; and a Mr Roberts, who is a clerk in the Board of Trade, and Mr Whithead, who is private Secretary to Mr Oswald. These gentlemen are very profuse in their professions of national friendship; of earnest desires to obliterate the remembrance of all unkindnesses, and to restore peace, harmony, friendship, and make them perpetual, by removing every seed of future discord. All this, on the part of Mr Oswald personally, is very sincere. On the part of the nation, it may be so in some sense at present; but I have my doubts, whether it is a national disposition, upon which we can have much dependence, and still more, whether it is the sincere intention of the Earl of Shelburne.

He has been compelled to acknowledge American independence, because the Rockingham Administration had resolved upon it, and Carleton and Digby's letter to General Washington, had made known that resolution to the world; because the nation demanded that negotiations should be opened with the American Ministers, and they refused to speak or hear, until their

independence was acknowledged unequivocally and without conditions, because Messrs Fox and Burke had resigned their offices, pointedly, on account of the refusal of the King, and my Lord Shelburne, to make such an acknowledgment; and these eloquent senators were waiting only for the session of Parliament to attack his Lordship on this point; it was, therefore, inevitable to acknowledge our independence, and no Minister could have stood his ground without it. But still I doubt, whether his Lordship means to make a general peace. To express myself more clearly, I fully believe he intends to try another campaign, and that he will finally refuse to come to any definitive agreement with us, upon articles to be inserted in the general peace.

We have gone the utmost lengths to favor the peace. We have at last agreed to boundaries with the greatest moderation. We have offered them the choice of a line through the middle of all the great lakes, or the line of 45 degrees of latitude, the Mississippi, with a free navigation of it at one end, and the river St Croix at the other. We have agreed, that the courts of justice be opened for the recovery of British debts due before the war, to a general amnesty for all the royalists, against whom there is no judgment rendered, or prosecution commenced. We have agreed, that all the royalists, who may remain at the evacuation of the States, shall have six months to sell their estates, and to remove with them.

These are such immense advantages to the Minister, that one would think he could not refuse them. The agreement to pay British debts, will silence the clamors of all the body of creditors, and separate them from the tories, with whom they have hitherto made common cause. The amnesty and the term of six months will silence all the tories, except those who have been condemned, banished, and whose property has been confiscated; yet I do not believe they will be accepted.

I fear they will insist a little longer upon a complete indemnification to all the refugees, a point, which, without express instructions from all the States, neither we nor Congress can give up; and how the States can ever agree to it, I know not, as it seems an implicit concession of all the religion and morality of the war. They will also insist upon Penobscot as the eastern boundary. I am not sure that the tories, and the Ministry, and the nation, are

not secretly stimulated by French emisaries, to insist upon Penobscot, and a full indemnification to the tories. It is easy to see, that the French Minister, the Spanish and the Dutch Ministers would not be very fond of having it known through the world, that all points for a general peace were settled between Great Britain and America, before all parties are ready. It is easy to comprehend, how French, Spanish, and Dutch emisaries, in London, in Paris, and Versailles, may insinuate, that the support of the tories is a point of national and royal honor, and propagate so many popular arguments in favor of it, as to embarrass the British Minister. It is easy to see, that the French may naturally revive their old assertions, that Penobscot and Kennebec are the boundary of Nova Scotia, although against the whole stream of British authorities, and the most authentic acts of the Governors, Shirley, Pownal, Bernard, and Hutchinson. Mr Fitzherbert, who is constantly at Versailles, is very sanguine for the refugees. Nevertheless, if my Lord Shelburne should not agree with us, these will be only ostensible points. He cares little for either. It will be to avoid giving any certain weapons against himself, to the friends of Lord North, and the old Ministry.

The negotiations at Versailles between the Count de Vergennes and Mr Fitzherbert, are kept secret, not only from us, but from the Dutch Ministers, and we hear nothing about Spain. In general, I learn, that the French insist upon a great many fish. I dined yesterday with M. Berkenrode, the Dutch Ambassador, and M. Brantzen, his colleague. They were both very frank and familiar, and confessed to me, that nothing had been said to them, and that they could learn nothing as yet of the progress of the negotiation. Berkenrode told me, as an honest man, that he had no faith in the sincerity of the English for peace as yet; on the contrary, he thought that a part of Lord Howe's fleet had gone to America, and that there was something meditated against the French West India Islands. I doubt this, however; but we shall soon know where my Lord Howe is. That something is meditating against the French or Spaniards, and that they think of evacuating New York for that end, I believe. Berkenrode seemed to fear the English, and said, like a good man, that in case any severe stroke should be struck against France, it would be necessary for Holland and America to discover a firmness. This observation had my heart on its side; but without an evacuation of New York, they can strike no blow at all, nor any very great one with it.

Mr Oswald has made very striking overtures to us; to agree to the evacuation of New York, to write a letter to General Washington, and another to Congress, advising them to permit this evacuation, to agree, that neither the people nor the army should oppose this evacuation, or molest the British army in attempting it; nay, further, that we should agree, that the Americans should afford them all sorts of aid, and even supplies of provisions. These propositions he made to us, in obedience to an instruction from the Minister, and he told us their army were going against West Florida, to reconquer that from the Spaniards. Our answer was, that we could agree to no such things; that General Washington could enter into a convention with them, for the terms upon which they should surrender the city of New York, and all its dependencies, as Long Island, Staten Island, &c. to the arms of the United States. All that we could agree to was, that the effects and persons of those, who should stay behind, should have six months to go off, nor could we agree to this, unless as an article to be inserted in the general peace.

I have the honor to be, &c.

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, November 6th, 1782.

Sir,

The scene of action is so entirely transferred to your side of the Atlantic, that scarce any occurrence among us at present is sufficiently interesting to furnish matter for a public letter.

The resolutions, which have from time to time evinced the steady determination of Congress, in no event to relinquish the great object of the war, or think of peace but in connexion with their allies, have been already transmitted to you. The military force on both sides is perfectly inactive. By

the enclosed extracts from General Carleton's, and General Washington's letters, you will see that the first is so bent on peace, that, notwithstanding the opinion of his superiors, he does not see that the war has any longer an object. It is high time that he disavows them, for their conduct is a direct disavowal of him.

The clauses of the commission to Mr Fitzherbert, which are designed to include us, are strong indications of the extreme reluctance of the British to give up their supposed dominion over this country. You have great credit with me for the judgment you have formed, from time to time, of the Court of Great Britain; though your opinions sometimes run counter to those generally received.

Nothing can be more conformable to our wishes, than the instructions you have transmitted; keep up that spirit in —— and we have nothing to fear from that quarter, but lengthy negotiations, even after they shall commence in earnest.

We have yet no accounts of the evacuation of Charleston, and that event begins daily to grow more uncertain. Such is the inconstancy of the enemy, that one may as well predict what appearances a cloud will put on two hours hence, by our knowledge of the wind, as reduce their conduct to any settled shape, by knowing their professions. Our troops have gone into winter quarters at West Point.

The French have marched to the eastward to be nearer their fleet, which lies at Boston. Part of the British fleet, consisting of fourteen sail of the line, and eight frigates, including a ship of forty guns, sailed from New York the 26th ultimo. They have such a decided superiority in the American seas, that if they had correspondent land forces, or even knew how to apply those they keep cooped up in America, they might render themselves very formidable in the West Indies. This however is, I hope, an evil, which will be ere long remedied.

Bills for the amount of your salary from January last have been regularly transmitted to Dr Franklin. You will receive with this the amount of the last quarter, ending the first of October. Mr Morris, my Secretary, will enclose you a state of your accounts. I should be glad if you would acknowledge the

receipt of these moneys, as they come to hand, since I stand charged with them in the Treasury books.

The enclosed resolution will show you, that Mr Boudinott has succeeded Mr Hanson, as President of Congress.

I have the honor to be, &c.

ROBERT R. LIVINGSTON

TO ROBERT R. LIVINGSTON.

Paris, November 8th, 1782.

Sir,

In one of your letters you suppose, that I have an open avowed contempt of all rank. Give me leave to say, you are much mistaken in my sentiments. There are times, and I have often seen such, when a man's duty to his country demands of him the sacrifice of his rank, as well as his fortune and life, but this must be an epoch, and for an object worthy of the sacrifice. In ordinary times, the same duty to his country obliges him to contend for his rank, as the only means indeed, sometimes, by which he can do service, and the sacrifice would injure his country more than himself. When the world sees a man reduced to the necessity of giving up his rank, merely to serve the public, they will respect him, and his opinions will have the more weight for it; but when the same world sees a man yield his rank for the sake of holding a place, he becomes ridiculous. This, you may depend upon it, will not be my case.

Ranks, titles, and etiquettes, and every species of punctilios, even down to the visits of cards, are of infinitely more importance in Europe, than in America, and therefore Congress cannot be too tender of disgracing their Ministers abroad in any of these things, nor too determined not to disgrace themselves. Congress will, sooner or later, find it necessary to adjust the

ranks of all their servants, with relation to another, as well as to the magistrates and officers of the separate governments.

For example, if, when Congress abolished my commission to the king of Great Britain, and my commission for peace, and issued a new commission for peace, in which they associated four other gentlemen with me, they had placed any other at the head of the commission, they would have thrown a disgrace and ridicule upon me in Europe, that I could not have withstood. It would have injured me in the minds of friends and enemies, the French and Dutch, as well as the English.

It is the same thing with the States. If Mr Jay and I had yielded the punctilio of rank, and taken the advice of the Count de Vergennes and Dr Franklin, by treating with the English or Spaniards, before we were put upon the equal footing, that our rank demanded, we should have sunk in the minds of the English, French, Spaniards, Dutch, and all the neutral powers. The Count de Vergennes certainly knows this; if he does not, he is not even an European statesman; if he does know it, what inference can we draw, but that he means to keep us down if he can; to keep his hand under our chin to prevent us from drowning, but not to lift our heads out of water?

The injunctions upon us to communicate, and to follow the advice that is given us, seem to be too strong, and too universal. Understood with reasonable limitations and restrictions, they may do very well. For example, I wrote a speculation, and caused it to be printed in the *Courier du Bas Rhine*, showing the interest, policy, and humanity of the neutral confederation's acknowledging American independence, and admitting the United States to subscribe to the principles of their Marine Treaty. This was reprinted in the Gazette of Leyden, the *Politique Hollandaïs*, the *Courier de l'Europe*, and all the Dutch gazettes. At the same time I caused to be transmitted to England some pieces on the same subject, and further showing the probability, that the neutral powers might adopt this measure, and the impolicy of Great Britain, in permitting all the powers of Europe to get the start of her, and having more merit with America than she, by acknowledging her independence first. These pieces were printed in the English papers, in the form of letters to the Earl of Shelburne, and can never be controverted, because they are in writing, and in print, with their dates.

These fears thus excited, added to our refusal to treat on an unequal footing, probably produced his Lordship's resolution, to advise the King to issue the commission, under the great seal, to Mr Oswald; by which Great Britain has got the start, and gone to the windward of the other European powers. No man living, but myself, knew, that all these speculations, in various parts of Europe, came from me. Would it do for me to communicate all this to the French Ministers? Is it possible for me to communicate all these things to Congress? Believe me it is not, and give me leave to say it will not do to communicate them to my friend, the Chevalier de la Luzerne, nor my friend, M. Marbois. If they should be, long letters will lay all open to the Count de Vergennes, who, I assure you, I do not believe will assist me, or anybody else, in such measures of serving our country. When the French Ministers in America, or Europe, communicate everything to us, we may venture to be equally communicative with them. But when everything is concealed from us, more cautiously than it is from England, we shall do ourselves injustice, if we are not upon our guard.

If we conduct ourselves with caution, prudence, moderation, and firmness, we shall succeed in every great point; but if Congress, or their Ministers abroad suffer themselves to be intimidated by threats, slanders, or insinuations, we shall be duped out of the fishery, the Mississippi, much of the western lands, compensation to the tories, and Penobscot at least, if not Kennebec. This is my solemn opinion, and I will never be answerable to my country, posterity, or my own mind, for the consequences, that might happen from concealing it.

It is for the determinate purpose of carrying these points, that one man, who is submission itself, is puffed up to the top of Jacob's ladder in the clouds, and every other man depressed to the bottom of it in the dust. This is my opinion, let me be punished for it, for assuredly I am guilty.

With great respect, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, November 11th, 1782.

Sir,

On my first arrival at Paris, I found my colleagues engaged in conferences with Mr Oswald. They had been before chiefly conducted by Mr Jay, Dr Franklin having been mostly confined for three months, by a long and painful illness. At this time, however, he was so much better, although still weak and lame, as to join us in most of our subsequent conferences, and we were so constantly engaged forenoon, afternoon, and evening, that I had not been out to Versailles, nor anywhere else.

On Saturday last, the Marquis de Lafayette called upon me, and told me he had been to Versailles, and the Count de Vergennes had said to him, that he had been informed by the returns of the Police, that I was in Paris, but not officially, and he should take it well if I would come to see him.

I went out to dine with Dr Franklin the same day, who had just returned from delivering his memorial, and repeated to me the same message. I said to both, I would go the next morning, and, accordingly, on Sunday, the 9th, I went to make my court to his Excellency. He received me politely, and asked me questions about our progress. I answered him, that the English Minister appeared to me to divide with us upon ostensible points; that I still doubted his intentions to make a universal peace; that the cry of the nation was for something to be done or said with the American Ministers; and to satisfy this, the King of Great Britain had been advised to be the third power in Europe to acknowledge our independence. As this was a royal act, and under the great seal of his kingdom, it would never be denied or revoked; but still it did not render the nation unanimous, and to avoid, finally, disgusting any great party, the Minister would still pursue his usual studied obscurity of policy. Points must be conceded to the Americans, before a complete agreement could be made with them, even on terms to be inserted in the universal peace, which would open the full cry of a powerful party upon him, among which were the refugees. It could not be supposed, that the refugees and Penobscot were such points with the nation or

Minister, that they would continue the war for them only, if they were ready to strike with France, Spain, and Holland.

The Count then asked me some questions respecting Sagadahock, which I answered, by showing him the records, which I had in my pocket, particularly that of Governor Pownal's solemn act of possession in 1759; the grants and settlements of Mount Desert, Machias, and all the other townships east of Penobscot river; the original grant of James the First, to Sir William Alexander of Nova Scotia, in which it is bounded on St Croix river; (this grant I had in Latin, French, and English) the dissertations of Governor Shirley, and Governor Hutchinson, and the authority of Governor Bernard, all showing the right of Massachusetts to this tract to be incontestable. I added, that I did not think any British Minister would ever put his hand to a written claim of that tract of land, their own national acts were so numerous, and so clear against them. The Count said, Mr Fitzherbert had told him, that it was for the masts, that a point was made of that tract. But the Count said, Canada was an immense resource for masts. I said, there were few masts there; that this could not be the motive; that the refugees were still at the bottom of this; several of them had pretensions to lands in Sagadahock, and the rest hoped for grants there.

The Count said, it was not at all surprising, that the British Ministry should insist upon compensation to the tories, for that all the precedents were in their favor; in the case of the United Provinces with Spain, all were restored to their possessions, and that there never had been an example of such an affair terminated by treaty, but all were restored. He said, it was a point well settled by precedents. I begged his Excellency's pardon for this, and thought there was no precedent in point. A restitution of an estate not alienated, although confiscated to a Crown or State, could not be a precedent in point, because, in our case, these estates had not only been confiscated, but alienated by the State, so that it was no longer in the power of the State to restore them. And when you come to the question of compensation, there is every argument of national honor, dignity of the State, public and private justice and humanity, for us to insist upon a compensation for all the plate, negroes, rice, and tobacco stolen, and houses and substance consumed, as there is for them to demand compensation to the tories; and this was so

much the stronger in our favor, as our sufferers were innocent people, and theirs guilty ones.

M. Rayneval, who was present, said something about the King and nation being bound to support their adherents. I answered, that I could not comprehend this doctrine. Here was a set of people, whose bad faith and misrepresentations had deceived the King and deluded the nation, to follow their all-devouring ambition, until they had totally failed of their object; had brought an indelible reproach on the British name, and almost irretrievable ruin on the nation, and yet that nation is bound to support their deceivers and ruiners. If the national honor was bound at all, it was bound still to follow their ambition, to conquer America, and plant the refugees there in pomp and power, and in such case, we all know whose estates would be confiscated, and what compensation would be obtained. All this M. Rayneval said was very true.

The Count asked me to dine, which I accepted, and was treated with more attention and complaisance than ever, both by him and the Countess. As it is our duty to penetrate, if we can, the motives and views of our allies, as well as our enemies, it is worth while for Congress to consider what may be the true motives of these intimations in favor of the tories. History shows, that nations have generally had as much difficulty to arrange their affairs with their allies as with their enemies. France has had as much this war with Spain as with England. Holland and England, whenever they have been allies, have always found many difficulties, and from the nature of things, it must ever be an intricate task, to reconcile the notions, prejudices, principles, &c. of two nations in one concert of councils and operations.

We may well think, that the French would be very glad to have the Americans join with them in a future war. Suppose, for example, they should think the tories men of monarchical principles, or men of more ambition than principle, or men corrupted and of no principle, and should, therefore, think them more easily seduced to their purposes than virtuous Republicans, is it not easy to see the policy of a French Minister in wishing them amnesty and compensation? Suppose that a French Minister foresees, that the presence of the tories in America will keep up perpetually two parties, a French and an English party, and that this will compel the patriotic

and independent men to join the French side, is it not natural for him to wish them restored? Is it not easy too to see, that a French Minister cannot wish to have the English and Americans perfectly agreed upon all points, before they themselves, the Spanish and the Dutch are agreed too? Can they be sorry then to see us split upon such a point as the tories? What can be their motives to become the advocates of the tories? It seems the French Minister, at Philadelphia, has made some representations to Congress, in favor of a compensation to the royalists, and that the Count de Vergennes' conversation with me was much in favor of it. The Count probably knows, that we are instructed against it, or rather, have not a constitutional authority to make it; that we can only write about it to Congress, and they to the States, who may, and probably will, deliberate upon it a year or eighteen months before they all decide, and then every one of them will determine against it. In this way, there is an insuperable obstacle to any agreement between the English and Americans, even upon terms to be inserted in the general peace, before all are ready, and, indeed, after. It has been upon former occasions the constant practice of the French, to have some of their subjects in London, and the English some of theirs in Paris, during conferences for peace, in order to propagate such sentiments as they wished to prevail. I doubt not there are such there now. M. Rayneval has certainly been there. It is reported, I know not how truly, that M. Gerard has been there, and probably others are there, who can easily prompt the tories to clamor, and to cry that the King's dignity and nation's honor are compromised, to support their demands.

America has been long enough involved in the wars of Europe. She has been a football between contending nations from the beginning, and it is easy to foresee, that France and England both will endeavor to involve us in their future wars. It is our interest and duty to avoid them as much as possible, and to be completely independent, and to have nothing to do with either of them, but in commerce. My poor thoughts and feeble efforts, have been from the beginning constantly employed to arrange all our European connexions to this end, and will continue to be so employed, whether they succeed or not. My hopes of success are stronger now than they ever have been, because I find Mr Jay precisely in the same sentiments, after all the observations and reflections he has made in Europe, and Dr Franklin at last, at least appears to coincide with us. We are all three perfectly united in the

affair of the tories, and of the Sagadahock, the only points in which the British Minister pretends to differ from us.

The enclosed papers will show Congress the substance of the negotiation. The treaty, as first projected between Mr Oswald on one side, and Dr Franklin and Mr Jay on the other before my arrival; the treaty as projected after my arrival, between Mr Oswald and the three American Ministers, my Lord Shelburne having disagreed to the first; Mr Oswald's letter and our answer; Mr Strachey's letter and our answer.^[14] Mr Strachey has gone to London with the whole, and we are waiting his return, or the arrival of some other, with further instructions.

If Congress should wish to know my conjecture, it is, that the Ministry will still insist upon compensation to the tories, and thus involve the nation every month of the war in an expense sufficient to make a full compensation to all the tories in question. They would not do this, however, if they were ready with France and Spain.

I have the honor to be, &c.

JOHN ADAMS.

ROBERT R. LIVINGSTON TO JOHN ADAMS.

Philadelphia, November 18th, 1782.

Sir,

Since my letter of the 6th, Congress have been pleased to appoint Mr Jefferson one of their Ministers Plenipotentiary for negotiating peace. I have not yet received an answer to my letter informing him of this event, though I have some reason to believe he will accept the appointment.

I believe I mentioned to you, that Congress had refused to accept Mr Laurens' resignation. Many members have since seen with great pain, the

petition published in the Parliamentary debates as his. I sincerely wish, that it may prove to be a forgery, since the language it speaks does not consist with the dignified character he holds. He has since informed Congress, that he purposes to return to England, and come out to this country by the way of New York. I hope the determination of Congress will reach him before he leaves France, as it will have an awkward appearance to send to England for an American Minister.

All the contracts we have received from you, have been sent back with the ratification endorsed. Some of them have, I hope, reached you before this. So that the last hand may be put to the important business of the loan.

So much has been said of Captain Asgill, upon whom, as you have been informed, the lot fell, when it was determined to avenge the death of Captain Huddy, that I should let you know the issue of this business, which you may in part collect, from the enclosed resolve, though you may be ignorant of the reasons which induced Congress to pass it, and again render abortive their determination to punish the unexampled cruelty of the enemy. Mrs Asgill, the mother of this unfortunate young man, had sufficient influence at the Court of France to obtain its interposition in his favor; a letter was written on the subject by Count de Vergennes to General Washington, enclosing one from Mrs Asgill to the Count, which was extremely pathetic. The Minister of France had orders from his master to support this application. It was thought advisable, that this should not be formally done, but that the discharge of Asgill, should be grounded upon the reasons expressed in the preamble of the resolution. Congress the more readily acquiesced in this measure, as there is ground to hope, from the late conduct of the enemy, that they have determined to adopt a more civilized mode of carrying on the war in future. They have called off the savages, and a large number of prisoners have returned on parole from Canada.

We have yet no certain account of the evacuation of Charleston, though we know that the first division of the troops, and a considerable number of the inhabitants sailed on the 19th ultimo, as is said, for Augustine; it is probably evacuated by this time.

It would give me pleasure to receive from you an accurate account of the differences, which have arisen between the Court of Denmark and the

United Provinces, and the effects they may probably produce. We are imperfectly acquainted with facts here, and still less with the politics of the Northern Courts; you will sometimes extend your observations to them.

I confide too much in the wisdom of the States-General to believe, that they will omit any honorable means to prevent an accession of strength to Great Britain, at this critical moment.

I have the honor to be, &c.

ROBERT R. LIVINGSTON.

TO ROBERT R. LIVINGSTON.

Paris, November 18th, 1782.

Sir,

The instructions from Congress, which direct us to pay so strict an attention to the French Ministry, and to follow their advice, are conceived in terms so universal and unlimited, as to give a great deal of anxiety to my mind.

There is no man more impressed with the obligation of obedience to instructions; but, in ordinary cases, the principal is so near the Deputy, as to be able to attend to the whole progress of the business, and to be informed of every new fact, and every sudden thought. Ambassadors in Europe can send expresses to their Courts, and give and receive intelligence in a few days, with the utmost certainty. In such cases there is no room for mistake, misunderstanding, or surprise. But, in our case, it is very different. We are at an immense distance. Despatches are liable to foul play, and vessels are subject to accidents. New scenes open, the time presses, various nations are in suspense, and necessity forces us to act.

What can we do? If a French Minister advises us to cede to the Spaniards the whole river of the Mississippi, and five hundred miles of territory to the

eastward of it, are we bound by our instructions to put our signature to the cession, when the English themselves are willing we should extend to the river, and enjoy our natural right to its navigation? If we should be counselled to relinquish our right to the fishery on the Grand Bank of Newfoundland, when the British Ministry are ready, by treaty, to acknowledge our right to it, are we obliged to relinquish it? If we are advised to restore and compensate the tories, are we to comply? If we know, or have reasons to believe, that things, which will have weight upon the minds of the British Ministry against us upon some points, will be communicated to them in some way or other, secret or open, if we communicate it to this Court, are we bound to do it?

I cannot think, that a construction, so literal and severe, was ever intended to be put upon it; and, therefore, I see no way of doing my duty to Congress, but to interpret the instruction, as we do all general precepts and maxims, by such restrictions and limitations, as reason, necessity, and the nature of things demand.

It may sometimes be known to a deputy, that an instruction from his principal was given upon information of mistaken facts, what is he to do? When he knows, that if the truth had been known, his principal would have given a directly contrary order, is he to follow that, which issued upon mistake? When he knows, or has only good reason to believe, that, if his principal were on the spot, and fully informed of the present state of facts, he would give contrary directions, is he bound by such as were given before? It cannot be denied, that instructions are binding, that it is a duty to obey them, and that a departure from them cannot be justified; but I think it cannot be denied on the other hand, that in our peculiar situation, cases may happen, in which it might become our duty to depend upon being excused, (or, if you will, pardoned) for presuming, that if Congress were upon the spot, they would judge as we do.

I presume not to dictate, nor to advise, but I may venture to give my opinion, as I do freely, and with much real concern for the public, that it would be better, if every instruction in being were totally repealed, which enjoins upon any American Minister to follow, or ask the advice, or even to communicate with any French, or other Minister, or Ambassador in the

world. It is an inextricable embarrassment everywhere. Advice would not be more seldom asked, nor communication less frequent. It would be more freely given. A communication of information, or a request of council would then be received as a compliment, and a mark of respect; it is now considered as a duty and a right. Your Ministers would have more weight, and be the more respected through the world. Congress cannot do too much to give weight to their own Ministers, for, they may depend upon it, great and unjustifiable pains are taken to prevent them from acquiring reputation, and even to prevent an idea taking root in any part of Europe, that anything has been, or can be done by them. And there is nothing, that humbles and depresses, nothing that shackles and confines, in short, nothing that renders totally useless all your Ministers in Europe, so much as these positive instructions, to consult and communicate with French Ministers, upon all occasions, and follow their advice. And I really think it would be better to constitute the Count de Vergennes, our sole Minister, and give him full powers to make peace and treat with all Europe, than to continue any of us in the service, under the instructions in being, if they are to be understood in that unlimited sense, which some persons contend for.

I hope, that nothing indecent has escaped me upon this occasion. If any expressions appear too strong, the great importance of the subject, and the deep impression it has made on my mind and heart, must be my apology.

I am, Sir, your humble servant,

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, November 24th, 1782.

Sir,

We live in critical moments. Parliament is to meet, and the King's speech will be delivered on the 26th. If the speech announces Mr Oswald's

commission, and the two Houses in their answers thank him for issuing it, and there should be no change in the Ministry, the prospect of peace will be flattering. Or if there should be a change in the Ministry, and the Duke of Portland, with Mr Fox and Mr Burke, should come in, it will be still more so. But if Richmond, Cambden, Keppel, and Townshend should retire, and my Lord North and company come in, with or without the Earl of Shelburne, the appearances of peace will be very unpromising. My Lord North, indeed, cannot revoke the acknowledgment of our independence, and would not probably renounce the negotiations for peace, but ill will to us is so habitual to him and his master, that he would fall in earnestly with the wing-clipping system; join in attempts to deprive us of the fisheries and the Mississippi, and to fasten upon us the tories, and in every other measure to cramp, stint, impoverish and enfeeble us. Shelburne is not so orthodox as he should be, but North is a much greater heretic in American politics.

It deserves much consideration what course we should take, in case the old Ministry should come in wholly, or in part. It is certain, at present, that to be obnoxious to the Americans, and their Ministers, is a very formidable popular cry against any Minister or candidate for the Ministry in England, for the nation is more generally for recovering the good will of the Americans than they ever have been. Nothing would strike such a blow to any Ministry, as to break off the negotiations for peace; if the old Ministry come in, they will demand terms of us, at first, probably, that we can never agree to.

It is now eleven or twelve days, since the last result of our conferences were laid before the Ministry in London. Mr Vaughan went off on Sunday noon, the 17th. So that he is, no doubt, before this time with my Lord Shelburne. He is possessed of an ample budget of arguments to convince his Lordship, that he ought to give up all the remaining points between us. Mr Oswald's letters will suggest the same arguments in a different light, and Mr Strachey, if he is disposed to do it, is able to enlarge upon them all in conversation.

The fundamental point of the sovereignty of the United States being settled in England, the only question now is, whether they shall pursue a contracted, or a liberal, a good natured, or an ill natured plan towards us. If they are generous, and allow us all we ask, it will be the better for them; if

stingy, the worse. That France does not wish them to be very noble to us, may be true. But we should be dupes indeed, if we did not make use of every argument with them, to show them that it is their interest to be so. And they will be the greatest bubbles of all, if they should suffer themselves to be deceived by their passions, or by any arts, to adopt an opposite tenor of conduct.

I have the honor to be, &c.

JOHN ADAMS.

TO ROBERT R. LIVINGSTON.

Paris, December 4th, 1782.

Sir,

It is with much pleasure, that I transmit you the preliminary treaty between the King of Great Britain and the United States of America. The Mississippi, the western lands, Sagadehock, and the fisheries, are secured as well as we could, and I hope what is done for the refugees will be pardoned.

As the objects, for which I ever consented to leave my family and country, are thus far accomplished, I now beg leave to resign all my employments in Europe. They are soon enumerated; the first, is my commission to borrow money in Holland, and the second, is my credence to their High Mightinesses. These two should be filled up immediately, and as Mr Laurens was originally designed to that country, and my mission there was merely owing to his misfortune, I hope that Congress will send him a full power for that Court.

The commission for peace I hope will be fully executed before this reaches you. But, if it should not, as the terms are fixed, I should not choose to stay in Europe, merely for the honor of affixing my signature to the definitive

treaty, and I see no necessity of filling up my place; but if Congress should think otherwise, I hope they will think Mr Dana the best entitled to it.

With great esteem, I have the honor to be, &c.

JOHN ADAMS.

EXTRACTS FROM A JOURNAL.

Saturday, November 2d, 1782.—Almost every moment of this week has been employed in negotiation with the English gentlemen, concerning peace. We have two propositions, one, the line of fortyfive degrees, the other, a line through the middle of the Lakes. And for the boundary between Massachusetts and Nova Scotia, a line from the mouth of St Croix to its source, and from its source to the Highlands.

Sunday, November 3d.—In my first conversation with Dr Franklin, on Tuesday last, he told me of Mr Oswald's demand of the payment of debts, and compensation to the tories; he said their answer had been, that we had not power, nor had Congress. I told him, I had no notion of cheating anybody. The question of paying debts, and compensating tories, were two. I had made the same observation that forenoon to Mr Oswald and Mr Strachey, in company with Mr Jay, at his house. I saw it struck Mr Strachey with peculiar pleasure; I saw it instantly smiling in every line of his face. Mr Oswald was apparently pleased with it too. In a subsequent conversation with my colleagues, I proposed to them, that we should agree that Congress should recommend it to the States, to open their courts of justice for the recovery of all just debts. They gradually fell into this opinion, and we all expressed these sentiments to the English gentlemen, who were much pleased with it, and with reason; because it silences the clamors of all the British creditors against the peace, and prevents them from making common cause with the refugees. Mr Jay came in and spent two hours in conversation upon our affairs, and we attempted an answer to Mr Oswald's letter. He is perfectly of my opinion, or I am of his, respecting Mr Dana's

true line of conduct, as well as his with Spain, and ours with France, Spain, and England.

Vergennes has endeavored to persuade him to treat with d'Aranda, without exchanging powers. He refuses. Vergennes also pronounced Oswald's first commission sufficient, and was for making the acknowledgment of American independence, the first article of the treaty. Jay would not treat; the consequence was, a complete acknowledgment of our independence by Oswald's new commission, under the great seal of Great Britain, to treat with the Commissioners of the United States of America. Thus a temperate firmness has succeeded everywhere, but the base system nowhere.

D'Estaing has set off for Madrid and Cadiz; *reste à savoir* what his object is, whether to take the command of a squadron, and in that case, where to go, whether to Rhode Island, to join Vaudreuil, and go against New York, or to the West Indies. Will they take New York, or only prevent the English from evacuating it? Oswald proposed solemnly to all three of us yesterday, at his house, to agree not to molest the British troops in the evacuation; but we did not. This, however, shows they have it in contemplation. Suppose they are going against West Florida. How far are we bound to favor the Spaniards? Our treaty with France must, and shall be sacredly fulfilled, and we must admit Spain to accede when she will; but until she does, our treaty does not bind us to France to assist Spain.

The present conduct of England and America, resembles that of the eagle and cat. An eagle, scaling over a farmer's yard, espied a creature that he thought a hare. He pounced upon and took him up in the air, the cat seized him by the neck with her teeth, and round the body with her fore and hind claws. The eagle, finding himself scratched and pressed, bids the cat let go, and fall down. No, says the cat, I will not let go and fall, you shall stoop and set me down.

Monday, November 4th.—All the forenoon, from eleven till three, at Mr Oswald's, Mr Jay and I. In the evening there again, until near eleven. Strachey is as artful and insinuating a man as they could send; he pushes and presses every point as far as it can possibly go; he has a most eager, earnest, pointed spirit.

Tuesday, November 5th. Mr Jay told me our allies did not play fair. They were endeavoring to deprive us of the fishery, the western lands, and the navigation of the Mississippi. They would even bargain with the English, to deprive us of them. They want to lay the western lands, Mississippi, and the whole Gulf of Mexico into the hands of Spain.

Oswald talks of Pultney, and a plot to divide America between France and England. France to have New England. They tell a story about Vergennes, and his agreeing that the English might propose such a division, but reserving a right to deny it all. These whispers ought not to be credited by us.

Saturday, November 9th.—M. de Lafayette came in, and told me he had been at Versailles, and in consultation about the affair of money, as he and I agreed he should. He said he found, that the Count de Vergennes and their Ministry were of the same opinion with me, that the English were determined to evacuate New York. After some time, he told me, in a great air of confidence, that he was afraid the Count took it amiss, that I had not been to Versailles to see him. The Count told him, that he had not been officially informed of my arrival, he had only learned it from the returns of the police. I went out to Passy to dine with Dr Franklin, who had been to Versailles, and presented his Memorial, and the papers accompanying it. The Count said he would have the papers translated to lay them before the King, but the affair would meet with many difficulties. Franklin brought the same message to me from the Count, and said he believed it would be taken kindly if I went. I told both the Marquis and the Doctor, that I would go tomorrow morning.

Sunday, November 10th.—Accordingly, at eight this morning, I went and waited on the Count. He asked me how we went on with the English. I told him we divided upon two points, the tories and Penobscot, two ostensible points; for it was impossible to believe, that my Lord Shelburne, or the nation, cared much about such points. I took out of my pocket, and showed him, the record of Governor Pownal's solemn act of burying a leaden plate, with this inscription; 'May 23d, 1759. Province of Massachusetts Bay. Penobscot dominions of Great Britain. Possession confirmed by Thomas Pownal, Governor.' This was planted on the east side of the river of

Penobscot, three miles above marine navigation. I showed him also all the other records, the laying out of Mount Desert, Machias, and all the other towns to the east of Penobscot river, and told him, that the grant of Nova Scotia, by James the First, to Sir William Alexander, bounded it on the river St Croix, and that I was possessed of the authorities of four of the greatest Governors the King of England ever had, Shirley, Pownal, Bernard, and Hutchinson, in favor of our claim, and of learned writings of Shirley and Hutchinson in support of it. The Count said, that Mr Fitzherbert told him they wanted it for the masts. But the Count said, that Canada had an immense quantity. I told him I thought there were few masts there, but, that I fancied it was *not masts, but tories*, that again made the difficulty. Some of them claimed lands in that territory, and others hoped for grants there.

The Count said, it was not astonishing, that the British Ministry should insist upon compensation to them, for that all the precedents were in favor of it; that there had been no example of an affair like this terminated by a treaty, without re-establishing those who had adhered to the old government, in all their possessions. I begged his pardon in this, and said, that in Ireland at least there had been a multitude of confiscations without restitution. Here we ran into some conversation concerning Ireland, &c. M. Rayneval, who was present, talked about the national honor, and the obligation they were under to support their adherents. Here I thought I might indulge a little more latitude of expression, than I had done with Oswald and Strachey, and I answered, if the nation thought itself bound in honor to compensate these people, it might easily do it, for it cost the nation more money to carry on this war one month, than it would cost it to compensate them all. But I could not comprehend this doctrine of national honor. Those people, by their misrepresentations had deceived the nation, who had followed the impulsion of their devouring ambition, until it had brought an indelible stain on the British name, and almost irretrievable ruin on the nation, and now that very nation was thought to be bound in honor to compensate its dishonorers and destroyers. Rayneval said it was very true.

The Count invited me to dine; I accepted. When I came, I found M. de Lafayette in conference with him. When they came out, the Marquis took me aside, and told me he had been talking with the Count upon the affair of money. He had represented to him Mr Morris's arguments, and the things I

had said to him, as from himself, &c. That he feared the arts of the English, that our army would disband, and our governments relax, &c. That the Count feared many difficulties; that France had expended two hundred and fifty millions in this war, &c. That he talked of allowing six millions, and my going to Holland with the scheme I had projected, and having the King's warranty, &c. to get the rest; that he had already spoken to some of M. de Fleury's friends, and intended to speak to him, &c.

We went up to dinner. I went up with the Count alone. He showed me into the room where were the ladies and the company. I singled out the Countess, and went up to her to make her my compliment. The Countess, and all the ladies rose up. I made my respects to them all, and turned and bowed to the rest of the company. The Count, who came in after me, made his bows to the ladies, and to the Countess last. When he came to her, he turned round and called out, *Mons. Adams, venez ici, voilà la Comtesse de Vergennes*. A nobleman in company said, Mr Adams has already made his court to Madame la Comtesse. I went up again, however, and spoke again to the Countess, and she to me. When dinner was served, the Count led Madame de Montmorin, and left me to conduct the Countess, who gave me her hand with extraordinary condescension, and I conducted her to table. She made me sit next to her, on her right hand, and was remarkably attentive to me the whole time. The Count, who sat opposite, was constantly calling out to me, to know what I would eat, and to offer me *petits gateaux*, claret, and Madeira, &c. &c. In short, I was never treated with half the respect at Versailles in my life. In the antichamber, before dinner, some French gentlemen came to me, and said they had seen me two years ago, and that I had shown in Holland, that the Americans understood negotiation, as well as war.

Monday, November 11th. Mr Whiteford the Secretary of Mr Oswald, came a second time, not having found me at home yesterday, when he left a card, with a copy of Mr Oswald's commission, attested by himself (Mr Oswald). He delivered the copy, and said Mr Oswald was ready to compare it with the original with me. I said Mr Oswald's attestation was sufficient, as he had already shown me the original. He sat down, and we fell into conversation about the weather, and the vapors and exhalations from Tartary, which had been brought here last spring by the winds, and given us all the influenza.

Thence to French fashions and the punctuality, with which they insist upon people's wearing thin clothes in spring and fall, though the weather is ever so cold, &c. I said it was often carried to ridiculous lengths, but that it was at bottom an admirable policy, as it rendered all Europe tributary to the city of Paris, for its manufactures.

We fell soon into politics. I told him, that there was something in the minds of the English and French, which impelled them irresistibly to war every ten or fifteen years. He said the ensuing peace would, he believed, be a long one. I said it would, provided it was well made, and nothing left in it to give future discontents. But if anything was done, which the Americans should think hard or unjust, both the English and French would be continually blowing it up, and inflaming the American minds with it, in order to make them join one side or the other in a future war. Suppose for example, they should think the tories men of monarchical principles, or men of more ambition than principle, or men corrupted and of no principle, and should therefore think them more easily seduced to their purposes, than virtuous republicans, is it not easy to see the policy of a French Minister in wishing them amnesty and compensation? Suppose a French Minister foresees, that the presence of the tories in America will keep up perpetually two parties, a French party, and an English party, and that this will compel the patriotic and independent party to join the French party, is it not natural for him to wish them restored? Is it not easy to see, that a French Minister cannot wish to have the English and Americans perfectly agreed upon all points before they themselves, the Spaniards and the Dutch are agreed too? Can they be sorry then to see us split upon such a point as the tories? What can be their motives to become the advocates of the tories?

The French Minister at Philadelphia has made some representations to Congress, in favor of a compensation to the royalists, and the Count de Vergennes no longer than yesterday said much to me in their favor. The Count probably knows, that we are instructed against it, that Congress are instructed against it, or rather have not constitutional authority to do it; that we can only write about it to Congress, and they to the States, who may, and probably will, deliberate upon it eighteen months before they all decide, and then every one of them will determine against it. In this way there is an insuperable obstacle to any agreement between the English and Americans,

even upon terms to be inserted in the general peace, before all are ready. It was the constant practice of the French to have some of their subjects in London during the conferences for peace in order to propagate such sentiments there as they wished to prevail. I doubted not such were there now; M. Rayneval had been there. M. Gerard, I had heard, is there now, and probably others. They can easily persuade the Tories to set up their demands, and tell them and the Ministers, that the King's dignity and nation's honor are compromised in it.

For my own part, I thought America had been long enough involved in the wars of Europe. She had been a football between contending nations from the beginning, and it was easy to foresee, that France and England both would endeavor to involve us in their future wars. I thought it our interest and duty, to avoid them as much as possible, and to be completely independent, and have nothing to do but in commerce with either of them; that my thoughts had been from the beginning to arrange all our European connexions to this end, and that they would continue to be so employed. And I thought it so important to us, that if my poor labors, my little estate, or (smiling) sissy blood, could effect it, it should be done. But I had many fears.

I said, the King of France might think it consistent with his station to favor people, who had contended for a Crown, though it was the Crown of his enemy. Whiteford said, they seem to be through the whole of their course, fighting for reputation. I said, they had acquired it, and more, they had raised themselves high from a low estate by it, and they were our good friends and allies, and had conducted generously, and nobly, and we should be just and grateful, but they might have political wishes, which we were not bound by treaty, nor in justice or gratitude to favor, and these we ought to be cautious of. He agreed that they had raised themselves very suddenly and surprisingly by it.

Tuesday, November 12th.—The compliment of "*Monsieur, vous êtes le Washington de la négociation*," was repeated to me, by more than one person. I answered, "*Monsieur, vous me faites le plus grand honneur, et le compliment le plus sublime possible.*" "*Eh! Monsieur, en vérité, vous l'avez bien mérité.*"

Friday, November 15th.—Mr Oswald came to visit me, and entered with some freedom, into conversation. I said many things to him to convince him, that it was the policy of my Lord Shelburne, and the interest of the nation, to agree with us upon the advantageous terms, which Mr Strachey carried away on the 5th; showed him the advantages of the boundary, the vast extent of land, and the equitable provision for the payment of debts, and even the great benefits stipulated for the tories.

He said he had been reading Mr Paine's answer to the Abbé Raynal, and had found there an excellent argument in favor of the tories. Mr Paine says, that before the battle of Lexington, we were so blindly prejudiced in favor of the English, and so closely attached to them, that we went to war at any time, and for any object, when they bid us. Now this being habitual to the Americans, it was excusable in the tories to behave on this occasion, as all of us had ever done upon all others. He said, if he were a member of Congress, he would show a magnanimity upon this occasion, and would say to the refugees, take your property, we scorn to make any use of it in building up our system.

I replied, that we had no power, and Congress had no power, and, therefore, we must consider how it would be reasoned upon in the several Legislatures of the separate States, if, after being sent by us to Congress, and by them to the several States, in the course of twelve or fifteen months, it should be there debated. You must carry on the war six or nine months certainly, for this compensation; and consequently spend, in the prosecution of it, six or nine times the sum necessary to make the compensation; for I presume this war costs every month to Great Britain, a larger sum than would be necessary to pay for the forfeited estates.

"How," said I, "will an independent man in one of our Assemblies consider this? We will take a man, who is no partisan of England or France, one who wishes to do justice to both, and to all nations, but is the partisan only of his own." "Have you seen," said he, "a certain letter written to the Count de Vergennes, wherein Mr Samuel Adams is treated pretty freely?" "Yes," said I, "and several other papers, in which Mr John Adams has been treated so too. I do not know what you may have heard in England of Mr Samuel Adams. You may have been taught to believe, for what I know, that he eats

little children. But I assure you, he is a man of humanity and candor, as well as integrity; and further, that he is devoted to the interest of his country, and, I believe, wishes never to be, after a peace, the partisan to France or England, but to do justice and all the good he can to both. I thank you for mentioning him, for I will make him my orator. What will he say, when the question of amnesty and compensation to the tories comes before the Senate of Massachusetts, and when he is informed, that England makes a point of it, and that France favors her? He will say, here are two old sagacious Courts, both endeavoring to sow the seeds of discord among us, each endeavoring to keep us in hot water; to keep up continual broils between an English party and a French party, in hopes of obliging the independent and patriotic party to lean to its side. England wishes them here, and compensated, not merely to get rid of them, and to save herself the money, but to plant among us instruments of her own, to make divisions among us, and between us and France, to be continually crying down the religion, the government, the manners of France, and crying up the language, the fashions, the blood, &c. of England. England also means, by insisting on our compensating these worst of enemies, to obtain from us a tacit acknowledgment of the right of the war, an implicit acknowledgment, that the tories have been justifiable, or at least excusable, and that we, only by a fortunate coincidence of events, have carried a wicked rebellion into a complete revolution. At the very time, when Britain professes to desire peace, reconciliation, perpetual oblivion of all past unkindnesses, can she wish to send in among us a number of persons, whose very countenances will bring fresh to our remembrance the whole history of the rise and progress of the war, and of all its atrocities? Can she think it conciliatory, to oblige us to lay taxes upon those, whose habitations have been consumed, to reward those who have burned them? Upon those, whose relations have been cruelly destroyed, to compensate the murderers? What can be the design of France, on the other hand, by espousing the cause of those men? Indeed, her motives may be guessed at. She may wish to keep up in our minds a terror of England, and a fresh remembrance of all we have suffered. Or she may wish to prevent our Ministers in Europe from agreeing with the British Ministers, until she shall say, that she and Spain are satisfied in all points."

I entered largely with Mr Oswald into the consideration of the influence this question would have upon the councils of the British cabinet, and the debates in Parliament. The King and the old Ministry might think their personal reputations concerned, in supporting men who had gone such lengths, and suffered so much in their attachment to them. The King may say, "I have other dominions abroad, Canada, Nova Scotia, Florida, the West India Islands, the East Indies, Ireland. It will be a bad example to abandon these men. Others will lose their encouragement to adhere to my government." But the shortest answer to this is the best, let the King by a message recommend it to Parliament to compensate them.

But how will my Lord Shelburne sustain the shock of opposition, when Mr Fox and Mr Burke shall demand a reason, why the essential interests of the nation are sacrificed to the unreasonable demands of those very men, who have done this great mischief to the empire? Should these orators indulge themselves in Philippics against the refugees, show their false representations, their outrageous cruelties, their innumerable demerits against the nation, and then attack the First Lord of the Treasury for continuing to spend the blood and treasure of the nation for their sakes?

Sunday, November 17th.—Mr Vaughan came to me yesterday, and said, that Mr Oswald had that morning called upon Mr Jay, and told him, if he had known as much the day before, as he had since learned, he would have written to go home. Mr Vaughan said, Mr Fitzherbert had received a letter from Mr Townshend, that the compensation would be insisted on. Mr Oswald wanted Mr Jay to go to England; thought he could convince the Ministry. Mr Jay said, he must go with or without the knowledge and advice of the Court, and, in either case, it would give rise to jealousies. He could not go. Mr Vaughan said, he had determined to go, on account of the critical state of his family, his wife being probably abed. He should be glad to converse freely with me, and obtain from me all the lights and arguments against the tories, even the history of their worst actions. That, in case it should be necessary to run them down, it might be done, or at least expose them, for their true history was little known in England. I told him, I must be excused, it was a subject that I had never been desirous of obtaining information upon; that I pitied those people too much, to be willing to aggravate the sorrows and sufferings, even of those who had deserved the

worst. It might not be amiss to reprint the letters of Bernard, Hutchinson, and Oliver, to show their rise. It might not be amiss to read the history of Wyoming, in the annual register for 1778 or 9, to recollect the prison ships, and the churches at New York, where the garrison of Fort Washington were starved, in order to make them enlist in refugee corps, it might not be amiss to recollect the burning of cities, and the thefts of plate, negroes, and tobacco.

I entered into the same arguments with him that I had used with Mr Oswald, to show that we could do nothing; Congress nothing; the time it would take to consult the States, and the reason to believe, that all of them would at last decide against it. I showed him, that it would be a religious question with some; a moral one with others; and a political one with more; an economical one with very few. I shewed him the ill effect which would be produced upon the American mind by this measure; how much it would contribute to perpetuate alienation against England, and how French emissaries might, by means of these men, blow up the flames of animosity and war. I showed him how the whig interest, and the opposition, might avail themselves of this subject in Parliament, and how they might embarrass the Minister.

He went out to Passy for a passport, and in the evening called upon me again; he said he found Dr Franklin's sentiments to be the same with Mr Jay's and mine, and hoped he should be able to convince Lord Shelburne. He was pretty confident it would work right. The Ministry and nation were not informed upon the subject. Lord Shelburne had told him, that no part of his office gave him so much pain, as the levee he held for these people, and hearing their stories of their families and estates, their losses, sufferings, and distresses. Mr Vaughan said, he had picked up here a good deal of information about these people from Mr Allen, and other Americans.

In the evening, M. de Lafayette came in and told me he had been to see M. de Fleury on the subject of a loan. He told him, he must afford America this year a subsidy of twenty millions. M. de Fleury said, France had already spent two hundred and fifty millions in the American war, and that they could not allow any more money to her; that there was a great deal of money in America; that the King's troops had been paid and subsisted there;

that the British army had been subsisted and paid there, &c. The Marquis said, that little of the subsistence or pay of the British had gone into any hands, but those of the tories within the lines. I said, that more money went in for their goods, than came out for provisions, or anything. The Marquis added to M. de Fleury, that Mr Adams had a plan for going to the States-General for a loan, or a subsidy. M. de Fleury said, he did not want the assistance of Mr Adams, to get money in Holland, he could have what he would. The Marquis said, Mr Adams would be glad of it, he did not want to go, but was willing to take the trouble, if necessary.

The Marquis said, that he should dine with the Queen tomorrow, and would give her a hint to favor us, that he should take leave in a few days, and should go in the fleet that was to sail from Brest; that he wanted the advice of Dr Franklin, Mr Jay, and me, before he went, &c. said that there was a report, that M. Gerard had been in England, and that M. de Rayneval was gone. I told him, I saw M. Gerard at Mr Jay's a few evenings ago. He said, he did not believe M. Gerard had been; that he had mentioned it to Count de Vergennes, and he did not appear confused at all, but said M. Gerard was here about the limits of Alsace. The Marquis said, that he believed the reason why Count de Vergennes said so little about the progress of Mr Fitzherbert with him was, because the difficulty about peace was made by the Spaniards, and he was afraid of making the Americans still more angry with Spain. He knew the Americans were very angry with the Spaniards.

Monday, November 18th.—Returned Mr Oswald's visit. He says, Mr. Strachey, who sat out the 5th, did not reach London until the 10th. Couriers are three, four, or five days in going, according as the winds are.

We went over the old ground concerning the tories. He began to use arguments with me to relax. I told him, he must not think of that; but must bend all his thoughts to convince and persuade his Court to give it up; that if the terms now before his Court were not accepted, the whole negotiation would be broken off, and this Court would probably be so angry with Mr Jay and me, that they would set their engines to work upon Congress, get us recalled, and some others sent, who would do exactly as this Court would have them. He said, he thought that very probable. In another part of his conversation he said, we should all have gold snuff boxes, set with

diamonds; you will certainly have the picture. I told him no, I had dealt too freely with this Court, I had not concealed from them any useful and necessary truth, although it was disagreeable. Indeed, I neither expected, or desired any favors from them, nor would I accept any; I should not refuse any customary compliment of that sort, but it never had been, or would be offered to me. My fixed principle, never to be the tool of any man, nor the partisan of any nation, would forever exclude me from the smiles and favors of Courts.

In another part of the conversation I said, that when I was young and addicted to reading, I had heard about dancing upon the points of metaphysical needles; but, by mixing in the world, I had found the points of political needles finer and sharper than the metaphysical ones. I told him the story of Josiah Quincy's conversation with Lord Shelburne, in 1774, in which he pointed out to him the plan of carrying on the war, which has been pursued this year, by remaining inactive on land, and cruising upon the coast to distress our trade.

He said he had been contriving an artificial truce, since he found we were bound by treaty not to agree to a separate truce. He had proposed to the Ministry, to give orders to their men-of-war, and privateers, not to take any unarmed American vessels.

I said to him, supposing the armed neutrality should acknowledge American independence, by admitting Mr Dana, who is now at Petersburg with a commission in his pocket for that purpose, to subscribe to the principles of their marine treaty; the King of Great Britain could find no fault with it; he could never hereafter say it was an affront or hostility; he had done it himself. Would not all neutral vessels have a right to go to America? And could not all American trade be carried on in neutral bottoms? I said to him, that England would always be a country, which would deserve much of the attention of America, independently of all consideration of blood, origin, language, morals, &c.; merely as a commercial people, she would forever claim the respect of America, because a great part of her commerce would be with her, provided she came to her senses, and made peace with us, without any points in the treaty, that should ferment in the minds of the people. If the people should think themselves unjustly treated, they would

never be easy, and they are so situated as to be able to hurt any power. The fisheries, the Mississippi, the tories, were points that would rankle, and that nation that should offend our people in any of them, would sooner or later feel the consequences.

Mr Jay, M. Couteulx, and Mr Grand, came in. Mr Grand says there is a great fermentation in England, and that they talk of uniting Lord North and Mr Fox in administration; the Duke of Portland to come in, and Keppel to go out. But this is wild.

You are afraid, said Mr Oswald today, of being made the tools of the powers of Europe. Indeed I am, said I. What powers, said he? All of them, said I. It is obvious that all the powers of Europe will be continually manœuvring with us, to work us into their real or imaginary balances of power. They will all wish to make of us a makeweight candle, when they are making out their pounds. Indeed it is not surprising; for we shall very often, if not always be able to turn the scale. But I think it ought to be our rule not to meddle, and that of all the powers of Europe, not to desire us, or perhaps even to permit us to interfere, if they can help it. I beg of you, said he, to get out of your head the idea, that we shall disturb you. What, said I, do you yourself believe, that your Ministers, Governors, and even nation, will not wish to get us of your side in any future war? As for the Governors, said he, we will take off their heads if they do an improper thing towards you. Thank you for your good will, said I, which I feel to be sincere. But nations do not feel as you and I do. And your nation, when it gets a little refreshed from the fatigues of the war; when men and money are become plenty, and allies at hand, will not feel as it does now. We never can be such sots, said he, as to think of differing again with you. Why, said I, in truth I have never been able to comprehend the reason, why you ever thought of differing with us.

Monday, November 25th. Doctor Franklin, Mr Jay, and myself, at 11 o'clock, met at Mr Oswald's lodgings. Mr Strachey told us, he had been to London, and waited personally on every one of the King's cabinet council, and had communicated the last propositions to them. They every one of them unanimously condemned that respecting the tories, so that that unhappy affair stuck, as he foresaw and foretold it would.

The affair of the fishery too was somewhat altered. They could not admit us to dry on the shores of Nova Scotia, nor to fish within three leagues of the coast of Cape Breton. The boundary they did not approve. They thought it too extended, too vast a country; but they would not make a difficulty. That if these terms were not admitted, the whole affair must be thrown into Parliament, where every man would be for insisting on restitution to the refugees. He talked about excepting a few, by name, of the most obnoxious of the refugees.

I could not help observing, that the ideas respecting the fishery appeared to me to come piping hot from Versailles. I quoted to them the words of our treaty with France, in which the indefinite and exclusive right to the fishery on the western side of Newfoundland was secured against us, according to the true construction of the treaties of Utrecht and Paris. I showed them the 12th and 13th articles of the treaty of Utrecht, by which the French were admitted to fish from Cape Bonavista to Point Riche. I related to them the manner in which the cod and haddock came into the rivers, harbors, creeks, and up to the very wharves, on all the northern coasts of America, in the spring, in the month of April, so that you have nothing to do, but step into a boat, and bring in a parcel of fish in a few hours. But that in May they began to withdraw. We have a saying in Boston that, "when the blossoms fall, the haddock begin to crawl," i.e. to move into deep water; so that in summer you must go out some distance to fish; at Newfoundland it was the same. The fish in March and April were in shore, in all the creeks, bays, and harbors, i.e. within three leagues of the coasts or shores of Newfoundland and Nova Scotia; that neither French nor English, could go from Europe and arrive early enough for the first fare; that our vessels could, being so much nearer, an advantage which God and nature had put into our hands; but this advantage of ours had been an advantage to England; because our fish had been sold in Spain and Portugal for gold and silver, and that gold and silver sent to London for manufactures; that this would be the course again; that France foresaw it, and wished to deprive England of it, by persuading her to deprive us of it; that it would be a master stroke of policy if she could succeed; but England must be completely the dupe before she could succeed.

There were three lights in which it might be viewed. 1st. As a nursery for seamen. 2d. As a source of profit. 3d. As a source of contention. As a nursery of seamen, did England consider us as worse enemies than France? Had she rather France should have the seamen than America? The French marine was nearer and more menacing than ours. As a source of profit, had England rather France should supply the markets of Lisbon and Cadiz with fish, and take the gold and silver, than we? France would never spend any of that money in London. We should spend it all there, very nearly. As a source of contention, how could we restrain our fishermen (the boldest men alive) from fishing in prohibited places? How could our men see the French admitted to fish, and themselves excluded by the English? It would then be a cause of disputes, and such seeds France might wish to sow. That I wished for two hours' conversation on the subject with one of the King's council. If I did not convince him he was undesignedly betraying the interest of his Sovereign; I was mistaken. Strachey said, perhaps I would put down some observations in writing upon it; I said, with all my heart, provided I had the approbation of my colleagues; but I could do nothing of the kind without submitting it to their judgments; and, that whatever I had said or should say, upon the subject, however strongly I might express myself was always to be understood, with submission to my colleagues. I showed them Captain Coffin's letter, and gave them his character. His words are;

"Our fishermen from Boston, Salem, Newbury, Marblehead, Cape Ann, Cape Cod, and Nantucket, have frequently gone out on the fisheries to the Straits of Belleisle, north part of Newfoundland, and the banks adjacent thereto, there to continue the whole season, and have made use of the north part of Newfoundland, the Labrador coast, in the Straits of Belleisle, to cure their fish, which they have taken in and about those coasts. I have known several instances of vessels going there to load in the fall of the year, with the fish taken and cured at these places, for Spain, Portugal, &c. I was once concerned in a voyage of that kind myself, and speak from my own knowledge.

"From Cape Sables, to the Isle of Sables, and so on to the Banks of Newfoundland, are a chain of banks, extending all along the coast, and almost adjoining each other, and those banks are where our fishermen go for the first fare, in the early part of the season. Their second fare is on the

Banks of Newfoundland, where they continue to fish, till prevented by the tempestuous and boisterous winds, which prevail in the fall of the year on that coast. Their third and last fare is generally made near the coast of Cape Sables, or banks adjoining thereto, where they are not only relieved from those boisterous gales, but have an asylum to fly to in case of emergency, as that coast is lined, from the head of Cape Sables to Halifax, with most excellent harbors. The sea-cow fishery was, before the present war, carried on to great advantage, particularly from Nantucket and Cape Cod, in and about the river St Lawrence, at the Island St Johns and Anticosti, Bay of Chaleurs, and the Magdalen Islands, which were the most noted of all for that fishery. This oil has the preference to all others, except spermaceti."

Mr Jay desired to know whether Mr Oswald had now power to conclude and sign with us. Strachey said he had, absolutely. Mr Jay desired to know if the propositions now delivered us, were their ultimatum. Strachey seemed loath to answer, but at last said, no. We agreed these were good signs of sincerity. Bancroft came in this evening, and said, it was reported, that a courier had arrived from M. Rayneval, in London, and that after it, the Count de Vergennes told the King, that he had the peace in his pocket, that he was now master of the peace.

Tuesday, November 26th. Breakfasted at Mr Jay's, with Dr Franklin, in consultation upon the propositions made to us yesterday, by Mr Oswald. We agreed unanimously, to answer him, that we could not consent to the article respecting the refugees, as it now stands. Dr Franklin read a letter upon the subject, which he had prepared to Mr Oswald, upon the subject of the tories, which we had agreed with him, that he should read, as containing his private sentiments. We had a vast deal of conversation upon the subject. My colleagues opened themselves, and made many observations concerning the conduct, crimes, and demerits of those people. Before dinner Mr Fitzherbert came in, whom I had never seen before, a gentleman of about thirtythree; seems pretty discreet and judicious, and did not discover those airs of vanity, which are imputed to him. He came in consequence of the desire I expressed yesterday, of knowing the state of the negotiation between him and the Count de Vergennes, respecting the fishery. He told us, that the Count was for fixing the boundaries where each nation should fish; he must confess he thought the idea plausible, for that there had been great

dissensions among the fishermen of the two nations; that the French Marine Office had an apartment full of complaints and representations of disputes; that the French pretended, that Cape Ray was the Point Riche.

I asked him, if the French demanded of him an exclusive right to fish and dry between Cape Bonavista and the Point Riche. He said they had not expressly, and he intended to follow the words of the Treaty of Utrecht and Paris, without stirring the point. I showed him an extract of a letter from the Earl of Egremont, to the Duke of Bedford, of March the 1st, 1763, in which it is said, that, by the 13th article of the Treaty of Utrecht, a liberty was left to the French to fish, and to dry their fish on shore; and for that purpose to erect the necessary stages and buildings, but with an express stipulation, "*de ne pas sejourner dans la dite Isle, au delà du dit tems nécessaire pour pêcher et sécher les poissons.*" That it is a received law among the fishermen, that whoever arrives first shall have his choice of the stations; that the Duc de Nivernois insisted, that by the Treaty of Utrecht, the French had an exclusive right to the fishery, from Cape Bonavista to Point Riche; that the King gave to his Grace, the Duke of Bedford, express instructions to come to an éclaircissement upon the point with the French Ministry, and to refuse the exclusive construction of the Treaty of Utrecht. I also showed him a letter from Sir Stamier Porteen, Lord Weymouth's Secretary, to Lord Weymouth, enclosing an extract of Lord Egremont's letter to the Duke of Bedford, by which it appears, that the Duc de Nivernois insisted "that the French had an exclusive right to the fishery, from Cape Bonavista to point Riche, and that they had, on ceding the island of Newfoundland to Great Britain, by the thirteenth article of the Treaty of Utrecht, expressly reserved to themselves such an exclusive right, which they had constantly been in possession of till they were entirely driven from North America, in the last war."

For these papers I am obliged to Mr Izard. Mr Fitzherbert said it was the same thing now, word for word; but he should endeavor to have the treaty conformable to those of Utrecht and Paris. But he said we had given it up by admitting the word "*exclusive*" into our treaty. I said, perhaps not; for the whole was to be conformable to the true construction of the treaties of Utrecht and Paris, and that if the English did not now admit the exclusive construction, they could not contend for it against us. We had only

contracted not to disturb them, &c. I said it was the opinion of all the fishermen in America, that England could not prevent our catching a fish, without preventing themselves from getting a dollar; that the first fare was our only advantage; that neither the English nor French could have it; it must be lost if we had it not. He said, he did not think much of the fishery, as a source of profit, but as a nursery of seamen. I told him, the English could not catch a fish the more, or make a sailor the more, for restraining us; even the French would rival them in the markets of Spain and Portugal. It was our fish they ought to call their own; because we should spend the profit with them; that the Southern States had staple commodities; but New England had no other remittances than the fishery, no other way to pay for their clothing; that it entered into our distilleries and West India trade, as well as our European trade, in such a manner, that it could not be taken out or diminished without tearing and rending; that, if it should be left to its natural course, we could hire or purchase spots of ground, on which to erect stages and buildings; but if we were straitened by treaty, that treaty would be given in instructions to Governors and Commodores, whose duty it would be to execute it; that it would be very difficult to restrain our fishermen, they would be frequently transgressing and making disputes and troubles.

He said, his principal object was to avoid sowing seeds of future wars. I said, it was equally my object, and that I was persuaded, that if the germ of a war was left anywhere, there was the greatest danger of its being left in the article respecting the fishery. The rest of the day was spent in endless discussions about the tories. Dr. Franklin is very staunch against them, more decided a great deal on this point, than Mr. Jay or myself.

Wednesday, November 27th.—Mr. Benjamin Vaughan came in, returned from London, where he had seen Lord Shelburne. He says, he finds the Ministry much embarrassed with the tories, and exceedingly desirous of saving their honor and reputation in this point; that it is reputation more than money, &c. Dined with Mr. Jay, and spent some time before dinner with him and Dr. Franklin, and all the afternoon with them and Mr. Oswald, endeavoring to come together concerning the fisheries and the tories.

Thursday, November 28th.—This morning I have drawn up the following project.

ART. III. "That the subjects of his Britannic Majesty, and the people of the said United States, shall continue to enjoy, unmolested, the right to take fish of every kind, on the Grand Bank, and on all the other banks of Newfoundland; also in the Gulf of St. Lawrence, and in all other places, where the inhabitants of both countries used at any time heretofore to fish; and the citizens of the said United States, shall have liberty to cure and dry their fish on the shores of Cape Sables, and of any of the unsettled bays, harbors, or creeks of Nova Scotia, or any of the shores of the Magdalen Islands, and of the Labrador coast. And they shall be permitted, in time of peace, to hire pieces of land for terms of years, of the legal proprietors, in any of the dominions of his said Majesty, whereon to erect the necessary stages and buildings, and to cure and dry their fish."

Friday, November 29th.—Met Mr Fitzherbert, Mr Oswald, Dr Franklin, Mr Jay, Mr Laurens, and Mr Strachey, at Mr Jay's, *Hôtel d'Orléans*, and spent the whole day, in discussions about the fishery and the tories. I proposed a new article concerning the fishery, it was discussed and turned in every light, and multitudes of amendments proposed on each side, and, at last, the article drawn as it was finally agreed to. The other English gentlemen being withdrawn upon some occasion, I asked Mr Oswald, if he could not consent to leave out the limitation of three leagues from all their shores, and the fifteen from those of Louisbourg.

He said, in his own opinion, he was for it; but his instructions were such that he could not do it. I perceived by this, and by several incidents and little circumstances before, which I had remarked to my colleagues, who were much of the same opinion, that Mr Oswald had an instruction, not to settle the articles of the fishery and refugees, without the concurrence of Mr Fitzherbert and Mr Strachey.

Upon the return of the other gentlemen, Mr Strachey proposed to leave out the word *right* of fishing, and make it *liberty*. Mr Fitzherbert said the word *right* was an obnoxious expression. Upon this, I rose up and said, gentlemen, is there, or can there be, a clearer right? In former treaties, that of Utrecht, and that of Paris, France and England have claimed the right,

and used the word. When God Almighty made the Banks of Newfoundland at three hundred leagues distance from the people of America, and at six hundred leagues distance from those of France and England, did he not give as good a right to the former as to the latter? If Heaven in the creation gave a right, it is ours at least as much as yours. If occupation, use, and possession give a right, we have it as clearly as you. If war, and blood, and treasure give a right, ours is as good as yours.

We have constantly been fighting in Canada, Cape Breton, and Nova Scotia, for the defence of this fishery, and have expended beyond all proportion more than you; if then the right cannot be denied, why should it not be acknowledged, and put out of dispute? Why should we leave room for illiterate fishermen to wrangle and chicane?

Mr Fitzherbert said, the argument is in your favor. I must confess your reasons appear to be good; but Oswald's instructions were such, that he did not see how he could agree with us; "and, for my part, I have not the honor and felicity to be a man of that weight and authority in my country, that you, gentlemen, are in yours; (this was very genteely said) I have the accidental advantage of a little favor with the present Minister, but I cannot depend upon the influence of my own opinion, to reconcile a measure to my countrymen. We can consider ourselves as little more than pens in the hands of government at home, and Mr Oswald's instructions are so particular."

I replied to this; "the time is not so pressing upon us, but that we can wait until a courier goes to London with your representations upon this subject, and others that remain between us, and I think the Ministers must be convinced."

Mr Fitzherbert said, "to send again to London, and have all laid loose before Parliament, was so uncertain a measure, it was going to sea again."

Upon this, Dr Franklin said, that "if another messenger was to be sent to London, he ought to carry something more respecting a compensation to the sufferers in America."

He produced a paper from his pocket, in which he had drawn up a claim, and he said the first principle of the treaty was equality and reciprocity.

Now they demanded of us payment of debts, and restitution, or compensation to the refugees. If a draper had sold a piece of cloth to a man upon credit, and then sent a servant to take it from him by force, and afterwards should bring his action for the debt, would any court of law or equity give him his demand, without obliging him to restore the cloth? Then he stated the carrying off of goods from Boston, Philadelphia, and the Carolinas, Georgia, Virginia, &c., and the burning of the towns, &c. and desired, that this might be sent with the rest.

Upon this, I recounted the history of General Gage's agreement with the inhabitants of Boston, that they should remove with their effects, upon condition, that they would surrender their arms; but as soon as the arms were secured, the goods were forbid to be carried out, and were finally carried off in large quantities to Halifax. Dr Franklin mentioned the case of Philadelphia, and the carrying off of effects there, even his own library. Mr Jay mentioned several other things, and Mr Laurens added the plunders in Carolina, of negroes, plate, &c.

After hearing all this, Mr Fitzherbert, Mr Oswald, and Mr Strachey retired for some time, and returning, Mr Fitzherbert said, that upon consulting together, and weighing everything as maturely as possible, Mr Strachey and himself had determined to advise Mr Oswald to strike with us, according to the terms we had proposed as our ultimatum, respecting the fishery and the loyalists. Accordingly, we all sat down, and read over the whole treaty, and corrected it, and agreed to meet tomorrow, at Mr Oswald's house, to sign and seal the treaties, which the Secretaries were to copy fair in the mean time.

I forgot to mention, that when we were upon the fishery, and Mr Strachey and Mr Fitzherbert were urging us to leave out the word *right*, and substitute the word *liberty*, I told them at last, in answer to their proposal to agree upon all other articles, and leave that of the fishery to be adjusted at the Definitive Treaty, that I could never put my hand to any articles, without satisfaction about the fishery; that Congress had three or four years ago, when they did me the honor to give me a commission to make a Treaty of Commerce with Great Britain, given me a positive instruction not to make any such treaty, without an article in the Treaty of Peace, acknowledging

our right to the fishery; that I was happy Mr Laurens was now present, who, I believed, was in Congress at the time, and must remember it. Mr Laurens, upon this, said with great firmness, that he was in the same case, and could never give his voice for any articles without this. Mr Jay spoke up, and said, it could not be a peace, it would only be an insidious truce without it.

Saturday, November 30th. St Andrews' Day.—We met first at Mr Jay's, then at Mr Oswald's, examined and compared the treaties. Mr Strachey had left out the limitation of time, the twelve months, that the refugees were allowed to reside in America, in order to recover their estates, if they could. Dr Franklin said this was a surprise upon us. Mr Jay said so too. We never had consented to leave it out, and they insisted upon putting it in, which was done.

Mr Laurens said, there ought to be a stipulation, that the British troops should carry off no negroes, or other American property. We all agreed. Mr Oswald consented.

Then the treaties were signed, sealed, and delivered, and we all went out to Passy to dine with Dr. Franklin. Thus far has proceeded this great affair. The unravelling of the plot has been to me the most affecting and astonishing part of the whole piece.

As soon as I arrived in Paris, I waited on Mr Jay, and learned from him the rise and progress of the negotiations. Nothing, that has happened since the beginning of the controversy in 1761, has ever struck me more forcibly, or affected me more intimately, than that entire coincidence of principles and opinions between him and me. In about three days I went out to Passy, and spent the evening with Dr Franklin, and entered largely into conversation with him upon the course and present state of our foreign affairs. I told him, without reserve, my opinion of the policy of this Court, and of the principles, wisdom, and firmness, with which Mr Jay had conducted the negotiation in his sickness and my absence, and that I was determined to support Mr Jay to the utmost of my power in the pursuit of the same system. The Doctor heard me patiently, but said nothing.

The first conference we had afterwards with Mr Oswald, in considering one point and another, Dr Franklin turned to Mr Jay, and said, I am of your

opinion, and will go on with these gentlemen in the business, without consulting this Court. He accordingly met with us in most of our conferences, and has gone with us, in entire harmony and unanimity throughout, and has been able and useful, both by his sagacity and his reputation in the whole negotiation. ^[15]

I was very happy, that Mr Laurens came in, although it was the last day of the conferences, and wish he could have been sooner. His apprehension, notwithstanding his deplorable affliction under the recent loss of so excellent a son, is as quick, his judgment as sound, and his heart as firm as ever. He had an opportunity of examining the whole, and judging and approving, and the article, which he caused to be inserted at the very last, that no property should be carried off, which would most probably in the multiplicity and hurry of affairs have escaped us, was worth a longer journey, if that had been all. But his name and weight is added, which is of much greater consequence. These miserable minutes may help me to recollect, but I have not found time, amidst the hurry of business and crowd of visits, to make a detail.

I should have before noted, that at our first conference about the fishery, I related the facts, as well as I understood them; but knowing nothing myself, but as a hearsay witness, I found it had not the weight of ocular testimony; to supply which defect, I asked Dr Franklin, if Mr Williams of Nantes could not give us light. He said Mr Williams was on the road to Paris, and as soon as he arrived he would ask him. In a few days, Mr Williams called on me, and said Dr Franklin had, as I desired him, inquired of him about the fishery, but he was not able to speak particularly upon that subject; but there was at Nantes a gentleman of Marblehead, Mr Samuel White, son-in-law to Mr Hooper, who was master of the subject, and to him he would write.

Mr Jeremiah Allen, a merchant of Boston, called on me about the same time. I inquired of him. He was able only to give such a hearsay account as I could give myself. But I desired him to write to Mr White, at Nantes, which he undertook to do, and did. Mr White answered Mr Allen's letter by referring him to his answer to Mr Williams, which Mr Williams received and delivered to Dr Franklin, who communicated it to us, and it contained a good account.

I desired Mr Thaxter to write to Messrs Ingraham and Bromfield, and Mr Storer to write to Captain Coffin at Amsterdam. They delivered me the answers, both contained information, but Coffin's was the most particular, and of the most importance, as he spoke as a witness. We made the best use of these letters with the English gentlemen, and they appeared to have a good deal of weight with them.

From first to last, I ever insisted upon it with the English gentlemen, that the fisheries and the Mississippi, if America was not satisfied in those points, would be the sure and certain sources of a future war, showed them the indispensable necessity of both to our affairs, and that no treaty we could make, which should be unsatisfactory to our people upon those points, could be observed; that the population near the Mississippi would be so rapid, and the necessities of the people for its navigation so pressing, that nothing could restrain them from going down, and if the force of arms should be necessary, it would not be wanting; that the fishery entered into our distilleries, our coasting trade, our trade with the Southern States, with the West India Islands, with the coast of Africa, and with every part of Europe in such a manner, and especially with England, that it could not be taken from us, or granted us stingily, without tearing and rending; that the other States had staples, we had none but fish, no other means of remittances to London, or paying those very debts they had insisted upon so seriously; that if we were forced off, at three leagues distance, we should smuggle eternally, that their men-of-war might have the glory of sinking, now and then, a fishing schooner, but this would not prevent a repetition of the crime, it would only inflame, and irritate, and enkindle a new war, that in seven years we should break through all restraints, and conquer from them the island of Newfoundland itself, and Nova Scotia too.

Mr Fitzherbert always smiled, and said it was very extraordinary that the British Ministry and we should see it in so different a light. That they meant the restriction, in order to prevent disputes, and kill the seeds of war, and we should think it so certain a source of disputes, and so strong a seed of war; but that our reasons were such, that he thought the probability on our side.

I have not time to minute the conversation about the sea-cow fishery, the whale fishery, the Magdalen Islands, the Labrador coasts, and the coasts of

Nova Scotia. It is sufficient to say, they were explained to the utmost of our knowledge, and finally conceded.

I should have noted before, the various deliberations between the English gentlemen and us, relative to the words, "indefinite and exclusive right," which the Count de Vergennes and M. Gerard had the precaution to insert in our treaty with France. I observed often to the English gentlemen, that, aiming at excluding us from fishing upon the north side of Newfoundland, it was natural for them to wish that the English would exclude us from the south side. This would be making both alike, and take away an odious distinction. French statesmen must see the tendency of our fishermen being treated kindly and hospitably, like friends, by the English on their side of the Island, and unkindly, inhospitably, and like enemies, on the French. I added, further, that it was my opinion, neither our treaty with the French, nor any treaty or clause to the same purpose, which the English could make, would be punctually observed. Fishermen, both from England and America, would smuggle, especially the Americans, in the early part of the spring, before the Europeans could arrive. This, therefore, must be connived at by the French, or odious measures must be resorted to by them or us to suppress it, and, in either case, it was easy to see what would be the effect upon the American mind. They, no doubt, therefore, wished the English to put themselves upon as odious a footing at least as they had done.

Dr Franklin said, that there was great weight in this observation, and the Englishmen showed plainly enough that they felt it.

I have not attempted, in these notes, to do justice to the arguments of my colleagues; all of whom were throughout the whole business, when they attended, very attentive and very able, especially Mr Jay, to whom the French, if they knew as much of his negotiations as they do of mine, would very justly give the title, with which they have inconsiderately decorated me, that of "*Le Washington de la négociation*," a very flattering compliment indeed, to which I have not a right; but sincerely think it belongs to Mr Jay.

Tuesday, December 3d.—Visited M. Brantzen, *Hôtel de la Chine*. M. Brantzen asked me, how we went on? I told him we had come to a full stop, by signing and sealing the preliminaries the 30th of November. I told him, that we had been very industrious, having been at it forenoon, afternoon,

and evening, ever since my arrival, either with one another, or with the English gentlemen. He asked if it was definitive and separate? I said by no means. They were only articles to be inserted in the definitive treaty. He asked, if there was to be any truce or armistice in the mean time? I said again, by no means.

He then said, that he believed France and England had agreed too; that the Count de Vergennes' son was gone to England with M. de Rayneval; but he believed the Spaniards had not yet agreed, and the Dutch were yet a great way off, and had agreed upon nothing. They had had several conferences. At the first, he had informed Mr Fitzherbert, that their High Mightinesses insisted upon the freedom of navigation as a preliminary and a *sine qua non*. Mr Fitzherbert had communicated this to his Court, but the answer received was, that his Court did not approve of conceding this as a *sine qua non*, but chose to have all the demands of their High Mightinesses stated together. M. Brantzen answered, that his instructions were, not to enter into any conferences upon other points, until this was agreed. That it was the intention of the British Court to agree to this. That he could not consider any changes in the Ministry as making any alteration. They were all Ministers of the same King, and servants of the same nation. That Mr Fox, when he was Secretary of State, by his letter to the Russian Minister, had declared the intention of the King to consent to the freedom of navigation, &c.

M. Brantzen said, however, that he had in his private capacity and without compromising his ministerial character, entered into explanations with Mr Fitzherbert, and had told him that he should insist upon three points, the freedom of navigation, the restitution of territories in the East and West Indies, and compensation for damages. The two first points could not be disputed, and the third ought not be; for the war against them had been unjust, the pretences for it were groundless, their accession to the armed neutrality must now be admitted, even by Britain's accession to it, to have been an illegitimate cause of war, and the object of a treaty with America could not be seriously pretended to be a just cause of war; and many members of Parliament had in the time of it declared the war unjust, and some of those members were now Ministers; even the prime Minister, my Lord Shelburne himself, had freely declared the war unjust in the House of

Peers; and if the war was unjust, the damages and injustice ought to be repaired.

Mr Fitzherbert said, that there was no precedent of compensation for damages in a treaty of peace. M. Brantzen begged his pardon, and thought there had been instances. One example in particular, which the English themselves had set against the Dutch, which just then came into his head. Cromwell had demanded compensation of them, and they had agreed, as now appears by the treaty, to pay a hundred thousand pounds sterling as a compensation.

M. Brantzen was not furnished with a full account of all the losses of individuals, and therefore could not precisely say what the amount would be. That perhaps they might not insist upon prompt payment, nor upon a stated sum, but might leave both the sum and time of payment to be ascertained by commissioners at their leisure after the peace.

I observed to him, that we intended to write to Mr Dana, and send him a copy of our preliminaries, that he might commence his negotiations with the neutral powers, and if he succeeded we could then make common cause with Holland, and insist on an article to secure the freedom of navigation. This idea he received with great pleasure, and said he would write about it to the States. Upon this I asked him, with whom he and the other Dutch Ministers abroad, held their correspondence? He answered, that the Secretary Fagel was properly speaking the Minister of Foreign Affairs. That their principal correspondence was with him; but that they had a correspondence with the Grand Pensionary Bleiswick too. That the letters received by the Secretary were laid before the *Besogne Secrète*, or Committee of Secresy. This committee consisted of so many members, one at least for each Province, that it was very difficult to keep anything secret. Foreign Ministers were very inquisitive, and the Duc de la Vauguyon would be likely to get at it. So that if they had any to write, which they wished secret, they wrote it to the Grand Pensionary, who is not obliged to lay before the States letters entire. He selects such parts as he judges proper, and prints them, to be taken *ad referendum*, and laid before the Regencies of the cities. That they had sometimes a little diffidence of this Court (*quelque méfiance*), for this Court was very fine (*diablement fine*), and

when this happened, they wrote to the Grand Pensionary, that it might not be communicated to the French Minister, and consequently to his Court. "These people are vastly profound, They will not favor the Spaniards in obtaining the Floridas. They will play England against Spain, and Spain against England. England against you, and you against England, and all of you against us, and us against all of you, according to their own schemes and interests. They are closely buttoned up about Gibraltar, and as to Jamaica, they will not favor Spain in that view. I expect they will get their own affairs arranged, and then advise England to agree to the freedom of navigation and a restitution of territory, and then advise us to be very easy about compensation." Thus M. Brantzen.

I next visited Mr Jay, to talk about writing to Mr Dana, and communicating to the neutral powers the preliminary articles. Mr Jay says, that Mr Oswald is very anxious that his Court should do that, and he has been writing to the ministry to persuade them to it. Had a long conversation with Mr Jay about the manner of settling the western lands. This I cannot now detail.

Went next to Mr Laurens, upon the subject of writing to Mr Dana, and found him full in my sentiments, and at my return found answers from Dr Franklin and Mr Laurens to the letters I wrote them, both agreeing that this is the critical moment for Mr Dana to commence his negotiations. Doctor Franklin promises to have an authentic copy made to send to Mr Dana.

In the evening many gentlemen came in, among the rest Mr Bourse, the agent of the Dutch East India company, Who expressed a good deal of anxiety about their negotiations, and feared they should not have justice in the East Indies.

Wednesday, December 4th.—It is proper that I should note here, that in the beginning of the year 1780, soon after my arrival at Paris, Mr Galloway's pamphlets fell into my hands. I wrote a long series of letters to a friend, in answer to them. That friend sent them to England, but the printers dared not publish them. They remained there until last summer, when they were begun to be printed, and are continued to this day, (not being yet quite finished,) in Parker's General Advertiser, but with false dates, being dated in the months of January and February last, under the title of "Letters from a distinguished American." They appear to have been well received, and to

have contributed somewhat to unite the nation in accelerating the acknowledgment of American independence, and to convince the nation of the necessity of respecting our alliances, and making peace.

I hope it will be permitted to me, or to some other who can do it better, some ten or fifteen years hence, to collect together in one view, my little negotiations in Europe. Fifty years hence it may be published, perhaps twenty. I will venture to say, however feebly I may have acted my part, or whatever mistakes I may have committed, yet the situations I have been in, between angry nations and more angry factions, have been some of the most singular and interesting, that ever happened to any man. The fury of enemies, as well as of elements, the subtlety and arrogance of allies, and, what has been worse than all, the jealousy, envy, and little pranks of friends and copatriots, would form one of the most instructive lessons in morals and politics, that ever was committed to paper.

Monday, December 9th.—Visited Mr Jay. Mr Oswald came in. We slid from one thing to another, into a very lively conversation upon politics. He asked me what the conduct of his Court and nation ought to be in relation to America. I answered, the alpha and omega of British policy towards America was summed up in this one maxim, see that American independence is independent,—independent of all the world,—independent of yourselves, as well as of France,—and independent of both, as well as the rest of Europe. Depend upon it, you have no chance for salvation, but by setting up America very high; take care to remove from the American mind all cause of fear of you; no other motive but fear of you will ever produce in the Americans any unreasonable attachment to the House of Bourbon. "Is it possible," says he, "that the people of America should be afraid of us, or hate us?" "One would think, Mr Oswald," said I, "that you had been out of the world for these twenty years past; yes, there are three millions of people in America, who hate and dread you more than anything in the world." "What," said he, "now we have come to our senses?" "Your change of system is not yet known in America," said I. "Well," said he, "what shall we do to remove those fears and jealousies?" "In one word," said I, "favor and promote the interest, reputation, and dignity of the United States, in everything that is consistent with your own. If you pursue the plan of cramping, clipping, and weakening America, on the supposition, that she

will be a rival to you, you will make her really so; you will make her the natural and perpetual ally of your natural and perpetual enemies." "But in what instance," said he, "have we discovered such a disposition?" "In the three leagues from your shores, and the fifteen leagues from Cape Breton," said I, "to which your Ministry insisted so earnestly to exclude our fishermen. Here was a point, that would have done us great harm, and you no good; on the contrary, harm; so that you would have hurt yourselves to hurt us; this disposition must be guarded against." "I am fully of your mind, about that," said he, "but what else can we do?" "Send a Minister to Congress," said I, "at the peace, a clever fellow, who understands himself, and will neither set us bad examples, nor intermeddle in our parties. This will show, that you are consistent with yourselves; that you are sincere in your acknowledgment of American independence; and that you do not entertain hopes and designs of overturning it. Such a Minister will dissipate many fears, and will be of more service to the least obnoxious refugees, than any other measure could be. Let the King send a Minister to Congress, and receive one from that body. This will be acting consistently, and with dignity, in the face of the universe." "Well, what else shall we do?" said he. "I have more than once already," said I, "advised you to put your Ministers upon negotiating the acknowledgment of our independence by the neutral powers." "True," said he, "and I have written, about it, and in my answers," said he, laughing, "I am charged with speculation; but I do not care, I will write them my sentiments. I will not take any of their money. I have spent already twelve or thirteen hundred pounds, and all the reward I will have for it shall be the pleasure of writing as I think. My opinion is, that our Court should sign the armed neutrality, and announce to them what they have done with you, and negotiate to have you admitted to sign too. But I want to write more fully on the subject, I want you to give me your thoughts upon it, for I do not understand it so fully as I wish. What motives can be thrown out to the Empress of Russia? Or what motives can she be supposed to have to acknowledge your independence? And what motives can our Court have to interfere, or intercede with the neutral powers, to receive you into their confederation?"

"I will answer all these questions," said I, "to the best of my knowledge, and with the utmost candor. In the first place, there has been, with very little interruption, a jealousy between the Court of Petersburg and Versailles for

many years. France is the old friend and ally of the Sublime Porte, the natural enemy of Russia. France, not long since, negotiated a peace between Russia and the Turks; but upon the Empress' late offers of mediation, and especially her endeavors to negotiate Holland out of the war, France appears to have been piqued, and, as the last revolution in the Crimea happened soon after, there is reason to suspect that French emissaries excited the revolt against the new independent government, which the Empress had taken so much pains to establish. Poland has been long a scene of competition between Russian and French politics, both parties having spent great sums in pensions to partisans, until they have laid all virtue and public spirit prostrate in that country. Sweden is another region of rivalry between France and Russia, where both parties spent such sums in pensions, as to destroy the principles of liberty, and prepare the way for that revolution, which France favored from a principle of economy, rather than any other. These hints are sufficient to show the opposition of views and interests between France and Russia, and we see the consequence of it, that England has more influence at Petersburg than France. The Empress, therefore, would have two motives, one, to oblige England, if they should intercede for an acknowledgment of American independence, and another, to render America less dependent upon France. The Empress, moreover loves reputation, and it would be no small addition to her glory to undertake a negotiation with all the neutral Courts, to induce them to admit America into their confederacy. The Empress might be further tempted; she was bent upon extending her commerce, and the commerce of America, if it were only in duck and hemp, would be no small object to her. As to the motives of your Court, Princes often think themselves warranted, if not bound, to fight for their glory; surely they may lawfully negotiate for reputation. If the neutral powers should acknowledge our independence now, France will have the reputation, very unjustly, of having negotiated it; but if your Court now takes a decided part in favor of it, your Court will have the glory of it, in Europe and in America, and this will have a good effect upon American gratitude." "But," said he, "this would be negotiating for the honor and interest of France, for no doubt France wishes all the world to acknowledge your independence." "Give me leave to tell you, Sir," said I, "you are mistaken. If I have not been mistaken in the policy of France, from my first observation of it to this hour, they have been as averse to other powers acknowledging our independence as you have been." Mr Jay joined me in

the same declaration. "I understand it now," said he; "there is a gentleman going to London this day, I will go home and write upon the subject by him."

Tuesday, December 10th.—Visited Mr Oswald, to inquire the news from England. He had the *Courier de l'Europe*, in which is Mr Secretary Townshend's letter to the Lord Mayor of London, dated the 3d instant, in which he announces the signature of the preliminaries, on the 30th of November, between the Commissioners of his Majesty, and the Commissioners of the United States of America. He had also the King's speech, announcing the same thing.

Mr Oswald said, that France would not separate her affairs from Spain; that he had hoped that America would have assisted them somewhat, in compromising affairs with France; and Dr Franklin, who was present, said he did not know anything of the other negotiations. He said that neither Mr Fitzherbert, nor the Count de Vergennes, nor the Count d'Aranda, communicated anything to him, that he understood the Dutch were farthest from an agreement. Upon this, I said, "Mr Oswald, Mr Fitzherbert cannot, I think, have any difficulty to agree with M. Brantzen. There are three points, viz. the liberty of navigation; restitution of possessions; and compensation for damages. The liberty of navigation, I suppose, is the point that sticks. But why should it stick? When all nations are agreed in the principle, why should England stand out? England must agree to it, she has already in effect agreed to it; as it affects all nations but Holland and America, and, if she were disposed, she could not prevent them from having the benefit." Upon this, Dr Franklin said, "the Dutch would be able in any future war, to carry on their commerce, even of naval stores, in the bottoms of other neutral powers." "Yes," said Mr Oswald, "and I am of opinion, that England ought to subscribe the armed neutrality." "Very well," said I, "then let Mr Fitzherbert agree to this point with M. Brantzen, and let Mr Harris, at Petersburg, take Mr Dana in his hand, and go to the Prince Potemkin, or the Count d'Ostermann, and say, the king, my master, has authorised me to subscribe the principles of the armed neutrality, and instructed me to introduce to you, Mr Dana, Minister from the United States of America, to do the same. Let him subscribe his name under mine."

At this, they all laughed very heartily. Mr Oswald, however, recollecting himself, and the conversation between him and me, yesterday, on the same subject, very gravely turned it off, by saying, "he did not see a necessity to be in a hurry about that, America was well enough." I said, "as to restitution of the Dutch territories, I suppose your Court will not make much difficulty about that, if this Court does not, as it is not probable they will, and as to compensation for damages, the Dutch will probably be as easy as they can about that."

Dr Franklin said, he was for beginning early to think about the articles of the definitive treaty. We had been so happy as to be the first in the preliminaries, and he wished to be so in the definitive articles. Thus we parted.

Thursday, December 12th.—Met at Mr Laurens', and signed the letter I had drawn up to Mr Dana, which I sent off, enclosed with a copy of the preliminaries, and consulted about articles to be inserted in the definitive treaty. Agreed that Mr Jay and I should prepare a joint letter to Congress. At seven o'clock, I met Mr Jay at his house, and we drew up a letter.

Friday, December 13th.—I went first to Mr Jay, and made some addition to the joint letter, which I carried first to Mr Laurens, who made some corrections and additions, and then to Passy, to Dr Franklin, who proposed a few other corrections, and showed me an article he had drawn up for the definitive treaty, to exempt fishermen, husbandmen, and merchants, as much as possible, from the evils of future wars. This is a good lesson to mankind, at least. All agreed to meet at my house, at eleven o'clock tomorrow, to finish the joint letter.

END OF THE SIXTH VOLUME.

FOOTNOTES:

[1] Mr Adams arrived at Paris on the 6th of July, and consequently could not have written this letter in Amsterdam on the 5th, although it is thus dated in the original. He was absent during the whole month of July, and yet several letters, as will be seen, are dated at Amsterdam in that time. These letters contain chiefly intelligence, which was probably collected by his Secretary, under different dates during Mr Adams' absence, and forwarded by him on his return without altering the dates. This will account for the circumstance of letters being dated throughout the month of July, both at Amsterdam and Paris.

[2] See pp. [147](#) and [148](#).

[3] See the *Secret Journals of Congress*, Vol. II. p. 470, 472.

[4] The new commission for negotiating peace was given to John Adams, Benjamin Franklin, John Jay, Henry Laurens, and Thomas Jefferson. See the Commission and Instructions in the *Secret Journals of Congress*. Vol. II. pp. 445, 447.

[5] For these instructions, and Mr Adams' new commission to form a treaty of alliance with the United Provinces, see the *Secret Journals of Congress*, Vol. II pp. 470, 472.

[6] See Dr Franklin's letters to Major Jackson, on this subject, in Franklin's Correspondence, Vol. III. pp. 227, 229.

[7] The plan of a treaty sent to Mr Adams by Congress, may be found in the *Secret Journals of Congress*, Vol. II. p. 378.

[8] These letters were afterwards printed under the title of *Twentysix Letters upon Interesting Subjects, respecting the Revolution in America*.

[9] The salary allowed the Ministers abroad at that time, was two thousand five hundred pounds sterling a year.

[10] From Mr Adams's remarks, at the end of this Memorial, it would seem to have been furnished him by another hand.

[11] The Treaty mentioned in this letter, and the Convention respecting vessels recaptured, were ratified by Congress, on the 23d of January, 1783. The Treaty and Convention are printed at large, together with the form of ratification, in the Journal of Congress under this date.

[12] See Franklin's Correspondence, Vol. IV. p. 48. Also the North American Review for January, 1830, p. 21.

[13] This proved to be an error. Mr Jay wrote to Doctor Franklin, on the 26th of January, 1783, as follows, "It having been suspected, that I concurred in the

appointment of your grandson to the place of Secretary to the American Commission for Peace, *at your instance*, I think it right thus unsolicited to put it in your power to correct the mistake, &c." See the whole letter in *Franklin's Correspondence*, Vol. IV. p. 73.

[14] These papers will be found in the Correspondence of the Ministers for negotiating a peace.

[15] For some account of the part taken by Dr Franklin, in regard to the Treaty, before the arrival of Mr Jay and Mr Adams in Paris, see the North American Review, for January, 1830, No. 66, p. 15.

TRANSCRIBER'S NOTE.

Omitted words, shown as blank spaces in the original, have been transcribed as —.

Every effort was made to match the original text. Spelling variations between letters have been preserved. The following apparent typographical errors were corrected:

"losses" for "loress"	page 29
"triple" for "tripple"	page 215
"controlling" for "controlling"	page 382

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